



Enforcement Rules of KOSDAQ Market Listing Regulation

Wholly amended on October 27, 2021

*Amended on
February 14, 2022; March 17, 2022; April 29, 2022; September 27, 2022, December 9, 2022
March 9, 2023; December 28, 2023
June 14, 2024; July 12, 2024
February 27, 2025; July 3, 2025; July 9, 2025; November 24, 2025
March 16, 2026; March 31, 2026*

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CHAPTER I. GENERAL PROVISIONS

§1. Purpose

The purpose of these Enforcement Rules is to stipulate the terms of reference and the matters necessary for the enforcement of the KOSDAQ Market Listing Regulation.

§2. Professional Investors

“A professional investor stipulated in the Enforcement Rules” in [§2(1)15] of the KOSDAQ Market Listing Regulation (hereinafter referred to as “the Regulation”) shall refer to a person who falls under any of the following subparagraphs:

1. Professional investors under subparagraphs 1 and 2 of Article 10(1) of the Enforcement Decree of the Financial Investment Services and Capital Markets Act (hereinafter referred to as “the Enforcement Decree of the Act”);
2. Professional investors under subparagraphs 1 through 10 and 13 through 16 of Article 10(2) of the Enforcement Decree of the Act. Provided that, from among the financial investment companies under subparagraph 8 of Article 10(2) of the Enforcement Decree of the Act, the trust business entity, discretionary investment business entity and investment advisory business entity shall be excluded;
3. Professional investors under subparagraphs 3 and 10 through 13 of Article 10(3) of the

Enforcement Decree of the Act;

4. Business development collective investment vehicle under subparagraph 1 of [§85-2] of the Regulation; and [March 16, 2026]
5. As the professional investors equivalent to those noted in subparagraphs 1 through 4, those professional investors for whom the Korea Exchange (hereinafter referred to as “the Exchange”) deems it appropriate to exclude the shares held by them when calculating the number of shares owned the largest shareholder under [§2(1)13] of the Regulation (hereinafter referred to as “the largest shareholder”) in consideration of the nature of the relevant investors and the purpose of their shareholding, etc. (Amended on March 16, 2026)

§3. Stocks Issued by Capital Increase without Consideration

“The stocks issued by capital increase without consideration specified in the Enforcement Rules” in the latter part of [§2(1)18] of the Regulation shall refer to capital increase without consideration in accordance with any of the following subparagraphs: (Amended on March 17)

1. The capitalization of reserve pursuant to Article 461 of the Commercial Act; and
2. The transfer into capital pursuant to Article 30 of the Assets Revaluation Act.

§4. Determination Criteria for Foreign Holding Company and Foreign Holding Company Located in Korea

The aggregated value of stocks of the foreign subsidiaries and the total assets of foreign holding companies or foreign holding companies located in Korea under [§2(1)25 and §2(1)26] of the Regulation shall be based on the aggregated value and the total assets as the end of the latest business year. Provided that, in cases where documents that confirm the current value of stocks and the total assets are submitted after the end of the latest business year, the aggregated value and the total assets as of the date of the concerned documents may be accepted in lieu thereof.

§5. Eligible Foreign Securities Markets

“An overseas securities market specified in the Enforcement Rules” in [§2(1)33] of the Regulation shall refer to any of the following securities markets:

1. NYSE (New York Stock Exchange);
2. NASDAQ Stock Market;
3. Euronext;

4. Tokyo Stock Exchange;
5. London Stock Exchange;
6. Deutsche Börse;
7. Hong Kong Exchanges and Clearing;
8. Singapore Exchange;
9. Australian Securities Exchange;
10. Toronto Stock Exchange; and
11. Other overseas securities markets that are recognized by the Exchange in view of such factors as the reliability, liquidity, and transparency of the market.

§6. Calculation Methods of Base Market Capitalization

“The amount determined according to the methods stipulated in the Enforcement Rules” under [§2(1)34(b)] of the Regulation shall refer to the amount calculated by the method in each of the following subparagraphs:

1. Case of listing stocks or DRs of foreign stocks issued by a company listed on an overseas securities market: The amount obtained by multiplying the arithmetic average of the closing prices for the past ninety (90) days from the listing application date of the stocks (referring to the underlying stocks for DRs of foreign stocks) listed on the overseas securities market by the total number of outstanding shares as of the listing application date.
2. Case of listing by making public offering both in Korea and abroad at the same time: The amount determined by multiplying the lower price between the primary offering price and the secondary offering price by the number of stocks to be listed as of the listing application date; and
3. Other cases: The amount determined by the methods that the Exchange sets separately.

§7. Provincial Venture Companies

“Venture companies located in the provinces stipulated in the Enforcement Rules” in the proviso to [§2(1)38(a)] of the Regulation shall refer to the venture companies whose head offices and places of main business are located in the areas other than Seoul Metropolitan City, Incheon Metropolitan City and Gyeonggi Province.

§8. Accounting Standards for Foreign Subsidiaries

(1) “The matters set forth in the Enforcement Rules” in [§3(3)] of the Regulation shall refer to the matters specified in each of the following subparagraphs:

1. Details of the differences between the accounting standards adopted by the foreign subsidiaries and the accounting standards noted in each subparagraph of [§3(2)] of the Regulation (hereinafter referred to as the “comparative accounting standards” in this paragraph);
2. Effects of the details noted in subparagraph 1 on the financial statements of the foreign subsidiaries; and
3. Financial statements of the latest business year prepared in the format of comparison by applying the comparative accounting standards to the foreign subsidiaries.

(2) The listing applicant shall submit to the Exchange a document stating the matters noted in each subparagraph of paragraph (1) along with the audit report of the foreign subsidiaries concerned.

§9. Financial Documents

“Financial statements specified in the Enforcement Rules” in the former part of [§6(3)] of the Regulation shall refer to financial documents among the documents for applying for the preliminary listing review in [Annex 1].

§10. Notification of Result of Preliminary Listing Review

(1) In accordance with the proviso to [§6(4)] of the Regulation, in cases where any of the followings occurs, the Exchange shall notify the result of preliminary listing review within thirty (30) days (based on business days; hereinafter the same shall apply in this Article) from the date when the application for preliminary listing review is received. Provided that, this provision shall not apply to the listing applicant pursuant to [§6(4)2] of the Regulation. (Amended on December 28, 2023)

1. Preliminary listing reviews for prompt-transfer companies pursuant to [§31(1)] of the Regulation;
2. Preliminary listing reviews for large-sized corporations pursuant to [§32(1)] of the Regulation;
3. Preliminary listing reviews for listing after merger pursuant to [§75(4)]; and
4. Preliminary listing reviews for innovative technology companies falling under [§28(1)1(a)(v)].

(2) “Cases specified in the Enforcement Rules” in [§6(5)3] of the Regulation shall refer to any of the following cases: (Amended on March 9, 2023)

1. Case where an official challenge has been filed against a member of the KOSDAQ Market Listing Committee (hereinafter referred to as “the Listing Committee”)
2. Case where additional data is requested and reviewed to confirm important matters related to financial status, business activities, governance structure, internal control system, etc. of applicants for preliminary listing review;
3. Case where the number of applicants for preliminary listing review sharply increases in a short period of time, where the deliberation of the Listing Committee is extended, or where it is necessary to finalize the financial statements;
4. Case where, considering the deliberation schedule of the Listing Committee, the Exchange determines that it is difficult to secure a sufficient time for review during the period between the application date for preliminary listing review and the meeting date of the Listing Committee. In such cases, the notification of the result of preliminary listing review may be postponed within a period of fifteen (15) days. (Amended on July 9, 2025)
5. Case where a listing sponsor of a foreign company or foreign holding company located in Korea, to which a quantitative cause of delisting or a cause of delisting subsequent to the listing maintenance review has occurred within one (1) year from the initial listing date, makes an arrangement for initial listing of stocks of another foreign company or foreign holding company located in Korea within one (1) year from the day when the concerned cause for delisting was confirmed through public disclosures, etc. (based on the application date for preliminary listing review). In such cases, the notification of the result of preliminary listing review may be postponed within a period of one (1) month.

(3) Outstanding export companies and any registered or designated corporations in the K-OTC Market which are prioritized for the review pursuant to [§6(6)] of the Regulation shall be as follows: (Amended on April 29, 2022)

1. Outstanding export companies: Venture companies whose exports account for 50/100 or more of its total sales as of the end of the latest business year; and
2. Registered or designated corporations in K-OTC Market: Corporations that meet the requirement of each subparagraph of [§26(5)].

(4) Pursuant to [§6(6)] of the Regulation, the Exchange shall preferentially review the listing applicant in each of the following subparagraphs within the scope specified in each subparagraph. Provided that, this provision shall not apply to the cases where the notification of the result of preliminary listing review may be made within the period mentioned in [§6(4)] of the Regulation:

1. Registered or designated corporations in K-OTC Market pursuant to paragraph (3)2:

Within 10/100 of the corporations subject to the following review; and

2. Provincial venture companies pursuant to [§7] or outstanding export companies under paragraph (3)1: Within 20/100 of the corporations subject to the following review.

§11. Selection of Specialized Assessment Institution and Specialized Assessment Procedures, etc.

(Amended on December 28, 2023)

(1) The Exchange shall appoint a specialized assessment institution with expertise to assess technical capacity, etc. of listing applicants pursuant to [§7(1)] of the Regulation.

(2) A company that falls under any of the following subparagraphs shall undergo an assessment for technology, etc. by the specialized assessment institution designated by requesting the designation of a specialized assessment institution to the Exchange: (Amended on December 28, 2023)

1. A company that wishes to be listed as an innovative technology company (excluding the innovative technology companies falling under [§28(1)2] and [§67(1)2]). In such cases, the company shall go through an assessment by the specialized assessment institution before the application date of preliminary listing review; and
2. Other companies that the Exchange deems that an assessment by the specialized assessment institution is necessary for the purpose of listing review.

(3) The service fees to be paid to the specialized assessment institution shall be borne by the concerned company in the case of paragraph (2)1, and by the Exchange in the case of paragraph (2)2.

(4) Only in the case where the company that has gone through the assessment for technology, etc. pursuant to paragraph (2)1 applies for the preliminary listing review within six (6) months from the date of notification on the assessment result, the result of concerned assessment shall be valid.

(5) In addition to the provisions of paragraphs (1) through (4), the matters necessary for the selection of specialized assessment institutions, specialized assessment procedures and assessment ratings shall be established separately by the Exchange.

§12. Operation of Expert Meeting, etc.

(Amended on December 28, 2023)

(1) Pursuant to [§7(1)] of the Regulation, the Exchange may establish and operate expert meetings for the purpose of carrying out a technical analysis of the industry to which the applicant for preliminary listing review belongs, obtaining professional and objective information on the concerned industry and reflecting review opinions.

(2) In cases where it deems necessary to obtain advice on technological prowess or growth potential, etc. of a listing applicant, the Exchange may convene an expert meeting.

(3) The Exchange shall separately specify the matters necessary for the establishment and operation of the expert meeting pursuant to paragraph (1). (Amended on December 28, 2023)

§13. Invalidation of Result of Preliminary Listing Review

(1) “Cases stipulated in the Enforcement Rules” in [§8(1)7] of the Regulation shall refer to any of the following:

1. Case of issuing stocks, etc. by a third-party allotment from the application date for the preliminary listing review to the day before the listing day. Provided that, this provision shall not apply to cases where the listing sponsor intends to acquire stocks to fulfill the investment obligations pursuant to [§13(5)] of the Regulation; and
2. Other cases that the Exchange deems necessary for public interest and investor protection.

(2) In cases where a listing applicant re-applies for a preliminary listing review pursuant to [§8(4)] of the Regulation, the application form for each listing type specified in [Annex 1] and attachments thereto shall be submitted. Provided that, the submission of such documents may be omitted in case where the documents are identical to those submitted for the preliminary listing review.

§14. Procedures for Filing an Objection to Result of Preliminary Listing Review, etc.

(1) A listing applicant who raises an objection to the result of preliminary listing review pursuant to [§10(1)] of the Regulation shall submit the following documents to the Exchange through its listing sponsor:

1. A statement of grounds for objection to the decision of the Exchange and documentary evidence;
2. An opinion letter of the listing sponsor; and
3. Other documents that the Exchange deems necessary in relation to the objection.

(2) The Exchange shall convene the KOSDAQ Market Committee (hereinafter referred to as “the Market Committee”) within fifteen (15) days (based on business days; hereinafter the same shall apply in this Article) from the date when the documents pursuant to paragraph (1) were submitted. In such cases, the Exchange shall grant at least one (1) opportunity to the representative of the concerned listing applicant to express his/her opinion. (Amended on July 9, 2025)

(3) The Exchange shall notify the listing applicant of the outcome of deliberation within three (3) days from the date of deliberation and decision by the Market Committee under paragraph (2). In such cases, the listing applicant may not file another objection to the decision of the Market Committee.

§15. Fulfillment of Obligations of Listing Sponsors, etc.

(1) In the process of corporate due diligence pursuant to [§13(1)] of the Regulation, a listing sponsor shall receive a confirmation letter, which proves that the financial situation of the listing applicant has been stated in a true and accurate manner based on facts, from the representative director, etc. of the listing applicant.

(2) A listing sponsor who has arranged an initial listing (limited to an initial listing of common stocks or foreign stocks), backdoor listing, or listing after merger pursuant to the main sentence of [§13(4)] of the Regulation shall submit a business analysis report of the concerned KOSDAQ-listed corporation to the Exchange at least once for each half-year period for three (3) years from the date of listing and post the report on the website of the listing sponsor. Provided that, in cases where the period from the listing date to the last day of the semi-annual period to which the listing date belongs is less than two (2) months, this provision shall be applied from the first day of the following half-year period of the semi-annual period to which the date of listing belongs.

(3) In cases where the Exchange confirmed that a listing sponsor has violated the obligation under paragraph (2), the Exchange may post such fact on the website, etc. of the Exchange.

(4) In cases where a listing sponsor acquires stocks (including DRs of foreign stocks; hereinafter the same shall apply in this paragraph) pursuant to [§13(5)] of the Regulation, the requirements in each of the following subparagraphs shall be satisfied:

1. Acquisition method: The stocks issued by way of private placement shall be acquired;
2. Acquisition time: The relevant stocks shall be acquired during the period from the application date for preliminary listing review to the application date for initial listing; and
3. Acquisition quantity: In cases where the listing sponsor acquires a remaining quantity in accordance with the underwriting agreement entered into with the listing applicant as no one acquired some stocks offered for primary offering or secondary offering, such acquisition quantity shall be included.

(5) “In the case where the listing sponsor falls under the reasons prescribed by the Enforcement Rules” in the proviso to [§13(5)1(b)] of the Regulation shall refer to the case where a technology growth company for which the listing sponsor arranged listing within the past three (3) years as of the date of application for preliminary listing review has been designated as an investment attention issue or administrative issue within two (2) years after listing or the case

where the technology growth company falls under formal requirements for delisting or a reason for delisting due to the listing maintenance review. [December 28, 2023] (Previous paragraph (5) moved to paragraph (6) on December 28, 2023)

(6) Pursuant to [§13(8)] of the Regulation, a listing sponsor shall post a business model evaluation report on the websites, etc. of the Exchange and the listing sponsor within seven (7) days from the date of notification on the approval for the preliminary listing review. Provided that, any confidential matters, etc. of the concerned company, which are included in the business model evaluation report, may be excluded from the posting in consultation with the Exchange. (Moved from paragraph (5), Previous paragraph (6) moved to paragraph (7) on December 28, 2023)

(7) Pursuant to [§13(9)] of the Regulation, a listing sponsor shall post a report on corporate continuity in [Annex Form 10-2] on the websites, etc. of the Exchange and the listing sponsor within seven (7) days from the date of notification on the approval for the preliminary listing review. In such cases, the proviso to paragraph (6) shall apply *mutatis mutandis*. [April 29, 2022] (Moved from paragraph (6) on December 28, 2023)

§16. Qualifications for Auditors of Foreign Companies

(1) “A person who meets the requirements set forth in the Enforcement Rules” in [§15(1)1] of the Regulation shall refer to a person who meets all of the requirements noted in each of the following subparagraphs:

1. Five (5) years have elapsed since the incorporation;
2. Number of affiliated certified public accountants shall be at least fifty (50);
3. The sales amount of latest business year shall be KRW 10 billion or more;
4. Any of the following requirements shall be met:
 - (a) The sum of the reserve for damage compensation under Article 28 of the Certified Public Accountant Act and the joint fund for damages under Article 32 of the Act on External Audit of Stock Companies (hereinafter referred to as the “Act on External Audit”) shall be at least KRW 2 billion; or
 - (b) The compensation liability insurance policy under Article 38(1) of the Enforcement Decree of the Act on External Audit of Stock Companies (hereinafter referred to as the “Enforcement Decree of the Act on External Audit”) shall have been purchased.
5. Among foreign accounting auditors pursuant to Article 169(3) of the Act (hereinafter referred to as the “foreign accounting auditor” in this Article), an agreement for management of audit quality shall have been entered into with the foreign accounting auditor who satisfies all of the following items:
 - (a) Member companies shall be distributed in at least thirty (30) countries; and

(b) Number of certified public accounts affiliated with the member companies shall be at least 2,000.

6. There shall have been no such incident where the Securities and Futures Commission has recommended the cancellation of business registration or ordered suspension of business in part or in entirety during the last three (3) years.

7. The corporation shall be registered as an auditor of listed companies in accordance with Article 9-2 of the External Audit Act. [November 24, 2025]

(2) “A person who meets the requirements set forth in the Enforcement Rules” in [§15(1)2] of the Regulation shall refer to a person who meets any of the requirements noted in each of the following subparagraphs:

1. Case where the applicant of initial listing is not a company listed on a foreign securities exchange: A person who meets all of the following requirements

(a) All requirements under subparagraphs 1 through 3 of paragraph (1) shall be met; and

(b) All of the following requirements are satisfied or an agreement for management of audit quality shall have been entered into with the foreign accounting auditor who satisfies all of the following requirements:

(i) Member companies shall be distributed in at least one hundred (100) countries; and

(ii) Number of certified public accountants affiliated with the member companies shall be at least 100,000.

2. Case where the applicant of initial listing is a company listed on a foreign securities exchange: A person who meets all of the following requirements

(a) All requirements under subparagraphs 1 through 3 of paragraph (1) shall be met; and

(b) All of the following requirements are satisfied or an agreement for management of audit quality shall have been entered into with the foreign accounting auditor who satisfies all of the following requirements:

(i) Member companies shall be distributed in at least thirty (30) countries; and

(ii) Number of certified public accounts affiliated with the member companies shall be at least 2,000.

(3) “A person who meets the requirements set forth in the Enforcement Rules” in [§15(2)1] of the Regulation shall refer to a person who meets all of the requirements noted in each of the

following subparagraphs:

1. All requirements under each subparagraph (excluding subparagraph 5) of paragraph (1) shall be met; and (Amended on November 24, 2025)
 2. An agreement for management of audit quality shall have been entered into with the foreign accounting auditor who satisfies all of the following requirements:
 - (a) Member companies shall be distributed in at least one hundred (100) countries; and
 - (b) Number of certified public accountants affiliated with the member companies shall be at least 100,000.
- (4) “A person who meets the requirements set forth in the Enforcement Rules” in [§15(2)2] of the Regulation shall refer to a person who meets all of the requirements in items (a) and (b) of paragraph (2)1.

§17. Exceptions to Mandatory Holding, etc.

(1) “Case specified in the Enforcement Rules” in [§16(1)2] of the Regulation shall refer to any of the merger and acquisition, etc. under of the following subparagraphs: (Amended on December 9, 2022)

1. Case where it is required for improving the technical capability and product quality, cost reduction and enhancement of efficiency;
 2. Case where the amount of investment in research and development is excessive or it is required for risk diversion;
 3. Case where it is required for securing the transparency of corporate governance such as the appointment of professional manager;
 4. Case where it is required for rationalizing the trading terms and conditions; and
 5. Other cases where the Exchange deems that the effects expected from the merger or acquisition is greater than that of restricting the sales of shares held by largest shareholders, etc.
- (2) The Exchange shall, when reviewing the cases falling under each subparagraph of paragraph (1), take into account the analysis of business management and the relevant opinion statements by external assessment institutions prescribed in Article 176-5(8) of the Enforcement Decree of the Act.
- (3) The Exchange shall, in the case of accepting an exception to the mandatory holding for the largest shareholder, etc. pursuant to [§16(1)1 and 2] of the Regulation, disclose the relevant details in the form of market notice. (Amended on December 9, 2022)

(4) “Other cases where specified in the Enforcement Rules as deems necessary to grant an exception to the mandatory holding” in [§16(1)3] of the Regulation shall refer to the case where, as a case where the listing applicant was established by a spin-off of a KOSDAQ-listed corporation or a KOSPI-listed corporation, the Exchange recognizes that a shareholder of the parent company (referring to a parent company pursuant to the Article 342-2(1) of the Commercial Act; hereinafter the same in this paragraph) acquires the stocks, etc. in accordance with a shareholder protection plan, etc. for the shareholders of the parent company of the listing applicant. [December 9, 2022]

(5) “Cases stipulated in the Enforcement Rules” in [§16(2)] of the Regulation shall refer to any of the following cases: Provided that, in cases where the events specified in subparagraphs 1 through 4 occur with respect to stocks, etc., which are electronically registered pursuant to the Act on Electronic Registration of Stocks, Bonds, etc., an approval from the Exchange may not be obtained.

1. Case of exchanging for new stocks subsequent to a stock split or reverse stock split;
2. Case of exchanging for new stocks subsequent to a merger, split-off, or merger after split-off;
3. Case of exercising the rights over convertible stocks, convertible bonds, redeemable stocks, or bonds with warrants (including certificates of the subscription right);
4. Case of redemptions of convertible stocks, convertible bonds, redeemable stocks, or bonds with warrants;
5. Case of establishing a right of pledge for any of the following purposes to the financial institutions under Subparagraphs 1 through 11 Article 61(2) of the Enforcement Decree of the Corporate Tax Act or the securities finance companies under Article 9(17)3 of the Act:
 - (a) Loans to finance the operation of the issuing company (excluding special purpose acquisition companies); and
 - (b) Loans to finance a participation in paid-in capital increase of the issuing company (excluding the capital increase through public offering or third-party allotment)
6. Case where the right of pledge established under subparagraph 5 is changed or terminated; and
7. Other cases where the Exchange deems that it is inevitable to withdraw the stocks, etc. and establish or terminate pledges, etc. in order to comply with statutory obligations.

§18. Measures against Violations of Mandatory Holding, etc.

(1) In case of falling under any of the subparagraphs of [§17(2)] of the Regulation, the Exchange may extend the mandatory holding period for one (1) year for each violation. In such

cases, the stocks, etc. whose mandatory holding period is extended shall include stocks, etc. that are mandatorily held by the person subject to the mandatory holding, stocks whose ownership has been changed or repurchased pursuant to paragraph (2), and stocks that have been sold effectively by the methods noted in subparagraphs of [§17(1)] of the Regulation.

(2) Pursuant to [§17(3)] of the Regulation, the Exchange may have the relevant corporation or the largest shareholder comply with the measures in each of the following subparagraphs:

1. The ownership of the stocks held under a borrowed name shall be changed;
2. The stocks sold among the stocks held under a borrowed name shall be repurchased. In such cases, the quantity sold shall be repurchased, but in cases where the amount repurchased is less than the amount sold, the number of stocks equivalent to the amount sold shall be purchased back; and
3. Stocks, etc. subject to mandatory holding shall be deposited with the Korea Securities Depository to enforce the measure of the mandatory holding.

§19. Suspension and Resumption of Trading, etc.

(1) The period of trading suspension under [§18(1)] of the Regulation shall be the period noted in each of the following subparagraphs. In such cases, the calculation of the trading suspension period shall be based on trading days (including the trading suspension days of the concerned issue) in each subparagraph of [§4(3)] of the KOSDAQ Market Business Regulation (hereinafter referred to as “the Business Regulation”):

1. Cases falling under [§18(1)1] of the Regulation: The day of confirming the cause (not applicable to cases where the cause for designation as an administrative issue is added). Provided that, the period of trading suspension may be extended if the Exchange deems it necessary, and in case of falling under any of the following items, the period of trading suspension shall be governed by the concerned item:
 - (a) Case of having been designated as an administrative issue due to a non-submission of annual report pursuant to [§53(1)6] of the Regulation: The period from the date of being designated as an administrative issue to the submission date of the annual report concerned;
 - (b) Case of having been designated as an administrative issue due to an application for commencement of rehabilitation procedure pursuant to [§53(1)10] of the Regulation: The period from the date of confirming the concerned cause to the date when the court makes its decision on the commencement of rehabilitation procedure. Provided that, in cases when the Exchange deems it necessary for public interest and investor protection, the trading suspension may not be lifted;
 - (c) Case of having been designated as an administrative issue due to an application for bankruptcy pursuant to [§53(1)11] of the Regulation: The period from the date of confirming the concerned cause to the date of confirming the resolution of the cause

for the designation as an administrative issue. Provided that, in cases when the Exchange deems it necessary, the trading suspension may be lifted; and

- (d) Case where stocks of a special purpose acquisition company are designated as administrative issues pursuant to [§72(2)3 and §72(2)4] of the Regulation: The period from the date of being designated as administrative issues to the date of being released from such designation subject to resolution of the concerned cause.
 - (e) Case of having been designated as an administrative issue pursuant to [§85-9(1)4 or §85-16(1)4] of the Regulation: The period from the date of being designated as an administrative issue to the date of release from the designation as an administrative issue due to the relevant cause; [March 16, 2026]
2. Cases falling under [§18(1)2] of the Regulation (excluding the cause resulting from being listed on the KOSPI Market or merged into a KOSDAQ market-listed or KOSPI market-listed corporation): The period from the date of confirming the cause of delisting (including the case of confirming that the concerned stock is subject to the listing maintenance review) to the day when the cause of delisting has been resolved. Provided that, in the case of falling under any of the following items, the period of trading suspension shall be governed the concerned item:
- (a) Case where the KOSDAQ Market Corporate Review Committee (hereinafter referred to as “the Corporate Review Committee”) or the Market Committee, which has granted an improvement period, deliberated and decided to lift the trading suspension during the improvement period: The trading suspension shall be lifted for a period specified by the Corporate Review Committee or the Market Committee; and
 - (b) Cases falling under the cause of delisting of subscription warrants or subscription right certificates under [§85] of the Regulation: The trading shall be suspended from the date of confirming the relevant cause and the day after the date of confirmation.
3. Cases falling under [§18(1)3] of the Regulation: The period specified in each of the following items:
- (a) Cases falling under the proviso to the part other than each item of [§54(1)1] of the Regulation: Until the time when the decision on delisting is made after confirming the audit opinion on the financial statements of the latest business year.
 - (b) Cases where there is a report on a merger or an all-inclusive stock swap (limited to cases where the unlisted corporation or the KONEX market-listed corporation becomes a wholly-owned subsidiary) with an unlisted corporation or a KONEX market-listed corporation pursuant to [§6] of the KOSDAQ Market Disclosure Regulation (hereinafter referred to as “the Disclosure Regulation”): From the reporting date to the date of notification on whether or not it is a backdoor listing.
 - (c) Cases where there is a report under [§6] of the Disclosure Regulation with respect

to business acquisition or asset acquisition stated as backdoor listing in the confirmation statement (including the case where it is scheduled to be stated) in [Annex 17] through [Annex 20]: From the reporting date to the date of notification on whether or not it is a backdoor listing.

- (d) Cases where there is a report under [§6] of the Disclosure Regulation with respect to an issuance of stocks through investment in-kind, which is stated as a backdoor listing in the confirmation statement in [Annex 21]: From the reporting date to the date of notification on whether or not it is a backdoor listing.
- (f) Cases where the Exchange deems it necessary to confirm whether or not it is a backdoor listing even if the confirmation statement in [Annex 17] through [Annex 21] does not state that it is a backdoor listing: From the reporting date pursuant to [§6] of the Disclosure Regulation to the date of notification on whether or not it is a backdoor listing.
- (g) Cases where the Exchange deems it necessary for investor protection and market management after the court's decision on the commencement of rehabilitation procedures: From the date of the decision on the trading suspension (including the trading suspension under the proviso to paragraph (1)1(b)) to the date of confirmation when the cause for the trading suspension is deemed to have been resolved.
- (h) Cases of confirming that the cause for listing maintenance review under any of subparagraphs of [§56(1)] of the Regulation has occurred: From the date of confirming that the cause for listing maintenance review has occurred to the date on which the decision is made on whether or not to be subject to the listing maintenance review pursuant to [§57(1)] of the Regulation. Provided that, in the case of a resolution or decision on a cancellation of spin-off or merger after spin-off stated in [§56(1)10] of the Regulation, it shall be the date of resolution or decision on the cancellation.
- (i) Cases where a decision on whether or not to be subject to the listing maintenance review is made in accordance with (g): From the date on which it is decided to be subject to the listing maintenance review to the date on which it is decided whether or not to delist. Provided that, in the case of a resolution or decision on a cancellation of spin-off or merger after spin-off mentioned in [§56(1)10] of the Regulation, it shall be the date of resolution or decision on the cancellation.
- (j) Cases where a corporation conducts a listing change or a supplementary listing pursuant to [§44] of the Regulation due to an increase or decrease of capital such as capital reduction, reverse stock split, etc., and the number of circulating stocks (referring to the number of shares calculated by subtracting those held by the largest shareholder, etc. from the number of floating stocks as confirmed by the Table of Status of Circulating Stocks in [Annex: Form No. 2]; hereinafter the same shall apply in this item) falls short of 2/100 of the total number of common stocks of the concerned KOSDAQ market-listed corporation or one hundred thousand (100,000) shares: The period from the date of the relevant listing change or supplementary listing to the date when the following reasons for release from the

trading suspension were confirmed. In such cases, the date when the reasons for release from the trading suspension were confirmed shall refer to the date when it was confirmed pursuant to — the Table of Status of Circulating Stocks in [Annex: Form No. 2] submitted by the relevant corporation for such reasons as expiration of the period of mandatory holding:

- (i) Case where the trading was suspended since the number of circulating stocks was less than 2/100 of the total number of common stocks: When the number of circulating stocks has become 5/100 or more of the total number of common stocks;
 - (ii) Case where the trading was suspended since the number of circulating stocks was less than one hundred thousand (100,000) shares: When the number of circulating stocks has become three hundred thousand (300,000) shares or more; and
 - (iii) Case where the trading was suspended since the number of circulating stocks was less than 2/100 of the total number of common stocks and at the same time less than one hundred thousand (100,000) shares: When the number of circulating stocks has become 5/100 or more of the total number of common stocks and three hundred thousand (300,000) shares or more.
- (k) Cases where the Corporate Review Committee or the Market Committee deliberated and decided to terminate the trading suspension pursuant to subparagraph 2(a): From the end of period for the termination of trading suspension specified by the Corporate Review Committee or the Market Committee to the date on which the cause for delisting was resolved.
- (l) Cases where a special purpose acquisition company reports its resolution or decision on a merger with a corporation pursuant to [§6(1)3(a)(viii)] of the Disclosure Regulation: From the reporting date to the date specified in any of the followings:
- (i) Case where the corporation that is the counterparty to the merger is subject to the eligibility review for listing after merger pursuant to [§74] of the Regulation: Until the date of notification on the result of the eligibility review for listing after merger. Provided that, in cases where the result of the eligibility review turned out ineligible, it shall be the date of resolution or decision to suspend the merger.
 - (ii) Case where the corporation that is the counterparty to the merger is not subject to the eligibility review for listing after merger pursuant to [§74] of the Regulation and falls under any of the causes for delisting under [§73(2)9(a)(ii) through §73(2)9(a)(iv)] and [§73(2)9(b) or §73(2)9(c)] of the Regulation: The date of resolution or decision to suspend the merger. Provided that, in cases where it is confirmed that the corporation does not fall under any of the causes for delisting under [§73(2)9(a)(ii) through §73(2)9(a)(iv)] and [§73(2)9(b) or §73(2)9(c)] of the Regulation based on the details of a report and a confirmation statement at the time of the report, the trading suspension may not take place.

(m) Other cases where a trading suspension is deemed necessary for investor protection:
One (1) day. Provided that, it may be extended in cases where the Exchange deems it necessary.

(2) The provisions of paragraph (1) shall not apply during the trading period pursuant to [§23] of the Regulation.

(3) In cases where the trading of a stock is suspended pursuant to paragraph (1), the Exchange may suspend the trading of subscription warrants or subscription right certificates whose underlying asset is the concerned stock.

(4) The Exchange may provide information on trading suspension to a multilateral trading company when necessary for investor protection and market management. (Amended on February 27, 2025)

§20. Submission of Operation Report on Internal Accounting Management System

(1) “Documents stipulated in the Enforcement Rules” in the main sentence of [§19(3)] of the Regulation shall refer to a written report on operation of internal accounting management system in [Annex: Form No. 34], which has been verified, reviewed and signed by the representative director concerning the operation of the internal accounting management system, and contain the matters noted in each of the following subparagraphs. Provided that, in case of operating the internal accounting management system under the laws and regulations of home country, etc., it shall refer to the Korean translation of the report on internal accounting management system prepared under the concerned laws and regulations: (Amended on April 29, 2022)

1. The regulation on internal accounting management system and the matters concerning organizations that manage and operate the internal accounting management system;
2. Operating status of the internal accounting management system, which was reported by the internal accounting manager (referring to a standing officer who is responsible for management and operation of the internal accounting management system) of the internal accounting system to the board of directors and audit committee (referring to the auditor, in cases where the auditor has been appointed; hereinafter the same shall apply in this paragraph);
3. The details that the audit committee has reported to the board of directors upon reviewing the documents noted in subparagraph 2;
4. The review and audit opinions of the auditor on the document noted in subparagraph 2. In such cases, the auditor shall be the auditor of the financial statements of the latest business year, but in cases where the Exchange deems it unavoidable, the member companies of the relevant auditor noted in [§16(2)1(b)] or [§16(2)2(b)] may be included; and
5. Other matters recognized as necessary by the Exchange with respect to the

establishment of an internal accounting management system and the appropriateness of its operation.

(2) “Foreign subsidiaries specified in the Enforcement Rules” in the proviso to [§19(3)] of the Regulation shall refer to foreign subsidiaries that fall under any of the following subparagraphs:

1. Subsidiaries whose sole purpose is to own the stocks of other companies; and
2. Subsidiaries whose total assets at the end of the latest business year are less than 10/100 of the total assets of the holding company at the end of the latest business year.

§21. Application Documents for Delisting, etc.

(1) The application for delisting pursuant to the main sentence of [§22(1)] of the Regulation shall mean attached [Annex: Form No. 1] and the supplementary documents shall be as follows:

1. A copy of the minutes on special resolution of general meeting of shareholders concerned with the delisting. Provided that, in case of an application for delisting of different class of shares (including foreign different class of shares; hereinafter the same shall apply in this paragraph), it shall be a copy of the minutes on special resolution of general meeting of shareholders of the different class of shares; and
2. A copy of the listing sponsor’s consent on delisting. Provided that, this provision shall not apply to an application for delisting of different classes of shares.

(2) Notwithstanding paragraph (1), in cases where a delisting has been requested for the purpose of listing on the KOSPI Market pursuant to [§54(1)9] of the Regulation, the application for delisting in [Annex: Form No. 1] and the minutes of general meeting of shareholders, which made the decision on delisting, shall be submitted to apply for delisting. (Amended on December 9, 2022)

(3) The Exchange shall hold the Corporate Review Committee pursuant to the proviso to [§22(2)] of the Regulation within fifteen (15) days (based on business days) from the date of receiving an application for delisting unless there are any special reasons.

(4) The Corporate Review Committee pursuant to the proviso to [§22(2)] of the Regulation shall deliberate and decide whether to delist the concerned stocks (including depository receipts of foreign stocks; the same shall apply in this Article) in consideration of the matters noted in each of the following subparagraphs:

1. Whether the largest shareholder, etc. (including the joint holders under Article 141(1) of the Enforcement Decree of the Act, while excluding the relevant KOSDAQ-listed corporation; the same hereinafter in this Article) have faithfully observed the procedures for shareholder protection by such means of acquiring stocks from the shareholders who held the concerned stocks before the application for delisting (including tender offers and other means equivalent thereto), or guaranteeing the acquisition of the concerned stocks for a specified period after the delisting; and

2. Whether the matters necessary for the realization of public interests and protection of investors, such as the shareholding ratios of the largest shareholder, etc. (referring to the ratios calculated based on the number of stocks excluding treasury stocks from the total number of issued stocks) and conditions for tender offer, have been satisfied.
- (5) The Exchange shall, within three (3) days (based on business days) from the date of deliberation or resolution of the Corporate Review Committee under paragraph (4), notify the concerned KOSDAQ market-listed corporation in writing whether the concerned stock is delisted or not.

CHAPTER II. LISTING AND LISTING MANAGEMENT OF COMMON STOCKS

Section 1. Listing Requirements and Procedures

§22. Application Documents for Preliminary Listing Review, etc.

The application for preliminary listing review and supplementary documents in the main sentence of [§25(1)] of the Regulation shall be specified in [Annex 1].

§23. Exceptions to Mandatory Holding of Initial Listing

(1) “Cases stipulated in the Enforcement Rules” in the proviso to [§26(1)1] of the Regulation shall refer to any of the following subparagraphs:

1. Case where a specially related person (referring to a specially related person under [§2(1)13(b)] of the Regulation; hereinafter the same shall apply) who holds less than 5/100 of the total number of common stocks as of the application date for listing falls under any of the following items:
 - (a) Where it is difficult to discover the whereabouts of the concerned specially related person;
 - (b) Where the concerned specially related person and the largest shareholder do not have common interests; and
 - (c) Where the number of stocks held by the relevant specially related person is less than one hundred (100) shares.
2. Case attributable to the fulfillment of statutory obligations or court rulings.

(2) In the case of paragraph (1)1, the largest shareholder, etc. of the listing applicant shall acquire the same number of stocks, etc. held by the specially related person from a person other than the largest shareholder, etc. on behalf of the specially related person and hold it for the same period as the mandatory holding period of the specially related person. Provided that, in cases where the Exchange deems it unavoidable, a person other than the largest shareholder, etc. may hold the stocks, etc. mandatorily on behalf of the concerned specially related person.

(3) “Cases stipulated in the Enforcement Rules” in the proviso to [§26(1)2] of the Regulation shall refer to any of the following cases: (Amended on December 9, 2022)

1. Case of an acquisition by employees who are members of the employee stock ownership association;
2. Where the largest shareholder, etc. acquires the same number of stocks, etc. from a person other than the largest shareholder, etc. on behalf of the person subject to mandatory holding and holds it mandatorily for the relevant period. Provided that, in cases where the Exchange deems it unavoidable, a person other than the largest shareholder, etc. may hold the same number of stocks, etc. mandatorily on behalf for the relevant period;
3. Where the concerned corporation is a KONEX market-listed corporation and falls under any of the following items:
 - (a) Case of acquiring stocks, etc. from the largest shareholder, etc. in the KONEX Market; and
 - (b) Case of selling the stocks, etc., which were acquired before the date of listing on the KONEX Market, in the KONEX Market.
4. Case where, as a case where the listing applicant was established by a spin-off through carving-out of a KOSDAQ-listed corporation or a KOSPI-listed corporation, the Exchange recognizes that a shareholder of the parent company (referring to a parent company pursuant to the Article 342-2(1) of the Commercial Act; hereinafter, the same in this subparagraph) acquires the stocks, etc. in accordance with a shareholder protection plan, etc. for the shareholders of the parent company of the listing applicant.
5. Case attributable to the fulfillment of statutory obligations or court rulings.

(4) “Cases stipulated in the Enforcement Rules” in the proviso to [§26(1)3] of the Regulation shall refer to any of the following cases:

1. Case of acquisition by employees who are members of the employee stock ownership association;
2. Case of acquisition by a venture capital or a professional investor;
3. Case of acquisition by a foreign investor pursuant to the Foreign Investment Promotion Act, and the relevant acquired stocks, etc. have not been disposed of for one (1) year from the date of acquisition;

4. Where the largest shareholder, etc. acquires the same number of stocks, etc. from a person other than the largest shareholder, etc. on behalf of the person subject to mandatory holding and holds it mandatorily for the relevant period. Provided that, in cases where the Exchange deems it unavoidable, a person other than the largest shareholder, etc. may hold the same number of stocks, etc. mandatorily on behalf for the relevant period
5. Where the concerned corporation is a KONEX market-listed corporation and falls under any of the following items:
 - (a) Case of acquiring stocks, etc. issued through a third-party allotment method during the period listed on the KONEX Market; and
 - (b) Case of selling the stocks, etc., which were acquired before the date of listing on the KONEX Market, in the KONEX Market.
6. Case attributable to the fulfillment of statutory obligations or court rulings.

(5) “Cases stipulated in the Enforcement Rules” in the proviso to [§26(1)4] of the Regulation shall refer to the cases where the relevant corporation falls under any of the following subparagraphs: (Amended on April 29, 2022)

1. Among technology growth companies, registered or designated corporations in K-OTC Market that meet the requirements under [§26(5)];
2. Large corporations, which are domestic enterprises; and
3. KONEX market-listed corporations that have been listed on the KONEX Market for at least one (1) year based on the date of preliminary listing review. Provided that, in cases where a venture capital or a professional investor acquired stocks, etc. at the KONEX Market or sold stocks, etc., which were acquired before the listing on the KONEX Market, in the KONEX Market, KONEX market-listed corporations that have been listed on the KONEX Market for less than one (1) year may be included.

(6) The disparate ratio between the acquisition price and the public offering price under the proviso to [§26(1)5] of the Regulation shall be calculated in accordance with each of the following subparagraphs:

1. Acquisition price: The arithmetic average of the acquisition prices of the stocks, etc. of the applicant for initial listing by weighting the number of stocks, etc. acquired by the listing sponsor during six (6) months before the date of application for preliminary listing review. In such cases, acquisition price of securities that do not correspond to stocks, such as convertible bonds, bonds with warrants, etc., may be calculated (based on the date of calculation for the acquisition price) by taking into account the number of shares or exercise prices in the event of conversion, listing, etc.
2. Public offering price: The price under Article 5(1) of the Regulations on Securities Underwriting Business, etc.

3. Disparate ratio between the acquisition price and the public offering price: The ratio calculated by the following formula:

Disparate ratio between the public offering price and the acquisition price = (Public offering price – Acquisition price) ÷ Acquisition price × 100

§24. Criteria for Paper Companies

(1) “A paper company stipulated in the Enforcement Rules” under the main sentence of [§26(2)] of the Regulation shall refer to a company that meets each of the following requirements:

1. It shall not be a stock-listed corporation under Article 9(15)3 of the Act or a company that has listed foreign stocks, etc. on the eligible overseas securities markets;
2. As of the end of the latest business year, the aggregated value of stocks of other companies owned by the relevant company (hereinafter referred to as an “investment target company” in this Article) shall be at least 50/1000 of the total asset. Provided that, in the case of submitting documents that can confirm the relevant fact based on the current stock price and the total asset after the end of the latest business year, such documents may be used for the calculation;
3. The sales amount from profit-making activities other than those falling under any of the following items shall be less than 30/100 of the total sales amount based on the income statement of the latest business year:
 - (a) Business management of an investment target company;
 - (b) Activities related to funds raising, such as the listing and issuance of stocks or bonds;
 - (c) Activities that are generally required for the operation of a company, including the preparation and implementation of budget, recruitment and administration of human resources, development and operation of computer systems, etc.; and
 - (d) Activities incidental to those specified in items (a) through (c).
4. It shall not be a business development investment company under [§85-2(2)] of the Regulation. [March 16, 2026]

(2) Notwithstanding paragraph (1), in cases where the Exchange determines that it is necessary to mandatory hold the stocks, etc. held by the largest shareholder, etc. of the relevant company for public interests and investor protection, the relevant company may be regarded as a paper company even if the requirements in each subparagraph of paragraph (1) are not satisfied.

(3) Whether or not the company meets the requirements noted in each subparagraph of

paragraph (1) shall be determined based on the written confirmation on paper company and attached documents pursuant to [Annex: Form No. 13].

§25. Application Documents for Initial Listing

The application for initial listing and supplementary documents pursuant to [§27(1)] of the Regulation shall be as set forth in [Annex 2].

§26. Application Methods for Formality Review Requirements

(1) “Cases specified in the Enforcement Rules” under [§28(1)1(a)(i)] and [§28(2)1] of the Regulation shall refer to the case where, of the shares held by venture capitals and professional investors that are subject to the calculation of the total number of shares held by the minority shareholders (excluding those who hold less than 1/100 of total number of outstanding shares), those shares fall under the shares other than the common shares with voting rights.

(2) “Cases where the Exchange deems it necessary in the Enforcement Rules” in [§28(1)2(a)(i)] of the Regulation shall refer to a case where, through prior consultation with the Exchange before filing a request for review, a valuation loss related to financial products subsequent to the conversion of class stocks has been confirmed in Annex Form No. 43. In this case, the profit from continuing operations before corporate tax may be calculated by applying the adjusted financial details according to the Confirmation of Valuation Loss Related to Financial Products in the format in Annex Form No. 43. [July 9, 2025]

(3) The average daily trading value under [§28(1)2(b)(vi)ⓑ] of the Regulation shall be calculated by dividing the trading value for one (1) year through the KONEX Market by the number of trading days of the relevant issue. Provided that, in cases where the number of trading days of the concerned issue is less than 1/2 of the number of trading days on the KONEX Market, it is deemed that the requirement is not met. [April 29, 2022]

(4) The par value per share pursuant to [§28(1)5] of the Regulation shall be KRW 100, KRW 200, KRW 500, KRW 1,000, KRW 2,500, and KRW 5,000.

(5) “Equity shares stipulated in the Enforcement Rules” under [§28(2)1] of the Regulation shall refer to the case of subscribing for new common shares (including common stocks converted or issued by the exercise of conversion rights or subscription rights). In such cases, the capitalization portion of reserves for the concerned new shares transferred to equity shall be included.

(6) “The corporation that meets the requirements stipulated in the Enforcement Rules” in the main sentence of [§28(2)2] of the Regulation shall refer to a listing applicant who meets each of the following requirements:

1. The period registered pursuant to Article 7 of the Regulation on the Operation of the K-OTC Market or designated pursuant to Article 14 of the said Regulation shall be at

least one (1) year from the application date for preliminary listing review;

2. There shall be no record of a designation having been made pursuant to Article 49(1) of the Regulation on the Operation of the K-OTC Market as an unfaithful disclosure corporation for the one (1)-year period prior to the application date for preliminary listing review; and
3. The annual turnover ratio, calculated by dividing the trading volume for the one (1)-year period prior to the application date for preliminary listing review by the total number of outstanding shares as of the application date of preliminary listing review, shall be 5/100 or higher.

§27. Application Methods for Qualitative Review Requirements

(1) “The qualitative review requirements stipulated in the Enforcement Rules” in the former part of [§29(2)] of the Regulation shall refer to the qualitative review requirements in [Annex 6].

(2) “The qualitative review requirements for each industry specified in the Enforcement Rules” in the latter part of [§29(2)] of the Regulation shall refer to the qualitative review requirements for each type of industry in [Annex 7].

(3) In cases where the contribution to the national economy is taken into account pursuant to [§29(3)] of the Regulation, the review may reflect the effort of the KONEX-listed corporation to improve shareholder value during the listing period on the KONEX Market. [April 29, 2022]

§28. Special Cases for Technology Growth Companies

(1) “Cases recognized for the technological prowess and growth potential in accordance with the Enforcement Rules” in the part other than each subparagraph of [§30(1)] of the Regulation shall refer to any of the following subparagraphs: (Amended on April 29, 2022; December 28, 2023)

1. An assessment has taken place six (6) months before the application date of preliminary listing review by a specialized assessment institution and the assessment result satisfies the following items:
 - (a) Corporations under [§30(1)1] of the Regulation: Among the assessment grades from two (2) specialized assessment institutions, the higher grade shall be A or higher and the lower grade shall be BBB or higher. Provided that, companies falling under any of the followings shall have an A grade or higher from a specialized assessment institution (in the case of assessments by two (2) specialized assessment institutions, it shall be the higher grade):
 - (i) Companies with a base market capitalization of KRW 500 billion or more;

or

- (ii) Specialized corporations for materials, components, and facilities pursuant to Article 2, Subparagraph 5 of the Act on Special Measures to Strengthen Competitiveness of Materials, Components, and Facility Industries and Stabilize Supply Chain.
 - (iii) KONEX-listed corporations that meet all of the followings:
 - Ⓐ At least one (1) year shall be passed from the listing on the KONEX Market; and
 - Ⓑ There shall be a recommendation from the designated advisor (limited to the cases where the period of designation is at least six (6) months) of the relevant corporation
 - (iv) A corporation that possesses national strategic technology (hereinafter referred to as the “national strategic technology” in this Article) under Subparagraph 1 of Article 2 of the Special Act on Fostering of National Strategic Technology or national high-tech strategic technology (hereinafter referred to as the “national high-tech strategic technology” in this Article) under Subparagraph 1 of Article 2 of the Act on Special Measures for Strengthening and Protecting Competitiveness of National High-tech Strategic Industries and meet all of the followings;
 - Ⓐ The base market capitalization shall be KRW 100 billion or more; and
 - Ⓑ The total amount of investment [referring to investment under Paragraph 2 of Article 2 of the Act on special Measures for Promotion of Venture Businesses (hereinafter referred to as the “Venture Company Act”)] made through venture capital financing over the last five (5) years as of the date of request for designation of a specialized assessment institution to the Exchange pursuant to [§11(2)] shall be KRW 10 billion or more.
 - (v) A corporation that filed the application for preliminary listing review pursuant to [§30(1)1] of the Regulation but received the notification of non-approval in the preliminary listing review and requested for designation of a specialized assessment institution pursuant to [§11(2)] within six (6) months from the date of notification of non-approval. Provided that cases where the preliminary listing review is not approved due to the failure to meet the qualitative review requirements under [§29(1)1] shall be excluded.
- (b) Corporations under [§30(1)1(a)] of the Regulation: The assessment grades from two (2) specialized assessment institutions shall be A or higher.

2. Corporations with a base market capitalization of KRW 1 trillion or more and the technological prowess or business feasibility is recognized by examining the qualitative review requirements pursuant to [§29] of the Regulation.

(2) “The requirements stipulated in the Enforcement Rules” under [§30(1)(a)] of the Regulation shall refer to all of the following requirements. [December 28, 2023] <Previous paragraph (2) moved to paragraph (3) on December 28, 2023>

1. It shall be a corporation that possesses a national strategic technology or national high-tech strategic technology;
2. The largest shareholder under Article 3(1)(2)(b) of the Enforcement Decree of Framework Act on Small and Medium Enterprises or a controlling company under Article 3-2(1) of the same Decree shall have held 30/100 or more of the total number of shares issued by the listing applicant for three (3) years or more;
3. The largest shareholder shall not be a company belonging to a company group subject to disclosure pursuant to Article 31(1) of the Monopoly Regulation and Fair Trade Act; and
4. The shares held by the largest shareholders shall be less than 50/100 of the total number of shares issued by the listing applicant.

(3) “The requirements stipulated in the Enforcement Rules” under [§30(1)(2)(b)] of the Regulation shall refer to all of the following requirements. Provided that, the requirements in each of the following subparagraphs shall not apply to a listing sponsor who is not a managing underwriter pursuant to the Regulation on Securities Underwriting Business, etc.: (Amended on February 14, 2022; March 9, 2023; December 28, 2023) <Moved from paragraph (2). Previous paragraph (3) moved to paragraph (4) on December 28, 2023>

1. There shall be a record of having sponsored the listing of an innovative technology company within the past three (3) years from the date of application for preliminary listing review. Provided that this provision shall not apply in cases when the Exchange deems it inevitable due to a sudden change in market situations or economic conditions; and
2. The foreign holding company located in Korea or the KOSDAQ-listed foreign corporation whose listing was sponsored within the past three (3) years from the date of application for preliminary listing review shall not have been designated as an investment attention issue or an administrative issue pursuant to the Regulation, or not have fallen under a cause for delisting due to failure to meet the formality requirements or a cause for delisting as a result of listing maintenance review within two (2) years after the listing.

(4) “The requirements stipulated in the Enforcement Rules” in the former part other than each subparagraph of [§30(2)] of the Regulation shall refer to all of the following requirements. Provided that, the requirements in each of the following subparagraphs shall not apply to a listing sponsor who is not a managing underwriter pursuant to the Regulation on Securities

Underwriting Business, etc.: (Amended on February 14, 2022) <Moved from paragraph (3). Previous paragraph (4) moved to paragraph (5) on December 28, 2023>

1. There shall be a record of having sponsored the listing of a KOSDAQ-listed corporation within the past one (1) year from the date of application for preliminary listing review;
2. The KOSDAQ-listed corporation whose listing was sponsored within the past three (3) years from the date of application for preliminary listing review shall not have been designated as an investment attention issue or an administrative issue, or not have fallen under a cause for delisting due to failure to meet the formality requirements or a cause for delisting as a result of listing maintenance review within two (2) years after the listing; and
3. In addition, a listing sponsor shall not be the listing sponsor whose qualification was limited by the Exchange for investor protection.

(5) In accordance with the latter part other than each subparagraph of [§30(2)] of the Regulation, when a listing sponsor recommends a business model company, the listing sponsor shall submit to the Exchange a business model company evaluation report in [Annex Form No. 10], which includes the evaluation results of the unique business model and growth potential of the relevant corporation and the grounds therefore. (Amended on December 28, 2023) <Moved from paragraph (4) on December 28, 2023>

§29. Special Cases for Prompt-Transfer Companies

(1) The average daily trading value under [§31(1)3(f)(ii)] of the Regulation shall be calculated by dividing the trading value for one (1) year on the KONEX Market by the number of trading days of the relevant issue. Provided that, in cases where the number of trading days of the concerned issue is less than 1/2 of the number of trading days of the KONEX Market, it is deemed that the requirement is not satisfied.

(2) The corporate continuity report pursuant to [§31(1)3(f)(iv)] of the Regulation shall refer to [Annex Form 10-2].

(3) “Requirements specified in the Enforcement Rules” under [§31(1)4] of the Regulation shall refer to the following requirements:

1. There has not been any disciplinary measure (excluding cases designated as an unfaithful disclosure corporation due to ordinary negligence or minor negligence according to the KONEX Market Disclosure Regulation) from the Financial Services Commission or the Exchange for the past one (1) year due to a violation of the financial laws and regulations or the regulations of the Exchange; and
2. In addition, it is deemed that the realization of public interest and investor protection are not harmed.

[Wholly amended on April 29, 2022]

§30. Criteria for Changes in Management Rights

(1) “The change in management right as stipulated in the Enforcement Rules” in the part other than each subparagraph of [§33(1)] of the Regulation shall refer to a case where a key investor (referring to a person falling under any of the subparagraphs of paragraph (2); hereinafter the same shall apply) of the backdoor listing target company becomes the largest shareholder of a common-stock-listed corporation in accordance with any of the following subparagraphs:

1. Mergers under [§33(1)1(a)] of the Regulation and all-inclusive share swaps under [§33(1)1(b)] of the Regulation: Case of becoming the largest shareholder by the merger ratio or exchange ratio stated in the report on material facts of the merger or the all-inclusive share swap, or becoming the largest shareholder within one (1) year before the submission date of such report on material facts;
2. Significant business transfers under [§33(1)1(c)] of the Regulation and acquisitions of material assets under [§33(1)2(a)] of the Regulation: Case where, from one (1) year before the submission date of the report on material facts of the significant business transfer or the acquisition of material asset to six (6) months after the submission date, the common-stock-listed corporation issues stocks, etc. to the key investor of the backdoor listing target company by way of third-party allotment or the key investor of the backdoor listing target company makes transactions such as contracting of trades and/or trading reservation for stocks of the common-stock-listed corporation, which requires the reporting of a change in the largest shareholder pursuant to [§6(1)3(a)(i)] of the Disclosure Regulation (hereinafter referred to as the “stock transfer”) during the same period, and the key investor becomes the largest shareholder in accordance with any of the following items:
 - (a) Case of becoming the largest shareholder by acquiring the stocks issued by way of third-party allotment or becoming the largest shareholder through the stock transfer;
 - (b) In cases where stocks, etc. are issued by way of third-party allotment or the stock transfer is conducted within one (1) year prior to the submission of the report on material facts, the case of becoming the largest shareholder within one (1) year prior to the submission of the report on material facts; and
 - (c) In cases where stocks, etc. are issued by way of third-party allotment or the stock transfer is conducted within six (6) months after the submission of the report on material facts (including where it is stated that such event is scheduled in the confirmation statement of the backdoor listing), the case of becoming the largest shareholder from one (1) year prior to the submission of the report on material facts to the date of the issuance of stocks, etc. or the date of the reporting on the change in the largest shareholder pursuant to [§6(1)3(a)(i)] of the Disclosure Regulation.
3. Investment in kind under [§33(1)2(b)] of the Regulation: Pursuant to [§33(1)2(b)] of the Regulation, the common-stock-listed corporation becomes the largest shareholder by acquiring stocks issued by way of third-party allotment method, or it becomes the largest shareholder from one (1) year prior to the date of reporting on the issuance of

the relevant stocks pursuant to [§6] of the Disclosure Regulation.

4. Transactions under [§33(1)3] of the Regulation: In the case where the Exchange deems that it is equivalent to the change of the largest shareholder as stipulated in the provisions of subparagraphs 1 through 3 in consideration of the nature and procedures of the transaction.

(2) “A key investor of the backdoor listing target company specified in the Enforcement Rules” in [§33(1)2)] of the Regulation shall refer to a person who falls under any of the following subparagraphs:

1. The largest shareholder, etc. of a backdoor listing target company (in the case where the backdoor listing target company issued equity securities rather than stocks, it refers to the largest investor, etc. In such cases, the criteria for the largest shareholder, etc. under [§2(1)13] of the Regulation shall apply *mutatis mutandis* to the decision whether or not a person is the largest investor, etc.;
2. A person who holds 5/100 or more of the total number of issued stocks (referring to investment shares in the case of a corporation issuing equity securities rather than stocks) of the backdoor listing target company.

(3) In the case of determining a change of the largest shareholder pursuant to paragraph (1), the stocks falling under each of the following subparagraphs shall be included in the calculation of the number of stocks:

1. Stocks to be received pursuant to the transactions falling under any of the subparagraphs of [§33(1)] of the Regulation; and
2. Stocks to be increased subsequent to the exercise of rights of equity-related bonds that are not exercised as of the date specified in each of the following items. In such cases, it shall be based on the conversion price, etc. on the date specified in each of the following items:
 - (a) Mergers and all-inclusive share swaps pursuant to paragraph (1)1: The submission date of the report on material facts;
 - (b) Significant business transfers and acquisitions of material assets pursuant to paragraph (1)2: The date on which a decision on whether the largest shareholder has been changed in accordance with each item of paragraph (1)2 is made;
 - (c) Investment in kind pursuant to paragraph (1)3: The issuance date of shares issued by way of third-party allotment; and
 - (d) Transactions pursuant to paragraph (1)4: The date separately specified by the Exchange.
3. Stocks and equity-related bonds (based on the number of stocks to be increased as a result of exercise of rights) that are subject to delivery claim according to the provisions of relevant laws, trading, or other contracts as of the date specified in each item of

subparagraph 2.

§31. Effect of Listing, etc.

(1) “Cases where there is an effect of listing the equity securities of a backdoor listing target company” in the part other than each subparagraph of [§33(1)] of the Regulation shall refer to any of the following subparagraphs:

1. Mergers under [§33(1)1(a)] of the Regulation: Case where the common-stock-listed corporation survives after the merger;
2. All-inclusive share swaps under [§33(1)1(b)] of the Regulation: Case where the common-stock-listed corporation owns the total number of stocks issued by the backdoor listing target company as a result of the all-inclusive share swap;
3. Significant business takeover under [§33(1)1(c)] of the Regulation: Case where the assets or sales of the business segment to be taken over are at least 30/100 s of the total assets or sales of the backdoor listing target company as of the end of the latest business year;
4. Acquisitions of material assets under [§33(1)2(a)] of the Regulation: Case where, as a result of the acquisition of material asset, the common-stock-listed corporation owns 50/100 or more of the total number of stocks issued (in the case of a corporation that issues equity securities other than stocks, it refers to investment shares; hereinafter the same shall apply in this Article) by the backdoor listing target company, or owns more than 30/100 thereof with the highest share ownership ratio;
5. Investment in kind under [§33(1)2(b)] of the Regulation: Case where, as a result of the investment in kind, the common-stock-listed corporation owns 50/100 or more of the total number of stocks issued by the backdoor listing target company, or owns more than 30/100 thereof with the highest share ownership ratio;

(2) “The amount specified in the Enforcement Rules” in the proviso to [§33(1)2(b)] of the Regulation shall refer to the case of not less than 10/100 of the total assets of the common-stock-listed corporation as of the end of the latest business year (referring to the end of the business year immediately preceding the latest business year in case where the report under [§6(1)2(e)(i)] of the Disclosure Regulation has not been filed yet).

(3) “Transactions specified in the Enforcement Rules” under [§33(1)3] of the Regulation shall refer to any of the following transactions:

1. Case where the backdoor listing target company merges with the common-stock-listed corporation after spin-off, and there is a change in management rights of the common-stock-listed corporation pursuant to [§30(1)1]; and
2. Other cases where the Exchange deems that a review for backdoor listing is necessary in terms of public interests and investor protection.

(4) The backdoor listing under paragraph (3) shall be applied in accordance with each of the following subparagraphs:

1. Backdoor listing under paragraph (3)1: The review methods and procedures for backdoor listing as a result of a merger under [§33(1)1] or [§33(2)] of the Regulation shall apply *mutatis mutandis*, and the review requirements for backdoor listing as a result of a business transfer under [§33(1)1(c)] of the Regulation shall apply *mutatis mutandis*; and
2. Backdoor listing under paragraph (3)2: The review methods, requirements, and procedures separately specified by the Exchange shall be followed.

(5) The review requirements under paragraph (4)1 shall apply based on the financial statements of the latest business year and the audit report of the backdoor listing target company. In such cases, the provisions of [§33(2)] shall apply *mutatis mutandis* with regards to the financial statements.

(6) Matters concerning the financial details of the common-stock-listed corporation pursuant to [§33(2)] of the Regulation shall apply based on the financial statements of the latest business year for which the audit opinion is “unqualified” or “qualified” (limited to “qualified opinion” due to uncertainties over the ability to continue as a going concern; hereinafter the same shall apply in this paragraph). Provided that, in cases where the audit opinion for the latest business year is not “unqualified” or “qualified”, it shall be based on the financial statements of the business year closest to the latest business year for which the audit opinion is “unqualified” or “qualified”.

§32. Submission of Documents for Backdoor Listing Review

(1) The common-stock-listed corporation shall, unless there is an unavoidable reason, consult with the Exchange in advance concerning whether the relevant trades fall under backdoor listing and the review requirements and procedures for backdoor listing before the submission date of the report on material facts about the transactions under each subparagraph of [§33(1)] and [§33(2)] of the Regulation (in the case of an investment in kind under [§33(1)2(b)] of the Regulation, it refers to the date on which the report is made pursuant to [§6] of the Disclosure Regulation regarding the issuance of the relevant shares),.

(2) Pursuant to [§34(1)] of the Regulation, in case of falling under any of the following subparagraph, the confirmation statement on backdoor listing and supplementary documents specified in [Annex 15] through [Annex 21] shall be submitted by the date specified in each of the following subparagraphs: (Amended on December 28, 2023)

1. Case where the common-stock-listed corporation merges with an unlisted corporation (including a corporation that issues equity securities other than stocks; hereinafter the same shall apply in this paragraph) or a KONEX-listed corporation pursuant to Article 522 of the Commercial Act: The submission date of the report on material facts of the merger;

2. Case where the common-stock-listed corporation intends to make an unlisted corporation or a KONEX-listed corporation its wholly owned subsidiary through all-inclusive share swaps pursuant to Article 360-2(2) of the Commercial Act with the unlisted corporation or the KONEX-listed corporation: The submission date of the report on material facts of the all-inclusive share swaps;
3. Case where the common-stock-listed corporation makes a significant business takeover, which requires a submission of the report on material facts pursuant to Article 161(1)7 of the Act, from an unlisted corporation or a KONEX-listed corporation: The submission date of the report on material facts of the significant business transfer;
4. Case where the common-stock-listed corporation acquires material assets, which requires a submission of a report on material facts pursuant to Article 161(1)17 of the Act, from major shareholders of an unlisted corporation or a KOEX-listed corporation (limited to cases where the assets to be acquired are equity securities issued by the unlisted corporation or the KONEX-listed corporation): The submission date of the report on material facts regarding the acquisition of material assets;
5. Case where the common-stock-listed corporation issues stocks, etc. by way of third-party allotment within six (6) months from the submission date of the report on material facts under subparagraphs 3 or 4, or there is a stock transfer: The date on which the resolution or decision is made concerning the issuance of the stocks, etc., or the date of reporting on the stock transfer. Provided that, the cases subject to the backdoor listing review due to the submission of the report on material facts under subparagraphs 3 or 4 shall be excluded;
6. Case where the common-stock-listed corporation issues stocks by way of third-party allotment, and the payment for the stocks is made through the investment in kind pursuant to Article 422 of the Commercial Act (limited to the cases where the property, which is the object of the investment in kind, is equity securities issued by an unlisted corporation or a KONEX-listed corporation, and the amount of the investment in kind is at least the amount stipulated in [§31(2)]): The date on which the resolution or decision is made concerning the issuance of the stocks. In such cases, in cases where there is a correction report on the report pursuant to [§6] of the Disclosure Regulation regarding the issuance of the concerned stocks due to a change in the value of equity securities, which is the object of the investment in kind, the confirmation statement and supplementary documents on backdoor listing shall be submitted again, but such submission may be omitted if the details of the statement and the documents are identical to those already submitted; and
7. Other cases similar to the trades stipulated in subparagraphs 1 through 6 and recognized as necessary by the Exchange for the public interests and investor protection: The date specified by the Exchange.

(3) The Exchange shall determine whether the trades under each subparagraph of paragraph (2) fall under backdoor listing and notify such result to the common-stock-listed corporation without delay.

(4) The common-stock-listed corporation, which has been notified that it falls under backdoor listing pursuant to paragraph (3), shall submit without delay the review documents on backdoor listing stipulated in [Annex 3] and the backdoor listing report separately specified by the Exchange.

(5) The common-stock-listed corporation, which has been notified that it falls under backdoor listing pursuant to the former part of [§34(2)] of the Regulation, shall submit, in cases when the Exchange requests it, the financial statements and the documents containing other information about financial data about the corporate merger pursuant to [§12-8-6] of the Guideline for Preparation of Corporate Disclosure Forms established by the Financial Supervisory Service within the two (2) weeks from the date on which the documents pursuant to paragraph (4) are submitted. In such cases, the financial information to be additionally submitted shall include all of the following matters:

1. The estimated financial position statement as of the date of business combination such as the merger date ;
2. The estimated financial date for the business year in which the date of business combination such as the merger date falls and the following business year ; and
3. The confirmation statement regarding the statement and the data in subparagraphs 1 and 2 issued by the accounting firm under subparagraph 7(a) of Article 2 of the External Audit Act.

(6) In cases where a change occurs in the confirmation statement on backdoor listing and the supplementary documents submitted pursuant to paragraph (2) before the merger, all-inclusive share swaps, significant business transfer, acquisitions of material assets or investment in kind is completed, the common-stock-listed corporation shall immediately notify the Exchange of such change.

(7) Pursuant to [§34(4)] of the Regulation, in cases where the backdoor listing target company meets the requirements under [§33(3)2], the Exchange shall notify the result of the review within thirty (30) days (based on business days) from the date on which the review documents are received. Provided that, this provision shall not apply if backdoor listing target company is a foreign holding company located in Korea or a foreign company that is not listed on an eligible overseas securities market.

(8) The listing specification under [§34(5)] of the Regulation shall mean attached [Annex: Form No. 41].

§33. Application Method of Requirements for Backdoor Listing Review

(1) In cases where the latest business year of a backdoor listing target company is less than six (6) months, the requirements for backdoor listing in [§35(1) and §35(2)] of the Regulation shall also apply to the business year immediately preceding the latest business year.

(2) “The financial statements specified in the Enforcement Rules” in the former part of [§35(2)3] of the Regulation shall refer to the selling corporation’s financial statements annotated with the asset amount, liability amount, sales amount and income from ongoing business before tax of the business sector acquired by the common-stock-listed corporation. Provided that, in cases where the auditor’s confirmation letter (referring to the auditor of the relevant financial statement) about the relevant asset amount, liability amount, sales amount and income from ongoing business before tax is submitted, it shall be deemed that the annotation on the relevant matters is provided.

(3) In accordance with [§35(3)] of the Regulation, in the case of falling under any of the following subparagraphs, the qualitative review requirements under [§29(1)1] of the Regulation shall be deemed to be satisfied. Provided that, this provision shall not apply where the Exchange deems an exception is necessary such as a significant slowdown in business:

1. The common-stock-listed corporation shall meet all of the following requirements, and the backdoor listing target company shall not engage in the businesses that are deemed to undermine the balanced development of the national economy and the efficient fundraising function of the capital market or to run counter to good morals and other social orders:
 - (a) As of the submission date of report on material facts (in the case of backdoor listing as a result of investment in kind under [§33(1)2(b)] of the Regulation, it refers to the date of reporting on the stock issuance under [§6] of the Disclosure Regulation; hereinafter the same shall apply in this paragraph), three (3) years have elapsed since its listing (excluding listing change and supplementary listing);
 - (b) There shall be no record of having been designated as an administrative issue, an investment attention issue, or an unfaithful disclosure corporation within the past two (2) year from the submission date of report on material facts;
 - (c) There shall be no capital impairment as of the end of the latest business year (in cases where the semi-annual report has been finalized as of the submission date of the review documents on backdoor listing, it shall be the end of the semi-annual period). In such cases, during the business year in which the submission date of report on material facts falls, the amount to be transferred to equity as a result of paid-in capital increases, exercises of subscription rights, conversion rights or stock options and revaluations of assets shall be reflected;
 - (d) The sales amount shall be at least KRW 20 billion and there shall be operating profits in the latest business year; and
 - (e) As of the submission date of report on material facts, there shall be no record of having been subject to the listing maintenance review pursuant to each subparagraph of [§56(1)] of the Regulation during the past two (2) years. (Amended on July 9, 2025)
2. The backdoor listing target company shall meet all of the following requirements, and the common-stock-listed corporation shall have no record of having been subject to the listing maintenance review pursuant to each subparagraph of [§56(1)] of the Regulation in the past two (2) years from the submission date of report on material facts: (Amended

on July 9, 2025)

- (a) The backdoor listing target company shall have been registered in the KRX M&A intermediary network (referring to the intermediary network established by the Exchange to carry out intermediary services for mergers and acquisitions of small and medium-sized enterprises and venture companies; hereinafter the same shall apply) within one (1) year before the submission date of the documents for backdoor listing review;
- (b) At least one (1) month shall have elapsed since the backdoor listing target company was registered in the KRX M&A intermediary network from the submission date of the review documents on backdoor listing;
- (c) The sales amount shall be at least KRW 10 billion and there shall be operating profits in the latest business year;
- (d) There shall be a recommendation from the M&A professional institution (referring to the institution selected by the Exchange to register M&A information in the KRX M&A intermediary network; hereinafter the same), which has registered the backdoor listing target company in the KRX M&A intermediary network; and
- (e) The backdoor listing target company shall not engage in the businesses that are deemed to undermine the balanced development of the national economy and the efficient fundraising function of the capital market or to run counter to good morals and other social orders.

§34. Mandatory Holding Due to Backdoor Listing, etc.

(1) “A person specified in the Enforcement Rules” under [§36(1)1] of the Regulation shall refer to a person falling under any of the following subparagraphs:

1. The largest shareholder, etc. of the backdoor listing target company pursuant to [§30(2)1]. In such cases, officers of the backdoor listing target company shall include persons falling under each subparagraph of Article 401-2(1) of the Commercial Act; and
2. A person who becomes the largest shareholder of the common-stock-listed corporation pursuant to each subparagraph of [§30(1)] among the key investors of the backdoor listing target company.

(2) “The cases stipulated in the Enforcement Rules” in the proviso to [§36(1)2] of the Regulation shall refer to the cases falling under any of the subparagraphs of [§23(3)].

(3) “The cases specified in the Enforcement Rules” in the proviso to [§37(1)3] of the Regulation shall refer to the cases falling under any of the subparagraphs of [§23(4)].

(4) “The cases stipulated in the Enforcement Rules” in the proviso to [§37(1)4] of the

Regulation shall refer to the cases falling under any of the subparagraphs of [§23(5)]. In such cases, “the date of application for preliminary listing review” shall be construed as “the submission date of the report on material facts.”

(5) “The date stipulated in the Enforcement Rules” under [§36(2)] of the Regulation shall refer to the date noted in any of the following dates or in cases where the closing date of backdoor listing review (referring to the date on which the result of backdoor listing review is notified) arrives later than the date specified in each of the following subparagraphs, it shall be the closing date of backdoor listing review: (Amended on March 17, 2022)

1. In the case of backdoor listing as a result of the significant business transfer under [§33(1)(c)] of the Regulation or backdoor listing as a result of the acquisition of material assets under [§33(1)(a)] of the Regulation, it shall be the date according to each of the followings:

- (a) Case where within one (1) year before the submission date of the report on material facts, the common-stock-listed corporation issues stocks, etc. to a key investor of the backdoor listing target company by way of third-party allotment, or the key investor of the backdoor listing target company participates in the stock transfer during the same period: The completion date of the business transfer or the acquisitions of material assets (referring to the date when the implementation of the business transfer or the asset acquisition agreement is completed); and

- (b) Case where within six (6) months after the submission date of the report on material facts, the common-stock-listed corporation issues stocks, etc. to a key investor of the backdoor listing target company participates in the stock transfer during the same period: The date of supplementary listing (referring to the issuing date in case of no supplementary listing; hereinafter the same shall apply in this paragraph) or the date of report on a change in the largest shareholder.

2. In the case of backdoor listing as a result of the investment in-kind under [§33(1)(b)] of the Regulation, it shall be the date of supplementary listing subsequent to the investment in-kind.

(6) Deleted on March 17, 2022.

(6) “The date specified in the Enforcement Rules” in [§37(1)(3)] of the Regulation shall refer to the dates under each subparagraph of paragraphs (5). (Amended on March 17, 2022)

§35. Publication of Backdoor Listing

Pursuant to [§38] of the Regulation, the Exchange may mark “backdoor listing” on the market price table of securities information terminals, etc. from the date noted in any of the following subparagraphs to the statutory deadline for the submission of annual report for the business year after the business year in which the concerned date falls:

1. Case of backdoor listing subsequent to the mergers pursuant to [§33(1)1(a)] and [§33(2)] of the Regulation, the all-inclusive share swaps pursuant to [§33(1)1(b)] of the Regulation or the backdoor listing through investment in kind pursuant to [§33(1)2(b)] of the Regulation: The date of supplementary listing (in case of no supplementary listing, it refers to the day after the issuing date of the securities: hereinafter the same shall apply in this Article). Provided that, in the case of exchanging with the old stocks of the common-stock-listed corporation subject to an all-inclusive share swap, it shall be the date of stock swap; and
2. Case of backdoor listing due to the significant business takeover pursuant to [§33(1)1(c)] of the Regulation or the acquisition of material assets under [§33(1)2(a)] of the Regulation: The date under any of the following items:
 - (a) Case where the supplementary listing or the stock transfer is completed after the completion of the business takeover or the acquisition of assets (referring to the date when the implementation of the business transfer or the asset acquisition agreement is completed; hereinafter the same shall apply in this item), it shall be the date of supplementary listing or the day after the date of report on the stock transfer; or
 - (b) Case where the implementation due to the business takeover or the asset acquisition is completed after the date of supplementary listing or the day after the date of report on the stock transfer, it shall be the day after the completion date of the business takeover or the asset acquisition.

§36. Application Documents for Re-Preliminary Listing Review

The application for re-preliminary listing review and the supplementary documents pursuant to the latter part of [§40(1)] of the Regulation shall be stipulated in [Annex 1].

§37. Mandatory Holding Due to Re-listing

- (1) “The cases stipulated in the Enforcement Rules” in the proviso to [§41(2)1] of the Regulation shall refer to the cases falling under any subparagraph of [§23(3)].
- (2) “The cases stipulated in the Enforcement Rules” in the proviso to [§41(2)2] of the Regulation shall refer to the cases falling under any subparagraph of [§23(4)].

§38. Application Documents for Re-listing

The application for re-listing and the supplementary documents in the former part of [§42(1)] of the Regulation shall be stipulated in [Annex 4].

§39. Application Documents for Listing Change and Supplementary Listing

(1) The applications for listing change or supplementary listing and the documents attached thereto pursuant to [§44(1)] of the Regulation and the submission period shall be stipulated in [Annex 5].

(2) “The value stipulated in the Enforcement Rules” under [§44(3)] of the Regulation shall refer to the value under [§26(3)]. (Amended on April 29, 2022)

§40. Application Documents for Shelf-listing

(1) The application for shelf-listing pursuant to the latter part of [§45(1)] of the Regulation shall mean attached [Annex 22].

(2) A notice on issuance of new stocks pursuant to [§45(2)] of the Regulation shall mean attached [Annex: Form No. 23], and the supplementary documents are as follows:

1. Certificate of registration of issuance;
2. A certified copy of corporate register. In such cases, it may be submitted within seven (7) days after the registration of change
3. A copy of request to issue new stocks or, a copy of conversion request, or a document proving the exercise of stock options; and
4. Other documents recognized as necessary by the Exchange.

§41. Deferment of Listing Change and Supplementary Listing

(1) “The cases stipulated in the Enforcement Rules” in the proviso to [§46(1)1] of the Regulation shall refer to the cases falling under any of the following subparagraphs:

1. Case where there is a court decision or ruling pending on the validity of issuance of new stocks, etc., and the Exchange deems that there is little or no possibility of the validity of issuance of such new stocks being refuted; and
2. Case where the Exchange acknowledges that the listing change or supplementary listing is unlikely to undermine the safety of transactions given the causes for the lawsuit filed in relation to the validity of issuance of new stocks.

(2) “The supplementary documents stipulated in the Enforcement Rules” in the main sentence of [§46(1)4] of the Regulation shall refer to the details of use of funds and the documents evidencing such details submitted in the case of paid-in capital increase by way of third-party allotment among the application documents for listing change and supplementary listing pursuant to [Annex 5].

(3) “The cases specified in the Enforcement Rules” in the proviso to [§46(1)4] of the Regulation shall refer to the case where the company category in which the applicant for the listing change or supplementary listing is included is the premier company category.

(4) In cases where an applicant for listing change or supplementary listing files an objection pursuant to [§46(3)] of the Regulation, the applicant shall submit the objection form in [Annex” Form No. 24] along with the documents noted in each of the following subparagraphs:

1. Documents related to the lawsuit on the validity of new stock issuance;
2. Opinion letters of experts in the concerned fields, such as lawyers, certified public accounts and appraisers; and
3. Other documents that the Exchange deems necessary in relation to the filing of objection.

(5) Upon receiving an objection noted in paragraph (4), unless there is an inevitable reason, the Exchange shall hold a meeting of Listing Committee for the deliberation and resolution on whether or not to postpone the listing change or supplementary listing, within fifteen (15) days (based on business days) from the date of receiving the objection. In such cases, the Exchange may provide the representative of the applicant for the listing change or supplementary listing with an opportunity to present his/her opinion.

(6) The Exchange shall notify in writing the decision on whether or not to postpone the listing change or supplementary listing within three (3) days (based on business days) from the date of deliberation and resolution of the Listing Committee under paragraph (5).

(7) An applicant for the listing change and supplementary listing may not file another official objection to the decision on whether or not to postpone the listing change and supplementary listing made pursuant to paragraph (5).

Section 2. Administration of Listed Issues

§42. Prerequisites for Assigning Company Category, etc.

(1) “Companies that meet the requirements specified in the Enforcement Rules” in [§47(2)1] of the Regulation shall refer to companies that meet each of the following requirements:

1. Business size: Companies shall meet any of the following items as of the base date of periodic review (referring to the statutory submission deadline for annual report of companies whose business year ends in December: hereinafter the same shall apply in this Article):

- (a) The equity capital in the financial statement of the latest business year shall be at least KRW 70 billion; and
 - (b) The average market capitalization for the past six (6) months shall be at least KRW 100 billion.
 - 2. Financial requirements: As of the base date of periodic review, companies shall meet all of the following requirements:
 - (a) There shall be no capital impairment based on the financial statements of the latest business year;
 - (b) The average return on equity for the past three (3) business years shall be at least 5/100, or the average net income for the past three (3) business years shall be KRW 3 billion or more; and
 - (c) The average sales amount for the past three (3) years shall be at least KRW 50 billion.
 - 3. Soundness of corporate management: As of the base date of periodic review, companies shall meet all of the following requirements:
 - (a) For the past two (2) years, there shall be no record of having been subject to the listing maintenance review pursuant to [§57(1)] of the Regulation;
 - (b) Total demerit points imposed subsequent to the designation as an unfaithful disclosure corporation pursuant to [§32] of the Disclosure Regulation for the past two (2) years shall be four (4) points or less; and
 - (c) For the past two (2) years, the number of changes in the largest shareholder noted in [§6(1)3(a)(i)] of the Disclosure Regulation shall be two (2) or less.
- (2) “Corporations that meet the requirements specified in the Enforcement Rules” under [§47(2)3(a)] of the Regulation shall refer to companies that meet all of the requirements noted in each of the following subparagraphs:

- 1. Business size: Companies shall meet any of the following items as of the base date of periodic review:
 - (a) The equity capital in the financial statement of the latest business year shall be at least KRW 30 billion; and
 - (b) The average market capitalization for the past six (6) months shall be at least KRW 50 billion
- 2. Financial requirements: As of the base date of periodic review, companies shall meet all of the following requirements:
 - (a) There shall be no capital impairment based on the financial statements of the latest

business year; and

(b) There shall have been net income for at least two (2) of the last three (3) business years.

3. Growth potential: As of the base date of periodic review, the average growth rate of sales amount compared to the respective immediately preceding year for each of the two (2) latest business years shall be at least 20/100;

(3) “Corporations recognized for their technological prowess by the methods specified in the Enforcement Rules” in [§47(2)3(b)] of the Regulation shall refer to venture companies that meet any of the following requirements: (Amended on June 14, 2024)

1. The green certificate under Article 60 of the Framework Act on Carbon Neutrality and Green Growth for Coping with Climate Crisis (hereinafter referred to as “the green certificate”) shall be obtained;

2. All of the following items shall be met:

(a) Cases falling under [§2(1)38(a) or §2(1)38(b)] of the Regulation (hereinafter referred to as the “venture certificate”); and

(b) Cases falling under [§2(1)38(c)] of the Regulation (hereinafter referred to as the “inno-biz certificate”).

3. As of the base date of periodic review, the ratio of R&D expense to sales in the financial statements of the latest business year is 5/100 or higher.

(4) “Corporations stipulated in the Enforcement Rules in consideration of market share, etc.” in [§47(2)3(c)] of the Regulation shall refer to corporations that the Exchange selects by taking into consideration such factors as the market share, profitability, technology prowess, and growth potential (hereinafter referred to as the “rising star”).

(5) “Initially listed or re-listed corporations specified in the Enforcement Rules” under [§47(2)4(b)] of the Regulation shall refer to corporations for which the first base date of periodic review (the next base date of periodic review if the period from the initial listing date or re-listing date to the first base date of periodic review is less than six (6) months) has not yet arrived after the initial listing or re-listing. Provide that, the technology growth companies, the companies with unrealized profits, and the prompt-transfer companies pursuant to [§31(1)] of the Regulation shall be excluded.

§43. Review and Change of Company Category

(1) The Exchange shall examine the requirements noted in [§42(1), §42(2) and §42(3)3] based on the audit reports for the latest business year or the recent three (3) business years, submitted as of the base date of periodic review (referring to the statutory submission deadline for annual report of companies whose business year ends in December: hereinafter the same shall apply

in this Article). Provided that, in cases where the audit reports could not be submitted by the statutory deadline due to the occurrence of any event provided for in any subparagraph of [§52(1)], the base date of periodic review and the dates of assignment and change of company category may be separately determined by the Exchange.

(2) “The cause for the change in the company category specified in the Enforcement Rules” in [§47(4)] of the Regulation shall refer to the cases noted in any of the following subparagraphs:

1. Acquisition, cancellation or expiration of the green certificate, venture certificate or inno-biz certificate;
2. Selection of or release from the rising star;
3. Case of being released from a designation as an administrative issue or an investment attention issue; and
4. Other cases where the Exchange deems necessary.

(3) In the event of changing the company category due to causes provided for in each subparagraph of paragraph (2), the Exchange shall change and assign the company category of a corporation falling under [§42(3)1 and §42(3)2] and [§42(4)] to the respective corresponding company category and change and assign the company category of a corporation falling under other cases to the standard company category.

(4) In the event of changing and assigning the company category under paragraph (2), the change and designation of company category for corporations falling under causes noted in paragraph (2)2 and paragraph (2)3 shall be made on the day when the concerned cause for change is applied, and the change and assignment of company category for corporations falling under other causes shall be made on the trading day following the day of confirming the concerned cause.

(5) In the event where a company is found to fall under two (2) or more of the company categories as a result of review conducted pursuant to [§47(3) and §47(4)] of the Regulation,, it shall be re-assigned in the order of the premier company category, venture company category, and standard company category.

(6) Notwithstanding [§42(5)] of the Regulation, in cases where an initially listed corporation or a re-listed corporation falls under [§42(3)1 and §42(3)2] or [§42(4)] as of the listing date or before the concerned base date of periodic review from the listing date, such company shall be assigned or re-assigned to the concerned company category.

(7) In the case of a company categorized into the technology growth company under [§47(2)2] of the Regulation, the change of company category may be permitted from the base date of periodic review that arrives three (3) years after the date of the first assignment of company category. Provided that, the prompt-transfer companies under [§31(1)] of the Regulation and the prompt listing-after-merger companies in [§75(4)1] of the Regulation may change their company category from the base date of periodic review that arrives one (1) year after the date of the first assignment of company category.

(8) The first change of the company category for technology growth companies and companies with unrealized profits shall be limited to the change to the premier company category only, and once changed to the premier company category, it shall be prohibited from being re-categorized to the technology growth company category.

(9) Any other matters necessary for the assignment and the change of company category other than those set forth in the provisions of paragraphs (1) through (8) shall be separately specified by the Exchange.

§44. Mandatory Holding Due to Mergers and All-inclusive Stock Swaps

“The cases stipulated in the Enforcement Rules” in the proviso to [§48(1)3] of the Regulation shall refer to the cases falling under any of the subparagraphs of [§23(5)]. In such cases, “the date of application for preliminary listing review” shall be construed as “the submission date of the report on material facts.”

§45. Mandatory Holding Due to Acquisitions of Assets, Etc.

In cases where a change in the largest shareholder takes place pursuant to any of the following subparagraphs in relation to the acquisitions of material assets or investment in kind under [§49(4)] of the Regulation, the largest shareholder, etc. of an unlisted corporation or a KONEX-listed corporation who acquired the stocks, etc. issued by way of third-party allotment by a common-stock-listed corporation shall mandatorily hold the allocated stocks, etc. for six (6) months from the date of supplementary listing:

1. Case where the common-stock-listed corporation acquires material assets from the unlisted corporation or the KONEX-listed corporation and the largest shareholder, etc. of the unlisted corporation or the KONEX-listed corporation acquires stocks, etc. issued by way of third-party allotment by the common-stock-listed corporation within six (6) months from the submission date of the report on material facts of the concerned acquisition of the material assets: Case of becoming the largest shareholder of the common-stock-listed corporation by acquiring the relevant stocks, etc., or becoming the largest shareholder of the common-stock-listed corporation from the date of one (1) year before the submission date of report on material facts to the date before the issuing date of the stocks, etc. Provided that, it shall be limited to the cases where the acquired assets shall not be equity securities issued by the concerned unlisted corporation or the KONEX-listed corporation; or
2. Case where the payment for the stocks issued by the common-stock-listed corporation by way of third-party allotment for the unlisted corporation or the KONEX-listed corporation is made through an implementation of an investment in kind pursuant to Article 422 of the Commercial Act, and the largest shareholder, etc. of the relevant unlisted corporation or the KONEX-listed corporation becomes the largest shareholder of the common-stock-listed corporation by acquiring stocks, etc. or becomes the largest shareholder of the common-stock-listed corporation from the date of one (1) year

before the date of reporting on the issuance of the stocks under [§6] of the Disclosure Regulation to the date before the issuing date. Provided that, it shall be limited to the cases where the properties, which are the object of the investment in kind, shall not be equity securities issued by the unlisted corporation or the KONEX-listed corporation, and the value of the investment in kind shall be 10/100 or more of the total assets of the common-stock-listed corporation as of the end of the latest business year.

§46. Mandatory Holding Due to Paid-in Capital Increase through Third-party Allotment

“The cases resulted from the handling of unclaimed stocks stipulated in the Enforcement Rules” in [§50(1)1] of the Regulation shall refer to the case of allotting unclaimed stocks to a third-party when there are any unclaimed stocks as a result of non-subscription of new stocks or a failure to deliver the subscription payment at the time of paid-in capital increase through rights offering or paid-in capital increase through a third-party allotment.

§47. Mandatory Holding Due to Change of Largest Shareholder

(1) “A change of the largest shareholder set forth in the Enforcement Rules” in the part other than each subparagraph of [§51(1)] of the Regulation shall refer to the cases where the change of the largest shareholder is disclosed pursuant to [§6(1)3(a)(i)] of the Disclosure Regulation. Provided that, this provision shall not apply to the cases where the largest shareholder is changed according to any of the following subparagraphs:

1. Gifts or inheritance;
2. Disposal of the stocks, etc. by the largest shareholder, etc. before the change;
3. Dissolution of the association that is the largest shareholder before the change; and
4. Other cases where the Exchange deems that, given such factors as the patterns of acquisition of the stocks, etc., the largest shareholder after the change has no intention of becoming the largest shareholder of the common-stock-listed corporation or exercising the *de facto* control over the corporation.

(2) “The persons set forth in the Enforcement Rules” in the part other than each subparagraph of [§51(1)] of the Regulation shall refer to the persons falling under any of the following subparagraphs: (Amended on December 28, 2023)

1. Case where the largest shareholder after the change is a corporation: A corporation whose sales amounts (it shall be the sales amount in the consolidated financial statements for a corporation with subsidiaries; the same hereinafter in this subparagraph) for any of the first quarter, semi-annual period, third quarter, or annual period, as confirmed by the documents falling under any of the following subparagraphs (limited to the documents prepared or published within the recent one

(1) year based on the date of disclosure under [§6(1)3(a)(i)] of the Disclosure Regulation), are less than KRW 300 million: (Amended on November 24, 2025)

- (a) Financial statements prepared in accordance with the Korean International Financial Reporting Standards under [§5(1)1] of the Act on External Audit. In such cases, it shall be limited to the cases where the audit or review opinion with respect to such financial statements is ‘unqualified’;
- (b) Financial statements submitted to the head of the tax office having authority over the place of tax payment with respect to the payment of corporate tax, the tax settlement invoice and the certificate of tax payment issued by tax authorities;
- (c) The certificate of tax base of value-added tax and the certificate of tax payment issued by tax authorities with respect to the payment of value-added tax. Provided that, in case of value-added tax-free business operators, it shall be the certificate of income amount for value-added tax-free business operators; and
- (d) In the event where it is impossible to submit the documents provided for in items (a) through (c), a written review confirmation verifying the sales amount of the concerned corporation prepared by an accounting firm.

2. Case where the largest shareholder after the change is an organization or association: An organization or association that does not fall under any of the following subparagraphs:

- (a) The Korea Venture Fund in accordance with the Venture Company Act;
- (b) The Small or Medium Enterprise Establishment Association in accordance with the Support for Small and Medium Enterprise Establishment Act;
- (c) The New Technology Venture Investment Association in accordance with the Special Credit Finance Business Act; or
- (d) Any other organization or association recognized by the Exchange that it is established or formed under the permission or authorization of the competent authorities or is registered with the competent authorities under the relevant statutes (except for the case of applying for registration to the head of the competent tax office).

3. Other foreign companies and organizations recognized by the Exchange as equivalent to subparagraphs 1 and 2.

(3) Notwithstanding paragraph (2), a person who falls under any of the following subparagraphs shall not be deemed to fall under the persons specified in paragraph (2): (Amended on September 27, 2022)

- 1. The State;
- 2. The Bank of Korea;

3. Any person falling under any of subparagraphs of Article 10(2) of the Enforcement Decree of the Act;
4. Any person falling under any of subparagraphs 1 through 4, 9 through 14 and 18 of Article 10(3) of the Enforcement Decree of the Act;
5. The private equity funds under Article 9(19) of the Act (including the private equity funds for institutional investors only for improving corporate structure under Article 20 of the Industrial Development Act) and the special purpose company for investment in which the relevant private equity funds have invested pursuant to the Act (including the special purpose company for investment in which the relevant special purpose company for investment has invested); and
6. Other person recognized by the Exchange as not falling under any of the subparagraphs of paragraph (2) for the purpose of enhancing management efficiency and improving corporate governance.

(4) In cases where the largest shareholder of a common-stock-listed corporation changes to a corporation, an association or an organization, the concerned corporation shall submit the documents noted in each of the following subparagraphs to the Exchange within three (3) days (based on business days) from the disclosure date on which the change of the largest shareholder is disclosed pursuant to [§6(1)3(a)(i)] of the Disclosure Regulation. Provided that, in cases where the Exchange deems that there is an unavoidable reason for not being able to submit the documents by the deadline, the deadline for submission may be extended:

1. A written confirmation under [Annex: Form No. 26] and accompanying documents on whether the largest shareholder after the change falls under any of the subparagraphs of paragraph (2); and
2. In cases where the largest shareholder after the change falls under any of the subparagraphs of paragraph (2), the written affirmation on mandatory holding by the person subject to mandatory holding and a document certifying mandatory holding issued by the Korea Securities Depository.

(5) Notwithstanding paragraph (4), in cases where the largest shareholder after the change is unable to submit the document specified in items (a) through (c) of paragraph (2)1, it may submit an agreement concluded with an accounting firm for the examination and confirmation of the sales amount until the period specified in the part other than each subparagraph of paragraph (4). In such cases, the relevant common-stock-listed corporation shall submit following documents within three (3) weeks from the date of the agreement set forth in the main sentence of this paragraph was submitted:

1. A written confirmation of sales amount under [Annex: Form No. 27]; and
2. Documents under subparagraphs 1 and 2 of paragraph (4).

(6) “The date of submitting documents set forth in the Enforcement Rules” in the part other than each subparagraph of [§51(1)] of the Regulation shall refer to the date on which the

documents under paragraph (4) or the latter part of paragraph (5) are submitted.

§48. Designation as Investment Attention Issues and Release Therefrom

(1) The criteria for identification of corporate insolvency risks under [§52(1)1] of the Regulation shall refer to the criteria set forth in [Annex 8] (hereinafter referred to as the “criteria for identification of corporate insolvency risks”).

(2) The criteria for identification of corporate insolvency risks shall apply in accordance with each of the following subparagraphs:

1. It shall judge based on the financial information on the audit report of the latest business year and disclosures, etc. submitted by the statutory deadline of the annual report of a corporation which closes accounts in December. Provided that, in the case where it is impossible to submit the annual report by the statutory deadline due to a reason which falls any of the subparagraphs of [§52(1)], the Exchange may determine the reference date to judge whether the corporation falls under the criteria for identification of corporate insolvency risks and the timing of designation as and release from an investment attention issue.
2. It shall not apply to a common stock-listed corporation where it is confirmed that reason of delisting by formality review of [§54] of the Regulation (excluding distribution of share ownership not up to standards of [§54(1)5], restriction of transfer of stocks of [§54(1)8], and corporate governance not up to standards of [§54(1)11]), of [§52(1)], of [§52(1)] occurs, or else, there is a fact that falls under any of each subparagraph of [§56(1)]. (Amended on July 9, 2025)

(3) The reason of timely designation pursuant to [§52(1)2] of the Regulation shall apply in accordance with each of the following subparagraphs:

1. Reasons of [§52(1)2(a),(d),(g) through (j)] of the Regulation: The timely designation shall apply based on the review or audit reports that are reported pursuant to [§56(1)2(e)(i)] of the KOSDAQ Market Disclosure Regulation. In such cases, cases where there is a revised report to the concerned report, the designation as or the released from an investment attention issue shall be made on the next day of the day of the report based on the content of the revised report.
2. Reasons of [§52(1)2(g) through (i)] of the Regulation: In a case where a common stock-listed corporation had made a spin-off to convert to a shareholdings company but has not completed the conversion to a shareholdings company, the timely designation shall not apply to the business year to which the spin-off date belongs and the next business year.
3. Reason of [§52(1)2(g)] of the Regulation: The timely designation shall apply in accordance with each of the following items:

- a. Notwithstanding the Regulation [§3(7)2], in cases excluding a corporation specified in the Regulation [§3(7)1], the timely designation shall be based on the individual financial statements.
- b. The timely designation shall not apply in cases where the business year is less than six (6) months due to change of fiscal year, etc. of a common stock-listed corporation.

(4) “Technology growth company stipulated in the Enforcement Rules” in the proviso to [§52(1)2(g)] of the Regulation shall mean a technology growth company whose company category has not changed to the premier company category.

(5) The timings of the designation as an investment attention issue and the release therefrom pursuant to [§52(3)] of the Regulation shall be specified in [Annex 9].

(6) In addition to the provisions of paragraphs (1) through (5), the designation as an investment attention issue and the release from such designation and other necessary matters shall separately be stipulated by the Exchange.

(Wholly amended on December 9, 2022)

§49. Methods of Applying Causes for Sales Not Up To Standards

(1) “A technology growth companies specified in the Enforcement Rules” in the main sentence of [§53(1)1(a) and (b)] and the main sentence of [§53(1)2(b)] of the Regulation shall refer to a technology growth company whose company category has not changed to the premier company category. (Amended on December 9, 2022)

(2) “The requirements stipulated in the Enforcement Rules” in [§53(1)1(b)] of the Regulation shall refer to the cases where a confirmation of outstanding corporation in R&D in accordance with Annex Form No. 29 has been filed and recognized by the Exchange. In such cases, such confirmation shall be submitted within sixty (60) days from the end of each business year (limited to the cases of submitting it before the submission date of annual reports).

(3) “Method prescribed by the Enforcement Rules” in [§53(1)1(c)] of the Regulations shall refer to the arithmetic average of the closing prices on trading days during the latest fiscal year, excluding days on which trading was suspended, multiplied by the number of listed shares. Provided that, if a closing price is not available, subparagraph of [§51] shall apply mutatis mutandis. [July 9, 2025]

(4) The designation as an administrative issue and the release therefrom due to the sales amount not up to standards under [§53(1)1] of the Regulation and the loss from continuing operations before tax under [§53(1)2] of the Regulation shall apply based on the review or audit report reported pursuant to [§6(1)2(e)(i) or §6(1)2(e)(ii)] of the Disclosure Regulation. In such cases, in cases where there is a correction report for the concerned report, a designation as an

administrative issue or a release from such designation shall take place on the day after the date of report based on the corrected and reported details. (Amended on December 9, 2022)

(5) In cases where an administrative issue is designated pursuant to [§53(1)1&2] of the Regulation and any event in each of the following subparagraphs occurs, the business years specified in the relevant subparagraphs shall be excluded from the business years in which the sales amount not up to standards and the loss from continuing operations before tax occurred: (Amended on December 9, 2022)

1. Case where a common-stock-listed corporation split off to convert into a holding company, but the conversion into a holding company has not been completed: The business year to which the date of split-off belongs and the following business year
2. Case where the business year of the common-stock-listed corporation is less than six (6) months due to a change in the accounting period: The concerned business year

(6) “Amount specified in the Enforcement Rules” in the main sentence of [§53(1)2] of the Regulation shall mean the financial debt evaluation loss that is confirmed by [Annex Form No. 42] Confirmation of Evaluation Loss Relating to Refixing Option Financial Instruments, confirmed by the auditor, in cases where such form is submitted. [December 9, 2022]

(7) In the case where the loss from continuing operations before corporate tax under [§53(1)2] of the Regulation occurs, notwithstanding the latter part of the part other than each subparagraph of [§3(7)] of the Regulation, non-controlling interests are not excluded as well when calculating the equity capital based on consolidated financial statements. [December 9, 2022]

§50. Methods of Applying Capital Impairment, etc.

(1) The reasons of capital impairment under [§53(1)3] and equity capital not up to standards under [§53(1)4] of the Regulation shall apply based on the review or audit report filed pursuant to [§6(1)2(e)(i) or §6(1)2(e)(ii)] of the Disclosure Regulation. In such cases, in cases where there is a correction report for the concerned report, a designation as an administrative issue or a release from such designation shall take place based on the corrected and reported details on the day after the date of report. (Amended on December 9, 2022)

(2) In cases where a common-stock-listed corporation split off to convert into a holding company, but the conversion into a holding company has not been completed, the provisions of [§53(1)3 and 4] of the Regulation shall not apply to the business year to which the date of split-off belongs and the following business year. (Amended on December 9, 2022)

(3) [Deleted on December 9, 2022]

(4) [Deleted on December 9, 2022]

§51. Methods of Applying Market Capitalization not up to Standards

The market capitalization not up to standards under [§53(1)5] of the Regulation shall apply in accordance with the following subparagraphs:

1. Case without a closing price: It shall apply based on the base price of the relevant issue on the day; and
2. [Deleted on July 9, 2025]

§52. Methods of Applying Non-submission of Regular Reports

(1) In cases where a common-stock-listed corporation requests an extension of the deadline for submitting its annual report, semi-annual report or quarterly report due to any of the following causes, the Exchange may postpone the designation as an administrative issue and release therefrom pursuant to [§53(1)6] of the Regulation for the period specified in the concerned subparagraph. Provided that, in the case where the relevant cause occurs three (3) months before the statutory deadline for the submission of the regular reports, this paragraph shall be applicable only when the common-stock-listed corporation provides justification as to the cause of non-submission and the Exchange deems it necessary:

1. Case where an auditor of the common-stock-listed corporation (including subsidiaries of the relevant corporation) is unable to carry out an audit due to any causes under the subparagraphs of Article 13(2) of the Enforcement Decree of the Act on External Audit: A period not exceeding three (3) months from the statutory deadline for submission of the concerned report
2. Other unavoidable circumstances where it is not possible for the common-stock-listed corporation to submit the annual, semi-annual, or quarterly report within the statutory submission deadline and the case is acknowledged through approval, etc. by the Financial Services Commission or the Securities and Futures Commission: The period from the statutory submission deadline for the report to the date determined by the Financial Services Commission or the Securities and Futures Commission through approval, etc.

(2) In the case of a corporation exempted from the submission of annual reports under the proviso to Article 159(1) of the Act, it shall not be designated as an administrative issue under [§53(1)6] of the Regulation.

§53. Methods of Applying Corporate Governance not up to Standards

(1) “The efforts set forth in the Enforcement Rules” in the proviso to the part other than each subparagraph of [§53(1)7] of the Regulation shall refer to each of the followings:

1. Introduction of an electronic voting system;
2. Solicitation to exercise voting rights by proxy;

3. Request for exercises of voting rights to institutional investors, etc.; and
4. Other actions taken to establish the general meeting of shareholders.

(2) In the case of applying the provisions of [§53(1)7] of the Regulation, the Exchange shall reflect the result of the general meeting of shareholders of the common-stock-listed corporation and examine the qualifications of outside director and the audit committee based on the written confirmations submitted by the concerned corporation.

(3) In cases where a common-stock-listed corporation has failed to appoint its outside director or establish an audit committee due to unavoidable reasons such as death, the provisions of [§53(1)7] of the Regulation shall not apply.

(4) In cases where the deadline for submitting regular reports is extended pursuant to [§52(1)] of the Regulation, a designation as an administrative issue under [§53(1)7] of the Regulation may be postponed for the period specified in each subparagraph of [§52(1)].

§54. Methods of Applying Trading Volume not up to Standards

(1) The average monthly trading volume in a quarter under [§53(1)8] of the Regulation shall refer to the quantity calculated by dividing the total trading volume for the concerned quarter of a common-stock-listed corporation in the KOSDAQ Market (including trading at multilateral trading companies) by three (3). In such cases, if there is a trading suspension for the concerned issue during the quarter, the average monthly trading volume shall be calculated and applied by conversion based on the trading volume and the trading days excluding the period of trading suspension. (Amended on February 27, 2025)

(2) In the cases of calculating the average monthly trading volume in a quarter pursuant to paragraph (1), if the number of floating stocks has changed during the quarter, the quarterly turnover ratio shall be calculated by aggregating the daily turnover ratio that was calculated by dividing the daily trading volume by the number of floating stocks of the day, and the average monthly turnover ratio shall be calculated by dividing the quarterly turnover ratio by three (3).

(3) In the case of falling under any of the following subparagraphs, the relevant company shall not be designated as an administrative issue due to the trading volume not up to standards under [§53(1)8] of the Regulation:

1. Case where the agreement for liquidity provision pursuant to [§12-3(1)] of the Business Regulation has been entered into as of the end of the quarter; or
2. Case where the number of trading days for the concerned issue during the quarter is less than 1/2 of the number of trading days in the KOSDAQ Market during the quarter.

(4) In cases where a common-stock-listed corporation that has submitted a tender offer statement under Article 134(2) of the Act (limited to the case where such fact is stated in the tender offer statement) for the purpose of being delisted falls under any of the following

subparagraphs, the corporation shall not be designated as an administrative issue due to the trading volume not up to standards in [§53(1)8] of the Regulation during the period set forth in the respective subparagraph. Provided that, in cases where the number of shares owned by the minority shareholders at the end of the latest business year falls below 5/100 of the total number of common stocks even while the designation as an administrative issue is suspended pursuant to the main sentence, the corporation shall be designated as an administrative issue pursuant to [§53(1)8] of the Regulation:

1. Where the number of common stocks acquired through tender offers [including the stocks acquired through tender offers for the purpose of being delisted within the three (3) year prior to the date of submission of the post tender offer report (referring to the post tender offer report under Article 143 of the Act; hereinafter the same shall apply) as confirmed by the post tender offer report] is equal to or more than 30/100 of the total number of common stocks: From the quarter in which the submission date of the post tender offer report falls to the end of the three (3) consecutive business years following the business year which includes the relevant quarter. In such cases, if there is a correction for the post tender offer report and such correction is reported, the date of filing such correction report shall be deemed as the date of submission.
2. Where the number of treasury stocks that the common-stock-listed corporation acquired (including the treasury stocks acquired through tender offers for the purpose of being delisted within the three (3) year prior to the date of submission of the post tender offer report as confirmed by the post tender offer report) is equal to or more than 30/100 of the total number of common stocks: From the quarter in which the submission date of the post tender offer report falls to the end of the first quarter of the business year following the business year in which the number of shares held by the largest shareholder, etc. at the end of the concerned business year exceeds 95/100 of the total number of common stocks. In such cases, the latter part of subparagraph 1 shall apply *mutatis mutandis*.

(5) “Minority shareholders stipulated in the Enforcement Rules” in the former part of [§53(1)8(c)] of the Regulation shall refer to any of the following persons: (Amended on September 27, 2022)

1. A person who holds less than 1/100 of the total number of common stocks. Provided that the largest shareholders, etc. are excluded;
2. Professional investors who do not fall under the largest shareholder, etc.;
3. Funds under Article 3(3) of the Enforcement Decree of the Venture Business Act;
4. Venture capitals;
5. Foreign investment companies;
6. Investment companies (referring to an investment company under Article 9(18)2 of the Act); and
7. Any other foreign companies that have acquired stocks of a common-stock-listed

corporation for investment purposes and are equivalent to professional investors.

§55. Methods of Applying Stock Distribution not up to Standards

(1) With respect to the designation as an administrative issue due to a stock distribution not up to standards under [§53(1)9] of the Regulation, a common-stock-listed corporation shall submit the summarized register of shareholders in [Annex: Form No. 30] and documents that are recognized as necessary by the Exchange within five (5) days from the statutory deadline for submission of annual reports. In such cases, the common-stock-listed corporation may submit via the electronic disclosure system under [§54(1)] of the Disclosure Regulation.

(2) In cases where a common-stock-listed corporation that has submitted a tender offer statement under Article 134(2) of the Act (limited to the case where such fact is stated in the tender offer statement) for the purpose of being delisted falls under any of the following subparagraphs, the common-stock-listed corporation shall not be designated as an administrative issue pursuant to the stock distribution not up to standards in [§53(1)9] of the Regulation during the period set forth in the respective subparagraph. Provided that, in cases where the number of stocks held by minority shareholders at the end of the latest business year is less than 5/100 of the total number of common stocks even while the designation as an administrative issue is postponed under the main sentence, the common-stock-listed corporation shall be designated as an administrative issue pursuant to [§53(1)9] of the Regulation:

1. Where the number of common stocks acquired through tender offers (including the stocks acquired through tender offers for the purpose of being delisted within the three (3) years prior to the date of submission of the post tender offer report and confirmed by the post tender offer report) is equal to or more than 30/100 of the total number of common stocks: From the business year in which the submission date of the post tender offer report falls (in cases where the post tender offer report is submitted within the statutory deadline for submission of annual reports for the latest business year, it shall be deemed that the post tender offer report has been submitted during the latest business year; hereinafter the same shall apply in this paragraph), to the end of the following two (2) consecutive business years. In such cases, if there is a correction for the post tender offer report and such correction is reported, the date of filing such correction report shall be deemed as the date of submission.
 2. Where the number of treasury stocks that the common-stock-listed corporation acquired (including the treasury stocks acquired through tender offers for the purpose of being delisted within the three (3) year prior to the date of submission of the post tender offer report and confirmed by the post tender offer report) is equal to or more than 30/100 of the total number of common stocks: From the business year in which the submission date of the post tender offer report falls to the end of the business year in which the number of shares held by the largest shareholder, etc. at the end of the concerned business year does not exceed 95/100 of the total number of common stocks. In such cases, the latter part of subparagraph 1 shall apply *mutatis mutandis*.
- (3) “The minority shareholders specified in the Enforcement Rules” in the former part other

than each subparagraph in [§53(1)9] of the Regulation shall refer to persons falling under any subparagraph of [§54(5)].

§56. Methods of Applying Bankruptcy Filing

“The cases stipulated in the Enforcement Rules” in the proviso to [§53(1)11] of the Regulation shall refer to any the following cases:

1. Case where a creditor has filed for bankruptcy and the Exchange deems that the need for a designation as an administrative issue is low as the case falls under any of the following items:
 - (a) Where the total credit amount subject to the bankruptcy filing within six (6) months from the date of the bankruptcy filing is less than 10/100 of the equity capital (5/100 for a large-sized corporation under [§2(27)] of the Disclosure Regulation) and less than KRW two (2) billion; and
 - (b) Where it is confirmed that the common-stock-listed corporation has deposited the total credit amount subject to the bankruptcy filing in the court within six (6) months from the date of the bankruptcy filing.
2. Other cases where the Exchange deems that the risk of harming public interests and investor protection is low considering the abuse of rights in connection with the bankruptcy filing and the claim-obligation relationship.

§57. Objection to Designations of Administrative Issues

(1) “The causes specified in the Enforcement Rules” in the former part of [§53(4)] of the Regulation shall refer to any of the following causes:

1. Corporate governance not up to standards pursuant to [§53(1)7] of the Regulation;
2. Stock distribution not up to standards pursuant to [§53(1)9] of the Regulation;
3. Application for commencement of rehabilitation procedures pursuant to [§53(1)10] of the Regulation; and
4. Application for bankruptcy pursuant to [§53(1)11] of the Regulation.

(2) Upon receiving an official objection noted in [§53(4)] of the Regulation, the Exchange shall finalize the decision on the objection through the deliberation and resolution of the Corporate Review Committee within ten (10) days (based on business days) from the date of receiving the objection unless there is any special reason,.

(3) In the case of accepting an objection as a result of the deliberation and resolution made

pursuant to paragraph (2), it shall be deemed that the designation as an administrative issue has lost its validity as of the date of accepting the objection. Provided that, in applying the cause of delisting by formality review under [§54(1)] of the Regulation, it shall be deemed that the validity is lost retroactively from the concerned designation date.

§58. Designations as Administrative Issues and Release therefrom

(1) The timing of designating administrative issues and releasing therefrom pursuant to [§53(8)] of the Regulation shall be stipulated in [Annex 10].

(2) The provisions of paragraph (1) shall not apply during the trading period under [§23] of the Regulation.

Section 3. Delisting

§59. Methods of Applying Formality Condition for Delisting

(1) “The confirmation letter of the auditor specified in the Enforcement Rules” in the proviso to the part other than each subparagraph of [§54(1)1] of the Regulation shall mean attached [Annex: Form No. 31].

(2) In cases where a common stock-listed corporation spins off to convert into a holdings company but the conversion has not been completed, the reason of entire capital impairment of [§54(1)6] of the Regulation shall not apply to the business year which includes the date of the spin-off and the following business year. (Amended on December 9, 2022)

(3) In cases where a corporation fails to submit the annual, semiannual or quarterly report by the statutory deadline due to cases falling under each subparagraph in [§52(1)], the provision of [§52(1)] shall apply *mutatis mutandis*, so that the respective period under each subparagraph of [§52(1)] shall be added to the statutory submission deadlines for the relevant report under subparagraphs 1, 1-2, 6 and 7 of [§54(1)] of the Regulation. (Amended on December 9, 2022; July 9, 2025)

§60. Objection to Delisting by Formality Review, etc.

(1) “Documents specified in the Enforcement Rules” in the part other than each subparagraph of [§55(1)] of the Regulation shall refer to the following documents: (Amended on December 9, 2022)

1. An application for official objection in [Annex: Form No. 28];

2. An improvement plan that includes a plan to resolve the causes for delisting. In such cases, if the causes for delisting fall under any of the following items, the matters specified in each item shall be included:
 - (a) Case of falling under the main sentence of the part other than each subparagraph of [§54(1)1] of the Regulation: The improvement plan to resolve the causes for delisting by revising the audit opinion on the relevant audit report or to receive an “unqualified” audit opinion on the audit report of the next fiscal year; and
 - (b) Case of falling under the proviso to the part other than each subparagraph of [§54(1)1] of the Regulation: The improvement plan to resolve the cause for delisting by revising the audit opinion on the relevant half-year audit report or to receive an “unqualified” audit opinion on the audit report of the relevant business year (referring to the business year in which the relevant cause for delisting has occurred).
 3. Opinion statements issued by experts in the relevant fields, including lawyers, certified public accountants, appraisers, etc.; and
 4. Other documents that the Exchange deems necessary in relation to the official objection.
- (2) When an official objection pursuant to [§55(1)] of the Regulation has been received, unless there is a special reason, the Exchange shall hold a meeting of the Corporate Review Committee under [§55(2)] of the Regulation within twenty (20) days (based on business days) from the date of receiving the concerned objection and make a deliberation and resolution on the following matters. In such cases, the Exchange shall grant the representative of the concerned common-stock-listed corporation an opportunity to state his/her opinion:
1. Whether or not to delist the concerned stock;
 2. Feasibility of the improvement plan, whether or not to grant the improvement period, and if granted, the length of improvement period; and
 3. Whether or not to suspend the trading of concerned stock and if suspended, the period of trading suspension.
- (3) In cases where an improvement period is granted pursuant to [§55(2)] of the Regulation, the improvement period may not exceed six (6) months unless there is a special reason. Provided that, in the case where a cause for delisting corresponds to audit opinion not up to standards of [§54(1)1] of the Regulation, the improvement period may not exceed one (1) year unless there are special reasons. (Amended on December 9, 2022)
- (4) The Exchange may examine whether the improvement plan is implemented based on the annual report, semi-annual report, quarterly report, etc.
- (5) In cases where the improvement period granted pursuant to [§55(2)] of the Regulation is expired, the common-stock-listed corporation shall submit the following documents within fifteen (15) days (based on business days) after the end of the improvement period. Provided that, in case where the concerned common-stock-listed corporation files an application before

the end of the improvement period pursuant to [§55(3)3] of the Regulation, the following documents shall be submitted on the relevant application date:

1. An improvement plan implementation statement;
2. A written confirmation on the outcome of implementation of the improvement plan issued by experts in the relevant fields such as lawyers, certified public accountants or appraisers; and
3. Other documents that the Exchange deems necessary for the review of implementation of the improvement plan.

(6) The Exchange shall hold the Corporate Review Committee under [§55(3)] of the Regulation within twenty (20) days (based on business days) from the date of submitting the documents under paragraph (5) unless there is a special reason. In such cases, the Corporate Review Committee shall make a deliberation and resolution on whether to delist or not by reflecting the implementation of the improvement plan.

(7) The Exchange shall notify the relevant common-stock-listed corporation of the result of the deliberation and resolution in writing within three (3) days (based on business days) from the date of the deliberation and resolution by the Corporate Review Committee pursuant to [§55(2) and §55(3)] of the Regulation.

(8) Notwithstanding paragraphs (2) and (6), in cases where an event that may have a significant effect on the deliberation of the Corporate Review Committee such as court judgments or decisions on lawsuits, submissions of audit reports, etc. is scheduled to occur after the period during which the Corporate Review Committee is to be held under paragraph (2) or (6), the Exchange may extend the period for holding the Corporate Review Committee within twenty (20) days (based on business days).

(9) A common-stock-listed corporation may not file another objection to the decision on delisting pursuant to [§55(2) and (3)] of the Regulation.

(10) In cases where, before the deliberation and resolution of the Corporate Review Committee noted in [§55(3)] of the Regulation on whether or not to delist in relation to a delisting cause under any of the following subparagraphs that has already occurred, an official objection is filed as a delisting cause occurs additionally, the Corporate Review Committee under [§55(3)] of the Regulation shall make a combined deliberation and resolution for the delisting cause that occurred later. Provided that, this provision shall not apply when the Exchange deems that the combined deliberation is not appropriate considering the circumstances of the deliberation or other situations. (Amended on December 9, 2022)

1. Delisting cause due to auditor's opinion not up to standards pursuant to [§54(1)1] of the Regulation
2. Delisting cause due to failure of submitting regular report pursuant to [§54(1)7] of the Regulation

(11) In cases where the Corporate Review Committee conducts a combined deliberation

pursuant to the main sentence of paragraph (10), the date of filing the objection against the delisting cause that occurred later shall be regarded as the date of filing the objection pursuant to [§55(2)] of the Regulation, and the procedures noted in [§55(2) through §55(4)] of the Regulation and paragraphs (2) through (9) of this Article shall apply *mutatis mutandis*. (Amended on December 9, 2022)

(12) In cases where the Corporate Review Committee conducts a combined deliberation pursuant to the main sentence of paragraph (10), the Exchange shall notify the relevant common-stock-listed corporation in writing without delay.

(13) “Cases where the Enforcement Rules stipulates that the Corporate Review Committee’s deliberation and resolution is deemed not necessary” in [§55(4)] of the Regulation shall refer to the cases falling under any of the following subparagraphs: (Amended on December 9, 2022)

1. Case that falls under any of the following items, as a case where a cause of auditor’s opinion not up to standards under [§54(1)1] of the Regulation occurs:
 - (a) Where the Exchange grants an improvement period until the tenth (10th) day from the next day of the statutory submission deadline of annual report of the following business year (refers to the business year that includes half-year period in which the cause of delisting occurs, in the case of the proviso to the part other than each item of [§54(1)1] of the Regulation; hereinafter the same in this subparagraph) in accordance with a formal objection. Provided that, in the case where there is a change in the concerned audit opinion during the improvement period or unqualified opinion on the audit report of the following business year, the improvement period is deemed to have been granted by the day of submission of that audit report pursuant to Disclosure Regulation.
 - (b) Where a corporation falls under the cause of listing maintenance review under [§56(1)13] of the Regulation as the concerned cause of delisting is resolved through a change of audit opinion on the concerned audit report or by having unqualified opinion on the audit report of the following business year. (Amended on July 9, 2025)
2. Case where, as a case where the improvement period was granted by filing an official objection for a cause due to failing to submit regular report under [§54(1)7] of the Regulation, the Exchange recognizes that the cause of delisting is resolved by submitting all the unsubmitted regular reports within the improvement period.

§60-2. Postponement of Delisting

(1) The auditor's opinion (hereinafter referred to as the "auditor's opinion" in this Article) noted in [§55-2(1)3] of the Regulation shall be prepared by the auditor in accordance with the Annex Form No. 31-2.

(2) Unless there are special circumstances, the Exchange shall convene the Corporate Review Committee noted in the main sentence of [§55-2(1)] of the Regulation within 20 days (based on business days) from the date of receipt of the auditor's opinion noted in paragraph (1).

(3) If a listed company fails to submit an auditor's opinion within the deadline stipulated in [§55-2(1)3] of the Regulation, or if the Corporate Review Committee noted in paragraph (2) determines that there is no need to postpone delisting, the Exchange shall proceed with delisting procedures such as final trading, etc.

[July 9, 2025]

§61. Methods of Applying Criteria for Listing Maintenance Review

(1) “The specific criteria for judgment, etc.” in the latter part other than each subparagraph of [§56(1)] of the Regulation shall refer to any of the following subparagraphs: (Amended on December 9, 2022; June 14, 2024; July 9, 2025)

1. Circumvention of the causes of delisting according to formality review or listing maintenance review noted in [§56(1)3] of the Regulation: Cases falling under any of the followings: (Amended on July 9, 2025)
 - (a) Where it is recognized that the cause of delisting such as impairment of entire capital under [§54(1)6] of the Regulation, loss from continuing operations before tax under [§56(1)16] of the Regulation, capital impairment under [§56(1)17] of the Regulation and equity capital not up to standards under [§56(1)18] of the Regulation has been resolved through overestimating of the investment in-kind under Article 422 of the Commercial Act; (Amended on July 9, 2025)
 - (b) Where the suspicion of disguised payment under [§6(1)2(d)(ix)] of the Disclosure Regulation has been recognized and it is recognized that the cause of delisting such as impairment of entire capital under [§54(1)6] of the Regulation, loss from continuing operations before tax under [§56(1)16] of the Regulation, capital impairment under [§56(1)17] of the Regulation and equity capital not up to standards under [§56(1)18] of the Regulation has been resolved through the relevant disguised payment; (Amended on July 9, 2025)
 - (c) Where it is recognized that the cause of delisting due to sales not up to standards under [§56(1)15] of the Regulation has been resolved through arbitrary or temporary sales; (Amended on July 9, 2025)
 - (d) Where it is recognized that the cause for delisting due to a loss from continuing operations before tax under [§56(1)16] of the Regulation has been resolved by accounting for the spin-off or sales of business units, etc. as a discontinuation of business; and (Amended on July 9, 2025)
 - (e) Other cases where the Exchange recognizes that the causes for delisting due to formality review or the causes to be subject to the listing maintenance review have been circumvented.
2. Disclosures of embezzlement or breach of duty pursuant to [§56(1)4] of the Regulation, etc.: Case where an allegation of embezzlement or breach of duty on a scale set forth

in [§6(1)2(d)(vi)] of the Disclosure Regulation (in the case of officers, 3/100 or more of equity capital or at least KRW 1 billion) have been confirmed through a disclosure, etc.; (Amended on July 9, 2025)

3. A serious violation of Article 5(3) of the External Audit Act under [§56(1)5] of the Regulation, etc.: Cases falling under any of the followings due to a violation of accounting standards, etc.:

(a) Cases where a violation of the accounting standards has been confirmed through the annual report, correction of annual report, details of accusation by the prosecutor and result of investigation by the Securities and Futures Commission, and in the event of reflecting the details of such violation, it constitutes the cause of delisting due to formality review under [§54] of the Regulation or the cause for listing maintenance review under [§56(1)3(o)through(r)] of the Regulation; (Amended on July 9, 2025)

(b) Where it is confirmed that the Financial Services Commission or the Securities and Futures Commission has made a resolution to file an accusation or inform the prosecutor's office of the violation of accounting standards committed by a common-stock-listed corporation or its officers (including former and current officers) noted in Article 2, Subparagraph 6 of the External Audit Act. Provided that, this excludes cases where the Financial Services Commission or the Securities and Futures Commission decides that measures for listing management of the Exchange are not necessary while making a resolution on filing a complaint with or notifying to prosecutor's office; and

(c) Where it is confirmed that a common-stock-listed corporation which has been designated as an administrative issue or investment attention issue has been subject to a penalty surcharge by the Financial Services Commission or the Securities and Futures Commission for violation of the accounting standards.

4. Suspension of main business under [§56(1)6] of the Regulation: Cases where it is difficult to carry out an operation with the remaining business units due to falling under any of the followings. In such cases, the main business is judged based on the sales amount, but in cases where the Exchange deems it necessary, the added value amount may be used as the basis for such judgment. (Amended on July 9, 2025)

(a) Case where the production and sales activities of main business are discontinued. In the event where the discontinuation is caused by labor dispute or natural disaster, it shall be limited to cases where the production and sales activities are suspended for at least six (6) months;

(b) Case where the permit or license related to main business is canceled or returned;

(c) Case where the main business has been taken over or has been transferred to the company established through a spin-off or merger after spin-off (including the physical spin-off or merger after physical spin-off; hereinafter the same shall apply in this item). Provided that, this provision shall not be applicable to cases where the spin-off or merger after spin-off has been carried out for the purpose of a conversion into a holding company (including a financial holding company under Article 2(1)1 of the Financial Holding Companies Act; hereinafter the same shall apply in this item) and the

establishment of the holding company was completed at the time of or after the spin-off or merger after spin-off;

(d) Case where the sales amount during the latest quarter is less than KRW 300 million or the sales amount during the latest semi-annual period is less than KRW 700 million. Provided that, this provision shall not apply to the cases falling under any of the followings:

(i) Corporations that belong to the sector of financial and insurance industry in the industry classification specified in [Annex 11];

(ii) Corporations that does not apply the criteria for designation as an administrative issue due to sales not up to standards pursuant to each paragraph of [§53(1)1] of the Regulation. In this case, “the latest fiscal year” in [§53(1)1(c)] of the Regulation shall be deemed as “the latest quarter” or the latest half-year”; and

(iii) Case where a corporation has spun off in order to convert into a holding company but the conversion process has not been completed. Provided that, this shall apply only to the business year in which the date of spin-off belongs and the following business year.

(e) Case where a foreign holding company located in Korea sells the entire or significant parts of the equity of its main foreign subsidiary, and the main foreign subsidiary loses the status of foreign subsidiary;

(f) Case where a foreign holding company located in Korea transfers the entire or significant parts of the business of its main foreign subsidiary, and business activities of the main foreign subsidiary are practically halted as a result of the transfer; and

(g) Other cases where the Exchange deems that the main business has been de facto discontinued.

5. Impairment loss under [§56(1)8] of the Regulation: Case where an amount of impairment loss falling under [§6(1)2(d)(viii)] of the Disclosure Regulation in receivables other than trade receivables is confirmed through disclosures, etc.; (Amended on July 9, 2025)
6. Changes in management rights under [§56(1)9(a)] of the Regulation: Case where the change of the largest shareholder has been disclosed pursuant to [§6(1)3(a)(i)] of the Disclosure Regulation, or the conclusion of a stock purchase agreement or an agreement for the purpose of making any change in management rights under [§6(1)3(a)(ix)Ⓐ] of the Disclosure Regulation has been disclosed; (Amended on July 9, 2025)
7. A decline in sales under [§56(1)11] of the Regulation: Case where it is confirmed through disclosures, etc. that the sales amount during the latest three (3) business years (counting from the business years to which the listing date belongs, but in cases where the period from the listing date to the end of the relevant business year is less than six (6) months, it shall be counted from the next business year) falls under all of the

followings: (Amended on July 9, 2025)

(a) Where the annual sales are less than KRW 500 million; and

(b) Where the annual sales decreased by 50/100 or more compared to the previous year.

8. Imposition of the demerit points related to the disclosure pursuant to [§56(1)12] of the Regulation: In cases where the designation as an administrative issue due to the cause subject to the listing maintenance review under [§56(1)12] of the Regulation has been released during the past one (1) year, the demerit points from the date on which the designation as an administrative issue was released shall be aggregated. (Amended on July 9, 2025)
9. “Amount specified in the Enforcement Rules” in the latter part of [§56(1)16] of the Regulation shall mean the financial debt evaluation loss that is confirmed via the [Annex Form No. 42] which is confirmed by the auditor, in a case where such form is submitted. (Amended on July 9, 2025)

(2) In cases where a corporation becomes subject to the listing maintenance review, the Corporate Review Committee or the Market Committee shall review whether to delist or not based on the following criteria:

1. In the case of [§56(1)1] of the Regulation, the review shall be conducted by the criteria in the following items and items in subparagraph 3: (Amended on July 9, 2025)

(a) Reasons for turning down the application for commencement of rehabilitation procedures, etc.; and

(b) Whether the concerned common-stock-listed corporation is likely to continue as a going concern.

2. In the case of [§56(1)2] of the Regulation, the review shall be conducted by the criteria in the following items and items in subparagraph 3: (Amended on July 9, 2025)

(a) The significance of the falsely stated matters in the listing review and the listing maintenance review and their impact on investors; and

(b) Whether or not the common-stock-listed corporation made the false statement, etc. by intent or gross negligence.

3. In the case of each item of [§56(1)3 through 19] of the Regulation, the review shall be conducted by the following criteria: (Amended on July 9, 2025)

(a) Whether normal business activities are possible considering sales and profit/loss structure;

(b) Whether the financial position would deteriorate due to the size of loan, contingent liability, embezzlement, etc.;

- (c) Whether the management transparency has been damaged due to embezzlements and poor corporate governance caused by frequent changes of largest shareholder, etc.;
 - (d) Whether the details of violation of the disclosure obligations including violations of the accounting standards and unfaithful disclosures are serious; and
 - (e) In addition, whether the delisting is necessary for the soundness of the KOSDAQ Market and investor protection.
- (3) In a case where a common stock-listed corporation had made a spin-off to convert to a shareholdings company but has not completed the conversion to a shareholdings company, the causes under [§56(1)15 through 18] of the Regulation shall not apply. (Amended on December 9, 2022; July 9, 2025)
- (4) In cases where the business year of a common-stock-listed corporation is less than six (6) months due to a change in the fiscal year, etc., this business year shall not be included when applying the causes for the operating loss pursuant to [§56(1)15 and 16] of the Regulation. (Amended on December 9, 2022; July 9, 2025)

§61-2. Exclusion from Listing Maintenance Review

- (1) In the case of determining whether a corporation is subject to listing maintenance review or not pursuant to [§57(1)] of the Regulation, the Exchange may exclude the corporation in cases where the concerned cause is found after elapsing five (5) years from the occurrence of the cause of listing maintenance review. In such cases, the time when the cause of listing maintenance review shall be based on the time when the behaviors, etc. relating to the concerned cause are finished.
- (2) Notwithstanding paragraph (1) above, in cases where the Exchange deems that the cause of listing maintenance review has material impact to the listing eligibility of a common stock-listed corporation, it may decide to have the corporation be subject to listing maintenance review.

[December 9, 2022]

§62. Procedures of Listing Maintenance Review

- (1) The Exchange shall hold the Corporate Review Committee (referring to the Market Committee in the case of proviso to [§57(3)] of the Regulation) within twenty (20) days (based on business days; hereinafter the same shall apply in this paragraph) from the date of notification pursuant to [§57(2)] of the Regulation. Provided that, in cases where a common-stock-listed corporation submits an improvement plan within fifteen (15) days from the date of receiving the notification pursuant to [§57(2)] of the Regulation, the Corporate Review Committee shall be held within twenty (20) days from the date of submitting the improvement

plan.

(2) [Deleted on July 9, 2025]

(3) In case of granting an improvement period through the deliberation and resolution of the Corporate Review Committee under the main sentence of [§57(3)] of the Regulation or the Market Committee under the proviso to [§57(5)] of the Regulation, the improvement period may not exceed one (1) year unless there is a special reason: (Amended on February 27, 2025; July 9, 2025)

1. [Deleted on July 9, 2025]

2. [Deleted on July 9, 2025]

(4) In cases when the improvement period granted pursuant to paragraph (3) has ended, the relevant common-stock-listed corporation shall submit following documents to the Exchange within fifteen (15) days (based on business days) after the end of the improvement period. Provided that, in cases where the relevant common-stock-listed corporation applies before the end of the improvement period pursuant to [§57(7)3] of the Regulation, the documents shall be submitted on the date of application:

1. An improvement plan implementation statement;
2. A written confirmation on the outcome of implementation of the improvement plan issued by experts in the relevant fields such as lawyers, certified public accountants, appraisers, etc.; and
3. Other documents that the Exchange deems necessary for the review of implementation of the improvement plan.

(5) The Exchange shall hold the Corporate Review Committee or the Market Committee pursuant to [§57(4) and §57(6)] of the Regulation within twenty (20) days (based on business days) from the date of submitting the documents under paragraph (4) unless there is a special reason. In this case, the Corporate Review Committee or Market Committee held may grant an additional improvement period of up to three months in any of the following cases, and paragraph (4) and the main sentence of this paragraph shall apply to the deliberation procedure after the end of the improvement period. (Amended on July 9, 2025)

1. In the case where it is clearly recognized that there will be implementation of important parts of the improvement plan, such as change of the largest shareholder, paid-in capital increase, etc.; and (Amended on July 9, 2025)
2. In the case where a court ruling or decision that has a significant impact on the implementation of the improvement plan is scheduled and it is necessary to confirm it. (Amended on July 9, 2025)

(6) During the improvement period, the Exchange may inspect the implementation of the

improvement plan by reviewing an annual report, semi-annual report, quarterly report, etc.

(7) Pursuant to [§57(8)] of the Regulation, the Exchange shall notify the relevant common-stock-listed corporation of the result of deliberation and resolution in writing within three (3) days (based on business days) from the date of deliberation and resolution of the Corporate Review Committee or the Market Committee.

(8) Notwithstanding paragraphs (1) and (5), in cases where an event that may have a significant effect on the result of the deliberation, such as where court judgments or decisions on lawsuits, submission of audit reports, etc., is scheduled to occur after the period during which the Corporate Review Committee or the Market Committee is to be held pursuant to paragraphs (1) or (5), the Exchange may extend the period within twenty (20) days (based on business days).

(9) The occurrence of a formality condition for delisting under [§54] of the Regulation shall not affect the procedures of listing maintenance review under [§57] of the Regulation and the objection against delisting under [§58] of the Regulations. (February 27, 2025)

(10) The representative of the concerned common-stock-listed corporation may attend the meeting of Corporate Review Committee or the Market Committee and express his/her opinion.

(11) The Exchange shall organize the Corporate Review Committee with specialists from the academia, legal and accounting fields who are able to conduct the deliberation of the listing maintenance review in an objective manner. In such cases, the details of the operation of the Corporate Review Committee shall be separately specified by the Exchange.

§63. Procedures of Objection against Delisting by Listing Maintenance Review

(1) “Documents stipulated in the Enforcement Rules” in [§58(1)] of the Regulation shall refer to the following documents:

1. Application for objection in [Annex 28];
2. Improvement plan to resolve the cause for delisting;
3. Opinion letters of experts, such as lawyers, certified accountants, appraisers, etc. in the fields; and
4. Other documents that the Exchange deems necessary in relation to an objection.

(2) The Exchange shall hold the Market Committee pursuant to [§58(2)] of the Regulation, unless there is a special reason, within twenty (20) days (based on business days) from the date of receiving the objection under [§58(1)] of the Regulation to deliberate and decide on the matters specified in each of the following subparagraph:

1. Whether to delist the concerned stock;

2. Feasibility of the improvement plan, whether to grant the improvement period, and if granted, the length of improvement period; and
3. Whether to suspend the trading of concerned stock and if suspended, the period of trade suspension.

(3) In cases where the Exchange holds the Market Committee pursuant to [§58(2)] of the Regulation, it shall grant the representative of the concerned common-stock-listed corporation an opportunity to state his/her opinion.

(4) In the case of granting an improvement period through the deliberation and resolution of the Market Committee pursuant to [§58(2)] of the Regulation, the improvement period may not exceed six (6) months unless there is a special reason, and the total period of improvement granted pursuant to [§62(3)] may not exceed one (1) year in total. (Amended on February 27, 2025; July 9, 2025; March 31, 2026)

(5) In cases where the improvement period granted pursuant to paragraph (4) has expired, the relevant common-stock-listed corporation shall submit the following documents to the Exchange within fifteen (15) days (based on business days) after the end of the improvement period

1. An improvement plan implementation statement;
2. A written confirmation on the outcome of implementation of the improvement plan issued by experts in the relevant fields such as lawyers, certified public accountants, appraisers, etc.; and
3. Other documents that the Exchange deems necessary for the review of implementation of the improvement plan.

(6) The Exchange shall hold the Market Committee within twenty (20) days (based on business days) from the date of receiving the documents under paragraph (5) unless there is a special reason. In this case, the Market Committee held may grant an additional improvement period of up to three (3) months if any of subparagraphs in §62(5)] apply, and paragraph (5) and the main sentence of this paragraph shall apply to the deliberation procedure after the end of the improvement period. (Amended on July 9, 2025)

(7) Notwithstanding paragraphs (2) and (6), in cases where an event that may have a significant effect on the result of the deliberation, such as court judgments or decisions on lawsuits, submission of audit reports, etc., is scheduled to occur after the period during which the Corporate Review Committee or the Market Committee is to be held pursuant to paragraphs (2) and (6), the Exchange may extend the period within twenty (20) days (based on business days).

(8) During the improvement period, the Exchange may inspect the implementation of the improvement plan by reviewing an annual report, semi-annual report, quarterly report, etc.

(9) A common-stock-listed corporation may not file another objection to the decision on delisting under paragraphs (2) through (4) of [§58] of the Regulation.

(10) The Exchange shall notify the relevant common-stock-listed corporation of the result of deliberation and resolution in writing within three (3) days (based on business days) from the date of deliberation and resolution of the Market Committee pursuant to paragraphs (2) through (4) of [§58] of the Regulation.

CHAPTER III. LISTING AND LISTING MANAGEMENT OF OTHER SECURITIES

Section 1. Foreign Stocks, etc.

§64. Preliminary Listing Review, etc. of Foreign Stocks

(1) The application for preliminary listing review of foreign stocks, etc. and supplementary documents pursuant to [§60(2)] of the Regulation shall be stipulated in [Annex 1].

(2) The application for initial listing of foreign stocks, etc. and supplementary documents pursuant to [§60(2)] of the Regulation shall be stipulated in [Annex 2].

§65. Exception to Mandatory Holding for Initial Listing of Foreign Stocks, etc.

(1) “Cases stipulated in the Enforcement Rules” in the proviso to [§61(1)1] of the Regulation shall refer to cases falling under any of subparagraphs of [§23(1)]. In such cases, the provision of [§23(2)] shall apply *mutatis mutandis*.

(2) “Cases stipulated in the Enforcement Rules” in the proviso to [§61(1)2] of the Regulation shall refer to cases falling under any of subparagraphs of [§23(3)].

(3) “Cases stipulated in the Enforcement Rules” in the proviso to [§61(1)3] of the Regulation shall refer to cases falling under any of subparagraphs of [§23(4)] (excluding paragraph (2).)

(4) “Cases stipulated in the Enforcement Rules” in the proviso to [§61(1)4] of the Regulation shall refer to cases falling under any of subparagraphs of [§23(5)] (excluding paragraph (2).)

(5) The disparate ratio between the acquisition price and the public offering price pursuant to the proviso to [§61(1)5] of the Regulation shall be calculated by the method specified in each subparagraph of [§23(6)].

§66. Methods of Applying Review Requirements for Initial Listing of Foreign Stocks, etc.

“Cases specified in the Enforcement Rules” in the main sentence of [§62(1)1(a)(i)] of the Regulation shall refer to cases falling under [§26(1)].

§67. Special Cases for Foreign Technology Growth Companies

(1) “Cases where technology and growth potential are recognized in accordance with the Enforcement Rules” in the former part other than each subparagraph of [§63(1)] of the Regulation shall refer to cases falling under any of the following subparagraphs:

1. Where assessments on technology, etc. shall be conducted by two (2) specialized assessment institutions within six (6) months before the application date for preliminary listing review and the assessment results shall be all grade A or higher; or
2. Where the base market capitalization is KRW one (1) trillion or more, and technological skill or growth potential is recognized through qualitative review requirements pursuant to [§62(1)6] of the Regulation.

(2) “Requirements specified in the Enforcement Rules” under [§63(1)2] of the Regulation shall refer to all of the following requirements. Provided that, the requirements in each of the following subparagraphs shall not apply to a listing sponsor who is not a managing underwriter pursuant to the Regulation on Securities Underwriting Business, etc.: (Amended on February 14, 2022; March 9, 2023; Amended on December 28, 2023)

1. There shall be a record of having sponsored the listing of an innovative technology company within the past three (3) years from the date of application for preliminary listing review. Provided that, this provision shall not apply in cases where the Exchange deems it inevitable due to a sudden change in market situations or economic conditions; and
2. The KOSDAQ-listed foreign corporation or the foreign holding company located in Korea whose listing was sponsored within the past three (3) years (based on the date of application for preliminary listing review) shall not have a record of being designated as an investment attention issue or an administrative issue pursuant to the Regulation, or a cause of delisting due to formality review or a cause of delisting as a result of listing maintenance review shall not have occurred within two (2) years after the listing.

§68. Application Documents for Listing Change and Supplementary Listing of Foreign Stocks, etc.

The application for listing change or supplementary listing of foreign stocks, etc. pursuant to [§65(1)] of the Regulation and supplementary documents shall be stipulated in [Annex 5].

§69. Designation of Investment Attention Issues and Administrative Issues and Delisting of Foreign Stocks, etc.

(1) The timings of designation as an investment attention issue and release from the designation pursuant to [§66] of the Regulation shall be stipulated in [Annex 9].

(2) The timings of designation as an administrative issue and release from the designation pursuant to [§67] of the Regulation shall be stipulated in [Annex 10].

(3) Notwithstanding [§83(2)], in the case of applying the causes for designation as an administrative issue and delisting due to formality review, foreign currency shall be converted into Korean currency according to the base exchange rate that was determined and published in accordance with the Foreign Exchange Transaction Regulation as of the end of the latest business year and applied. Provided that, in cases where [§52(1)2(h)&(i) of the Regulation applies *mutatis mutandis* pursuant to [§66(1)] of the Regulation, the equity capital at the end of semiannual period shall be calculated based on the base exchange rate determined and published at the end of semiannual period in accordance with the Foreign Exchange Transaction Regulation. (Amended on December 9, 2022)

(4) In cases where the causes subject to listing maintenance review applied to a common-stock-listed corporation apply *mutatis mutandis* pursuant to [§68(1)] of the Regulation, “a foreign holding company located in Korea” in [§61(1)4(e) and §61(1)4(f)] shall be construed as “a foreign holding company.”

Section 2. Stocks of Special Purpose Acquisition Companies

§70. Application for Preliminary Listing Review of Stocks of Special Purpose Acquisition Companies

(1) The application for preliminary listing review of stocks of special purpose acquisition companies and supplementary documents pursuant to [§69(1)] of the Regulation shall be stipulated in [Annex 1].

(2) The application for initial listing of stocks of special purpose acquisition companies in [§69(1)] of the Regulation and supplementary documents shall be stipulated in [Annex 2].

(3) Pursuant to the part other than each subparagraph of [§70(1)9] of the Regulation, special purpose acquisition companies shall set the essential matters to be included in the articles of incorporation set forth in [Annex 13] in their articles of incorporation.

(4) In accordance with [§70(1)10] of the Regulation, shareholders, etc. of special purpose

acquisition companies shall agree to the matters in each of the following subparagraphs as of the date of application for preliminary listing review:

1. The details that shareholders, etc. as of the application date of preliminary listing review will not exercise their voting rights pursuant to Article 522 of the Commercial Act with respect to the stocks, etc. (including the stocks acquired by exercising the rights such as conversion rights granted to the relevant stocks, etc.) acquired prior to the initial public offering of stocks of the special purpose acquisition company, or will exercise their votes in accordance with the proportion of pros and cons (including abstention and invalidity) without affecting the details of the resolution made by the number of stocks obtained by subtracting the number of stocks held by the shareholders, etc. from the number of stocks (including the number of stocks voted in writing) held by the shareholders participated in the general meeting of shareholders by delegating their voting rights to the Korea Securities Depository;
2. The details that the shareholders, etc. as of the application date for preliminary listing review will not exercise appraisal rights pursuant to Article 522-3 of the Commercial Act;
3. The details that the shareholders, etc. as of the application date for preliminary listing review will, in cases where the special purpose acquisition company is dissolved as it falls under any of the items of Article 1-4-2(5)2 of the Regulations on Financial Investment Business established by the Financial Services Commission, comply with the methods and the procedures specified in the articles of incorporation in relation with the return of money deposited or trusted with deposit institutions, etc.; and
4. The details that the shareholders etc. will perform their duties of compensation for the damage occurred due to the violation of the agreement pursuant to subparagraphs 1 through 3.

§71. Application Documents on Listing Change and Supplementary Listing of Stocks of Special Purpose Acquisition Companies

The application for listing change or supplementary listing of stocks of special purpose acquisition companies pursuant to [§71(1)] of the Regulation and supplementary documents shall be stipulated in [Annex 5].

§72. Designation of Stocks of Special Purpose Acquisition Company as Administrative Issue

(1) With respect to the designation as an administrative issue and release from such designation due to a failure to meet the qualifications for officers under [§72(2)1] of the Regulation, a special purpose acquisition company shall appoint an officer or in cases where its officer was disqualified, submit a confirmation on whether the qualifications for officers are met.

(2) With respect to the designation as an administrative issue due to stock distribution not up to standards under [§72(2)2] of the Regulation, a special purpose acquisition company shall submit the summarized register of shareholders in [Annex: Form No. 30] and documents that are deemed necessary by the Exchange within five (5) days from the statutory deadline for submission of annual reports. In such cases, the special purpose acquisition company may submit them via the electronic disclosure system under [§54(1)] of the Disclosure Regulation.

(3) The timings of designation as an administrative issue and release from such designation pursuant to [§72(4)] of the Regulation shall be stipulated in [Annex 10].

§73. Delisting of Stocks of Special Purpose Acquisition Companies

(1) “Causes specified in the Enforcement Rules” in the proviso to [§73(1)] of the Regulation shall refer to the cause specified in [§61(1)3(c)].

(2) “A corporation that has special interests specified in the Enforcement Rules” in [§73(2)9(a)(iv)] of the Regulation shall refer to a corporation falling under any of the following subparagraphs:

1. A financial investment company prescribed in Article 6(4)14(c) of the Enforcement Decree of the Act;
2. Shareholders, etc. (excluding financial investment companies under subparagraph 1; hereinafter the same shall apply in this paragraph) of the special purpose acquisition company as of the application date for preliminary listing review;
3. A company of which major shareholder under Article 9(1) of the Act is the person falling under any of the following items:
 - (a) Financial investment companies under paragraph (1) (including the officers and employees of the concerned financial investment company who had performed or are performing the work related to the establishment and operation of the concerned special purpose acquisition company and their spouses and lineal ascendants and descendants);
 - (b) Shareholders, etc. as of the application date for preliminary listing review under paragraph (2) (in cases where the concerned shareholder, etc. is a legal entity, the officers of the concerned legal entity, their spouses, and lineal ascendants and descendants shall be included and in the case of individuals, their spouses, and lineal ascendants and descendants shall be included); and
 - (c) Officers and employees of the concerned special purpose acquisition company (including the spouses and lineal ascendants and descendants of the concerned officers and employees).
4. A company in which a person falling under any of items of subparagraph 3 holds 5/100 or more of the total number of outstanding shares;

5. a financial investment company under subparagraph 1 or major shareholders such as the shareholders, etc. as of the application date for preliminary listing review under subparagraph 2 (limited to cases where the concerned shareholders are a legal entity: hereinafter the same shall apply in this Article), and affiliated companies pursuant to the Monopoly Regulation and Fair Trade Act (hereinafter referred to as “the affiliated company” in this Article); and
6. The relevant special purpose acquisition company, the financial investment company noted in subparagraph 1, shareholders, etc. as of the application date for preliminary listing review noted in subparagraph 2, and a company that currently serves as an employee or has held a concurrent position within the past two (2) years.

(3) In determining the number of shares held in paragraph (2)4, the number of shares noted in each of the following subparagraphs shall be included:

1. The number of shares that may be issued subsequent to the exercise of rights of stocks, etc.;
2. The number of shares held by the affiliated companies of the financial investment company noted in paragraph (2)1; and
3. The number of shares held by the affiliated companies of the shareholders, etc. as of the application date for preliminary listing review noted in paragraph (2)2.

§74. Preliminary Listing Review for Listing after Merger

The application for preliminary listing review and the supplementary documents pursuant to [§74] of the Regulation shall be stipulated in [Annex 1].

§75. Review Requirements for Listing after Merger, etc.

(1) “Case where the Exchange deems it necessary in the Enforcement Rules” in [§75(1)1(a)] of the Regulation shall refer to cases where requirements under the front part of [§26(2)] are met, in this case, the latter part of [§26(2)] shall apply mutandis mutatis. [July 9, 2025]

(2) “Requirements stipulated in the Enforcement Rules” in [§75(4)1(d)] of the Regulation shall refer to requirements in following subparagraphs:

1. A company shall not have received any disciplinary measures from the Financial Services Commission or the Exchange during the past one (1) year due to noncompliance with the financial laws and regulations or the regulations of the Exchange; and
2. In addition, it is deemed that the realization of the public interest and protection of

investors are not undermined.

(3) “Requirements stipulated in the Enforcement Rules” in [§75(4)2(c)] of the Regulation shall refer to requirements in following subparagraphs:

1. The corporation that is a target of merger shall satisfy all of the following items:
 - (a) The sales amount shall be at least KRW 10 billion and there shall be operating profits in the latest business year;
 - (b) There shall be a recommendation from the M&A professional institution, which has registered the trade name of the corporation that is a target of merger in the KRX M&A intermediary network; and
 - (c) The corporation that is a target of merger shall not engage in the businesses that are deemed to undermine the balanced development of national economy and the function of efficient financing of the capital market or to run counter to good morals and other social orders.
2. A special purpose acquisition company shall have no record of having been subject to listing maintenance review over the past two (2) years.

(4) The review requirements for listing after merger of a special purpose acquisition company shall be determined based on the application date for preliminary listing review of listing after merger.

(5) A listing specification noted in [§75(6)] of the Regulation shall refer to [Annex: Form No. 41].

(6) “The application for listing after merger and the supplementary documents shall be submitted to the Exchange in accordance with the Enforcement Rules” in the former part of [§76(1)2] of the Regulation shall refer to the submissions of the application for listing after merger in [Annex Form No. 3] and the supplementary documents pursuant to [Annex No. 2-2] through the listing sponsor within one (1) year after the registration of the merger. [February 14, 2022]

(7) “The requirements specified in the Enforcement Rules” in the latter part of [§76(1)2] of the Regulation shall refer to the requirements in [§26(3)]. [February 14, 2022] (Amended on April 29, 2022)

(8) Pursuant to the latter part of [§76(2)] of the Regulation, in cases where the applicant for listing after merger fails to meet the requirements in paragraph (7), the listing may be deferred until the relevant cause is resolved. [February 14, 2022] (Amended on July 9, 2025)

§76. Mandatory Holding for Listing after Merger

(1) “Cases stipulated in the Enforcement Rules” in the proviso to subparagraph 2 of [§77] of the Regulation shall refer to the cases falling under any of the subparagraphs of [§23(3)].

(2) “Cases stipulated in the Enforcement Rules” in the proviso to subparagraph 3 of [§77] of the Regulation shall refer to the cases falling under any of the subparagraphs of [§23(4)].

(3) “Cases stipulated in the Enforcement Rules” in the proviso to subparagraph 4 of [§77] of the Regulation shall refer to the cases falling under any of the subparagraphs of [§23(5)].

Section 3. Different Classes of Stocks

§77. Application for Preliminary Listing Review of Different Classes of Stocks

(1) The application for preliminary listing review of different classes of stocks (including foreign different classes of stocks; hereinafter the same shall apply in this Section) and supplementary documents pursuant to [§78] of the Regulation shall be stipulated in [Annex 1].

(2) The application for initial listing and supplementary documents of different classes of stocks pursuant to [§78] of the Regulation shall be stipulated in [Annex 2].

§78. Review Requirements for Initial Listing of Different Classes of Stocks

“The criteria specified in the Enforcement Rules” in subparagraph 7 of [§79] of the Regulation shall refer to the cases falling under any of the following subparagraphs:

1. Where the relevant different classes of stocks could be abused as a means of defending the management rights of existing shareholders;
2. Where the interests of shareholders is infringed due to the imbalance between the equity investment and corporate governance power which should be proportional to the equity investment;
3. Where there is no sufficient financial resource for dividend payment or repayment; and
4. Other cases that are deemed to be contradictory to the realization of public interests and the protection of investors.

§79. Application Documents for Listing Change and Supplementary Listing of Different Classes of Stocks

The application and supplementary documents for listing change and supplementary listing of different classes of stocks pursuant to [§80] of the Regulation shall be stipulated in [Annex 5].

§80. Designation as Administrative Issue and Delisting of Different Classes of Stocks

(1) With respect to the insufficient number of shareholders under [§81(1)2] of the Regulation, the method of applying the stock distribution not up to standards to common stocks under [§55(1)] shall apply *mutatis mutandis*.

(2) With respect to the shortfall in market capitalization pursuant to [§81(1)4] and [§82(1)4] of the Regulation, the method of applying the shortfall in market capitalization to common stocks under [§51] shall apply *mutatis mutandis*.

(3) With respect to the shortfall in trading volume pursuant to [§81(1)5] of the Regulation, the method of applying the shortfall in market capitalization to common stocks under [§54(1) and §5(3)] shall apply *mutatis mutandis*.

(4) The timings of designation as an administrative issue and release from such designation for different classes of stocks pursuant to [§81(1)] of the Regulation shall be stipulated in [Annex 10].

Section 4. Subscription Warrants and Subscription Right Certificates

§81. Application Documents for Initial Listing of Subscription Warrants and Subscription Right Certificates

The application for initial listing and supplementary documents of subscription warrants or subscription right certificates pursuant to [§83(1)] of the Regulation shall be stipulated in [Annex 2].

§82. Application Documents on Listing Change of Subscription Warrants and Subscription Right Certificates

The application for listing change and supplementary documents of subscription warrants or subscription right certificates pursuant to [§84(1)] of the Regulation shall be stipulated in [Annex 5]

Section 5. Business Development Collective Investment Securities

[March 16, 2026]

§82-2. Application for Preliminary Listing Review of Business Development Investment Company Stocks

(1) The application for preliminary listing review of business development investment company stocks under [§85-5(1)] of the Regulation and supplementary documents shall be stipulated in [Annex 1].

(2) The application for initial listing of business development investment company stocks under [§85-5(1)] of the Regulation and supplementary documents shall be stipulated in [Annex 2].

[March 16, 2026]

§82-3. Application Documents for Supplementary Listing of Business Development Investment Company Stocks

The application and supplementary documents for supplementary listing of business development investment company stocks under [§85-7(1)] of the Regulation shall be stipulated in [Annex 5].

[March 16, 2026]

§82-4. Application Documents for Listing Change of Business Development Investment Company Stocks

The application and supplementary documents for listing change of business development investment company stocks under [§85-8(1)] of the Regulation shall be stipulated in [Annex 5].

[March 16, 2026]

§82-5. Designation of Business Development Investment Company as Administrative Issue

The timings of designation as an administrative issue and release from such designation pursuant to [§85-9(5)] of the Regulation shall be stipulated in [Annex 10].

[March 16, 2026]

§82-6. Application for Preliminary Listing Review of Business Development Investment Trust Beneficiary Certificates

(1) The application for preliminary listing review of business development investment trust beneficiary certificates under [§85-12(1)] of the Regulation and supplementary documents shall be stipulated in [Annex 1].

(2) The application for initial listing of business development investment trust beneficiary certificates under [§85-12(1)] of the Regulation and supplementary documents shall be stipulated in [Annex 2].

[March 16, 2026]

§82-7. Application Documents for Supplementary Listing of Business Development Investment Trust Beneficiary Certificates

The application and supplementary documents for supplementary listing of business development investment trust beneficiary certificates under [§85-14(1)] of the Regulation shall be stipulated in [Annex 5].

[March 16, 2026]

§82-8. Application Documents for Listing Change of Business Development Investment Trust Beneficiary Certificates

The application and supplementary documents for listing change of business development investment trust beneficiary certificates under [§85-15(1)] of the Regulation shall be stipulated in [Annex 5].

[March 16, 2026]

§82-9. Designation of Business Development Investment Trust Beneficiary Certificates as Administrative Issue

The timings of designation as an administrative issue and release from such designation pursuant to [§85-16(5)] of the Regulation shall be stipulated in [Annex 10].

[March 16, 2026]

CHAPTER V. SUPPLEMENTARY PROVISIONS

§83. Submission of Documents of Foreign Companies

(1) Pursuant to [§87] of the Regulation, documents to be submitted by foreign companies shall be prepared in Korean language. Provided that, in cases where the Exchange deems it necessary, the attached documents may be written in English, and in such cases, a summary in Korean shall be attached.

(2) Pursuant to [§87] of the Regulation, in the details of the documents submitted by foreign companies, matters regarding the amount shall be expressed in Korean currency. In such cases, it shall be the amount converted into Korean Won on the basis of the basic exchange rate determined and published pursuant to the Foreign Exchange Transaction Regulation as of the base date of the financial information.

§84. Listing Fees and Annual Dues

Pursuant to [§88(2)] of the Regulation, the imposition criteria, the fee rate, the payment timing, the exemption criteria, and other necessary matters of listing fees and annual dues shall be stipulated in [Annex 14].

§85. Criteria for Industry Classification

(1) Pursuant to [§89] of the Regulation, the Exchange shall classify industries by business types and codes specified in [Annex 11] based on the Korean Standard Industrial Classification (hereinafter referred to as “the Korean Standard Industrial Classification”) published by the Commissioner of Statistics Korea in accordance with the Statistics Act.

(2) The industry classification in paragraph (1) shall be carried out by the following methods:

1. In cases where a company is engaged in two (2) or more businesses, its industry division shall be the business yielding the largest sales amount. Provided that, in cases where the Exchange deems it necessary, it may be classified into the business yielding the highest added value;
2. In cases where the classification method specified in the subparagraph 1 is difficult to apply, the factors such as the number of employees and facilities shall be taken into consideration in determining the industry classification;
3. In cases where it is difficult to classify the industrial division because its business details are not clear, it shall be classified under the other sector of similar industry; and
4. In the case of a holding company, if the proportion of the sales of a specific industry

sector is 50/100 or more on the consolidated financial statements, it shall be classified into the relevant industry. Provided that, the holding company may submit documents such as the management plans concerning the industry classification, and the Exchange may make the industry classification by comprehensively considering the realization of public interests and protection of investors, etc.

(3) In cases where a KOSDAQ-listed corporation falls under any of the following subparagraphs, the industry classification of the corporation shall be changed. Provided that, no change in the industry classification shall take place if the Exchange deems that the industry reclassification is unnecessary in view of such factors as the history and business forecast of the concerned corporation and the change of sub-sector within the same sector may not be made:

1. Case where the reclassification of industrial division is necessary as a result of a change in the Korea Standard Industrial Classification;
2. Case where the main business has been changed due to a merger, spin-off, acquisition or transfer of business, etc.;
3. Case where the level of sales ratio for main products has changed for the past two (2) business years in a row, and the growth within the existing industrial division cannot be expected;
4. Case where there was a significant change in the level of sales ratio of main products in the latest one (1) business year due to the reorganization of business structure, a change of main business, etc., and the Exchange deems that the reclassification is necessary upon receiving the request for industry reclassification from the concerned listed corporation;
5. Case where the industrial classification has been changed by the laws; and
6. Other cases where the reclassification of industry is deemed necessary.

(4) The timing of reclassifying the industry sectors of KOSDAQ-listed corporations shall be each of the following subparagraphs:

1. Case of subparagraphs 1, 5 and 6 of paragraph (3): The time when the relevant fact has been confirmed;
2. Case of subparagraph 2 of paragraph (3): The time when the document proving that the main business has been changed as a result of the concerned merger, spin-off, business acquisition/transfer, etc. was submitted; and
3. Case of subparagraphs 3 and 4 of paragraph(3): The first trading day of the fifth (5th) month counted from the month following the month which includes the fiscal closing date of the KOSDAQ-listed corporation. Provided that, if a KOSDAQ-listed corporation fails to submit its annual report by the statutory deadline due to cases falling under each subparagraph in [§52(1)], the timing of industry reclassification for the corporation and the submission deadline of review materials required for industry

classification may be separately determined by the Exchange.

(5) The Exchange shall classify the industries of KOSDAQ-listed foreign companies by applying paragraphs (1) through (4) *mutatis mutandis*. Provided that, the Exchange may change the time of industry reclassification and the submission deadline for materials required for industry classification in consideration of the submission deadline for annual report under the laws of the home country of KOSDAQ-listed foreign companies.

(6) The Exchange may request KOSDAQ-listed corporations to provide the materials needed for industry reclassification.

(7) KOSDAQ-listed corporations shall submit the materials necessary for the industry classification under subparagraphs 3 and 4 of paragraph (3) to the Exchange by the statutory submission deadline for annual reports.

§86. Opinion Gathering

The opinion gathering pursuant to [§90] of the Regulation shall be governed by the provisions of [§5] of the Internal Regulations Management Regulation and [§6] of the Regulations Management Regulation.

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ADDENDA

(Regulation No. 1990, October 27, 2021)

§1. Regulation on the Enforcement of KOSDAQ Market Listing Regulation

The Wholly Amended Regulation of the KOSDAQ Market Listing Regulation, Regulation No. 1977, shall become effective on November 1, 2021. Provided that, the amended provisions of [§2(1)1(f)(ii)], the latter part of [§69(2)], the proviso to [§70(1)9(d)(iii)], the proviso to [§73(2)9(c)] and [§76(1)2] shall be effective from February 15, 2022.

§2. Effective Date

These Enforcement Rules shall become effective on November 1, 2021. Provided that, the amended provision of [Annex 8] shall be effective from May 2, 2022.

§3. Applicable Case concerning Listing Sponsors of Technology Growth Companies

The amended provisions of [§28(2)] and [§67(2)] shall apply starting from the corporation that requests a preliminary listing review after the effective date of these Enforcement Rules.

§4. Applicable Case concerning Improvement Period Granted Due to Delisting by Audit Opinion

The amended provision of [§60(13)] shall apply starting from the corporation that is granted an improvement period after the effective date of these Enforcement Rules.

§5. General Interim Measures

Applications, requests, determinations, procedures and other actions pursuant to the previous Enforcement Rules of the KOSDAQ Market Listing Regulation at the time these Enforcement Rules enter into force shall be deemed to have been conducted in accordance with these Enforcement Rules.

§6. Interim Measures concerning Designations of Administrative Issues and Release therefrom for Different Classes of Stocks

(1) In the cases of different classes of shares listed as of October 1, 2020, notwithstanding the amended provisions of subparagraph 2 (iii) and (iv) in [Annex 10], the number of listed stocks and the market capitalization in the following table shall apply in lieu of the number of listed stocks under the amended provisions of subparagraph 2 (iii) in [Annex 10] and the market capitalization under amended provisions of subparagraph 2 (iv) in [Annex 10] until September 30, 2022.

Applicable Period	Number of Listed Stocks	Market Capitalization
Up to Sep. 30, 2022	100,000	KRW 1 billion

(2) The number of days satisfying the market capitalization pursuant to [§33-6(1)4] of the previous Regulation (referring to the Regulation before the Partial Amendment to the Enforcement Rules of KOSDAQ Market Listing Regulation, Regulation No. 1865) at the time when the Partial Amendment to the Enforcement Rules of KOSDAQ Market Listing Regulation, Regulation No. 1865, entered into force shall be construed as the number of days in accordance with the amended provisions of the Partial Amendment of the Enforcement Rules of KOSDAQ Market Listing Regulation, Regulation No. 1865.

§7. Interim Measures for Selection Criteria of Corporate Insolvency Risks

In accordance with the proviso to [§2], the provisions of [Annex 3] of the previous Regulation (referring to the Regulation before the Partial Amendment to the Enforcement Rules of KOSDAQ Market Listing Regulation, Regulation No. 1896) shall apply before the amended provisions of [Annex 8] enter into force.

§8. Interim Measures for Assessments, etc. of Specialized Assessment Institutions

(1) The amended provisions of [§2(6)1] and [§9] of the Partial Amendment to the Enforcement Rules of KOSDAQ Market Listing Regulation, Regulation No. 1951, shall apply from the assessment of a specialized assessment institution pursuant to [§9] of the same Enforcement Rules after April 26, 2021.

(2) The amended provision of [§2(6)2] of the Partial Amendment to the Enforcement Rules of KOSDAQ Market Listing Regulation, Regulation No. 1951, shall apply from the corporation, which requests a preliminary listing review after April 26, 2021.

§9. Relation with Other Regulations

In cases when other regulations, enforcement rules and guidelines cited the provisions of the previous “Enforcement Rules of the KOSDAQ Market Listing Regulation” at the time when these Enforcement Rules have become effective, it shall be deemed that the concerned provisions of these Enforcement Rules have been cited in lieu of the previous provisions if there is a corresponding provision among these Enforcement Rules.

§10. Amendments of Other Regulations

(1) A part of the Enforcement Rules of the KOSDAQ Market Business Regulation shall be amended as follows:

In [§17(3)], “each subparagraph of [§2(6)] of the Listing Regulation” shall be “[§2(1)1(c)] of the Listing Regulation”, and “[§17] of the Listing Regulation” shall be “[§39] of the Listing Regulation”, and “[§18] of the Listing Regulation” shall be “[§44] of the Listing Regulation”.

“[§2(15)3 and §2(15)4] of the Listing Regulation” stipulated in the part other than each subparagraph of [§28-2(1)1] shall be “[§2(1)35(c) and §2(1)35(d)] of the Listing Regulation”.

“[§26(14)] of the Enforcement Rules of the Listing Regulation” stipulated in [§28-2(1)1(a)] shall be “[Annex: Form No. 30] of the Enforcement Rules of the Listing Regulation”, and in [§28-2(1)1(b)], “[§18] of the Listing Regulation” shall be “[§44] of the Listing Regulation” and “[§18(1)9] of the Enforcement Rules of Listing Regulation” shall be “[Annex: Form No. 2] of the Enforcement Rules of Listing Regulation”.

“[§28(1)13 or §28(1)15-2(b)] of the Listing Regulation” stipulated in [§28-2(1)4] shall be “[§53(1)9] or [§72(2)2] of the same Regulation”.

“[§2(33)] of the KOSDAQ Market Listing Regulation” stipulated in [§35-37(1)2(a)] shall be “[§2(1)34] of the KOSDAQ Market Listing Regulation”.

“[§45] of the Listing Regulation” stipulated in subparagraph 3 of [§44] shall be “[§22] of the Listing Regulation”.

“[§38(2)] of the Listing Regulation” stipulated in subparagraph 6 of [§44/6] shall be “[§56(1)] of the Listing Regulation”.

In [Annex 1], “[§4] of the Listing Regulation” stipulated in paragraph (2)1(a)(i) shall be “[§25] of the Listing Regulation”, and “[§4] of the Listing Regulation” stipulated in paragraph (2)1(a)(iii)Ⓐ shall be “[§25] of the Listing Regulation”, and “[§4] of the Listing Regulation” stipulated in paragraph (2)1(a)(iii)Ⓑ shall be “[§25] of the Listing Regulation”, and “[§26(6)] of the Listing Regulation” shall be “[§13(5)] of the Listing Regulation”, and “[§4-2] of the Listing Regulation” stipulated in paragraph(2)1(d) shall be “[§60] of the Listing Regulation”.

In [Annex 1-2], “[§16-2] of the Listing Regulation” stipulated in paragraph (4)1 shall be “[§83(2)] of the Listing Regulation”, and “[§16-3] of the Listing Regulation” stipulated in paragraph (4)2 shall be “[§83-3] of the Listing Regulation”.

In [Annex 5], “[§2(30)] of the Listing Regulation” stipulated in paragraph (1)1(b) shall be “[§2(1)36] of the Listing Regulation”.

“[§18-4(1)] of the KOSDAQ Market Listing Regulation” stipulated in [§9(2)3] of the Form 6-5 shall be “[§33] of the KOSDAQ Market Listing Regulation”.

(2) A part of the Enforcement Rules of the KOSDAQ Market Disclosure Regulation shall be amended as follows:

“[§29] of the KOSDAQ Market Listing Regulation” stipulated in [§4-2(5)1] shall be “[§18] of

the KOSDAQ Market Listing Regulation”.

“[§28-2] of the KOSDAQ Market Listing Regulation” stipulated in [§4-2(5)2] shall be “[§52] of the KOSDAQ Market Listing Regulation”.

“[§23(2)] of the KOSDAQ Market Listing Regulation” stipulated in [§7(1)1(e)] shall be “[§51(1)] of the KOSDAQ Market Listing Regulation”.

“[§47] of the KOSDAQ Market Listing Regulation” stipulated in [§15(6)] shall be “[§23] of the KOSDAQ Market Listing Regulation”.

“[§38(2)5(l)] of the KOSDAQ Market Listing Regulation” stipulated in [§15(9)2] shall be “[§56(1)3(k)] of the KOSDAQ Market Listing Regulation”.

“[§38(2)5(l)] of the KOSDAQ Market Listing Regulation” stipulated in [§16(3)] shall be “[§56(1)3(k)] of the KOSDAQ Market Listing Regulation”.

“[§38-2(1)] of the KOSDAQ Market Listing Regulation” stipulated in [§16(4)] shall be “[§57(1)] of the KOSDAQ Market Listing Regulation”.

“[§38(2)5(l)] of the KOSDAQ Market Listing Regulation” stipulated in [§17-2(2)] shall be “[§56(1)3(k)] of the KOSDAQ Market Listing Regulation”.

“[§38(2)5(l)] of the KOSDAQ Market Listing Regulation” stipulated in [§17-3(1)] shall be “[§56(1)3(k)] of the KOSDAQ Market Listing Regulation”.

“[§29(1)5(d)] of the Enforcement Rules of the KOSDAQ Market Listing Regulation” stipulated in [§18(1)6] shall be “[§19(1)3(b)] of the Enforcement Rules of the KOSDAQ Market Listing Regulation”, and “[§29(1)5(d) and §29(1)5(e)] of the Enforcement Rules of the KOSDAQ Market Listing Regulation” stipulated in [§18(1)7] shall be “items (b), (c) and (e) of [§19(1)3] of the Enforcement Rules of the KOSDAQ Market Listing Regulation”.

“[§47] of the KOSDAQ Market Listing Regulation” stipulated in [§18(6)] shall be “[§23] of the KOSDAQ Market Listing Regulation”

“[§38(2)5(l)] of the KOSDAQ Market Listing Regulation” stipulated in [§18-2] shall be “[§56(1)3(k)] of the KOSDAQ Market Listing Regulation”.

“[§38(2)5(l)] of the KOSDAQ Market Listing Regulation” stipulated in [§21-2(3)] shall be “[§56(1)3(k)] of the KOSDAQ Market Listing Regulation”.

In [Annex 1], “[§30(2)] of the KOSDAQ Market Listing Regulation” stipulated in 3(b)(vii) shall be “[§19(2)] of the KOSDAQ Market Listing Regulation”.

(3) A part of the Enforcement Rules of the KONEX Market Listing Regulation shall be amended as follows:

“subparagraphs 2, 3, 4, 14-2, 14-3 of [§28(1)] (hereinafter referred to as “the cause for designation of an administrative issue in the KOSDAQ Market”) and subparagraphs 2, 4, 4-2,

5 (limited to a case where the cause for dissolution is a adjudication of bankruptcy), 10, 11 of [§38(1)] and [§38(2)3]” stipulated in [§8(2)] shall be “subparagraphs 1, 2, 4, 10, 11 of [§53(1)] (hereinafter referred to as “the cause for designation of an administrative issue in the KOSDAQ Market”) and subparagraphs 1, 2, 3, 4, 5 (limited to a case where the cause for dissolution is a adjudication of bankruptcy), 8 of [§54(1)] and [§56(1)1]”.

(4) A part of the Enforcement Rules of the KONEX Market Business Regulation shall be amended as follows:

“[§2(33)] of the KOSDAQ Market Listing Regulation” stipulated in [§46-9(1)2(a)] shall be “[§2(1)34] of the KOSDAQ Market Listing Regulation”.

(5) A part of the Guideline on Operation of KOSDAQ Market Listing Committee shall be amended as follows:

“[§18(8)] of the KOSDAQ Market Listing Regulation” stipulated in [§3, subparagraph (1)] shall be “[§46(5)] of the KOSDAQ Market Listing Regulation”.

“Venture capital pursuant to [§2(10)] or professional investors pursuant to [§2(12)] of the KOSDAQ Market Listing Regulation” stipulated in [§4-2(1)6] shall be “Venture capital pursuant to [§2(1)14] or professional investors pursuant to [§2(1)15] of the KOSDAQ Market Listing Regulation”.

(6) A part of the Guideline on Operation of KOSDAQ Market Corporate Review Committee shall be amended as follows:

“Matters concerning an objection to the delisting of a KOSDAQ-listed corporation pursuant to [§38(1)] (including the objection to the designation as an administrative issue pursuant to [§28(1)] of the Listing Regulation)” stipulated in [§3, subparagraph 1] shall be “Matters concerning an objection to the delisting of a KOSDAQ-listed corporation pursuant to [§54(1)] (including the objection to the designation as an administrative issue pursuant to [§53(1)] of the Listing Regulation)”.

“A KOSDAQ-listed corporation pursuant to [§38(2)] of the Listing Regulation” stipulated in [§3, subparagraph 2] shall be “A KOSDAQ-listed corporation pursuant to [§56(1)] of the Listing Regulation”.

“[§45(1) and §45(2)] of the Listing Regulation” stipulated in [§3, subparagraph 3] shall be “[§22(1)] of the Listing Regulation”.

“Requirements under [§3-2(1)1] of the Listing Regulation” stipulated in [§5(1)3(a)] shall be “Requirements under [§15(1)1] of the Listing Regulation”.

ADDENDA

(Regulation No. 2019 / February 14, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on February 15, 2022.

§2. Applicable Case concerning Requirements for Listing Sponsors

The amended provisions of [§28(2) and (3)], [§67(2)] and [Annex Form No. 14] shall apply from the corporation that applies for preliminary listing review after the effective date of this Enforcement Rules.

§3. Applicable Case concerning Non-surviving Merger of SPAC

The amended provisions of [§2(1)1(f)(ii)], the proviso to [§70(1)9(d)(iii)], the proviso to [§73(2)9(c)], and [§76(1)2] of wholly amended KOSDAQ Market Listing Regulation, Regulation No. 1977, and [§75(5) through (7)], [Annex No. 2-2], [Annex No. 14] and [Annex Form No. 3] of the Enforcement Rules shall apply from the corporation that applies for preliminary listing review for its listing after merger pursuant to [§74] of the Regulation after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2028 / March 17, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on March 17, 2022.

§2. Applicable Case concerning Mandatory Holding

(1) The amended provisions of Written Affirmation on Mandatory Holding of Stocks, etc. (Initial Listing) and Written Affirmation on Mandatory Holding of Stocks, etc. (Supplementary Listing) in [Annex Form No. 14] shall apply from the corporation that applies for preliminary listing review after the effective date of this Enforcement Rules.

(2) The amended provisions of [§34(5) and (6)] and Written Affirmation on Mandatory Holding of Stocks, etc. (Backdoor Listing) in [Annex Form No. 14] shall apply from the corporation that submits documents for backdoor listing in accordance with [§34(2)] of the Regulation after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2038 / April 29, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on May 2, 2022.

§2. Applicable Cases

The amended provisions of [§15(6)], [§26(2)], [§27(3)], [§28(1)1(a)(iii)], [§29], [Annex No. 1], [Annex No. 14/4(i) and (j)], [Annex Form No. 10-2], [Annex Form No. 11], and [Annex Form No. 14] shall apply from the corporation that applies for preliminary listing review after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2068 / September 27, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on September 28, 2022.

§2. Applicable Case concerning Application Forms for Listing Change and Supplementary Listing

The amended provisions of [Annex No. 5] and [Annex Form No. 14] shall apply from the corporation that applies for listing change and supplementary listing after the effective date of this Enforcement Rules.

§3. Applicable Case concerning Preliminary Listing Review

The amended provisions of [Annex No. 6] shall apply from the corporation that applies for preliminary listing review after the effective date of this Enforcement Rules.

§4. Applicable Case concerning Exemption of Listing Fee

The amended provisions of [Annex No. 14] shall apply from the corporation that applies for listing after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2091 / December 9, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on December 12, 2022.

§2. Applicable Case concerning Exception on Mandatory Holding

The amended provision of [§23(3)] shall apply from the corporation that applies for preliminary listing review after the effective date of this Enforcement Rules.

§3. Applicable Case concerning Exclusion from Listing Maintenance Review

The amended provision of [§61-2] shall apply from the corporation that is confirmed of the reason for listing maintenance review after the effective date of this Enforcement Rules.

§4. Applicable Case concerning Timing of Designation and Release of Investment Attention Issue

The amended provisions of [Annex No. 9] shall apply from the corporation of which the reason for designation as and release from investment attention issue incurs after the effective date of this Enforcement Rules.

§5. Applicable Case concerning Timing of Designation and Release of Administrative Issue

The amended provisions of [Annex No. 10] shall apply from the corporation of which the reason for designation as and release from administrative issue incurs after the effective date of this Enforcement Rules.

§6. Interim Measure concerning Timing of Designation and Release of Administrative Issue

(1) With regard to the timing of release from the designation as an administrative issue for a corporation that was decided to be subject to listing maintenance review due to the reason of [§56(1)3(i)] of the previous Rules, the previous Rules shall apply notwithstanding the amended provisions of [Annex No. 10].

(2) With regard to the timing of release from the designation as an administrative issue for the corporation of which reason for delisting by formality review was incurred based on half-year period pursuant to the previous rules of [§54(1)8(b),(c) and(d)], the previous Rules shall apply notwithstanding the amended provisions of [Annex No. 10].

§7. Amendment of Other Regulations

The Enforcement Rules of the KOSDAQ Market Disclosure Regulation shall be amended in part as follows:

"[§56(1)3(k)] of the KOSDAQ Market Listing Regulation" of [§15(9)2], the proviso to [§15-2(4)], the proviso to [§16(3)], the proviso to the part other than each subparagraph of [§17-2(2)], the proviso to [§17-3(1)], the proviso to [§18-2], and the proviso to the part other than each subparagraph of [§21-2(3)] shall be "[§56(1)3(j)] of the KOSDAQ Market Listing Regulation".

ADDENDA

(Regulation No. 2109 / March 9, 2023)

§1. Effective Date

This Enforcement Rules shall become effective on March 13, 2023.

§2. Applicable Cases for Special Case Concerning Foreign Technology Growth Company

The amended provisions of [§28(2)1], [§67(2)1], [§29], [Annex No. 1], and [Annex No.3] shall apply from the corporation that applies for preliminary listing review and backdoor listing after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2204 / December 28, 2023)

§1. Effective Date

This Enforcement Rules shall become effective on January 1, 2024.

§2. Applicable Case

(1) The amended provisions of [§28(1) and (2)] shall apply from the corporation that requests the designation of a specialized assessment institution to the Exchange pursuant to [§11(2)] after the effective date of this Enforcement Rules.

(2) The amended provisions of [§10], [§15], [§28(5)], [§67], [Annex No. 1], [Annex No. 6] and [Annex No. 7] shall apply from the corporation that submits an application for preliminary listing review after the effective date of this Enforcement Rules.

(4) The amended provisions of [§15(5)] shall apply from the case where a technology growth company for which the listing sponsor arranged listing after the effective date of this Enforcement Rules has been designated as an investment attention issue or administrative issue or the case where the technology growth company falls under formal requirements for delisting or a reason for delisting due to the listing maintenance review.

ADDENDUM

(Regulation No. 2235 / June 14, 2024)

This Enforcement Rules shall become effective on June 17, 2024. Provided that the amended provisions of [Annex No. 11] shall take effect from July 1, 2024

ADDENDA

(Regulation No. 2243 / July 12, 2024)

§1. Effective Date

This Enforcement Rules shall become effective on July 15, 2024.

§2. Applicable Case concerning Re-listing Review

The amended provisions of paragraph 3 of [Annex No. 6] shall apply from the corporation that submits an application for preliminary listing review after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2299 / February 27, 2025)

§1. Effective Date

This Enforcement Rules shall become effective on March 4, 2025.

§2. Case of Application concerning Improvement Period, etc.

The amended provisions in main sentences of [§62(3)] and [§63(4)] shall apply from corporations that have been confirmed by the Exchange to fall under any of the subparagraphs of [§56(1)] after the effective date of these Enforcement Rules.

§3. Special Case of Application concerning Listing Maintenance Review Procedure

Notwithstanding the amended provisions of [§62(9)], for corporations whose listing maintenance review procedures under [§57] of the Regulations have been suspended due to occurrence of formality conditions for delisting under [§54] of the Regulations as of the effective date of these Regulations, the suspended procedures shall not be resumed until the formality conditions for delisting are resolved.

ADDENDA

(Regulation No. 2340 / July 3, 2025)

§1. Effective Date

This Enforcement Rules shall become effective on July 3, 2025.

§2. Case of Application

The amended provisions of subparagraph 3 of Annex 6 shall apply from a corporation that applies for the preliminary listing review after the effective date of these Enforcement Rules.

ADDENDA

(Regulation No. 2345 / July 9, 2025)

§1. Effective Date

This Enforcement Rules shall become effective on July 10, 2025. Provided that the amended provisions in Annex Form No. 15 shall be effective on September 3, 2025, and those in [§49], [§61(1)4(d)], item 1) of subparagraph 1 of Annex No. 10, Annex Form No. 29, and Annex Form No. 31-2 shall be effect on January 1, 2027.

§2. Case of Application concerning Improvement of Listing Maintenance Review

The amended provisions of [§62] and [§63] shall apply from corporations listed common stocks that have undergone through the deliberation and resolution by the Corporate Review Committee pursuant to [§57(3)] of the Regulation after the effective date of these Enforcement Rules.

§3. Case of Application concerning Evaluation Loss of Financial Products

The amended provisions of [§26] and [§75] shall apply from corporations that apply for preliminary listing review for initial listing or listing after merger after the effective date of these Enforcement Rules.

§4. Revision of Other Regulations

A part of the KOSDAQ Market Disclosure Regulations shall be revised as follows:

“[§56(1)3(j)]” stipulated in [§15-2(4)] shall be “[§56(1)12]”.

“[§56(1)3(j)]” stipulated in the proviso to [§15(9)2] shall be “[§56(1)12]”.

“[§56(1)3(j)]” stipulated in the proviso to [§16(3)] shall be “[§56(1)12]”.

“[§56(1)3(j)]” stipulated in the proviso to the part other than each subparagraph of [§17-2(2)] shall be “[§56(1)12]”.

“[§56(1)3(j)]” stipulated in the proviso to [§17-3(1)] shall be “[§56(1)12]”.

“[§56(1)3(j)]” stipulated in the proviso to [§18-2] shall be “[§56(1)12]”.

“[§56(1)3(j)]” stipulated in the proviso to the part other than each subparagraph of [§21-2(3)] shall be “[§56(1)12]”.

ADDENDA

(Regulation No. 2374 / November 24, 2025)

§1. Effective Date

This Enforcement Rules shall become effective on November 24, 2025.

§2. Case of Application

The amended provisions of [§62] and Annex No. 6 shall apply from a corporation that applies for the preliminary listing review after the effective date of these Enforcement Rules.

ADDENDUM

(Regulation No. 2421 / March 16, 2026)

This Enforcement Rules shall become effective on March 17, 2026.

ADDENDA

(Regulation No. 2426 / March 31, 2026)

§1. Effective Date

This Enforcement Rules shall become effective on April 1, 2026.

§2. Case of Application concerning Improvement of Listing Maintenance Review Procedure

The amended provisions of [§63(4)] shall apply from corporations listed common stocks for which the Exchange confirms a fact falling under nay of the subparagraphs [§56(1)] of the Regulation after the effective date of these Enforcement Rules.

[Annex No. 1] Documents for Application for Preliminary Listing Review

(Amended on February 14, 2022; April 29, 2022; March 9, 2023; December 28, 2023; March 16, 2026)

Documents for Application for Preliminary Listing Review

(Pertaining to [§9, §13, §22, §36, §64, §70, §74, §77, §82-2, and §82-6] of the Enforcement Rules)

1. Initial listing

(a) Common stocks

- (1) Application for preliminary listing review separately determined by the Exchange
- (2) Financial documents for an applicant for initial listing:
 - a) Individual and consolidated financial statements of the latest business year and auditor's audit reports thereof;
 - b) Following additional documents in cases where the auditor was designated during the relevant business year pursuant to Paragraph (6)1 of Article 14 of the Enforcement Decree of the Act on External Audit of Stock Companies, Etc.:
 - i) Individual and consolidated financial statements for the latest quarterly or semi-annual business period of the relevant business year; and,
 - ii) Audit reports of the designated auditor on the financial statements in i) above.
 - c) Semi-annual individual and consolidated financial statements and the auditor's review reports thereof for the relevant business year;
 - d) In cases where applying for the requirement of [§28(1)2(b)(iii)] of the Regulation, following additional documents:
 - i) Individual and consolidated financial statements for the business year prior to the latest business year; and,
 - ii) Auditor's audit reports on the financial statements in i) above.
- (3) A certified copy of the corporate register
- (4) Articles of incorporation

- (5) Shareholders' register as of the end of the latest business year (in cases where the register is closed after the end of the latest business year, it shall be as of the closing date; the same shall apply hereinafter)
- (6) A copy of the agreement for transfer agent services entered into with a transfer agent (hereinafter referred to as the "transfer agreement")
- (7) Following documents on mandatory holding:
 - a) Written confirmation on mandatory holding by person subject to mandatory holding; and
 - b) Documents issued by the KSD to certify the mandatory holding by the person subject to mandatory holding
- (8) Certification on issuance and registration
- (9) A copy of the minutes of the board of directors on the approval for listing
- (10) Documents separately determined by the Exchange in relation with the review of internal control conducted by the listing sponsor
- (11) Opinion letter of the main creditor bank
- (12) Written confirmation on the status of investments of stakeholders
- (13) Written confirmation on the non-existence of parties in special relationship, including the affiliates
- (14) Documents proving the completion of an education course operated by the Exchange for the support of listing. However, this may be exempted for a large corporation.
- (15) Annual report of the previous business year or the documents equivalent thereof, in the case of an applicant for listing which satisfies the share distribution requirements pursuant to [§28(1)(c)] of the Regulation
- (16) Following additional documents in the case of a foreign holdings company in Korea:
 - a) Consolidated financial statements and auditor's audit reports thereof for the latest business year that include all the foreign affiliates;
 - b) Latest quarterly or semi-annual individual and consolidated financial statements and auditor's review reports thereof for the relevant business year;
 - c) Foreign affiliates' individual and consolidated financial statements and audit reports thereof; and
 - d) Written report on the operation of internal accounting management system of foreign affiliates in [Annex Form No. 34] pursuant to [§20(1)] of the Enforcement Rules.
- (17) Following additional documents in the case of a venture company:
 - a) Venture company pursuant to [§2(1)38(a) or §2(1)38(b)] of the Regulation: Certificate for venture company issued pursuant to [§25] of the Act on Special Measures for Promotion of Venture Businesses; and
 - b) Venture company pursuant to [§2(1)38(c)] of the Regulation: Certificate for technical innovation-oriented small and medium enterprises issued pursuant to [§13] of the Enforcement Decree of the Act on Technology Innovation of Small and Medium Enterprises.
- (18) Following additional documents in the case of a technology growth company:
 - a) Innovative technology company: Following documents:
 - i) Cases where a specialized assessment institution has taken an assessment pursuant to [§28(1)(a)(iii)] of the Enforcement Rules: Marketability statement in [Annex Form No. 9]

- and a recommendation letter from the designated advisor in [Annex Form No. 11]; and
- ii) Other cases: Marketability statement in [Annex Form No. 9].
- b) Business model company: Business model company evaluation report in [Annex Form No. 10].
- (19) Following additional documents in the case of a prompt-transfer company pursuant to [§31(1)] of Regulation:
- a) Prompt-transfer company pursuant to [§31(1)3(f)] of the Regulation: Recommendation letter in [Annex Form No. 11] from the designated advisor and a report on corporate continuity in [Annex Form No. 10-2]; and
- b) Other cases: Recommendation letter in [Annex Form No. 11] from the designated advisor.
- (20) Other documents that the Exchange deems necessary for the preliminary listing review.

Notes:

(1) The financial statements in [(2)] shall be based on the following standards:

(a) Financial statements refer to the statement of financial position, income statement and comprehensive income statement, cash flow statement, statement of changes in equity, and supplementary schedules, and semi-annual financial statements refer to semi-statement of financial position, semi-annual income statement and semi-annual comprehensive income statement, and supplementary schedules;

(b) Consolidated financial statements, quarterly and semi-annual consolidated financial statements and auditor's audit and review reports thereof shall be submitted by those companies with a subsidiary only;

(c) The documents referred to in [(2)a)] shall be based on the following standards:

(i) In cases where the applicant's auditor was designated by the Securities and Futures Commission pursuant to [§14(6)1] of the Enforcement Decree of the Act on External Audit of Stock Companies, Etc. the auditor's audit report shall refer to the audit report of the designated auditor; and

(ii) In cases where the accounts are not closed for the latest business year, following documents may be submitted first and the documents referred to in [(2)a)] may be submitted after the account closing:

a) Individual and consolidated financial statements of the business year prior to the latest business year and auditor's audit report thereof. In this case, it is limited that the audit opinion is unqualified; and

b) Semi-annual individual and consolidated financial statements of the latest business year and the auditor's review report thereof. In this case, it is limited that the review opinion is unqualified.

(iii) In cases where one business year has not been lapsed after the establishment or conversion of the foreign holdings company in Korea, the document in [(2)a)] may be replaced by the statement of financial position as of the establishment or conversion and written confirmation of review thereof.

(d) In cases where the listing applicant submitting the documents pursuant to [(2)b)] has not prepared the individual and consolidated financial statements in accordance with the K-IFRS for the latest business year, the individual and consolidated financial statements shall be

prepared in accordance with the K-IFRS for the latest business year and the auditor's or the designated auditor's audit report shall be submitted additionally.

(e) Those documents referred to in [(2)c)] may not be submitted in a case which falls under any of the followings:

(i) In cases where it has not been 45 days since the end of the semi-annual business period of the relevant business year; or

(ii) In cases where the listing applicant submitted the semi-annual or the third quarter individual and consolidated financial statements and the designated auditor's audit report thereof.

(2) The documents in [(7)] shall be based on the following standards:

(a) In cases where the listing applicant falls under any of the subparagraphs in [§32(2)] of the Regulation, the documents in [(7)] may not be submitted;

(b) The documents in [(7)a)] shall state the matters as follows:

(i) A statement that the person subject to mandatory holding of the shares, etc. will hold the shares, etc. for the mandatory holding period and will not withdraw or establish or remove the right of pledge on the shares, etc. unless the Exchange deems it necessary.

(ii) The method of disclosure in case where there occurs an event of accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc. of the shares, etc. held by the person subject to mandatory holding during the period of mandatory holding, and the method of handling the case where the mandatory holding is impossible because the shares, etc. are provided security, etc.

(iii) A statement that the applicant will not raise any objection against the disclosure by the listing sponsor as to the fact where, during the period of mandatory holding, the person subject to mandatory holding makes accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc. of the shares, etc.

(c) The documents referred to in [(7)b)] may be submitted within three days (based on business days) after the day of notice of the result of the preliminary listing review.

(3) The documents in [(8)] shall be based on the following standards:

(a) In cases where the shares, etc. issued by the listing applicant have not been electronically registered, the certification on issuance and registration in [(8)] may be temporarily replaced by specimens of all denominations of the stock certificate, a document issued by a transfer agent to certify the issuance of share certificate, or a certificate of entry into the depositor's account book.

(b) The listing applicant who makes a primary offering or secondary distribution of shares after filing the application for preliminary listing review may submit the certification on issuance and registration in [(8)] within 20 days after submitting the initial listing application.

(4) The documents in [(15)] may be submitted after the closing of accounts in a case where the account are not closed for the latest business year.

(5) The documents in [(16)] shall be based on the following standards:

(a) The documents in [(16)b)] shall be based on the following standards:

(i) In cases where it has not been 45 days since the end of the quarterly or semi-annual period of the relevant business year, the documents in [(16)b)] may not be submitted.

(ii) In cases where the Exchange deems it necessary considering the establishment place, accounting environment, history of listing on a foreign exchange, etc., the documents in [(16)b)] shall be replaced by quarterly or semi-annual individual and consolidated financial statements and auditor's audit report thereof.

(b) The documents in [(16)c and d)] may not be submitted in the cases of a foreign subsidiary that falls under any of each subparagraph of [§20(2)].(c) Of the documents in [(16)d)], written report on the operation of internal accounting management system shall describe the operation of internal accounting management system for the period of at least three months prior to the preliminary listing review application

(b) Foreign stocks, etc. (excluding different classes of foreign stocks)

- (1) Application for preliminary listing review separately determined by the Exchange**
- (2) Financial documents for an applicant for initial listing**
 - a) Individual and consolidated financial statements of the latest business year and auditor's audit reports thereof**
 - b) Individual and consolidated financial statements for the latest quarterly or semi-annual business period of the relevant business year and the auditor's review reports thereof**
- (3) Written report on the operation of internal accounting management system in [Annex Form No. 34] pursuant to [§20(1)] of the Enforcement Rules**
- (4) Shareholders' register as of the end of the latest business year (in cases where the register is closed after the end of business year, it shall be as of the date of the closure; the same shall apply hereinafter)**
- (5) Written confirmation on mandatory holding by person subject to mandatory holding**
- (6) Articles of incorporation which reflects the matters required to be entered into pursuant to [Annex Form No. 12]**
- (7) A certified copy of the corporate register**
- (8) A copy of the minutes of the board of directors on the approval for listing**
- (9) Written confirmation on the status of investments of stakeholders**
- (10) Written confirmation on the non-existence of parties in special relationship, including the affiliates**
- (11) Certification on issuance and registration**

- (12) A copy of the agency agreement entered into with a transfer agent for the matters such as the methods of exercising the rights of beneficial shareholders
- (13) A copy of the agreement for appointment of the listing agent
- (14) Legal opinion of lawyer
- (15) Comfort letter of auditor according to [Annex Form No. 35]
- (16) Written affirmation on fulfillment of obligations by the representative director pursuant to [Annex Form No. 36]
- (17) Documents separately determined by the Exchange in relation with the internal control review implemented by the listing sponsor
- (18) Marketability statement of the listing sponsor in the case of an innovative technology company
- (19) A copy of the deposit agreement in cases of submitting an application for preliminary listing review for DRs of foreign shares
- (20) Following additional documents in the case of a foreign company listed on foreign securities markets:
 - a) Documents proving that the applicant is listed on the foreign exchange
 - b) Documents proving the trading activities for the latest one (1) year at the listed foreign securities markets
- (21) Following additional documents in the case of a foreign holdings company:
 - a) Consolidated financial statements and auditor's audit reports thereof which include all the foreign affiliates
 - b) Individual and consolidated financial statements of foreign affiliates and audit reports thereof
 - c) Written report on the operation of internal accounting management system of foreign affiliates in [Annex Form No. 34] pursuant to [§20(1)] of the Enforcement Rules
 - d) Certified copies of the corporate register of foreign affiliates
- (22) Other documents the Exchange deems necessary for the preliminary listing review.

Notes:

(1) The financial statements in [(2)] shall be based on the following standards:

- (a) Financial statements refer to statement of financial position, income statement and comprehensive income statement, cash flow statement, statement of changes in equity, and supplementary schedules, and semi-annual financial statements refer to semi-annual statement of financial position, semi-annual income statement and semi-annual comprehensive income statement, and supplementary schedules.*
- (b) Consolidated financial statements, quarterly and semi-annual consolidated financial statements and auditor's audit and review reports thereof shall be submitted only by those companies with a subsidiary. However, in a case where the listing applicant adopted IFRS or US GAAP, the applicant shall submit consolidated financial statements, quarterly and semi-annual consolidated financial statements and auditor's audit and review reports thereof.*

(c) The documents in [(2)a]] shall be based on the following standards:

- (i) In cases where the accounts are not closed for the latest business year, following documents may be submitted first and the documents referred to in [(2)a)] may be submitted after the*

account closing.

a) Individual and consolidated financial statements of the business year prior to the latest business year and auditor's audit report thereof. In this case, it is limited that the audit opinion shall be unqualified.

b) Semi-annual individual and consolidated financial statements of the latest business year and the auditor's review report thereof. In this case, it is limited that the review opinion shall be unqualified.

(ii) In cases where one business year has not been lapsed after the establishment or conversion of the foreign holdings company, the documents are replaced by the statement of financial position as of the establishment or conversion and written confirmation of audit review thereof.

(d) Documents in [(2)b)] shall be based on the following standards:

(i) In cases where it has not been 45 days since the end of the quarterly or semi-annual business period of the relevant business year, the documents in [(2)b)] may not be submitted.

(ii) In cases where the Exchange deems it necessary considering the establishment place, accounting environment, history of listing on a foreign exchange, etc., the documents in [(2)b)] shall be replaced by quarterly or semi-annual individual and consolidated financial statements and auditor's audit report thereof

(2) Of the documents in [(3)], the written report on the operation of internal accounting management system shall describe the operation of internal accounting management system for the period of at least three months prior to the preliminary listing review application.

(3) The documents in [(5)] shall state the matters as follows:

(a) A statement that the person subject to mandatory holding of the shares, etc. will hold the shares, etc. for the mandatory holding period and will not withdraw or establish or remove the right of pledge on the shares, etc. unless the Exchange deems it necessary.

(b) The method of disclosure in case where there occurs an event of accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc. of the shares, etc. held by the person subject to mandatory holding during the period of mandatory holding, and the method of handling the case where the mandatory holding is impossible because the shares, etc. are provided security, etc.

(c) A statement that the applicant will not raise any objection against the disclosure by the listing sponsor as to the fact where, during the period of mandatory holding, the person subject to mandatory holding makes accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc. of the shares, etc.

(4) In cases where it is impossible to submit the document in [(7)] due to the laws of the home country, it may be replaced by a document proving the fact.

(5) The documents in [(11)] shall be based on the following standards:

- (a) In cases where the shares, etc. issued by the listing applicant have not been electronically registered, the certification on issuance and registration in [(11)] may be temporarily replaced by specimens of all denominations of the stock certificate, a document issued by a transfer agent to certify the issuance of share certificate, or a certificate of entry into the depositor's account book.*
- (b) The listing applicant who makes a primary offering or secondary distribution of shares after filing the application for preliminary listing review may submit the certification on issuance and registration in [(11)] within 20 days after submitting the initial listing application.*

(6) The documents in [(12)] may be submitted at the time of application of the initial listing in the case where the listing applicant makes the primary offering or the secondary distribution after the application of the preliminary listing review.

(7) The documents in [(21)] shall be based on the following standards:

- (a) The documents]n [(21)a) and b)] may not be submitted in cases where the foreign holdings company adopted IFRS or US GAAP.*
- (b) The documents]n [(21)b) and c)] may not be submitted in cases of a foreign subsidiary that falls under any of each subparagraphs of [§20(2)].*
- (c) Of the documents in [(21)c)], the written report on the operation of internal accounting management system shall describe the operation of internal accounting management system for the period of at least three months prior to the preliminary listing review application.*
- (d) In cases where it is impossible to submit the document referred to in [(21)d)] due to the laws of the home country, it may be replaced by a document proving the fact.*

(c) Different classes of stocks (including foreign different classes of stocks)

- (1) Application for preliminary listing review separately determined by the Exchange*
 - (2) Articles of incorporation*
 - (3) A certified copy of the corporate register*
 - (4) Certification on issuance and registration*
 - (5) Written confirmation on the status of investments of stakeholders*
 - (6) A copy of the minutes of the board of directors or the general shareholders' meeting on the issuance of different classes of stocks*
 - (7) Other documents the Exchange deems necessary for the preliminary listing review.*

Notes:

(1) In cases where the listing applicant describes the matters on the different classes of stocks and

foreign different classes of stocks concerned in the application for the preliminary listing review of common stocks, foreign stocks, etc., the documents in [(1) to (5)] may not be submitted.

(2) The listing applicant for foreign different classes of stocks shall reflect the matters required to be entered into the articles of incorporation pursuant to [Annex No. 12] to the documents in [(2)].

(3) In cases where the listing applicant for foreign different classes of stocks cannot submit the documents in [(3)] due to the law of the home country, the documents may be replaced by a document proving the fact.

(4) The certification on issuance and registration in [(4)] shall be based on the following standards:

(a) In cases where the shares, etc. issued by the listing applicant have not been electronically registered, the certification on issuance and registration in [(4)] may be temporarily replaced by specimens of all denominations of the stock certificate, a document issued by a transfer agent to certify the issuance of share certificate, or a certificate of entry into the depositor's account book.

(b) The listing applicant who makes a primary offering or secondary distribution of shares after filing the application for preliminary listing review may submit the certification on issuance and registration in [(4)] within 20 days after submitting the initial listing application.

(d) Stocks of a special purpose acquisition company

(1) Application for preliminary listing review separately determined by the Exchange

(2) Financial documents for an applicant for initial listing

a) Individual statement of financial position as of the date of the registration of incorporation and auditor's audit report thereof

b) Documents proving the changes until the date of application for preliminary listing review

(3) Following documents on mandatory holding:

a) Written confirmation on mandatory holding by person subject to mandatory holding

b) Documents issued by the KSD to certify the mandatory holding by the person subject to mandatory holding

(4) Funds deposit and trust agreement entered into with deposit institutions (refers to the institutions publicly notified by the Financial Services Commission pursuant to [§1-4-2(2)] of the Regulations on Financial Investment Business; hereinafter the same shall apply) for the deposit or trust of the funds collected through the issuance of shares (excluding the shares issued before the initial public offering) of the special purpose acquisition company

(5) Agreements concluded between shareholders, etc. as of the date of application of preliminary listing review pursuant to [§70(1)10] of the Regulation

- (6) A certified copy of the corporate register
- (7) Articles of incorporation reflecting the required matters to be entered into pursuant to [Annex Form No. 13]
- (8) A copy of the minutes of the board of directors on the approval for listing
- (9) Certification on issuance and registration
- (10) A copy of the agreement for transfer agent services
- (11) A copy of the agreement to undertake the debt securities owned by the shareholders as of the date of the application for preliminary listing review
- (12) Other documents the Exchange deems necessary for the preliminary listing review

Notes:

- (1) As per the documents in [(2)], in cases where the closing of accounts is finalized for the quarterly or semi-annual business period or annual business year after the date of registration of incorporation, individual financial statements for the latest quarterly or semi-annual business period or annual business year and audit report thereof shall be submitted.*
- (2) The documents referred to in [(3)b)] may be submitted within three (3) days (based on business days) after the day of notice of the result of the preliminary listing review.*
- (3) The certification on issuance and registration referred to in [(9)] shall be based on the following standards:*
 - (a) In cases where the shares, etc. issued by the listing applicant have not been electronically registered, the certification on issuance and registration in [(9)] may be temporarily replaced by specimens of all denominations of the stock certificate, a document issued by a transfer agent to certify the issuance of share certificate, or a certificate of entry into the depositor's account book.*
 - (b) The listing applicant who makes a primary offering or secondary distribution of shares after filing the application for preliminary listing review may submit the certification on issuance and registration in [(9)] within 20 days after submitting the initial listing application.*
- (e) Business development investment company stocks land business development investment trust beneficiary certificates

- (1) Application for preliminary listing review separately determined by the Exchange
- (2) Following documents on mandatory holding:
 - a) Written confirmation on mandatory holding by person subject to mandatory holding
 - b) Documents issued by the KSD to certify the mandatory holding by the person subject to mandatory holding
- (3) For business development investment company stocks:
 - a) Articles of incorporation

- b) A copy of the transfer agency agreement
- c) A certified copy of the corporate register
- (4) For business development investment trust beneficiary certificates:
A copy of trust agreement
- (5) Documents stating the operation plan for collective investment assets
- (6) A copy of the business outsourcing contract entered with a fund administration company
- (7) Other documents the Exchange deems necessary for the listing review

2. Re-listing

- (1) Application for preliminary listing review separately determined by the Exchange
- (2) Financial documents for the applicant for re-listing
 - (a) Documents referred to in each subparagraph of [§530-7(1)] of the Commercial Act
- (b) Details of the sales revenue and profit and the auditor's review report for the latest business year prior
to the board of directors resolution on the spin-off or merger after spin-off for the business section
to be transferred by the spin-off or merger after spin-off
- (c) Details of the sales revenue and profit and the auditor's review report for the semi-annual period of
the board of directors resolution on the spin-off or merger after spin-off for the business section
to be transferred as referred to in [b)]
- (3) Other documents the Exchange deems necessary for the preliminary listing review

Notes:

(1) The financial statements in [(2)] shall be based on the following standards:

(a) Financial statements refer to statement of financial position, income statement and comprehensive income statement, cash flow statement, statement of changes in equity, and supplementary schedules, and semi-annual financial statements refer to semi-annual statement of financial position, semi-annual income statement and semi-annual comprehensive income statement, and supplementary schedules.

(b) Consolidated financial statements, semi-annual consolidated financial statements and auditor's

audit or review report thereof shall be submitted only by corporations with subsidiaries.

(c) The documents referred to in [(2)c)] may not be submitted in cases where it has not been 45 days since the end of the semi-annual business period of the business year which includes the date of the resolution on spin-off or merger after spin-off by the board of directors.

3. Listing after merger

- (1) Application for preliminary listing review separately determined by the Exchange
- (2) Financial documents for a merger target company
 - a) Individual and consolidated financial statements for the latest business year and auditor's audit reports thereof.
 - b) In cases where the auditor was designated during the relevant business year pursuant to Paragraph (6)1 of Article 14 of the Enforcement Decree of the Act on External Audit of Stock Companies, Etc., individual and consolidated financial statements for the latest quarterly or semi-annual business period of the relevant business year, and the designated auditor's audit reports thereof
 - c) Semi-annual individual and consolidated financial statements of the relevant business year and the auditor's review reports thereof
- (3) Shareholders' register of the merger target company as of the end of the latest business year (in cases where the register is closed after the end of business year, it shall be as of the date of the closure; the same shall apply hereinafter)
- (4) Following documents on mandatory holding:
 - a) Written confirmation on mandatory holding by person subject to mandatory holding
 - b) Documents issued by the KSD to certify the mandatory holding by the person subject to mandatory holding
- (5) Articles of incorporation of the merger target company
- (6) A certified copy of the corporate register of the merger target company
- (7) Opinion letter of the main creditor bank of the merger target company
- (8) Written confirmation of the status of investments by stakeholders of the merger target company
- (9) Opinion letter of an external evaluation institute on the merger amount and calculation basis, the adequacy of merger ratio, etc. pursuant to [§176-5(7)] of the Enforcement Decree of the Act
- (10) Following additional documents in cases where a merger target company is a venture company:
 - (a) Venture company pursuant to [§2(1)38(a) or (b)] of the Regulation: Venture company certificate issued pursuant to [§25] of the Act on Special Measures for the Promotion of Venture Businesses; or
 - (b) Venture company pursuant to [§2(1)38(c)] of the Regulation: Certificate for technical innovation-oriented small and medium enterprises issued pursuant to [§13] of the

Enforcement Decree of the Act on Technology Innovation of Small and Medium Enterprises.

- (11) Following additional documents in cases where the merger target company is an innovative technology company:
 - (a) Cases where a specialized assessment institution has taken an assessment pursuant to [§28(1)1(a)(iii)] of the Enforcement Rules: Marketability statement in [Annex Form No. 9] and a recommendation letter in [Annex Form No. 11] from the designated advisor; and
 - (b) Other cases: Marketability statement in [Annex Form No. 9].
- (12) Recommendation letter of the designated advisor in accordance with [Annex Form No. 11] in cases where the merger target company is a prompt listing-after-merger company pursuant to [§75(4)1]
- (13) Confirmation letter of whether the merger-related interest is applicable in [Annex Form No. 37]
- (14) Other documents that the Exchange deems necessary for the preliminary listing review
- (15) Certificate of issuance and registration
- (16) A copy of debt securities acquisition contracts held by shareholders, etc. based on the date of application for preliminary listing review of the special purpose acquisition company as of the application date of eligibility review for listing after merger.

Notes:

(1) The financial statements in [(2)] shall be based on the following standards:

- (a) Financial statements refer to statement of financial position, income statement and comprehensive income statement, cash flow statement, statement of changes in equity, and supplementary schedules, and semi-annual financial statements refer to semi-annual statement of financial position, semi-annual income statement and semi-annual comprehensive income statement, and supplementary schedules.*
- (b) Consolidated financial statements, semi-annual consolidated financial statements, and auditor's audit or review reports thereof shall be submitted only by companies with subsidiaries.*
- (c) The documents referred to in [(2)a)] shall be based on the following standards:*
 - i) In cases where the applicant's auditor was designated by the Securities and Futures Commission pursuant to [§14(6)1] of the Enforcement Decree of the Act on External Audit of Stock Companies, Etc. the auditor's audit report shall refer to the audit report of the designated auditor.*
 - ii) In cases where the closing of accounts is not finalized for the latest business year, following documents may be submitted first and the documents referred to in [(2)a)] may be submitted after the account closing.*
 - a) Individual and consolidated financial statements of the business year prior to the latest business year and auditor's audit report thereof. In this case, it is limited that the audit opinion shall be unqualified.*
 - b) Semi-annual individual and consolidated financial statements of the latest business year and the auditor's review report thereof. In this case, it is limited that the review opinion shall be unqualified.*
- (d) In cases where the listing applicant submitting the documents pursuant to [(2)b)] has not prepared the individual and consolidated financial statements in accordance with the K-IFRS for the latest*

business year, the individual and consolidated financial statements shall be prepared in accordance with the K-IFRS for the latest business year and the auditor's or the designated auditor's audit report shall be submitted additionally.

(e) Documents in [(2)c)] may not be submitted in the case that falls under any of the followings:

- i) In cases where it has not been 45 days since the end of the semi-annual business period of the relevant business year; or*
- ii) In cases where the listing applicant submitted the semi-annual or the third quarter individual and consolidated financial statements and the designated auditor's audit report thereof.*

(2) The documents referred to in [(4)b)] may be submitted within three (3) days (based on business days) after the day of notice of the result of the preliminary listing review.

(5) The documents mentioned in (15) and (16) shall be submitted only when applying for eligibility review for listing after merger pursuant to [§2(1)1(f)(ii)] of the Regulation.

(6) The document in (15) may be temporarily replaced with the specimens of the issued stock certificates (referring to standardized securities pursuant to the Regulation on Handling Standardized Securities, etc.; the same shall apply hereinafter), or a document issued by the transfer agency to prove the issuance of stock certificates or a certificate of entry into depositor's account book in cases where the stocks issued by a listing applicant have not been electronically registered. In such cases, the certificate of issuance and registration may be submitted by the date of application for listing after merger.

[Annex No. 2] Documents for Application for Initial Listing

(Amended on March 16, 2026)

Documents for Application for Initial Listing

(Pertaining to [§25, §64, §70, §77, §81] §82-2], and §82-6] of the Enforcement Rules)

1. Common stocks, different classes of stocks, stocks of a special purpose acquisition company

- (1) Application for initial listing in [Annex Form No. 3]
- (2) Documents for application for preliminary listing review in [Annex No. 1]
- (3) Certificate on issuance and registration
- (4) Documents issued by the KSD to prove mandatory holding by the person subject to mandatory holding
- (5) Listing agreement
- (6) Written affirmation on the fulfillment of obligations
- (7) Summary tables of shareholders or details of subscription and allotment of shares
- (8) Written confirmation relating to IR conference
- (9) Written affirmation on mandatory holding of stocks, etc. by listing sponsor and documents Issued by the KSD proving the mandatory holding in accordance with [§13(5) & §26(1)5] of the Regulation
- (10) Documents proving the payment of subscription of stocks
- (11) In the case of a special purpose acquisition company, following additional documents:
 - a) Written confirmation on funds' deposit and trust issued by deposit institutions, etc. (refers to the institutions publicly notified by the Financial Services Commission pursuant to [§1-4-2(2)] of the Regulations on Financial Investment Business) for the funds deposited or trusted
 - b) Written confirmation of the total amount of issuance of the shares, etc. owned by financial investment companies pursuant to [§6(4)14(c)] of the Enforcement Decree of the Act
- (12) Other documents that the Exchange deems necessary for the preliminary listing review.

Notes:

- (1) The documents in [(3)] may be submitted within 20 days after the date of submitting the application for initial listing in the case of a listing applicant who makes the primary offering or the secondary distribution after the application of preliminary listing review.*
- (2) The documents in [(iv)] means the certification of mandatory holding issued by the KSD as to the mandatory holding of stocks, etc. for which electronic registration has completed pursuant to the Act on Electronic Registration of Stocks, Corporate Bonds, etc. However, in a case where the securities are not subject to electronic registration pursuant to [§25(1)] of the Act on Electronic Registration of Stocks, Corporate Bonds, etc., the documents shall be replaced by a certificate issued by the KSD to prove the custody of concerned stocks, etc.*
- (3) In cases where deemed inevitable by the Exchange, those documents in [(4) to (12)] may be submitted by the day immediately prior to the date of initial listing.*
- (4) The documents in [(8)] shall not be submitted in the case where the listing applicant is a special purpose acquisition company.*
- (5) The documents in [(10)] shall be submitted only in a case where the company made the primary offering or the secondary distribution after the application of preliminary listing review.*

2. Foreign stocks, foreign different classes of stocks

- (1) Application for initial listing in [Annex Form No. 3]
- (2) Documents for application for preliminary listing review in [Annex No. 1]
- (3) Certificate on issuance and registration
- (4) Documents issued by the KSD to prove mandatory holding by the person subject to mandatory holding
- (5) Listing agreement
- (6) Written affirmation on the fulfillment of obligations
- (7) Summary tables of shareholders or details of subscription and allotment of shares
- (8) Written confirmation relating to IR conference
- (9) Written affirmation on mandatory holding of stocks, etc. by listing sponsor and documents issued by the KSD proving the mandatory holding in accordance with [§13(5) & §61(1)5] of the Regulation
- (10) Documents proving the payment of subscription of stocks
- (11) Details of ownership of the foreign stocks and/or foreign different classes of stocks
- (12) Documents proving the prices at the foreign securities market of the concerned company in the case of calculating the base market capitalization pursuant to Subparagraph 1 of [§6] of the Enforcement Rules.
- (13) Documents related to the registration of issuance of new stocks
- (14) Other documents that the Exchange deems necessary for the preliminary listing review.

Notes:

- (1) The documents in [(3)] may be submitted within 20 days after the date of submitting the application for initial listing in the case of a listing applicant who makes the primary offering or the secondary*

distribution after the application of preliminary listing review.

- (2) The documents in [(4)] means the certification of mandatory holding issued by the KSD as to the mandatory holding of stocks, etc. for which electronic registration pursuant to the Act on Electronic Registration of Stocks, Corporate Bonds, Etc. has completed. However, in a case where the securities are not subject to electronic registration pursuant to [§25(1)] of the Act on Electronic Registration of Stocks, Corporate Bonds, Etc., the documents shall be replaced by a certificate issued by the KSD to prove the custody of concerned stocks, etc.*
- (3) In cases where deemed inevitable by the Exchange, documents in [(4) to (14)] may be submitted by the day immediately prior to the date of initial listing.*
- (4) The documents in [(10)] shall be submitted only in a case where the company made the primary offering or the secondary distribution after the application of preliminary listing review.*
- (5) The documents in [(13)] shall be replaced by a document proving the fact in the case where the submission of the document is impossible due to the laws of the home country.*

3. Subscription warrants

- (1) Application for initial listing in [Annex Form No. 38]
- (2) Certificate on issuance and registration
- (3) A certified copy of the corporate register
- (4) Other documents the Exchange deems necessary

4. Subscription rights

- (1) Application for initial listing in [Annex Form No. 39]
- (2) A copy of the minutes of the board of directors on the resolution for the issuance of new shares
- (3) Form of the subscription rights
- (4) Certificate on issuance and registration
- (5) Other documents the Exchange deems necessary

5. Business development investment company stocks land business development investment trust beneficiary certificates

- (1) Application for initial listing separately determined by the Exchange
- (2) Application documents for preliminary listing review under [Annex No. 1]
- (3) Certificates on issuance and registration
- (4) Documents proving registration with the Financial Services Commission
- (5) Prospectus
- (6) Listing agreement under [Annex No. 4]

- (7) Documents proving payment of share capital or trust principal, etc.
- (8) Written confirmation on mandatory holding under [Annex No. 12]
- (9) Other documents the Exchange deems necessary for the listing review

[Annex No. 2-2] Application Documents for Listing after Merger

[February 14, 2022] (Amended on December 9, 2022)

Application Documents for Listing after Merger

(Pertaining to [§75] of the Enforcement Rules)

- (1) Listing Application in [Annex Form No. 3]
- (2) Documents for Application for preliminary listing review in [Annex No. 1]
- (3) Certificate of issuance and registration
- (4) A document issued by the KSD to prove the mandatory holding of the person subject to mandatory holding
- (5) Listing contract
- (6) Indemnity report on fulfillment of obligations
- (7) A certified copy of the registration of incorporation
- (8) Schedule for issuance of new stocks
- (9) Minutes of general meetings of shareholders
- (10) A copy of transfer agency service contract
- (11) Summary Table of Shareholders in [Annex Form No. 30]
- (12) Other documents that the Exchange deems necessary for listing review.

Notes:

(1) The document in (4) shall refer to the mandatory holding certificate issued by the Korea Securities Depository concerning the mandatory holding of stocks, etc., which have been electronically registered pursuant to the Act on Electronic Registration of Stocks, Bonds, etc. Provided that, in cases where the stocks, etc. are not subject to electronic registration pursuant to Article 25(1) of the Act on Electronic Registration of Stocks, Bonds, etc., a certificate issued by the Korea Securities Depository may be in substitution for the mandatory holding certificate to prove the deposit of the relevant stocks, etc.

(2) The documents in (4) through (12) may be submitted by the day before the listing after merger in cases where the Exchange deems it unavoidable.

[Annex No. 3] Documents for Backdoor Listing Review

(Amended on March 9, 2023)

Documents for Backdoor Listing Review

(Pertaining to [§32])

- (1) Report on backdoor listing separately determined by the Exchange
- (2) Financial documents for the backdoor listing target company
 - a) Individual and consolidated financial statements of the latest business year and auditor's audit reports thereof.
 - b) Following additional documents in cases where the auditor was designated during the relevant business year pursuant to [§14(6)1] of the Enforcement Decree of the Act on External Audit of Stock Companies, Etc.
 - i) Individual and consolidated financial statements for the latest quarterly or semi-annual business period of the relevant business year, and,
 - ii) Audit reports of the designated auditor on the financial statements of ①
 - c) Semi-annual individual and consolidated financial statements of the relevant business and the auditor's review reports thereof. However, in the case where the backdoor listing target company is a foreign company, the latest quarterly or semi-annual individual and consolidated financial statements for the current relevant business year and the auditor's review reports thereof shall be submitted.
- (3) A certified copy of the corporate register of the backdoor listing target company
- (4) Articles of incorporation of the backdoor listing target company (In the case of a foreign company, it shall reflect the matters required to be entered into the articles of incorporation in accordance with [Annex No. 12])
- (5) Shareholders' register of the backdoor listing target company as of the end of the latest business year (in cases where the register is closed after the end of business year, it shall be as of the date of the closure; the same shall apply hereinafter)
- (6) A copy of the agreement for transfer agent services (hereinafter referred to as the "transfer contract") that the backdoor listing target company entered into with a transfer agent
- (7) Following documents on mandatory holding:
 - a) Written confirmation on mandatory holding by person subject to mandatory holding; and
 - b) Documents issued by the KSD to certify the mandatory holding by the persons subject to mandatory holding.
- (8) Certification on issuance and registration of the backdoor listing target company
- (9) A copy of the minutes of the board of directors of the backdoor listing target company on the approval for listing

- (10) Documents separately determined by the Exchange in relation with the review of internal control of the backdoor listing target company conducted by the listing sponsor
- (11) Opinion letter of the main creditor bank of the backdoor listing target company
- (12) Written confirmation on the status of investments by stakeholders of the backdoor listing target company
- (13) Written confirmation on the non-existence of parties in special relationship, including the affiliates, of backdoor listing target company
- (14) Documents proving that the backdoor listing target company completed an education course operated by the Exchange for the support of listing. However, this may be exempted for a large corporation
- (15) Following additional documents in the case where the backdoor listing target company is a foreign holding company located in Korea:
 - a) Consolidated financial statements that include all the foreign affiliates for the latest business year and auditor's audit reports thereof;
 - b) Quarterly and semi-annual individual and consolidated financial statements for the relevant business year and the auditor's review reports thereof. However, this applies only in the case where 45 days has lapsed after the end of the quarterly or semi-annual business period;
 - c) Individual and consolidated financial statements of foreign affiliates and audit reports thereof; and
 - d) Written report on the operation of internal accounting management system of foreign affiliates in [Annex Form No. 34].
- (16) Following additional documents in the case where the backdoor listing target company is a venture company:
 - a) Venture company pursuant to [§2(1)38(a) or §2(1)38(b)] of the Regulation: Venture company certificate issued pursuant to [§25] of the Act on Special Measures for the Promotion of Venture Businesses; and
 - b) Venture company pursuant to [§2(1)38(c)] of the Regulation: Certificate for technical innovation-oriented small and medium enterprises issued pursuant to [§13] of the Enforcement Decree of the Act on Technology Innovation of Small and Medium Enterprises.
- (17) Following additional documents in the case where the backdoor listing target company is a foreign company:
 - a) Written report on the operation of internal accounting management system pursuant to [Annex Form No. 34];
 - b) A copy of the agency agreement entered into with a transfer agent for the matters such as the methods of exercising the rights of beneficial shareholders;
 - c) A copy of the agreement for appointment of the listing agent;
 - d) Lawyer's legal opinion;
 - e) Comfort letter of auditor in [Annex Form No. 35];
 - f) Written affirmation on fulfillment of obligations by the representative director in [Annex Form No. 36]; and
 - g) In the case of a foreign company listed on a foreign securities market, documents proving that the company is listed on the foreign exchange and documents proving the trading

activities for the latest one (1) year at the listed foreign exchange.

- (18) Following additional documents in the case where the backdoor listing target company is a foreign holdings company:
- a) Consolidated financial statements that include all the foreign affiliates and auditor's audit reports thereof;
 - b) Individual and consolidated financial statements of foreign affiliates and audit reports thereof; and
 - c) Internal accounting management system operation report of [Annex Form No. 34] for foreign subsidiary; and
 - d) A certified copy of the corporate register of the foreign affiliates. However, this may be replaced by a document proving the fact in cases where it is impossible to submit the document due to the laws of the home country.
- (19) Other documents that the Exchange deems necessary for the preliminary listing review

Notes:

(1) The financial statements in [(2)] shall be based on the following standards:

(a) Financial statements refer to statement of financial position, income statement and comprehensive income statement, cash flow statement, statement of changes in equity, and supplementary schedules, and semi-annual financial statements refer to semi-annual statement of financial position, semi-annual income statement and semi-annual comprehensive income statement, and supplementary schedules.

(b) Consolidated financial statements, quarterly and semi-annual consolidated financial statements and auditor's audit and review reports thereof shall be submitted by only backdoor listing target companies with subsidiaries. However, in the case where the backdoor listing target company is a foreign company that adopted IFRS or US GAAP, the applicant shall submit only consolidated financial statements, quarterly and semi-annual consolidated financial statements, and auditor's audit and review reports thereof.

(c) The documents in [(2)a)] shall be based on the following standards:

(i) In cases where the auditor was designated by the Securities and Futures Commission pursuant to [§14(6)I] of the Enforcement Decree of the Act on External Audit of Stock Companies, Etc. the auditor's audit report shall refer to the audit report of the designated auditor; and

(ii) In cases where the closing of accounts is not finalized for the latest business year, following documents may be submitted first and the documents in [(2)a)] may be submitted after the account closing;

a) Individual and consolidated financial statements of the business year prior to the latest business year and auditor's audit report thereof. In this case, it is limited that the audit opinion is unqualified; and

b) Semi-annual individual and consolidated financial statements of the latest business year and the auditor's review report thereof. In this case, it is limited that the review opinion is unqualified.

(d) In cases where the backdoor listing target company submitting the documents pursuant to [(2)b)] has not prepared the individual and consolidated financial statements in accordance with the K-

IFRS for the latest business year; the individual and consolidated financial statements shall be prepared in accordance with the K-IFRS for the latest business year and the auditor's or the designated auditor's audit report shall be submitted additionally.

(e) The documents in [(2)c)] shall be based on the following standards:

(i) In cases where it falls under any of the followings, the documents referred to in [(2)c)] may not be submitted:

a) In cases where it has not been 45 days since the end of the semi-annual or quarterly business period of the relevant business year (limited to the case where the backdoor listing target company is a foreign company); or

b) In cases where the backdoor listing target company submitted the semi-annual or third quarter individual and consolidated financial statements and the designated auditor's audit report thereof.

(ii) In cases where the backdoor listing target company is a foreign company and the Exchange deems it necessary considering the establishment place, accounting environment, history of listing on a foreign securities market, etc., the applicant shall submit auditor's audit report of quarterly or semi-annual individual and consolidated financial statements. In this case, it is limited that the relevant audit opinion is unqualified.

(2) The documents in [(3)] may be replaced by a document proving the fact in cases where the backdoor listing target company which is a foreign company is not possible to submit the documents due to the laws of the home country.

(3) The documents in [(7)a)] shall include the following matters:

(a) A statement that the person subject to mandatory holding of the shares, etc. will continue to hold the shares, etc. for the mandatory holding period and will not withdraw or establish or remove the right of pledge on the shares, etc. unless the Exchange deems it necessary;

(b) Method of disclosure in case where there occurs an event of accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc. of the shares, etc. held by the person subject to mandatory holding during the period of mandatory holding, and method of handling the cases where it is impossible to make the mandatory holding because the shares, etc. are provided security, etc.; and

(c) A statement that the applicant will not raise any objection against the disclosure by the listing sponsor as to the fact where, during the period of mandatory holding, the person subject to mandatory holding makes accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc. of the shares, etc.

(4) The documents in [(8)] may, in cases where the shares, etc. issued by the backdoor listing target company have not been electronically registered, be temporarily replaced by specimens of all denominations of the stock certificate issued (refers to the uniform stock certificate prescribed in the Securities Handling Regulations; the same shall apply hereinafter) and a document issued by a transfer agent to certify the issuance of share certificate, or a certificate of entry into the depositor's

account book.

(5) The documents in [(15)] shall be based on the following standards:

(a) The documents in [(15)a)] shall be the statement of financial position and the auditor's review report thereof as of the establishment or conversion into a holdings company in cases where the company is a foreign holding company located in Korea with business operation history less than one (1) business year after the establishment or conversion;

(b) In cases where the Exchange deems it necessary considering the company's establishment place, accounting environment, history of listing on a foreign exchange, etc., the documents in [(15)b)] shall include the auditor's audit report on the quarterly and semi-annual consolidated financial statements; and

(c) The documents in [(15)c) and d)] may not be submitted in cases of a foreign subsidiary that falls under any of subparagraphs of [§20(2)].

(6) The documents in [(18)b) and c)] may not be submitted in cases of a foreign subsidiary that falls under any of subparagraphs of [§20(2)].

[Annex No. 4] Documents for Application for Re-Listing

[February 14, 2022]

Documents for Application for Re-listing

(Pertaining to [§38] of the Enforcement Rules)

- (1) Application for re-listing in [Annex Form No. 3]
- (2) Shareholders' register as of the end of the latest business year (in cases where the register is closed after the end of business year, it shall be as of the date of the closure)
- (3) Statement of financial position as of the date of the registration of incorporation (including consolidated statement of financial position if there is a subsidiary). As for the companies under the provision of [§43(3)] of the Regulation, however, statement of financial position as of the date of the registration of incorporation and the financial statements of the previous year of the business year which includes the date of application for the re-listing.
- (4) In cases of re-listing after spin-off pursuant to [§43(1)] of the Regulation: Auditor's audit report on the financial statements as of the date of registration of incorporation. In cases of re-listing after spin-off pursuant to [§43(3)] of the Regulation: Auditor's audit report on the financial statements of the previous business of the business year which includes the date of application for the re-listing
- (5) A certified copy of the corporate register
- (6) Articles of incorporation
- (7) A copy of the agency agreement entered into with a transfer agent for transfer of the titles of securities, etc.
- (8) Certification on issuance and registration
- (9) Other documents that the Exchange deems necessary for the preliminary listing review

[Annex No. 5] Documents for Application for Listing Change and Supplementary Listing

(Amended on March 17, 2022; September 27, 2022; March 16, 2026)

Documents for Application for Listing Change and Supplementary Listing

(Pertaining to [§39], [§68], [§7]1, [§7]9, [§82], [§82-3]), [§82-4]), [§82-7]), and [§82-8]
of the Enforcement Rules)

1. Listed issues excluding business development investment trust beneficiary certificates

- (1) Application for listing change and supplementary listing in [Annex Form No. 25]
- (2) A copy of the minutes of the board of directors meeting or the general shareholders meeting
- (3) A certified copy of the corporate register
- (4) Certification on issuance and registration
- (5) Written confirmation on mandatory holding in [Annex No. 14]
- (6) Documents issued by the KSD to certify the mandatory holding by the person subject to mandatory holding
- (7) Following additional documents in cases of issuing new shares through paid-in capital increase, etc.:
 - (a) Documents proving the payment of the share subscription amount; and
 - (b) Written confirmation on details of spending of funds in [Annex No. 32] and documents proving the fact in the case of a paid-in capital increase through the third party allotment.
- (8) Status of circulating stocks of KOSDAQ-listed corporations in [Annex Form No. 2]
- (9) In the case of listing change or supplementary listing due to a change of company name, stock split, merger, etc., documents proving such event
- (10) Following additional documents in the case of a special purpose acquisition company's issuance of new shares through paid-in capital increase, etc.:
 - (a) Written confirmation issued by deposit institutions, etc. on the deposit and trust of funds
 - (b) Written confirmation of the total amount of issuance of the shares, etc. owned by financial investment companies
- (11) Other documents that the Exchange deems necessary for the listing review

Notes:

- (1) *The documents for the application for listing change or supplementary listing shall be submitted with the Exchange five (5) trading days prior to the scheduled date of listing change and supplementary listing. However, documents that fall under any of the followings shall be submitted by the day prescribed below:*
 - (a) *Documents in [(3)]: The application for the issuance of the document can be submitted first and then, the concerned document shall immediately be submitted as soon as prepared;*
 - (b) *Documents in [(4)]: Within 20 days after the date of the application for listing change or supplementary listing;*
 - (c) *Documents in [(6)]: By the previous day of the date of the application for listing change or*

supplementary listing; and

(d) Documents in [(7) and (10)]: Without delay after completion of the subscription payment.

(2) The documents in [(2)] shall follow the followings:

(a) Where the same document is submitted in the disclosure related to the listing change and supplementary listing, the documents referred to in [(2)] may not be submitted;

(b) If the document in [(2)] was corrected, only the final document may be submitted; and

(c) Only the part related to the application for the listing change and supplementary listing among the documents in [(2)] may be separately submitted.

(3) Only the part related to the application for the listing change and supplementary listing among the documents in [(3)] may be separately submitted.

(4) Documents in [(5)] shall be submitted only when mandatory holding under this Regulation, etc. applies. In such case, the documents in [(5)] shall state the following matters:

(a) A statement that the person subject to mandatory holding of the shares, etc. will continue to hold the shares, etc. for the mandatory holding period and will not withdraw or establish or remove the right of pledge on the shares, etc. unless the Exchange deems it necessary;

(b) Method of disclosure in case where there occurs an event of accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc. of the shares, etc. held by the person subject to mandatory holding during the period of mandatory holding, and method of handling the cases where it is impossible to make the mandatory holding because the shares, etc. are provided security, etc.; and

(c) A statement that the applicant will not raise any objection against the disclosure by the listing sponsor as to the fact where, during the period of mandatory holding, the person subject to mandatory holding makes accounts transfer, establishment and removal of a right of pledge, sales, withdrawal, etc.

(5) The documents in [(7)(b)] shall follow the followings:

(a) Among Documents in [(7)b], the details of use of the funds refers to the use details, plan, etc. of the funds raised through the concerned paid-in capital increase. In this case, if there are pre-paid payment, provisional payment, lending of money, lending of securities, investment of equity capital (including the acquisition of stocks, etc. or equity certificates issued by other company) for those who acquired the new shares through the paid-in capital increase through the allotment to a third party, the details and the plan shall be included.

(b) The KOSDAQ-listed corporation that belongs to the premier company category as of the date of issuance of the new shares may not submit the documents in [(7)b)].

(6) The documents in [(8)] shall be submitted only in cases where there is a change of capital such as capital reduction and reverse stock split.

(7) As a case of issuing securities overseas to those other than residents (excluding the investment dealing companies acquiring the concerned securities through an underwriting agreement relating to the issuance of the securities) pursuant to the Foreign Exchange Transaction Act, in the case of applying for listing of new share that are issued by the exercise of rights on conversion rights, subscription right, etc. which are attached to the securities or issued as underlying securities, in the case where the relevant securities are DRs, within one (1) year after the issuance, following

documents shall be submitted in addition:

- (a) In cases of exemption of securities registration or exemption of submission of securities registration, documents confirming the fact; and,*
 - (b) Documents proving the mandatory holding that the shares shall not be subject to sales, accounts transfer, establishment and removal of pledge, withdrawal, etc. unless the Exchange deems it necessary pursuant to [§16] of the Regulation, by putting the new shares under mandatory holding with the KSD, which are issued through exercise of rights on conversion right, subscription right, etc. attached to the relevant securities or issued as underlying securities in the case where the relevant securities are DRs, within one (1) year after the issuance,.*
- (9) In cases of applying for listing change and supplementary listing of foreign stocks, etc. and foreign different classes of stocks, following standards are applied:*
- (a) The documents in [(3)] means the documents on registration for the issuance of new shares. However, in cases where it is impossible to submit the document due to the laws of the home country, it can be replaced by written document proving the fact.*
 - (b) The documents in [(5) and (6)] may be replaced with the written confirmation of mandatory holding entered into the listing sponsor.*

2. Business development investment trust beneficiary certificates

- (1) Application for listing change and supplementary listing under [Annex Form No. 25]**
- (2) Certification on issuance and registration**
- (3) Documents proving changes in the trust principal amount**
- (4) Other documents that the Exchange deems necessary for the listing review**

[Annex No. 6] Qualitative Criteria for Preliminary Listing Review

(Amended on September 27, 2022; December 28, 2023; July 9, 2025; November 24, 2025)

Qualitative Criteria for Preliminary Listing Review

(Pertaining to [§27])

1. Corporate sustainability

Corporate sustainability shall be recognized in terms of business status, financial condition, technical capability, growth potential, and other management environments of a corporation.

(a) Standard companies

Review items	Focal points for review
Business situations	• Industrial growth potential and trend such as industrial growth cycle, market size, competitive situation, entry barrier, etc. • Regulatory environment of industries at home and abroad, and effects of the government policy • Change factors of sales amount and profits of the past, and possibility of increase in sales and profits in the future • Possibility of maintaining business relationship with major customers and of securing new customers • Size of sale credit and inventory assets, and appropriateness of management system thereof
Financial conditions	• Level of financial stability compared to the industrial group and competing companies • Liquidity status considering the size and trend of cash flow from the business operation • Possibility of deterioration of financial status due to contingent liabilities
Technology	• Technological competitiveness such as intellectual property, level of technical professionals, degree of technological perfection and competitive advantage • Competitiveness in commercialization of technology held or under development
Growth potential	• Rationality of corporate growth strategy and business plan for growth • Possibility of expanding business by strengthening competitiveness of main products and entering new businesses • Rationality of the use of funds raised by public offering and possibility of growth by the influx of funds
Other management environments	• Impact that lawsuits or legal conflicts relating to patent, management right, etc., if any, may have on corporate management • Impact that management's expertise such as level of experience and capital participation by management may have on corporate growth

(b) Companies with no realized profit

Review items	Focal points for review
Business situations	• Industrial growth potential and trend such as industrial growth cycle, market size, competitive situation, entry barrier, etc. • Regulatory environment of industries at home and abroad, and effects of the government policy • Size and trend of loss, and validity* of the cause of the loss * <i>Losses caused by structural problems such as overall decrease in sales, or incurred in the process of growth for R&D, expansion of production facilities, etc.</i> • Possibility of expansion of transactions with main customers, and possibility to turn profitable through securing new customers, etc. • Size of sale credit and inventory assets, and appropriateness of management system thereof
Financial conditions	• Level of financial stability compared to the industrial group and competing companies • Size of decrease in cash flow from losses and whether or not to secure liquidity considering the trend of future growth • Possibility of deterioration of financial status due to contingent liabilities
Growth potential	• Differentiated business models compared to competitors and competitiveness of the business models (in the areas of production of services and products, sales distribution, etc.) • Corporate growth strategies and rationality of business strategy* for growth * <i>Recruitment of personnel, planning of facility investment, securing of patent rights, etc.</i> • Status of outside investors' assessment of corporate growth potential and the basis for the assessment * <i>Including status of financing from external investors</i> • Possibility of expanding business by strengthening competitiveness of main products and entering new businesses • Rationality of the purpose of use of funds (facility expansion, etc. to secure growth potential) and effect of influx of funds raised by public offering
Other management environments	• Impacts that lawsuits or legal conflicts relating to patent, management right, etc. may have on corporate management • Influence of management's expertise and capital participation on corporate growth • Whether the system for investor protection such as granting of put-back options is sufficient

※ If the Exchange deems it necessary given the business structure of the companies-with-no-profit, it may be possible to apply both the qualitative criteria for standard companies and those for companies with no realized profit simultaneously.

(c) Technology growth companies

Review items	Focal points for review
Business situations	• Industrial growth potential and trend such as industrial growth cycle, market size, competitive situation, entry barrier, etc. • Possibilities of entering or expanding existing markets and creating new markets • Possibilities of maintaining existing customers or securing new customers • Regulatory environment of industries at home and abroad, and effects of the government policy • Influence of internal competence such as management's knowledge and experience on business continuity and future growth
Technology/ Business feasibility	■ Innovative technology companies¹⁾ • Completeness of technology including stage of development, self-reliance, difficulty of imitation, etc. • Competitive advantage in terms of technological differentiation, level R&D, size and appropriateness of R&D investment, status of possessing intellectual property rights, etc. • Level of technological workforce, such as technological expertise, technological management ability, etc. • Competitiveness in commercialization of technology ■ Business model companies • Completion of business models in terms of degree of commercialization, realization of sales, etc. • Competitive advantage in terms of differentiation of business models, position in the market, etc. • Whether human and material resources essential to business are secured
Growth potential	• Rationality of business plans, including workforce and facility investment plans for corporate growth, securing intellectual property rights, etc. • Rationality of the purpose of use of funds raised by public offering and the effect of influx of the funds • Possibility of realizing revenue including sales and operating income within a certain period after listing
Other management environments	• Impacts that lawsuits or legal conflicts relating to patent, management right, etc. may have on corporate management • Impact that the contingent liabilities arising from the terms of major contracts related to business operation, etc. may have on management

Notes:

(1) In cases where the outcome of the assessment for a domestic company (excluding foreign holding company located in Korea) conducted by specialized assessment institutions is a grade of 'AA' or above, the review items of 'Technology/Business feasibility' shall not apply thereto. In such cases, when the overall assessment grades submitted by the specialized assessment institutions are different from each other, the higher grade shall be the final assessment grade, but, in the case where even one assessment institution has rated 'BBB' or lower, the lower assessment grade shall be the final grade.

※ If the Exchange deems it necessary considering the business structure of the technology growth companies, it may be possible to apply both the qualitative criteria for ordinary companies and those for technology growth companies simultaneously.

2. Transparency and stability of the business management

Transparency and stability of the business management shall be recognized in light of corporate governance, internal control system, disclosure system, trading with interested parties, stock trading before listing, etc. of a corporation.

Review items	Focal points for review
Corporate governance	• Whether the decisions on important matters are made autonomously by establishing independent corporate governance structure. • In cases where there is an unlawful act by the management, the impact that such act may have on corporate management. • Whether there is a history of significant actions by the largest shareholder or the management that are against the interests of the listing applicant.
Internal control system	• Level of establishment and operation of internal control system such as the regulation on the operation of the board of directors, etc. • Whether there are any important errors or unusual matters confirmed through accounting audit or tax investigation • In the case of a holding company, the appropriateness of establishment and operation of management systems of its subsidiaries with regard to appointment of executives, business performance reporting, conclusion of business management contract, etc. • Whether it has human resources, internal control procedures such as accounting regulations, etc. and accounting systems, established and operated to produce reliable accounting data.
Corporate disclosure	• Whether work force and organization are constructed in order to perform the disclosure duties stipulated in relevant laws and regulations (in case where the largest shareholder is a paper company, the disclosure duties relating to the material business matters of the paper company shall be included.) • Whether the disclosure system to prevent the usage of material undisclosed information is established.
Trading with interested parties	• Whether the background, conditions, procedures, etc. for trading with the interested parties comply with relevant laws and regulations. • Fairness of conditions of the trading with the interested parties compared to the trading with a third person
Stock trading before listing	• Possibility of infringing the interests of shareholders in light of the necessity of stock trading before listing, legality of procedures, appropriateness of trading price, etc. • Whether there is any trading using undisclosed information
Management stability	• Whether the largest shareholder, etc. (in the case of a paper company, a <i>de facto</i> controlling stockholder shall be included) holds stable amount of shares • In the case of technology growth companies, whether the stability of management is maintained until profit realization • If there are disputes over management rights, the impact that such disputes may have on corporate management. • Whether it is possible to maintain the continuity of corporate management considering the change of management, restructuring of business, etc. in the case where the largest stockholder is changed • If there is a secondary offering, the appropriateness of the secondary offering in terms of the demand for financing, retaining of management control, etc. of the

	listing applicant.
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3. Protection of investors

It shall be recognized that the realization of public interests and the protection of investors are not harmed.

Review items	Focal points for review
Public interests and investor protection	• Whether the application for preliminary listing review and the attached documents contain any false statement or presentation of a material fact or omits to state or present a material fact. • In case where the largest shareholder or the management has ever sold or taken over management rights of a listed corporation, whether the market integrity was impeded in such processes or not. • In the case where a listing applicant is a corporation established through the spin-off (including business transfer, contribution in kind, etc; the same hereinafter) by a corporation listed on the KOSDAQ market or a corporation that lists its stocks on the KOSPI market, whether it is recognized that the parent corporation (referring to the parent company under Article 342-2(1) of the Commercial Act) of the listing applicant has made its best efforts to protect shareholders, such as collection of shareholders' opinions and communication with shareholders, etc. • In the case where a re-listing applicant applies for re-listing after spin-off, whether it is recognized that efforts to protect minority shareholders of the newly-established corporation or the surviving corporation after the spin-off, such as collection of shareholders' opinions, communication with shareholders, dividend policy, retirement of treasury stocks, etc., have been faithfully implemented, and whether the continuity of the surviving corporation is recognized after the split-off • In addition, any likelihood of infringing the realization of public interests and the protection of investors.

※ This requirement may not apply if the parent company is changed or the core business sector of the listing applicant is changed after the spin-off.

[Annex No. 7] Qualitative Criteria for Preliminary Listing Review by Industry
(Corporate Continuity)

(Amended on December 28, 2023; December 30, 2025)

Qualitative Criteria for Preliminary Listing Review by Industry (Corporate Continuity)

(Pertaining to [§27])

1. Deep tech industry⁽¹⁾⁽²⁾

Review items	Focal points for review
Innovativeness	•The importance of national economic aspects of main technologies, such as their impact on related industries and contribution to the creation of new technologies and new industries. •Innovativeness based on originality and differentiation of the main business. •Ability to carry out business based on main technologies and whether the government has certified innovation.⁽³⁾
Technology	•Feasibility of technology in view of rationality of the main technology and completeness of development stages. • Competitiveness in commercializing the main technology and possibility of commercialization of main products. •Possibility of maintaining technological capability based on expertise of the main technology and R&D capability, etc.
Growth potential	•Whether the business plan is reasonable, including investment plans for human resources and facility for the growth of company and securing intellectual property rights. •Growth potential of the business, including rationality of the main business and completeness for profit-realization, etc. •Potential of business expansion, including possibilities of business derivation and linking with other industries.
Other business environments	· Impact on corporate management in the event of a lawsuit or dispute related to patents, management rights, etc. · Effect of contingent liabilities on management according to the terms and conditions of major contracts related to business.

Notes:

(1) Subparagraph 1 applies to corporations that possess national strategic technology under the Special Act on Fostering of National Strategic Technology or national high-tech strategic technology under the Act on Special Measures for Strengthening and Protecting Competitiveness of National High-tech Strategic Industries and operate technology in the relevant field as their main business. Provided that in the case of corporations that also fall into the bio industry under subparagraph 2, the standards of subparagraph 2 may be applied.

(2) In the case where a company with no realized profit applies for preliminary listing review, the review item of 'Technology' in subparagraph 1 shall not apply, but the review item of 'Financial conditions' for 'Companies with no profit' under the Qualitative Criteria in [Annex No. 6] shall additionally apply.

(3) It shall refer to cases where, as a case of the Financial Services Commission's designation as an innovative financial service pursuant to the Special Act on Financial Innovation Support or a similar case thereto, the case has been certified for innovation in technology in accordance with relevant laws and regulations. .

(b) Bio industry⁽¹⁾

Review items	Focal points for review
Technology	■ Competitive advantage of technology • Whether it possesses the original technology to sustain and expand development pipelines. • Ability to generate revenue based on the record of contracts for technology transfer and the contractual structures. • Details of performance of national tasks and the key results thereof. • Results of joint R&D with major pharmaceutical/bio enterprises and networks established with them. • Records of joining domestic and international academic societies related to the core technology and presentation of thesis. ■ Success potential of technology • Number of pipelines possessed, stage of clinical trials in progress, and results of clinical trials. • Competitiveness in commercializing developed drugs. ■ Research and development capabilities • R&D experience of key management, expertise and management capability related to bio industry. • Whether it has core R&D personnel and duration of service ■ Possession of intellectual property • Whether the core technology is registered for domestic and international patents. • History of patent disputes with competitors and possibility of disputes ■ Potential for profit generation • Adequacy of profit model in light of market size and competition • Performance of fund raising from investors such as venture capital and the size thereof.
Business situations	• Industrial growth potential and trend such as industrial growth cycle, market size, competitive situation, entry barrier, etc. • Possibilities of entering or expanding existing markets and creating new markets • Regulatory environment of industries at home and abroad, and effects of the government policy • Influence of internal competence such as management's knowledge and experience on business continuity and future growth
Growth potential	• Rationality of business plans, including workforce and facility investment plans for corporate growth, securing intellectual property rights, etc. • Rationality of the purpose of use of funds raised by public offering and the effect of influx of the funds • Possibility of realizing revenue including sales and operating income within a certain period after listing
Other management environments	• Impacts that lawsuits or legal conflicts relating to patent, management right, etc. may have on corporate management • Impact that the contingent liabilities arising from the terms of major contracts

	related to business operation, etc. may have on management
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Notes:

(1) Subparagraph 2 shall apply in the case where the Exchange acknowledges that a company falls under [§2(1)40(b)] of the Regulation or is a company specialized in R&D for new drugs.

[Annex No. 8] Criteria for Identification of Corporate Insolvency Risks

Criteria for Identification of Corporate Insolvency Risks

(Pertaining to [§48])

1. The Exchange measures the degree of insolvency of a KOSDAQ-listed corporation (excluding special purpose acquisition companies; hereinafter the same) based on the following variables for identifying corporate insolvency risk, criteria for each variable, and weight for each variable as below which have significant influences on corporate insolvency.

Variables, Criteria and Weights for Identification of Corporate Insolvency Risks

Classification	Variables	Criteria ⁽¹⁾	Weights
Financial Variables	① Dependency on short-term borrowings	-	0.569
	② Ratio of operating cash flow to total assets	-	-2.332
	③ Profit from ongoing business before tax	loss	1.078
	④ Interest coverage ratio	less than 1	0.426
	⑤ Impairment of capital	30% or more	0.940
	⑥ Amount of sales	less than KRW 5 bil.	0.415
	⑦ Turnover of total assets	-	-0.211
Qualitative Variables	⑧ Change of the largest shareholder (times)	twice or more for three years	0.282
	⑨ Change of the representative director (times)	three times or more for three years	0.577
	⑩ Paid-in capital increase through third party allotment (times)	twice or more for three years	0.093
	⑪ Issuance of convertible bonds, bonds with warrants, exchangeable bonds via third party allotment (times)	twice or more for three years	0.511
	⑫ Unfaithful disclosures (times)	twice or more for three years	0.327
	⑬ Shareholding ratio of the largest shareholder, etc.	less than 25%	0.751

	⑭ Occurrence of the causes for uncertainty about survival as a going concern based on the audit report ⁽²⁾	occurrence of uncertainty	0.737
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Notes:

(1) Criteria refer to the standard value for judging whether each variable has a significant effect on the symptoms of insolvency. The value of the variable of the criteria shall be 1 in cases where it satisfies the criteria or 0 where it does not satisfy the criteria. However, for those variables without a criterion, the measured value of the variable shall be the value of the variable and in cases where the measured value is out of the upper or lower limit below, the upper or lower limit shall be deemed as the value of the variable.

Variable	Upper Limit	Lower Limit
Dependency on short-term borrowings	2.653	0.000
Ratio of operating cash flow to total assets	0.318	-0.323
Turnover of total assets	2.808	0.000

(2) It shall include the case where the audit opinion is “unqualified”, but the uncertainty about the survival as a going concern is stated in the audit report as a special note.

2. The Exchange shall calculate comprehensive measurement values of insolvency risks via the method below in accordance with the insolvency scores measured by variable for the KOSDAQ-listed corporations and designate investment attention issues by taking into account whether or not the comprehensive measurement values surpass the comprehensive threshold value⁽¹⁾.

Method of calculating comprehensive measurement value of corporate insolvency risks⁽²⁾

Insolvency score (z) = $\sum$ (value of variable by each value x weight by variable) - 4.494

Comprehensive measurement value on insolvency risk = $ez \div (1 + ez)$

Notes:

(1) The comprehensive threshold value shall be 0.7.

(2) e means the natural constant (the base of the natural logarithm).

3. The Exchange shall notify the KOSDAQ-listed corporation that was designated as an investment attention issue of the result of designation and the relevant variables for identification of insolvency risks, etc.

[Annex No. 9] Timing of Designation as Investment Attention Issue and Release Therefrom

(Amended on December 9, 2022)

Timing of Designation as Investment Attention Issue and Release Therefrom

(Pertaining to [§48] and [§69])

Cause of Designation	Designation Time	Release Time
1. Periodic Designation		
1) Falling under the criteria for identification of corporate insolvency risks in [Annex No. 8] {[§52(1)1] and[§66(1)] of the Regulation}	On the first trading day of May of the relevant year	In cases where it was confirmed that the issue does not fall under the investment attention issue pursuant to criteria for identification of corporate insolvency risks, the first trading of May of the relevant year.
2. Timely Designation		
1) Result of review and audit on the operation of internal accounting management system {[§52(1)2(a)] and[§66(1)] of the Regulation}	The day following the day on which the relevant fact was confirmed in accordance with [§6(1)2(e)(i)d)] of the Disclosure Regulation	The day following the day on which the resolution of the cause of designation has been confirmed by the audit report of the following business year
2) <i>De facto</i> sale of stocks, etc. subject to mandatory holding {[§52(1)2(b)] and[§66(1)] of the Regulation}	The day following the date of confirming the relevant fact.	The day following the expiration date of the relevant mandatory holding period {including the period extended pursuant to [§17(2)]}.
3) Prepayment, etc. for those who acquired the new shares via third party allotment {[§52(1)2(c)] and[§66(1)] of the Regulation}	The day following the day on which the relevant fact was confirmed by [§6(1)2(b)(vi)] and [§6(1)2(c)(v)] of the Disclosure Regulation	The day when one (1) year has elapsed since the designation date
4) Qualified audit opinion due to the uncertainty of sustainability as a going concern {[§52(1)2(d)] and, [§66(1)] of the Regulation}	The day following the day on which it was confirmed by the audit report of the latest business year	The day following the day on which the resolution of the cause was confirmed by the audit report as at the end of the first half year or business year arriving after the date of designation.

5) Cases where it is not confirmed whether the largest shareholder after the change is subject to mandatory holding {[§52(1)2(e)] and[§66(1)] of the Regulation} (1) Cases where it is not confirmed whether or not the mandatory holding pursuant to [§47(4)] is applicable. However, this provision shall not apply in the case of submitting the agreement under the proviso to the former part other than each subparagraph of [§47(5)]	The day when three (3) business days have elapsed since the day following the disclosure date under [§6(1)3(a)(i)] of the Disclosure Regulation	The day following the day on which it was confirmed that the largest shareholder after the change does not fall under [§47(2)]. However, if one (1) year has elapsed from the date of designation, it shall be the day when one (1) year has elapsed.
(2) Cases where it is not confirmed whether or not the mandatory holding pursuant to the proviso to the former part other than each subparagraph of [§47(5)] is applicable	The day when three (3) weeks have elapsed after the day following the date of submission of the concerned agreement under the proviso to the former part other than each subparagraph of [§47(5)]. However, in cases where the Exchange has extended the submission deadline by acknowledging the unavoidable reasons, it shall be the day following the extended submission deadline.	In cases where the largest shareholder after the change falls under [§47(2)], the day following the day on which it was confirmed that the obligation of mandatory holding was fulfilled. However, if one (1) year has elapsed from the date of designation, it shall be the day when one (1) year has elapsed.
6) Violation of mandatory holding requirement by the changed largest shareholder {[§52(1)2(f)] of the Regulation}	The day when it was confirmed that the obligation of mandatory holding was not fulfilled	The day following the day when it was confirmed that the obligation of mandatory holding was fulfilled. However, if one (1) year has elapsed from the date of designation, it shall be the day when one (1) year has elapsed
7) Violation of appointment, change, dismissal, etc. of auditor of a KOSDAQ-listed foreign company {[§66(2)] of the Regulation}	The day following the day when the relevant fact was confirmed pursuant to [§20(1)9] of the Disclosure Regulation	The day following the day when it was confirmed that the cause has been resolved pursuant to [§20(1)9] of the Disclosure Regulation after the date of designation

8) Operating loss {[§52(1)2(g)] of the Regulation}	The day following the day when the relevant fact was confirmed by an audit report	The day following the day when it was confirmed that the cause has been resolved by an audit report at the end of business year that arrives after the date of designation
9) Capital impairment {[§52(1)2(h)] of the Regulation}	The day following the day when the relevant fact was confirmed by a semi-annual review report (including an audit report)	The day following the day when it was confirmed that the rate of capital impairment is less than 50/100 by a review report (including an audit report) at the end of a half-year period or an audit report at the end of the business year that arrives after the date of designation
10) Equity capital not up to standards {[§52(1)2(i)] of the Regulation}	The day following the day when the relevant fact was confirmed by a semi-annual review report (including an audit report)	The day following the day when it was confirmed that the equity capital is KRW 1 billion or more by a review report (including an audit report) at the end of a half-year period or an audit report at the end of the business year that arrives after the date of designation
11) Auditor's opinion not up to standards in half-year period {[§52(1)2(j)] of the Regulation}	The day following the day when the relevant fact was confirmed by a semi-annual review report (including an audit report)	The day following the day when it was confirmed that the cause has been resolved by a review report (including an audit report) at the end of a half-year period or an audit report at the end of the business year, that arrives after the date of designation

Notes:

(1) In cases where an issue is determined to maintain listing status (including the cases of being excluded from listing maintenance review; hereinafter the same) after it went through the listing maintenance review to which it was subject because it was designated as an investment attention issue due to a cause of [2. 4] , the issue concerned shall be released from the designation as an investment attention issue under the concerned cause though the time for the release has not arrived. In such cases, the date of the release from the investment attention issue designation shall be the next day of the date when the listing maintenance is determined.

(2) [2. 7)] applies to KOSDAQ-listed foreign corporations.

[Annex No. 10] Timing of Designation as Administrative Issue and Release Therefrom

(Amended on December 9, 2022; July 9, 2025; November 24, 2025; March 16, 2026)

Timing of Designation as Administrative Issue and Release Therefrom

(Pertaining to [§58], [§69], [§72], [§80], [§82-5], and [§82-9] of the Enforcement Rules)

1. Common stocks, foreign stocks, etc., special purpose acquisition company stocks

Designation Cause	Designation Time	Release Time
1) Sales not up to standards {[§53(1)1] and [§67(1)] of the Regulation}	The day following the day when it was confirmed through the audit report	The day following the day when it was confirmed through the audit report of the following business year that the sales amount of the latest business year is sales criterion under [§53(1)1] or more. However, in cases where it was confirmed that it falls under any of the [§53(1)1(c)] of the Regulation, it shall be the day following the date of such confirmation.
2) Loss from continuing operation before corporate tax {[§53(1)2] and [§67(1)] of the Regulation}	The day following the day when it was confirmed through the audit report	The day following the day when it was confirmed by the audit report that the amount of equity capital is KRW 1 billion or more as of the end of the latest business year.
3) Capital impairment {[§53(1)3] and [§67(1)1] of the Regulation}	The day following the day when it was confirmed through the audit report	The day following the day when it was confirmed by the audit report that the rate of capital impairment is less than 50/100 as of the end of the latest business year.
4) Equity capital not up to standards {[§53(1)4], [§67(1)1] and [§72(1)] of the Regulation}	The day following the day when it was confirmed through the audit report	The day following the day when it was confirmed by the audit report that the equity capital as of the end of the latest business year is KRW 1 billion or more

5) Failure to meet the market capitalization requirements {[§53(1)5] and [§67(1)2] of the Regulation}	The day following the day on which the concerned fact was confirmed	The day following the day when all of the following requirements were met: (i) The number of days (based on the trading days of the concerned issue) during which the market capitalization remains at the criterion stipulated in [§54(1)12(a)] or more must be at least 10 consecutive days; and (ii) The number of days (based on the trading days of the concerned issue) during which the market capitalization remains at the criterion stipulated in [§54(1)12(b)] or more must be at least 30 days.
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6) Failure to submit periodic reports {[§53(1)6, §67(1) and §72(1)] of the Regulation}	The day following the statutory submission deadline.	The day following the day on which any of the followings are confirmed. However, it shall be the day when two (2) years has elapsed since the date of the designation as an administrative issue in cases where the issue had been designated as an administrative issue pursuant to [§53(1)6] of the Regulation within two (2) years before it was designated as an administrative issue and provided that, in cases where the delisting cause has been resolved by submitting all the unsubmitted regular reports :within the improvement period though the cause for delisting under [§54(1)7] of the Regulation was occurred, it shall not apply. (i) When the concerned annual report, semiannual report or quarterly report is submitted (ii) When an annual report or a semiannual report which include the concerned quarter is submitted after it was designated as an administrative issue by failing to submit a quarterly report (iii) When an annual report which includes the concerned quarter is submitted after it was designated as an administrative issue by failing to submit a semiannual report
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7) Failure to meet the corporate governance requirements {{§53(1)7, §67(1), §72(1)} of the Regulation}	The day following the statutory deadline for submission of annual reports under [§19(1)] of the Disclosure Regulation. However, in cases where a general meeting of shareholders is held after the statutory deadline for submission of annual reports, it shall be the day following the date of the general meeting of shareholders	The day following the day on which the concerned cause was confirmed as resolved.
8) Failure to meet trading volume requirements {{§53(1)8} and[§67(1)3] of the Regulation}	The day following the last day of a quarter	The day following the last day of the quarter for which the trading volume requirement was met.
9) Failure to meet the stock distribution requirement {{§53(1)9} and [§67(1)4] of the Regulation}	The day when 15 days have elapsed since the statutory deadline for submission of annual reports under [§19(1)] of the Disclosure Regulation	The day following the day when the stock distribution was confirmed by the summary table of shareholders and the register of holders, etc. noted in [Annex Form No. 30]. However, when the fact prescribed in [§55(2)] is confirmed by such means as corporate disclosure, it shall be the day following the date of the confirmation.

10) Application for commencement of rehabilitation procedures {{§53(1)10}, [§67(1)5] and [§72(1)] of the Regulation}	The day following the day on which the fact was confirmed	The day following the day when the court has made the decision on the closing of rehabilitation procedures (including any other reason equivalent thereto).
11) Application for bankruptcy {{§53(1)11, §67(1)5, §72(1)} of the Regulation}	The day following the day on which the fact was confirmed	The day following the day when the cause was resolved through a court's decision to reject the application for bankruptcy, etc.

12) Occurrence of a cause for delisting {[§53(1)12], [§67(1)] and[§72(1)] of the Regulation}	(1) Occurrence of a formality cause for delisting pursuant to [§54(1)] of the Regulation {excluding the causes for delisting pursuant to [§54(1)3 (limited to a case where a KOSDAQ- or KOSPI-listed corporation is being merged) and §54(1)9] of the Regulation}: The day following the day on which the fact was confirmed	The day following the day on which the concerned cause was confirmed as resolved.
	(ii) When it falls under any of the subparagraphs of [§56(1)] of the Regulation and is subject to the listing maintenance review: The day following the day when it was decided to be subject to the listing maintenance review pursuant to [§57(1)] of the Regulation	The day following the day when the decision to maintain listing status was made pursuant to [§57(3) to §57(7)] or [§58(2) to §58(4)] of the Regulation
	(iii) When it falls under any of the causes for listing maintenance review of [§56(1)] of the Regulation and is decided to be delisted: The day following the day when the delisting was decided pursuant to [§57(3) to §57(7)] of the Regulation	The day following the day when the decision to maintain listing status was made pursuant to [§58(2) to §58(4)] of the Regulation
13) Violation of financial management standards {[§53(1)13], [§67(1)] and[§72(1)] of the Regulation}	The day following the day on which the fact was confirmed	The day when six (6) months have elapsed from the day of the designation as an administrative issue

14) Change of accounting standards in the case of foreign stocks, etc. {[§67(2)1] of the Regulation}	The day following the day on which the fact was confirmed by the annual (semiannual) report	The day following the day when it was confirmed that there was a change of accounting standards conforming to [§3(4)] of the Regulation through the semiannual or annual report of the semiannual period or business year that comes first after the date of the designation as an administrative issue
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15) Appointment or change of auditor in the case of foreign stocks, etc. {[§67(2)2] of the Regulation}	The day following the day on which the fact was confirmed by the annual (semiannual) report	The day following the day when it was confirmed that the cause was resolved via the semiannual or annual report of the semiannual period or business year that comes first after the date of the designation as an administrative issue. However, in cases where it was approved by the Exchange pursuant to [§15(6)] of the Regulation, it shall be the day following the day when the fact was confirmed via corporate disclosure, etc.
16) Failure to meet the qualification requirements of an officer in the case of SPAC shares {[§72(2)1] of the Regulation}	The day following the day on which the fact was confirmed	The day following the day on which the appointment of an officer who meets the qualification pursuant to [§70(1)7] of the Regulation was confirmed
17) Failure to meet the share distribution requirement in the case of SPAC shares {[§72(2)2] of the Regulation}	The day when 15 days have elapsed from the statutory deadline of the submission of annual report pursuant to [§19(1)] of the Disclosure Regulation	The day following the day on which the distribution is confirmed by the summary table of shareholders and the register of holders, etc. in [Annex Form No. 30].
18) Violation, etc. of funds deposit/trust obligation in the case of SPAC shares {[§72(2)3] of the Regulation}	The day following the day on which the fact of violation of the deposit/trust obligation or withdrawal or provision as collateral of the funds deposited or entrusted was confirmed	The day following the day on which the concerned cause was confirmed to have been resolved.
19) Violation of restriction of financial activities in the case of SPAC shares {[§72(2)4] of the Regulation}	The day following the day on which the fact of violating the restriction of financial activities was confirmed	The day following the day on which the concerned cause was confirmed to have been resolved.

20) In the case of SPAC shares, failure to apply for preliminary listing review {[§72(2)5] of the Regulation}	The day that falls under any of the followings: (i) The day following the day on which the application for preliminary listing review is not submitted or a report on resolution/decision on a merger is not filed before six months prior to the maturity of the SPAC; or (ii) The day following the day when it was confirmed of a withdrawal of the application of preliminary listing review, a	The day following the day on which the concerned cause was confirmed to have been resolved.
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	failure to get an approval of the preliminary listing review, a cancellation of a resolution/decision on a merger, etc. as for a SPAC with a maturity less than six months	
21) In the case of SPAC shares, failure to meet the issuance amount requirement for shares, etc. owned by financial investment company {[§72(2)6] of the Regulation}	The day following the day on which the failure to meet the issuance amount requirement for shares, etc. owned by financial investment company was confirmed	The day following the day on which the concerned cause was confirmed to have been resolved.
22) Cause for release from designation as an administrative issue in the case of SPAC shares {[§72(3)] of the Regulation}	-	The day following the day on which the fact was confirmed that the SPAC which had been designated as an administrative issue entered into a merger with another corporation

Notes:

(1) The audit report or review report in [1) to 4)] refers to the audit report or review report filed pursuant to [§6(1)2(e)(i) or (ii)] of the Disclosure Regulation. In this case, in cases where there is a corrected report, the issue shall be designated as or released from an administrative issue on the day following the day of the corrected report.

(2)) In cases where an issue is determined to maintain listing status (including the cases of being excluded from listing maintenance review; hereinafter the same) after it went through the listing maintenance review to which it was subject because it was designated as an investment attention issue due to a cause of [2) through 4)], the issue concerned shall be released from the designation as an investment attention issue under the concerned cause though the time for the release to be determined from 1) through 4) has not arrived. In such cases, the date of the release from the investment attention issue designation shall be the next day of the date when the listing maintenance is determined.

(3) [1) to 13)] apply to corporations which listed common stocks.

(4) [1) to 15)] apply to KOSDAQ-listed foreign corporations.

(5) [3) to 7), 10) to 13) and 16) to 22)] apply to SPACs.

2. Different classes of stocks (including foreign different classes of stocks)

Designation Cause	Designation Time	Release Time
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1) Designation as an administrative issue for common stocks or foreign stocks, etc. {{§81(1)1} of the Regulation}	The day of the designation as an administrative issue for common stocks or the foreign stock	The day of the release from the designation as an administrative issue for common stock or the foreign stock
2) Failure to meet the number of shareholders requirement {{§81(1)2} of the Regulation}	The day when 15 days have elapsed since the statutory deadline for submission of annual reports under [§19(1)] of the Disclosure Regulation	The day following the day when the number of shareholders was confirmed by the summary table of shareholders and the register of holders, etc. in [Annex Form No. 30].
3) Failure to meet the number of listed shares requirement {{§81(1)3} of the Regulation}	The day following the day on which the fact was confirmed	The day following the day when the number of shares listed was confirmed to be 200,000 or more as of the end of the latest semiannual period or business year (referring to the case where the end of semiannual period or business year arrives after the date of designation as administrative issue)
4) Failure to meet the market capitalization requirements {{§81(1)4} of the Regulation}	The day following the day on which the fact was confirmed	The day following the day when all of the following requirements were met: (i) The number of days (based on the trading days of the concerned issue) during which the market capitalization was KRW 2 billion or more shall be at least 10 consecutive days; and (ii) The number of days during which the market capitalization was KRW 2 billion or more shall be at least thirty (30) days.
5) Poor trading performance {{§81(1)5} of the Regulation}	The day following the last day of a quarter	The day following the last day of the quarter for which the trading volume requirement was met.

3. Business development investment company stocks and business development investment trust beneficiary certificates

Designation Cause	Designation Time	Release Time
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1) Size not up to standards {[§85-9(1)1] and [§85(16)1] of the Regulation}	The day following the day when the size was confirmed through the audit report	The day following the day when it was confirmed through the audit report of the following business year that the cause of designation is resolved.
2) Violation of disclosure obligation {[§85-9(1)2] and [§85-16(1)2] of the Regulation}	The day following the day when the relevant fact was confirmed	The day following the day when it was confirmed that the cause of designation is resolved.
3) Investment ratios not up to standards {[§85-9(1)3] and [§85-16(1)3] of the Regulation}	The day following the day when it was confirmed through the audit report	The day following the day when it was confirmed that the cause of designation is resolved.
4) Auditor's opinion not up to standards {[§85-9(1)4] and [§85-16(1)4] of the Regulation}	The day following the day when it was confirmed through the audit report	The day following the day when it was confirmed by the audit report that the cause of designation is resolved.
5) Violation of mandatory holdings {[§85-9(1)5] and [§85-16(1)5] of the Regulation}	The day following the day when it was confirmed through the audit report	The day following the expiration date of the relevant mandatory holding period (including the extended period if the mandatory holding period has been extended by applying [§17(2)] of the Regulations mutatis mutandis).

[Annex No. 11] Industry Classification

(Amended on June 14, 2024)

Industry Classification (Pertaining to [§85] of Enforcement Rules)

Sector		Subsector		Industry Group	
Name	Code	Name	Code	Name	Code
Agriculture, forestry and fishing industry	01	Agriculture	01	Growing of crops	01
				Livestock production	02
				Crop and livestock mixed farming	03
				Crop farming and livestock production related service	04
				Hunting and related services	05
		Forestry	02	Forestry	01
		Fisheries	03	Fishing	01
				Aquaculture and fisheries related services	02
Mining industry	02	Coal, crude oil and natural gas extraction	05	Coal mining	01
				Extraction of crude oil and natural gas	02
		Metal ores mining	06	Iron ores mining	01
				Nonferrous metal ores mining	02
		Nonmetal mining (excluding those used as fuel)	07	Gravels, sands and stones mining	01
				Other nonmetal mining	02
		Mining support services	08	Mining support services	01
Manufacturing industry	03	Food manufacturing	10	Butchery, meat and meat products processing and preserving	01
				Fisheries product processing, storage and handling	02
				Fruits &vegetable processing, storage and handling	03
				Animal and vegetable oil and dairy products manufacturing	04
				Grain processing, starch and starchy products manufacturing	05
				Rice cake, bread and confectionery manufacturing	06
				Lunch boxes and prepared food for meals manufacturing	07
				Other food manufacturing	08
				Animal feeds and processed food manufacturing	09
		Beverage manufacturing	11	Alcoholic beverage manufacturing	01
				Non-alcoholic beverage and ice manufacturing	02
		Tobacco manufacturing	12	Tobacco manufacturing	01
		Textile manufacturing (excluding ready-to-wear apparel)	13	Spinning and processing	01
				Textile weaving and woven goods manufacturing	02
				Knitted fabrics manufacturing	03
				Textile dyeing, arranging and finishing industries	04
				Other textile manufacturing	09
		Ready-to-wear apparel, accessories& fur goods manufacturing	14	Ready-to-wear apparel manufacturing	01
				Fur products manufacturing	02
				Knit wear manufacturing	03
				Cloth accessories manufacturing	04
		Leather, bag, handbag and footwear manufacturing	15	Leather, bags and other similar products manufacturing	01
				Footwear and footwear parts manufacturing	02
		Lumber and wood products manufacturing (excluding furniture)	16	Lumbering and wood processing	01
				Wood products manufacturing	02
				Cork and wood construction materials manufacturing	03
		Pulp, paper and paper products manufacturing	17	Pulp, paper & paperboard manufacturing	01
				Corrugated paperboard, cardboard box &	02

				paper container manufacturing	
				Other paper products & cardboard products manufacturing	03
		Printing and reproduction of recorded media	18	Printing & printing related business	01
				Recorded media reproduction business	02
		Coke, briquette and refined petroleum manufacturing	19	Coke and briquette manufacturing	01
				Refined petroleum manufacturing	02
		Chemical and chemical products manufacturing (excluding pharmaceuticals)	20	Basic chemicals manufacturing	01
				Synthetic rubber and plastic substance manufacturing	02
				Fertilizers, pesticides, germicides and insecticides manufacturing	03
				Other chemicals manufacturing	04
				Man-made fibers manufacturing	05
		Manufacturing of pharmaceuticals, medical supplies and botanical products	21	Manufacturing of medical chemicals	01
				Medicaments manufacturing	02
				Manufacturing of medical supplies and related other medicaments	03
		Manufacturing of rubber and plastic products	22	Rubber products manufacturing	01
				Plastic products manufacturing	02
		Manufacturing of non-metallic mineral products	23	Glass and glass products manufacturing	01
				Refractory and non-refractory ceramic products manufacturing	02
				Manufacturing of cement, lime, plaster and other such products	03
				Other non-metallic mineral product manufacturing	09
		Basic metals manufacturing	24	Basic iron and steel industries	01
				Basic nonferrous metals industries	02
				Metal casting industries	03
		Manufacturing of fabricated metal products, except machinery and furniture	25	Structural metal products, tanks and steam generators manufacturing	01
				Weapons and ammunition manufacturing	02
				Other fabricated metal products manufacturing; metalworking services	09
				Semiconductor manufacturing	01
		Electronics parts, computer, imaging, sounding and communication equipment manufacturing	26	Electronics parts manufacturing	02
				Computer and computer periphery manufacturing	03
				Communication and broadcasting equipment manufacturing	04
				Imaging and sounding equipment manufacturing	05
				Magnetic & optical medium manufacturing	06
				Manufacturing of medical and dental instruments and supplies	01
		Manufacturing of medical, precision and optical instruments, watches and clocks	27	Manufacturing of measuring, testing, navigating and control equipment; except optical instruments	02
				Photographic equipment and optical instruments manufacturing	03
				[Deleted on June 14, 2024]	
		Electric equipment manufacturing	28	Electric motor, generator and electricity transformer, distributor & regulator manufacturing	01
				Primary battery & secondary battery manufacturing	02
				Insulated wire & cable manufacturing	03
				Light bulb & lighting equipment manufacturing	04
				Household appliances manufacturing	05
				Other electric equipment manufacturing	09
		Other machineries and equipment manufacturing	29	General purpose machinery manufacturing	01
				Special purpose machinery manufacturing	02
		Motor vehicles, trailers and semitrailers manufacturing	30	Motor vehicles and engines for motor vehicles manufacturing	01
				Motor vehicle bodies or trailers manufacturing	02
				Manufacturing of parts and accessories for motor vehicles (new products)	03

				Motor vehicle parts and accessories manufacturing (remanufacturing products)	04
		Other transportation equipment manufacturing	31	Ships & boats manufacturing	01
				Railroad equipment manufacturing	02
				Aircrafts, spaceships and their parts manufacturing	03
				Other transportation equipment manufacturing	09
		Furniture and other products manufacturing	32	Furniture manufacturing	01
		Other manufacturing	33	Precious metals & ornament manufacturing	01
				Musical instrument manufacturing	02
				Sporting goods manufacturing	03
				Dolls, toys and recreational apparatus manufacturing	04
				pursuant to other products manufacturing	09
		Maintenance and repair services of industrial machinery and equipment	34	Maintenance and repair services of industrial machinery and equipment	01
Electricity, gas, steam and air conditioning supply industry	04	Electricity, gas, steam and air conditioning supply industry	35	Electric power generation, transmission and distribution	01
				Manufacturing of gaseous fuel and gas piping and supply	02
				Steam, chilled or hot water and air conditioning supply	03
Water supply; sewage, waste management, materials recovery industry	05	Water supply	36	Water supply	01
		Sewage, wastewater, human and animal waste treatment services	37	Sewage, wastewater, human and animal waste treatment	01
		Wastes collection, transport, treatment and materials recovery	38	Waste collection and transport	01
				Waste treatment and disposal services	02
		Environmental sanitation and reclamation	39	Dismantling and sorting recoverable materials and materials recovery	03
Construction industry	06	General construction	41	Environmental sanitation and reclamation	01
				Building construction	01
		Specialized construction	42	Civil engineering construction	02
				Site preparation and construction of foundation works and structures	01
				Construction of installing building equipment	02
				Electrical and communication works	03
				Building completion and finishing	04
				Repair and maintenance works for construction works and supplementary facilities	05
				Construction machinery and equipment operation	06
				Sale of motor vehicles	01
Wholesale and Retail industry	07	Sale of motor vehicles and parts	45	Sale of motor vehicle parts and accessories	02
				Sale of motorcycles and related parts and accessories	03
		Wholesales and merchandise brokers	46	Merchandise brokers	01
				Wholesale of agricultural raw materials and live animal and plants	02
				Wholesale of foods, beverages and tobaccos	03
				Wholesale of household goods	04
				Wholesale of machinery equipment and supplies	05
				Wholesale of construction materials, hardware and heating and air conditioning equipment	06
				Other specialized wholesale	07
				Non-specialized wholesale	08
		Retails, except motor vehicles and motorcycles	47	General retails	01
				Retail of foods, beverages and tobaccos	02
				Retails of household electrical appliances and information & communication equipment	03
				Retails of textiles, apparel, footwear and leather goods	04
				Retails of other household goods	05
				Retails of cultural, recreational and leisure goods	06

				Fuel retailing	07
				Other goods specialized retailing	08
				Non-store retailing	09
Transportation & storage industry	08	Land transport and transport via pipelines	49	Transport via railways	01
				Passenger land transport, except railway transport	02
				Freight transport via road	03
				Couriers and messengers activities	04
				Transport via pipelines	05
		Water transport	50	Sea and coastal water transport	01
				Inland water & in-harbor transport	02
		Air transport	51	Passenger air transport	01
				Freight air transport	02
		Warehousing and transport related services	52	Storage & warehousing services	01
				Other transport related services	09
Accommodation and food services industry	09	Accommodation	55	General accommodation and accommodation with cooking facilities	01
				Other accommodation	09
		Food and beverage services	56	Restaurants and mobile food services	01
				Drinking places and non-alcoholic beverage places	02
Information and communication industry	10	Publishing activities	58	Book, magazine and other printed material publishing business	01
				Software development and supply business	02
		Video & audio recording and distribution	59	Movie, video, broadcasting program production and distribution	01
				Audio material publication and disk recording	02
		Broadcasting	60	Radio broadcasting	01
				Television broadcasting	02
				Video/audio product service	03
		Postal services and telecommunications	61	Postal services	01
				Telecommunications	02
		Computer programming, system integration and management	62	Computer programming, system integration and management	01
		Information services	63	Data processing, hosting, web portals and other related services	01
				Other information services	09
Financial and insurance industry	11	Financial services, except insurance and pension funding	64	Banks & savings institutions	01
				Trust and collective Investment businesses	02
				Other financial services	09
		Insurance and pension funding	65	Insurance	01
				Reinsurance	02
		Services related to finance and insurance	66	Mutual-aid businesses	03
				Financial support related services	01
Real estate industry	12	Real estate services	68	Insurance & pension related services	02
				Real estate leasing and supply	01
Professional, scientific and technical service industry	13	Research and development	70	Real estate related services	02
				Natural science and technology R&D services	01
		Professional services	71	R&D services on social science and humanities	02
				Legal services	01
				Accounting and tax related services	02
				Advertising	03
				Market research and public opinion survey	04
				Head office and management consulting services	05
				Other professional services	06
		Architectural, engineering and other scientific & technical services	72	Architectural, engineering and related technical services	01
				Other scientific and technical services	09
		Other professional, scientific and technical services	73	Veterinary services	01
				Professional design services	02
				Photography & processing business	03
				Other professional, scientific and technical services	09
Business facilities management, business support	14	Business facilities management and landscaping services	74	Combined facilities support services	01
				Cleaning and pest control services of building and industrial facilities	02

and rental & leasing services industry		Business support services	75	Landscape management and maintenance services	03
				Employment agencies and supply of human resources	01
				Travel agent and other travel support services	02
				Security, guard and detective services	03
		Rental and leasing services, except real estate	76	Other business support services	09
				Renting of transport equipment	01
				Renting of personal and household goods	02
				Renting of industrial machinery and equipment	03
Public administration, national defense and social security industry	15	Public administration, national defense and social security services	84	Leasing of intangible property	04
				Legislative and general government administration	01
				Social and industrial policies administration	02
				Foreign affairs and national defense administration	03
				Judicial and public order administration	04
				Social security administration	05
Educational service industry	16	Educational services	85	Social security insurance and pension service	06
				Pre-primary and primary education	01
				Secondary education	02
				Higher education	03
				Special, foreign and alternative schools	04
				General educational institutions	05
				Other educational institutions	06
				Educational support services	07
Health and social welfare service industry	17	Health services	86	Hospitals	01
				Medical and dental clinics	02
				Public health centers	03
				Other health services	09
		Social welfare services	87	Residential welfare facilities	01
				Non-residential welfare facilities	02
Arts, sports and recreation related service industry	18	Creative, arts and recreation related services	90	Creative and arts related services	01
				Libraries, historical sites and similar recreation related services	02
		Sports and amusement related services	91	Sport services	01
				Amusement parks and other recreation services	02
Membership organizations, repair and other personal services industry	19	Membership organizations	94	Industrial and professional membership organizations	01
				Labor unions	02
				Other membership organizations	09
		Maintenance and repair services for personal and household goods	95	Maintenance and repair services for computers and communication equipment	01
				Maintenance and repair services for motor vehicles and motorcycles	02
				Personal and household goods repair services	03
		Other personal services	96	Personal care services	01
				Other personal services	09
Household employment activities and unclassified production activities for self-consumption	20	Household employment activities	97	Household employment activities	01
		Unclassified production of goods and services for self-consumption	98	Goods-producing activities of households for self-consumption	01
				Service-producing activities of households for self-consumption	02
International and foreign organizations	21	International and foreign organizations	99	International and foreign organizations	01

[Annex No. 12] Matters Required to be Entered in Articles of Incorporation of Foreign Companies

Matters Required to be Entered in Articles of Incorporation of Foreign Companies

1. General meeting of stockholders

(a) Time for convocation

(1) The general meeting of stockholders shall be composed of the ordinary general meeting of stockholders and the extraordinary general meeting of stockholders

(2) An ordinary general meeting of stockholders shall be convened within four (4) months after the end of every business year.

(3) An extraordinary general meeting of stockholders shall be convened when there is a resolution of the board of directors, a request for convocation by shareholders who hold at least 3/100 of the total number of outstanding stocks or by shareholders who continued to hold at least 15/1,000 of the total number of outstanding stocks for more than six (6) months, or a request for convocation by the auditor or the audit committee, or a court order.

(b) Convocation procedure (notice and announcement)

When convening a general meeting of shareholders, a company shall inform shareholders of the date, time, place, and purpose of the meeting at least two (2) weeks prior to the date set for such general meeting in writing or in an electronic form.

(c) Matters subject to special resolution

(i) The matters falling under any of followings shall be determined by a special resolution at the general meeting of shareholders.

Ⓐ Change of the articles of incorporation, merger and spin-off, stock split, dissolution, capital

reduction, transfer of the entire or important part of business, taking over of the entire business of another corporation; and

⑥ In the case of a foreign holding company (including foreign holding companies incorporated in Korea), a merger, spin-off, dissolution, and liquidation or change of structure of its subsidiary company, transfer and takeover of the entire or an important part of business of its subsidiary company, issuance of new shares of subsidiary company through the third-party allotment, and disposal of stocks of the subsidiary company.

(ii) Special resolution at a general meeting of shareholders shall be adopted by the affirmative votes of at least 2/3 of voting rights of the stockholders present at the meeting and at least 1/3 of the total outstanding stocks. However, in cases where a foreign holding company (including foreign holding companies incorporated in Korea) falls under any of the followings cases or amends its articles of incorporation due to any of the following cases, a special resolution shall be made with at least 3/4 of the number of voting rights of the stockholders present at the meeting and at least 2/3 of the total number of outstanding stocks:

① Case where the foreign holding company sells the entire or part of the shares of a major foreign subsidiary corporation and, as a result, the major foreign subsidiary corporation loses its position as a foreign subsidiary company of the foreign holding company; and

② Case where a major foreign subsidiary corporation is suspended from actual business activities due to the transfer of the entire or an important part of its business.

(d) Place of the meeting

The general meeting of shareholders shall be held at the place of the principal office or of the stock exchange where the company is listed.

(e) General meeting of stockholders of certain classes of stocks

(i) In case where a corporation issued certain classes of stocks and stockholders of a certain class of stocks are damaged due to the special provisions for each class of stocks, amendment of the articles of incorporation, stock swap, stock transfer, merger, spin-off, merger subsequent to spin-off, etc., a resolution adopted by a general meeting of stockholders of such specific class of stocks is required for effecting such events in addition to the resolution at the general meeting of stockholders.

(ii) A resolution of a general meeting of stockholders of certain classes of stocks shall be adopted by the affirmative votes of at least 2/3 of the voting rights of the stockholders present at the meeting and of 1/3 of the total number of outstanding stocks of such class.

(iii) Provisions relating to a general meeting of stockholders shall apply *mutatis mutandis* to a general meeting of stockholders of different classes of stocks except for the special classes of stocks including non-voting different class of stocks.

2. Directors

(a) Number of directors and appointment of outside directors

(i) The number of directors of this company shall be more than 3 but less than ○, and the number of outside directors shall be more than 1/4 of the total number of directors (for a corporation of which total amount of assets is KRW 2 trillion or more as of the end of the latest business year, it shall be more than three (3) and the half of the total number of directors). However, in case where a corporation has been listed in the qualified foreign stock market for more than three (3) years, the number of outside directors shall be one (1) or more.

(ii) In case where an outside director candidate recommendation committee is established, the committee shall recommend candidates for outside directors from among the persons satisfying the qualifications specified in the relevant laws of home country.

(iii) The details for recommendation and examination of qualifications of candidates for outside directors shall be determined by the outside director candidate recommendation committee.

(b) Remuneration for directors

The amount of remuneration and severance pay of directors shall be determined by a resolution at the general meeting of stockholders unless such amount is specified in these articles of incorporation.

(c) Minutes of board of directors and inspection rights of stockholders

(i) Minutes shall be prepared with regard to the proceedings of a board of directors' meeting.

(ii) The agenda items, summary of the proceedings and outcomes thereof, and opponents and grounds for their opposition shall be entered in the minutes, and directors and auditors present at the meeting shall sign their names and affix their seals or signatures thereon.

(iii) Stockholders may request either to inspect or copy the minutes of the board of directors' meeting during business hours.

(iv) This company may reject shareholders' requests for inspecting or copying the minutes of the board of directors' meeting with an explanation of grounds therefor.

(d) Release from directors' liability to company

A director's liability for damages to the company occurred by may be absolved by the consent of all stockholders.

3. Auditors or audit committee

[Case of appointing an auditor]

(a) Number of auditors and appointment

(i) Number of auditors of a company shall be at least one (1) but less than ○. In such cases, if the total amount of assets of the corporation is KRW 100 billion or more as of the end of the latest business year, at least one (1) of the auditors shall be a standing auditor.

(ii) Auditors shall be appointed at a general meeting of shareholders, and the resolutions for appointing auditors shall be adopted separately from those for appointing directors.

(iii) A resolution to appoint an auditor shall be adopted by the affirmative votes of majority of the stockholders present at the meeting and of at least 1/4 of the total number of outstanding stocks

(b) Term of office

The term of office of an auditor shall expire upon the closing of an ordinary general meeting of stockholders convened in respect of the last period for the settlement of accounts within three (3) years after his/her inauguration.

(c) Appointment of an auditor to fill up a vacancy

If there is a vacancy of an auditor, the position shall be filled through appointment at a general meeting of shareholders. However, in case where the number of auditors in office satisfies the requirement on the number of auditors specified in these articles of incorporation and the vacancy does not hinder the performance of duties of auditor(s), the vacancy may be left unfilled.

(d) Duties of auditors

(i) Auditors shall audit accounting and business of a company.

(ii) Auditors may attend and state their opinions at the board of directors' meeting.

(iii) Auditors may request the board of directors to convene an extraordinary general meeting of stockholders by presenting a written statement specifying the subject matter of the meeting and the grounds for the convocation.

(iv) The auditor of the parent company may request its subsidiary company to report on its business if it is necessary for carrying out his/her duties. In such cases, if a subsidiary fails to make a report without delay or it is required to verify the contents of such reports, the auditor of the parent company may investigate the business affairs of the subsidiary company and the status of its property.

(v) The appointment of an external auditor shall be approved by the auditor.

(e) Audit record

Auditors shall prepare a record of audit. A summary of auditing process and the outcomes thereof shall be recorded in the audit record and the auditors who have carried out such audit shall write their names and affix their seals or signatures thereon.

(f) Remuneration and severance pay for auditors

The amount of remuneration and severance pay to be received by auditors shall be determined by a resolution at a general meeting of stockholders if such amount is not specified in these articles of incorporation. In such cases, a resolution for determining the amount of remuneration and severance pay for an auditor shall be adopted separately from those for directors.

[Case of establishing an audit committee]

(A corporation of which total amount of assets is KRW 2 trillion or more as of the end of the latest business year shall establish an audit committee.)

(a) Composition of an audit committee

(i) This company shall establish an audit committee in lieu of auditors.

(ii) The audit committee shall consist of at least three (3) directors. Provided that the ratio of outside directors shall exceed 2/3 (the majority of members in case where a corporation has been listed for more than three (3) years on the recognized overseas securities market) of the total number of members.

(iii) The audit committee shall, from among its members, elect a member to represent the committee as chairperson, by its own resolution. In such cases, the chairperson shall be an outside director.

(b) Duties of the Audit Committee

(i) The audit committee shall audit accounting and business of a company.

(ii) The audit Committee may request the board of directors to convene an extraordinary general meeting of stockholders by presenting a written statement specifying the subject matter of the meeting and the grounds for the convocation.

(iii) When necessary for carrying out its duties, the audit committee may request a subsidiary for a report on its business. In such cases, if the subsidiary fails to immediately make the report or it is necessary to verify the contents of the report, the audit committee may inspect the business affairs

and the status of property of the subsidiary.

(iv) An audit committee shall give its approval when it comes to appointing an external auditor.

(v) An audit committee shall handle other matters delegated by the board of directors than those stated in (1) through (4) above.

(c) Audit record

The audit committee shall prepare a record of audit. The summary of audit process and the outcomes thereof shall be recorded in the audit record and auditors who have carried out such audit shall write their names and affix their seals or signatures thereon.

4. Subscription rights

(i) Each shareholder shall be entitled to the allotment of new shares in proportion to the number of shares which he/she holds.

(ii) Notwithstanding the preemptive subscription rights of stockholders, the company may make an allotment of new stocks to other persons than stockholders through a resolution of the board of directors in the case of each of followings:

a.

b.

c.

(iii) In case where stockholders give up or forfeits his/her subscription rights or where fractional stocks are created in allotting new stocks, the method of handling such matters shall be decided by a resolution of the board of directors.

5. Stockholders' rights to inspect books of account

(i) Any shareholder who holds shares representing at least three (3) percent of the total outstanding shares or at least 10/10,000 of the total outstanding shares since six (6) months before may demand, in writing stating the grounds therefor, the inspection or copying of the books of account and related

documents.

(ii) The company shall not reject the demand made by a shareholder unless it proves that such demand is improper.

6. Reporting of audit report to regular general meeting of shareholders

(i) The company shall receive an audit report audited by an external auditor one (1) week before an ordinary general meeting of shareholders and report it to shareholders at the ordinary general meeting of shareholders.

(ii) Financial statements shall be prepared according to the accounting standards (referring to changed accounting standards in case where the Exchange approved the change of the accounting standards) selected at the time of the initial listing of stocks on the Exchange

7. Exceptions in applying the matters to be stated in the articles of incorporation

In cases where the matters required to be stated in the articles of incorporation are inconsistent with those in relevant laws and regulations of the home country of the foreign corporation or of the foreign stock market where stocks of a foreign corporation are listed (including regulations or guidelines of the stock exchange concerned), the matters that the Exchange deems necessary may be stated differently in the articles of incorporation.

[Annex No. 13] Matters Required to be Entered in Articles of Incorporation of SPACs

Matters Required to be Entered in Articles of Incorporation of Special Purpose Acquisition Companies

(Pertaining to [§70] of Enforcement Rules)

1. Business objective

The sole business objective of this Corporation shall be to merger with another company (hereinafter referred to as “the merger target company”) after listing issued stocks on the KOSDAQ market of the Korea Exchange established pursuant to Article 373 of the Financial Investment Services and Capital Markets Act.

2. Stocks

(a) Duty on deposit (trust) of funds

At least 90/100 of the funds raised by issuing stocks (excluding the stocks issued before the initial public offering) shall be deposited (or entrusted) with the securities finance companies (or trust companies) prescribed in Article 1-4-2(2) of the Regulations on Financial Investment Business by the next business day of the payment due date for the stocks.

(b) Restrictions on withdrawal of and prohibition of security provision with deposited funds

This Corporation shall not withdraw the funds or provide security with the funds deposited (or entrusted) at the securities finance companies (or trust companies) (including interests or dividends; the same hereinafter) before the completion of registration of the merger with the merger target company. However, when it is inevitable for the operation of this Corporation and falling under any of the followings, the funds deposited (or entrusted) may be withdrawn:

(1) Case of withdrawing within the amount necessary for purchasing stocks to exercise the appraisal rights pursuant to [§165-5] of the Act; and

(2) Case of paying the funds deposited (or entrusted) to stockholders, subsequent to dissolution of

this Corporation.

(c) Paid-in capital increase by third-party allotment

In case where, after listing its stocks on the KOSDAQ market of the Korea Exchange, this Company issues new stocks to be allocated to the persons other than the existing stockholders, it shall obtain in advance the resolution of the general meeting of shareholders pursuant to Article 434 of the Commercial Act.

3. Prohibition on borrowing and issuance of debt securities

(a) Prohibition on borrowing

This Corporation is prohibited from borrowing funds from others, guaranteeing debt, or providing security for others.

(b) Prohibition on issuance of debt securities

This Corporation shall not issue debt securities. However, it can issue convertible bonds or bonds with warrant under Article 513 or 516-2 of the Commercial Act before the initial offering of stocks to list the stocks on the KOSDAQ market of the Korea Exchange.

4. Mergers

(a) Merger target company

(i) The merger value of the merger target company calculated in accordance with each of subparagraphs under Paragraph (1) of Article 176-5 of the Enforcement Decree of the Act or the total assets of the merger target company based on the statement of financial position as of the end of the latest business year shall be 80/100 or more of the funds deposited (or entrusted). In such cases, if there are a multiple number of merger target companies, it shall be based on the aggregate amount of the merger values or the total assets of individual merger target company.

(ii) No negotiation shall be on the process for determining the merger target company or no company shall be potentially determined as the merger target company before the initial public offering of stocks.

* In case where the merger target company is a venture corporation under [§2(1)38] of the KOSDAQ Market Listing Regulation, it shall be written that the venture company concerned is the merger target company.

(b) Restrictions on merger

(i) This Corporation shall not merge in the manner of consolidation of corporations prescribed in Article 542 of the Commercial Act, and when merging with an unlisted corporation under Article 9(15)4 of the Act, the merger shall not be conducted in the manner that this Corporation becomes the non-surviving company as a result of the merger except for the listing after merger pursuant to [§2(1)1(f)(ii)] of the Regulation.

(ii) This Corporation shall not merge with the companies falling under any of followings:

① Persons (hereinafter referred to as “stockholders, etc. before IPO”) who have purchased the securities (including those related to non-voting stocks; hereinafter referred to as “stocks, etc.”) under each item of Subparagraph 1 of Article 139 of the Enforcement Decree of the Act before the initial offering of stocks of this Corporation.

② A company where the stockholders, etc. before IPO of this Corporation or the persons falling under any of followings are the large shareholders prescribed in Subparagraph 6 of Article 2 of the Act on Corporate Governance of Financial Companies [the “financial companies” shall be construed as “KOSDAQ-listed corporations” and the “outstanding voting shares (including equities; hereafter the same shall apply)” shall be construed as “outstanding shares”; the same hereinafter] or hold 5/100 or more of the total issued and outstanding stocks:

① As the executives and employees of an investment dealing company for equity securities under Article 6(4)14(c) of the Enforcement Decree of the Act, which belongs to the stockholders, etc. before IPO of this Corporation, the persons who have performed or are performing tasks related to the establishment, operation, etc. of this Corporation and their spouses and lineal ascendants and descendants;

② Executives of a corporation who belong to the stockholders, etc. before IPO of this Corporation, and their spouses and lineal ascendants and descendants;

③ Individuals who belong to the stockholders, etc. before IPO of this Corporation, their spouses and lineal ascendants and descendants; and

④ Executives and employees of this Corporation, and their spouses and lineal ascendants and descendants.

③ The large shareholders prescribed in Subparagraph 6 of Article 2 of the Act on Corporate Governance of Financial Companies and the affiliated companies prescribed in the Monopoly Regulation and Fair Trade Act of the stockholders, etc. before IPO of this Corporation, and

④ Corporations of which executives and employees hold or have held within the latest two (2) years concurrent positions with this Corporation or the stockholders, etc. before IPO.

(iii) When calculating the number of stock holdings noted in (2)b above, the number of stocks that may be issued through the exercise of the rights of stocks falling under any of items under Subparagraph 1 of Article 139 of the Enforcement Decree of the Act shall be included, and when calculating the number of stocks of the stockholders, etc. before IPO, the number of stocks held by the affiliated companies of the concerned stockholders shall be included.

5. Officers

(a) Qualifications of officers

Any person falling under any of Subparagraphs of Articles 5 and 6 of the Act on Corporate Governance of Financial Companies may not become an executive of this Corporation, and an executive shall lose his/her position if he/she falls hereunder after taking the position.

(b) Number of directors

The number of outside directors of this Corporation shall be at least 1/4 of the total number of directors.

(c) Duty of executives and employees

Executives and employees of this Corporation shall not reveal or offer any information which can help

specify or assume the merger target company before a merger.

6. Dissolution of this Corporation and return of deposited (or entrusted) funds

(a) Dissolution of this Corporation

When falling under any of following cases, this Corporation shall be dissolved.

(1) Case where this Corporation fails to list its stocks on the securities market within 90 days from the deadline for payment for the stocks issued by the IPO.

(2) Case where this Corporation fails to complete the registration of merger with the merger target company within 36 months after the deadline for payment for the stocks issued through the IPO.

(3) Case where the stocks of this Corporation were delisted pursuant to the listing regulations prescribed in Article 390 of the Act before the registration of merger with the merger target company is completed.

(b) Return of the funds deposited (or entrusted)

In case where this Corporation is dissolved by falling under the causes for dissolution noted in (a) above, the funds (including interests or dividends) deposited (or entrusted) at the securities finance companies (or trust companies) shall be paid back to the stockholders according to their holding ratios. However, in case where the stockholders, etc. before IPO have given up their rights to request for a return of funds relating to the stocks, etc. purchased before the IPO of stocks of this Corporation, the repayment shall be made according to the holding ratios of the stocks excluding those purchased prior to the IPO.

[Annex No. 14] Listing Fees and Annual Dues

(Amended on February 14, 2022; April 29, 2022; September 27, 2022; December 9, 2022; July 9, 2025; March 16, 2026)

Listing Fees and Annual Dues

(Pertaining to [§84] of the Enforcement Rules)

1. Listing fees

(a) Common stocks, foreign stocks, different classes of stocks (including different classes of stocks of foreign companies; the same hereinafter), stocks of SPACs

(i) Fees for listing review

Equity Capital (in KRW billion)	Fees for Listing Review
≤100	KRW 5 million
>100 and ≤500	KRW 10 million
>500	KRW 15 million

Notes:

1. Fees for listing review are imposed on the stocks in the case of initial listing, re-listing (limited to re-listing under Subparagraph 1 of [§39] of the Regulation), listing after merger of SPAC, and backdoor listing.

2. The amount of fee for listing review for different classes of stocks and SPACs shall be KRW 2.5 million.

3. The equity capital shall be based on the amount as of the application date for preliminary listing review.

(ii) Listing fees

Listing Types	Listing Fees	
Initial listing,	The amounts calculated by multiplying market capitalization by following fee rates. However, the maximum amount shall be KRW 200 million.	
	Market capitalization (in KRW billion)	Fee rates
	≤50	KRW 1 million
	>50 and ≤70	KRW 5 million + KRW 70,000 per KRW 1 billion for the market capitalization in excess of KRW 50 billion

	>70 and ≤100	KRW 6.4 million + KRW 60,000 per KRW 1 billion for the market capitalization in excess of KRW 70 billion
	>100 and ≤200	KRW 8.2 million + KRW 50,000 per KRW 1 billion for the market capitalization in excess of KRW 100 billion
	>200 and ≤300	KRW 13.2 million + KRW 40,000 per KRW 1 billion for the market capitalization in excess of KRW 200 billion
	>300 and ≤400	KRW 17.2 million + KRW 30,000 per KRW 1 billion for the market capitalization in excess of KRW 300 billion
	>400 and ≤500	KRW 20.2 million + KRW 20,000 per KRW 1 billion for the market capitalization in excess of KRW 400 billion
	>500	KRW 22.2 million + KRW 10,000 per KRW 1 billion for the market capitalization in excess of KRW 500 billion (Maximum amount: KRW 200 million)
Re-listing, Supplementary listing, and Listing after merger under [§2(1)1(f)(ii)] of the Regulation	The amounts calculated by multiplying market capitalization by following fee rates. However, the maximum amount shall be KRW 50 million.	
	Market capitalization (in KRW billion)	Fee rates
	≤10	KRW 250,000 per KRW 1 billion (Minimum amount: KRW 250,000)
	>10 and ≤30	KRW 2.5 million + KRW 90,000 per KRW 1 billion for the market capitalization in excess of KRW 10 billion
	>30 and ≤50	KRW 4.3 million + KRW 80,000 per KRW 1 billion for the market capitalization in excess of KRW 30 billion
	>50 and ≤70	KRW 5.9 million + KRW 70,000 per KRW 1 billion for the market capitalization in excess of KRW 50 billion
	>70 and ≤100	KRW 7.3 million + KRW 60,000 per KRW 1 billion for the market capitalization in excess of KRW 70 billion
	>100 and ≤200	KRW 9.1 million + KRW 50,000 per KRW 1 billion for the market capitalization in excess of KRW 100 billion
	>200 and ≤500	KRW 14.1 million + KRW 40,000 per KRW 1 billion for the market capitalization in excess of KRW 200 billion
	>500	KRW 26.1 million + KRW 20,000 per KRW 1 billion for the market capitalization in excess of KRW 500 billion (Maximum amount: KRW 50 million)

Listing change	KRW 2 million per case
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Notes:

1. When determining the listing fees, the following market capitalization shall be used.

	Criteria for Fee Calculation
Initial listing	Base market capitalization
Supplementary listing	Market capitalization of new stocks or additional stocks to be listed (the amount determined by multiplying the number of new or additional stocks to be listed by the closing price of previous day)
Re-listing	Re-listing amount (the amount determined by multiplying the number of stocks to be re-listed by the appraisal price) Appraisal price: The appraisal price under [§17(1)3] of the Enforcement Rules of the KOSDAQ Market Business Regulation
Listing after merger pursuant to [§2(1)1(f)(ii)] of the Regulation	The amount obtained by converting the number of stocks of the applicant for listing after merger before the merger to the number of stocks of the SPAC based on the merger ratio and multiplying it by the closing price on the last trading day of stocks of the SPAC

2. The initial listing fees and relisting fees shall be imposed on the aggregate amount of common stocks and different classes of stocks.

3. The listing fees for supplementary listing shall be determined per application date of supplementary listing.

4. The fees for supplementary listing shall be applied to the case of change of stock type resulting from exercise of conversion rights.

5. When determining the listing fees per KRW 1 billion of listing amount, the amount less than KRW 1 billion shall be rounded up.

6. In case where an applicant for listing change submits several applications for listing change on a same day, listing change fees shall be determined by handling the applications filed on the same day as a single case.

(b) Subscription warrants

	Listing fees
Initial listing & supplementary listing	1/3 of the fees determined pursuant to subparagraph (a) (the minimum fee shall be KRW 50,000 and the amount less than KRW 100 shall be discarded)
Listing change	KRW 200,000 per case

Notes:

1. The market capitalization of subscription rights certificates shall be the amount determined by

multiplying the closing price on the day before the listing date of underlying stock of concerned subscription rights certificate by the number of certificates to be listed.

2. Re-listing subsequent to the exercise of subscription rights certificates shall be exempted from re-listing fees.

3. In case where an applicant for listing change submits several applications for listing change on a same day, listing change fees shall be determined by handling the applications filed on the same day as a single case.

(c) Business development investment company stocks and business development investment trust beneficiary certificates

	Listing fees
Listing review	KRW 5,000,000
Initial listing & supplementary listing	1/3 of the fees determined pursuant to subparagraph (a) (the minimum fee shall be KRW 50,000 and the amount less than KRW 100 shall be discarded)
Listing change	KRW 200,000 per case

Notes: In the case of business development investment trust beneficiary certificates, market capitalization shall be deemed as trust principal amount.

2. Annual Dues

(a) Stocks, foreign stocks, DRs of foreign stocks, and different classes of stocks

Annual Dues (Amounts less than KRW 100 shall be discarded)	
1. Annual dues paid regularly: On the basis of average total market capitalization of the previous year, the amount determined by applying the fee rate noted below. 2. Annual dues paid irregularly: The amount determined by prorating the annual dues for the concerned year calculated by applying the average total market capitalization as of the decision date of de-listing and the rate shown in the table below by the number of days from the first day to the day before the de-listing date of the year which includes the de-listing date.	
Average total market capitalization (in KRW billion)	Fee Rates
≤10	KRW 10,000 per KRW 1 billion

>10 and ≤30	KRW 100,000 + KRW 8,000 per KRW 1 billion of average total market capitalization in excess of KRW 10 billion
>30 and ≤50	KRW 260,000 + KRW 7,000 per KRW 1 billion of average total market capitalization in excess of KRW 30 billion
>50 and ≤70	KRW 400,000 + KRW 6,000 per KRW 1 billion of average total market capitalization in excess of KRW 50 billion
>70 and ≤ 100	KRW 520,000 + KRW 4,000 per KRW 1 billion of average total market capitalization in excess of KRW 70 billion
>100 and ≤200	KRW 640,000 + KRW 2,000 per KRW 1 billion of average total market capitalization in excess of KRW 100 billion
>200 and ≤500	KRW 840,000 + KRW 1,000 per KRW 1 billion of average total market capitalization in excess of KRW 200 billion
>500	KRW 1,140,000 + KRW 500 per KRW 1 billion of average total market capitalization in excess of KRW 500 billion

Notes:

1. When calculating the annual dues paid regularly, in case of initial listing or re-listing, it shall be the amount determined by prorating the amount calculated according to the method shown in the table above by the number of days from the initial listing date or re-listing date to the last day of the concerned year.
2. In the case of initial listing and re-listing, the average total market capitalization shall be the average total market value of the concerned number of days.
3. The average total market capitalization shall be determined by aggregating the market capitalizations of common stocks and class shares issued by the concerned listed corporation.
4. When determining the fees per KRW 1 billion, the amount less than KRW 1 billion shall be rounded up.
5. The average total market capitalization shall be determined by averaging the market value listed. In such cases, if the trading is suspended, the market capitalization of the day immediately preceding the trading suspension date shall be regarded as the market capitalization of the trading suspension date.

(b) Subscription rights certificates, business development investment company stocks, and business development investment trust beneficiary certificates

Annual Dues
1/3 of the fees determined pursuant to subparagraph(a) (Amounts less than KRW 100 shall be discarded)

Note:

1. The average market capitalization of subscription rights certificates shall be the amount calculated by multiplying the closing price on the day before the listing date of underlying stock of concerned

subscription rights certificate by the number of certificates to be listed. In such cases, if the trading is suspended, the market capitalization of the day immediately preceding the trading suspension date shall be regarded as the market capitalization of the trading suspension date.

2. In the case of business development investment trust beneficiary certificates, the average market capitalization shall be deemed as the average trust principal amount.

3. Payment Time of Listing Fees and Annual Dues

(a) Listing Fees

	Payment Time
Fees for preliminary listing review	At the time of application for preliminary listing review
Listing fees	At the time of listing application

Note: Re-listing fees may be paid by the listing date.

(b) Annual Dues

	Payment Time
Regular payments	The annual dues of the immediately preceding year for the stocks listed as at the end of the immediately preceding year shall be paid by the end of January each year.
Irregular payments	In case where securities are delisted, the annual dues for the period from the first day of the year which includes the concerned delisting date to the previous day of delisting date shall be paid before the delisting date of the securities concerned.

4. Exemption from Payment of Listing Fees and Annual Dues

The Exchange may exempt the listing fees and annual dues that fall under any of followings.

(a) Listing fees and annual dues falling under any of the followings as of the payment dates.

- (i) Listing fees and annual dues for listing change and supplementary listing of KOSDAQ-listed corporations falling under [§56(1)6] of the KOSDAQ Market Listing Regulation;
- (ii) Supplementary listing fees, listing change fees and annual dues of the stocks (including different classes of stocks), DRs of foreign stocks and subscription warrants issued by the KOSDAQ-listed corporations who are under the rehabilitation procedures pursuant to the Debtor Rehabilitation and Bankruptcy Act (in the case of foreign stocks and DRs of foreign stocks, it shall refer to the relevant laws of home countries).

(b) Annual dues falling under any of the followings as of the imposition dates.

- (i) In case where a corporation is delisted during the period for regular payments or within three (3) months after the payment period ended (including the case where the causes for delisting have occurred, while excluding the case of being delisted after the improvement period was granted), the amount of annual dues for the period from the first day of the year which includes such delisting date to the previous day of the delisting date.

- (ii) In case where a corporation is delisted pursuant to [§54(1)2] and [§54(1)3] (limited to the cases of dissolution pursuant to Subparagraphs 5 and 6 of Article 227 of the Commercial Act), or [§54(1)6] of the Regulation, the amount of annual dues for the period from the first day of the year which includes the delisting date to the previous day of the delisting date.
- (iii) In cases where a KOSDAQ-listed corporation has a liquidity provision agreement stipulated in [§12-3(1)] of the KOSDAQ Market Business Regulation for the year that is the base for the calculation of annual dues, the amount of annual dues prorated on a daily basis for the period of liquidity provision (the amount less than KRW 100 shall be discarded).
- (c) In the case of the designated corporations that meet the requirements specified in [§26(5)], fees for preliminary listing review and listing fees (excluding fees for listing change and supplementary listing).
- (d) The fees for listing review for different classes of stocks falling under [§78(2)] of the Regulation.
- (e) The fees for listing change of subscription rights certificates pursuant to [§44(2)] and Paragraphs (2) and (3) of [§84] of the KOSDAQ Market Listing Regulation.
- (f) Listing fees and annual dues for subscription rights certificates.
- (g) The fees for preliminary listing review and listing fees (excluding fees for listing change and supplementary listing, but including fees for listing change and supplementary listing subsequent to the listing after merge under [§2(1)1(f)] of the Regulation) of the companies falling under [§2(1)41], [§2(1)39] and [§75(2)] of the Regulation. However, the provisions of this Item shall not apply to foreign companies (including foreign holding companies located in Korea).
- (h) The annual dues (based on the regular payment in January each year) for the period of three (3) consecutive business years which include the business year in which the dates of initial listing and listing after merger of the companies falling under [§2(1)41], [§2(1)39] and [§75(2)] of the Regulation fall. However, the provisions of this Item shall not apply to foreign companies (including foreign holding companies located in Korea).
- (i) In the case of initial listing and listing after merger of a KONEX-listed corporation, fees for preliminary listing review and listing (excluding fees for listing change and supplementary listing, but including fees for listing change and supplementary listing subsequent to the listing after merge under [§2(1)1(f)] of the Regulation).
- (j) In the case of initial listing and listing after merger of a KONEX-listed corporation on the KOSDAQ Market, the annual dues (based on the regular payment in January each year) for the period of three (3) consecutive business years which include the business year to which the date of initial listing or listing after merger of the company belongs.
- (k) In addition, the listing fees and annual dues that the Exchange deems it necessary to exempt for the purpose of market administration, etc.

5. Other Matters relating to Listing Fees and Annual Dues

- (a) Notification of payment and measures against non-payment

(i) With regard to the payment of annual dues, the Exchange shall notify the listed corporations of such fact by the day two (2) weeks before the due date for the regular payments and by the day one (1) week before the delisting date for the irregular payments.

(ii) In cases where a listed corporation fails to pay the annual dues within three (3) months after the due date, the Exchange may file actions such as request for an order of payment against the concerned corporation. Provided that this provision shall not apply to issuers of delisted securities.

(b) Refund

The Exchange shall refund the listing fees to the corporation of which listing application was rejected. However, the fees for preliminary listing review shall not be refundable once the preliminary listing review process has commenced.

[Annex Form No.1] Application for Delisting

Application for Delisting
(Pertaining to [§21] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), the undersigned, hereby applies for the delisting of the following securities pursuant to [§22] of the KOSDAQ Market Listing Regulation and [§21] of the Enforcement Rules of the same Regulation.

1. Details of listed stocks (type and number of listed stocks):

2. Reasons for delisting:

3. Date of resolution on delisting (date of resolution of shareholders' meeting or board of directors):

Date: mm/dd/yyyy

Name of corporation:

Name and seal of the representative director:

[Annex Form No. 2] Status of Circulating Stocks

Status of Circulating Stocks

(Pertaining to [§19], [§39], and [Annex No. 5] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), undersigned, hereby submits its status of circulating stocks as follows pursuant to [§19], [§39] and [Annex No. 5] of the Enforcement Rules of KOSDAQ Market Listing Regulation.

		No. of stocks	Portion (%)	Remarks
Total number of common stocks (A)				
Number of non-floating stocks	No. of stocks held by the government			
	No. of stocks held by the Korea Deposit Insurance Corporation			
	No. of stocks held by foreign investors			
	No. of stocks under mandatory holding			
	Sub-total (B)			
Number of floating stocks (C=A-B)				
Number of stocks of the largest shareholder	No. of stocks under mandatory holding			
	No. of stocks not under mandatory holding(a)			
	Sub-total			
Number of stocks of the specially-related persons	No. of stocks under mandatory holding			
	No. of stocks not under mandatory holding(b)			
	Sub-total			
Number of stocks of the largest shareholder, etc.	No. of stocks under mandatory holding			
	No. of stocks not under mandatory holding(D=a+b)			
	Sub-total			
Number of circulating stocks (C-D)				

References:

- 1. Base date for preparation shall be as of the date of listing change or supplementary listing*
- 2. The “total number of common stocks” shall refer to the total number of common stocks listed on the KOSDAQ market. In such case, it includes common stocks scheduled to be listed by the listing change or the supplementary listing.*
- 3. The “number of non-floating stocks” shall refer to the number of stocks in each of subparagraphs of [§2(1)35)] of the Regulation.*

- 4. The foreign investor shall refer to a foreign investor in a foreign-invested company 51/100 or more of which stocks are held by the Korean investors from among foreign-invested companies under the Foreign Investment Promotion Act.*
- 5. The “stocks under mandatory holding” shall refer to the number of stocks that are under mandatory holding pursuant to [§2(1)35(c) or §2(1)35(d)] of the Regulation as of the scheduled date of listing change or supplementary listing.*
- 6. The “largest shareholder, etc.” shall refer to the person corresponding to [§2(1)13] of the Regulation.*
- 7. In calculating ratios, all digits beginning from the 3rd decimal place shall be rounded off.*

[Annex Form No. 3] Listing Application

Listing Application (Common Stocks, Stocks of SPACs)
(Pertaining to [§27], [§42], [§69] and [§76] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), the undersigned, hereby applies as follows for listing of its shares on the KOSDAQ market which the Korea Exchange established and has operated.

Type of shares	Number of issued shares	Par value per share	Start date for dividend eligibility	Note

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

Listing Application (Foreign Stocks, etc.)

(Pertaining to [§60] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), the undersigned, hereby applies as follows for listing of its shares on the KOSDAQ market which the Korea Exchange established and has operated.

Type of shares	Number of issued shares and DRs		Number of listed shares and DRs		Face value	Start date of dividend eligibility	Note
	Stock (Underlying share of DR)	DRs	Stock (Underlying share of DR)	DRs			

Date: mm/dd/yyyy

Name of company:

Name & seal of the representative director:

Name & seal of agent:

Name & seal of listing agent:

References:

- 1. In the case of listing the DRs, the matters related to underlying shares shall be written under the stock column and DR proportion per underlying share shall be written in the note column.*
- 2. In case where shares other than those listed in the overseas stock market are applied for listing, a document confirming the number of listed shares in overseas market shall be submitted.*

Listing Application (Different Classes of Stocks, Foreign Different Classes of Stocks)

(Pertaining to [§78] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), the party undersigned, hereby applies as follows for the listing of different classes of stocks on the KOSDAQ market that the Korea Exchange established and has been operating.

1. Details of the stocks to be listed

Type of shares	Number of issued shares	Par value per share	Start date for dividend eligibility	Note

References:

- 1. The name of a different class of stocks shall be stated under the “Type of shares” column.*
- 2. In the case of a stock with par value, amount of par value per share shall be stated and in the case of stocks with no par value, amount of capital per share shall be stated under “Amount per share” column.*
- 3. The details shall be stated in Notes in case the terms of different classes of stocks are significantly different from the terms of common stocks.*

2. Whether or not designating as administrative issue

Reference: State whether or not a different class of stocks are designated as an administrative issue pursuant to [§53] of KOSDAQ Market Listing Regulation as of the date of listing application.

3. Whether or not designating as an investment attention issue

Reference: State whether or not a different class of stocks are designated as an investment attention issue pursuant to [§52] of KOSDAQ Market Listing Regulation as of the date of listing application.

Date: mm/dd/yyyy

Name of company:

Name and signature/seal of the representative director:

[Annex Form No.4] Listing Agreement

Listing Agreement (Domestic Companies Excluding SPACs)

_____ (hereinafter referred to as “the Company”) enters into this Agreement with the Korea Exchange (hereinafter referred to as “the Exchange”) as per the following terms and conditions to list and trade the stocks issued by the Company on the KOSDAQ market.

Article 1 (Observance of Laws and Regulations) The Company shall observe faithfully the following laws and regulations, which are currently enforced, may be established and amended from time to time in the future with respect to the operation of the KOSDAQ market.

1. The Financial Investment Services and Capital Markets Act, the Enforcement Decree and the Enforcement Rules of the same Act;
2. The KOSDAQ Market Listing Regulation and the Enforcement Rules of the same Regulation;
3. The KOSDAQ Market Business Regulation and the Enforcement Rules of the same Regulation;
4. The KOSDAQ Market Disclosure Regulation and the Enforcement Rules of the same Regulation; and
5. Other matters such as standards, guidelines and policies set forth by the Exchange or the parties that are authorized by the Exchange in relation to KOSDAQ-listed corporations.

Article 2 (Cooperation with respect to investigation of abnormal transactions) In cases where the Exchange deems it necessary with respect to the investigation of abnormal transactions of listed stocks, it may request the Company, in writing or via wired and/or wireless communications, to submit copies of materials related to the process of creation of material corporate information (minutes of the board of directors, contracts, etc.) including the time of generation of the information, list of officers and employees, personal information on major insiders, list of shareholders, etc., and in such cases, the Company shall reply faithfully to the request.

Article 3 (Maintaining corporate continuity and ensuring management transparency) The Company shall not conduct such activities as unfair fund transactions with the largest shareholder and the related persons that may significantly impede maintaining the independence and the nature as a going-concern of the Company and shall ensure the transparency of management through refurbishing of articles of association and regulations, faithful performance of directors' duties, transparent accounting practices, fair auditing, proper disclosure, holding investor relations sessions, prohibiting unfair inside transactions, protecting shareholders' rights and interests, improving corporate governance and etc.

Article 4 (Measures) In cases where the Exchange deems it necessary for the effective implementation of this Agreement, it may request the Company for necessary matters, in writing or wired and/or wireless communications, such as submission of related data or reports and interviews with persons involved, and in this

case, the Company shall respond immediately to the request as long as there are no special reasons which are acknowledged by the Exchange.

Article 5 (Effect for successor) This Agreement shall be effective for the person who succeeds the status of the Company or the Exchange.

Article 6 (Agreement on jurisdiction) It is agreed upon that all disputes that may arise in relation to this Agreement shall be finally settled by the court with the jurisdiction over the location of the KOSDAQ Market Division.

Article 7 (Holding IR sessions)

(1) The Company shall hold investor relations sessions regarding business performance, business plan and prospect (hereinafter referred to as the “IR sessions”) at least once a year during two (2) years from the initial listing date. However, in cases where the period from the date of listing to the end of the year which includes the listing date is shorter than two (2) months, this shall apply starting with the year following the year which includes the listing date.

(2) When providing related information to an unspecified number of investors at investor relations sessions, the Company shall maintain the fairness and objectivity.

Date: mm/dd/yyyy

Name and signature/seal of the representative director:

Name and signature/seal of the chairperson of KRX:

Listing Agreement (Foreign Companies Excluding Foreign-listed Foreign Companies)

_____ (hereinafter referred to as “the Company”) enters into this Agreement with the Korea Exchange (hereinafter referred to as “the Exchange”) as per the following terms and conditions to list and trade the stocks issued by the Company on the KOSDAQ market.

Article 1 (Observance of Laws and Regulations) The Company shall observe faithfully the following laws and regulations, which are currently enforced, may be established and amended from time to time in the future with respect to the operation of the KOSDAQ market.

1. The Financial Investment Services and Capital Markets Act, the Enforcement Decree and the Enforcement Rules of the same Act;
2. The KOSDAQ Market Listing Regulation and the Enforcement Rules of the same Regulation;
3. The KOSDAQ Market Business Regulation and the Enforcement Rules of the same Regulation;
4. The KOSDAQ Market Disclosure Regulation and the Enforcement Rules of the same Regulation; and
5. Other matters such as standards, guidelines and policies set forth by the Exchange or the parties that are authorized by the Exchange in relation to KOSDAQ-listed corporations.

Article 2 (Cooperation with respect to investigation of abnormal transactions) In cases where the Exchange deems it necessary with respect to the investigation of abnormal transactions of listed stocks, it may request the Company or the disclosure agent, in writing or via wired and/or wireless communications, to submit copies of materials related to the process of creation of material corporate information (minutes of the board of directors, contracts etc.) including the time of generation of the information, list of executives and employees, personal information on major insiders, list of shareholders, etc., and in such cases, the Company or the disclosure agent shall reply faithfully to the request.

Article 3 (Maintaining corporate continuity and ensuring management transparency)

(1) The Company shall not conduct such activities as unfair fund transactions with the largest shareholder and the related persons that may significantly impede maintaining the independence and the nature as a going-concern of the Company and shall ensure the transparency of management through refurbishing of articles of incorporation and regulations, faithful performance of directors' duties, transparent accounting practices, fair auditing, proper disclosures, holding investor relations sessions, prohibiting unfair inside transactions, protecting shareholders' rights and interests, improving corporate governance and etc.

(2) The Company shall apply the same type of accounting standards as that applied at the time of listing, and in cases where the Company intends to change this, it shall obtain an approval from the Exchange.

(3) In cases where the Company has listed its shares by applying the requirements for initial listing of foreign holding company under [§62] of the KOSDAQ Market Listing Regulation, the subsidiary under [§2(1)27] of the KOSDAQ Market Listing Regulation shall maintain the position as a subsidiary after listing. However, this provision shall not apply to the case where the Exchange authorizes in advance.

Article 4 (Measures)

(1) In cases where the Exchange deems it necessary for the effective implementation of this Agreement, it may request the Company or the disclosure agent for necessary matters, in writing or wired and/or wireless communications, such as submission of related materials or reports and interviews with persons involved, and in such cases, the Company shall reply immediately to the request as long as there are no special reasons acknowledged by the Exchange.

(2) The Exchange may delist the Company in the case where it deems the investor protection is severely affected as the Company fails to comply with the provisions of paragraphs (2) and (3) under Article 3 above.

Article 5 (Change of listing agent and disclosure agent) In cases where the listing agent or disclosure agent is changed after the conclusion of this Agreement, the Company shall notify the Exchange of such fact.

Article 6 (Effect for successor) This Agreement shall be effective for the person who succeeds the status of the Company or the Exchange.

Article 7 (Agreement on jurisdiction) It is agreed upon that all disputes that may arise in relation to this Agreement shall be finally settled by the court with the jurisdiction over the location of the KOSDAQ Market Division.

Article 8 (Efforts to provide corporate information)

(1) The Company shall have offices located in Korea and be furnished with human resources and facilities to provide corporate information. However, the same shall not apply in cases where it has a related company under Article 21(1) of the Act on External Audit located in Korea, and the Exchange deems that the related company can perform the relevant businesses affairs on behalf of the Company.

(2) The Company shall hold investor relations sessions regarding business performance, business plan and prospect at least once per half-year during two (2) years from the initial listing date at the time of closing accounts (including semi-annual closings). However, in cases where the period from the date of listing to the end of the year which includes the listing date or the remaining period of the half-year is shorter than two (2) months, this shall apply starting with the half-year following the half-year which includes the listing date.

(3) The Company shall appoint at least one (1) Korean outside director who has an address or residence in Korea.

Date: mm/dd/yyyy

Name and signature/seal of the representative director:

Name and signature/seal of the chairperson of KRX:

Listing Agreement (Foreign-listed Foreign Companies)

_____ (hereinafter referred to as “the Company”) enters into this Agreement with the Korea Exchange (hereinafter referred to as “the Exchange”) as per the following terms and conditions to list and trade the stocks issued by the Company on the KOSDAQ market.

Article 1 (Observance of Laws and Regulations) The Company shall observe faithfully the following laws and regulations, which are currently enforced, may be established and amended from time to time in the future with respect to the operation of the KOSDAQ market.

1. The Financial Investment Services and Capital Markets Act, the Enforcement Decree and the Enforcement Rules of the same Act;
2. The KOSDAQ Market Listing Regulation and the Enforcement Rules of the same Regulation;
3. The KOSDAQ Market Business Regulation and the Enforcement Rules of the same Regulation;
4. The KOSDAQ Market Disclosure Regulation and the Enforcement Rules of the same Regulation; and
5. Other matters such as standards, guidelines and policies set forth by the Exchange or the parties that are authorized by the Exchange in relation to KOSDAQ-listed corporations.

Article 2 (Cooperation with respect to investigation of abnormal transactions) In cases where the Exchange deems it necessary with respect to the investigation of abnormal transactions of listed stocks, it may request the Company or the disclosure agent, in writing or via wired and/or wireless communications, to submit copies of materials related to the process of creation of material corporate information (minutes of the board of directors, contracts etc.) including the time of generation of the information, list of executives and employees, personal information on major insiders, list of shareholders, etc., and in such cases, the Company or the disclosure agent shall reply faithfully to the request.

Article 3 (Maintaining corporate continuity and ensuring management transparency)

(1) The Company shall not conduct such activities as unfair fund transactions with the largest shareholder and the related persons that may significantly impede maintaining the independence and the nature as a going-concern of the Company and shall ensure the transparency of management through refurbishing of articles of incorporation and regulations, faithful performance of directors' duties, transparent accounting practices, fair auditing, proper disclosures, holding investor relations activities, prohibiting unfair inside transactions, protecting shareholders' rights and interests, improving corporate governance and etc.

(2) The Company shall apply the same type of accounting standards as that applied at the time of listing, and in the case where the Company intends to change this, it shall obtain an approval from the Exchange.

(3) In cases where the Company has listed its shares by applying the requirements for initial listing of foreign holding companies pursuant to [§62] of the KOSDAQ Market Listing Regulation, the subsidiary under [§2(1)27] of the KOSDAQ Market Listing Regulation shall maintain the position as a subsidiary after listing. However, this provision shall not apply to the case where the Exchange authorizes in advance.

Article 4 (Measures)

(1) In cases where the Exchange deems it necessary for the effective implementation of this Agreement, it Exchange may request the Company or the disclosure agent for necessary matters, in writing or wired and/or wireless communications, such as submission of related materials or reports and interviews with persons involved, and in such cases, the Company shall reply immediately to the request as long as there are no special reasons acknowledged by the Exchange.

(2) The Exchange may delist the Company in cases where it deems the investor protection is severely affected as the Company fails to comply with the provisions of paragraphs (2) and (3) under Article 3 above.

Article 5 (Change of listing agent and disclosure agent) In cases where the listing agent or disclosure agent is changed after the conclusion of this Agreement, the Company shall notify the Exchange of such fact.

Article 6 (Effect for successor) This Agreement shall be effective for the person who succeeds the status of the Company or the Exchange.

Article 7 (Agreement on jurisdiction) It is agreed upon that all disputes that may arise in relation to this Agreement shall be finally settled by the court having the jurisdiction over the location of the KOSDAQ Market Division.

Article 8 (Holding IR sessions)

(1) The Company shall hold investor relations sessions regarding business performance, business plan and prospect (hereinafter referred to as the “IR sessions”) at least once per half-year during two (2) years from the initial listing date at the time of closing accounts (including semi-annual closings). However, in cases where the period from the date of listing to the end of the year which includes the listing date or the remaining period of the half-year is shorter than two (2) months, this shall apply starting with the half-year following the half-year which includes the listing date.

(2) When providing related information to an unspecified number of investors at investor relations sessions, the Company shall maintain the fairness and objectivity.

Date: mm/dd/yyyy

Name and signature/seal of the representative director:

Name and signature/seal of the chairperson of KRX:

[Annex Form No. 5] Written Confirmation on Status of Investments by Stakeholders

Written Confirmation on Status of Investments by Stakeholders

To Chairperson of Korea Exchange,

xxxx (name of company), the undersigned, hereby assures that the investment status of venture capital's executives and employees or listing agent's executives and employees who have involved in the KOSDAQ listing operation is attached herewith and in case the contents of attachment are in discord with facts, the company makes no objections to delisting, designation and release of administrative issue, trading suspension and release, etc. taken by the Exchange based on the KOSDAQ Market Regulation, the Enforcement Rules of the same Regulation, and relevant regulations. The company shall also indemnify any and all claims and damages which may arise in connection with the breach of the duty of the confirmation concerned.

Attachment: One (1) copy of list of officers and employees of venture capital and listing sponsor related to the tasks of listing on the KOSDAQ market and investment status of the above mentioned officers and employees in the company's stocks.

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No. 6] Written Confirmation on Non-existence of Holding of Shares, etc.

Written Confirmation on Non-existence of Holding of Shares, etc.

To Chairperson of the Korea Exchange,

xxxx (name of company), the party undersigned, hereby assures that the external auditors (accountants who have involved in auditing and persons who manage and supervise the accountants) have not held stocks of the company and in case of a breach, the company makes no objections to delisting, designation and release of administrative issue, trading suspension and release, etc. taken by the Exchange based on the KOSDAQ Market Regulation, the Enforcement Rules of the same Regulation, and relevant regulations. The company shall also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

Attachments: 1. Status of external auditors

2. Affirmation of the Non-existence of External Auditors' Stock Holding

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No. 7] Opinion Letter of Main Creditor Bank

Opinion Letter of Main Creditor Bank

1. Applicant

(a) Name of corporation: (business registration number:)

(b) Representative:

(c) Address:

2. Opinion of main creditor bank for applicant

(a) Occurrence of bankruptcy

	Check if applicable
In the last 2 years	
In the last 3 years	
In the last 4 years	
Not applicable	

(b) In case of bankruptcy, the time to resolve the cause
()

(c) Other special issues related to financial situation

Date: mm/dd/yyyy

Name of main creditor bank:

Name and seal of Bank's branch manager:

[Annex Form No.8] Certification of Issuance of Stock Certificates by Transfer Agent

Certification of Issuance of Stock Certificates by Transfer Agent

_____, the transfer agent of _____ Corporation, confirms the issuance of stock certificates as follows.

1. Name of company:
2. Date of company establishment:
3. Total number of stocks to be issued:
4. Par value per share:
5. Type of stocks: registered common stocks or registered preferred stocks
6. Date of stock issuance:
7. Date of stock certificate distribution:
8. Number of stock issuance:
9. Kinds of stock certificates (one-share certificate, 10-share certificate, etc.):
10. Reasons for stock issuance (for paid-in capital increase, etc.):

Date: mm/dd/yyyy

Name and seal of transfer agent:

[Annex Form No. 9] Marketability Statement of Innovative Technology Company
(Amended on December 28, 2023)

Marketability Statement of Innovative Technology Company

To Chairperson of Korea Exchange,

We, the undersigned, provide this statement in relation to the preliminary listing review by the Korea Exchange for the listing of _____ Co., Ltd., and affirm that we will take all the responsibilities, civil or criminal, arising from any description that is proved to be different from facts or false and will not raise any objection to any measures to be taken by the Exchange.

Attachments:

1. Marketability Statement
2. Certificate of career of analyst

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

(Attachment)

Marketability Statement

Name and seal of Analyst:

(Required experience: Minimum 3 years)

I. Industry Analysis

1. Overview of Industry

[Description Guidance]

- (1) Describe chronological and growth history, characteristics, importance in the national economy, etc. of the industry that the company belongs to.*
- (2) Describe regulatory situations, at home and abroad, and the government policy to support the industry, etc.*

2. Market Size and Growth Potential

[Description Guidance]

Describe mainly the production trend in the industry (capacity, performance, operation rate, etc.), market size, both domestic and worldwide, market growth rate, lifecycle of the product, relation with economic cycle, situation of alternative market (existence and size of the alternative market, major players, future outlook, etc.), growth factors and obstacles of the market, etc.

3. Market Competition

[Description Guidance]

Describe mainly the type of competition (monopoly, oligopoly, perfect competition, etc.), trend of market share, market entry barriers, major competitors, comparative advantage of the company, etc.

II. Company Analysis

1. Overview of the Company

[Description Guidance]

Describe technology owned by the company, overview of the related product, sales revenue for last three years, composition of sales volume by customer, etc. to help understand the company's business and production situation.

2. Performance Outlook

[Description Guidance]

- (1)** Describe performance outlook focusing on business plan, achievements, expected achievements, etc.
- (2)** Describe in detail the concrete basis and assumptions of the performance outlook.
- (3)** The performance outlook should be made for at least three years in addition to the current year and projected income statement, statement of financial positions, and cash flow statement should be prepared.

<Projected Income Statement>

(KRW mil.)

Business Year	Year XX	Year XX	Year XX (Projected year 1)	Year XX (Projected year 2)	Year XX (Projected year 3)
Sales					
Cost of Goods Sold					
Gross Profit					
Selling and Administrative Expenses					
Operating Income					
Other Revenue and Gains					
Other Expenses and Loss					
Income from Continuing Operations before Provision for Income Taxes					
Provision for Income Taxes					
Income from Continuing Operations					
Profit/Loss from Discontinued Operations					
Net Income					
Other Comprehensive Income					
Total Comprehensive Income					

<Projected Statement of Financial Positions>

(KRW mil.)

Business Year	Year XX	Year XX	Year XX (Projected year 1)	Year XX (Projected year 2)	Year XX (Projected year 3)
Current Assets					
Accounts Receivable					
Inventory					
Non-current Assets					
Investment Assets					
Property, Plant and Equipment					
Intangible Assets					
Other Non-current Assets					
Total Assets					
Current Liabilities					
Accounts Payable					
Short-term Loans					
Non-current Liabilities					
Long-term Loans					
Total Liabilities					
Capital Stock					
Capital Surplus					
Capital Adjustment					
Accumulated Other Comprehensive Income					
Retained Earnings					
Total Capital					

<Projected Cash Flow Statement>

(In KRW mil.)

Business Year	Year XX	Year XX	Year XX (Projected year 1)	Year XX (Projected year 2)	Year XX (Projected year 3)
Cash Flows from Operating Activities xxx					
Cash Flows from Investing Activities xxx					
Cash Flows from Financing Activities xxx					
Net Increase(Decrease) in Cash					
Cash at Beginning of Year					
Cash at End of Year					

3. Statement on Marketability of the Company

(1) Market size and growth potential of the technology product

Note. Market size and growth rate of product applied the technology evaluated, existence and size of alternative market, etc.

(2) Competitiveness of the evaluation technology applied product

Note. Market share of product applied the technology evaluated, competitors, degree of competitive advantage, difficulties of entry barriers, etc.

4. Statement on Operational Risk of the Company

Note. Describe opinions on operational risk factors relating to the commercialization of the technology evaluated focusing on industry risk, company risk, financial risk, and other risk.

[Annex Form No. 10] Written Report on Growth Potential of Technology Growth Company by Recommendation of Listing Sponsor

Business Model Company Evaluation Report

By Recommendation of Listing Sponsor

(Pertaining to [§28(5)] of the Enforcement Rules)

To Chairperson of Korea Exchange,

We, the undersigned, hereby submit this report to recommend the listing of _____ Corporation based on our assessment of the business model and growth potential of _____ Corporation in relation to the listing review of _____ Corporation by your Exchange, and we, the lead manager, fully examined the business model and growth potential of _____ Corporation, which intends to apply for listing on the KOSDAQ market. As a result of the assessment, we believe that the Company has a unique, knowledge-based business model and a high growth potential utilizing this business model and recommend _____ Corporation's listing on your Market. If any of the contents of the information are different from the facts or it turns out that the documents submitted are false, we will bear all civil and criminal liabilities arising therefrom, and we will make no objections to any actions taken by the Korea Exchange.

Attachments:

1. Business model company evaluation report
2. Confirmation letter on qualifications of listing sponsor for recommendation of business model company

Date: mm/dd/yyyy

Name of securities company:

Name/seal of the representative director:

(Attachment 1)

Business Model Company Evaluation Report

1. Overview

(1) Company overview

Example: History, Organizational structure, Stocks issued, etc.

(2) Outline of business model

Example: Introducing the main contents of a unique, knowledge-based business model (including innovative ideas such as business model) held by the business model company

(3) Outline and methods of assessment

Example: Scope of the assessment, duration of the assessment, participants in the assessment, relevant regulations, assessment methods, key assumptions, etc. conducted by the relevant listing sponsor to assess business model company

2. Internal and External Business Environment

(1) Business environment

Example: Definitions, characteristics and growth potential of the industry and the front-end related industries / Composition, characteristics and size of the target market / Competition in the market, etc.

(2) Market size and growth prospects

Example: Size of the market, trend of growth rates / Position in the life cycle / Prospects for future growth of the industry such as expansion into other markets, policy direction, effect of economic situation, etc. / Domestic and overseas competitors with similar technologies and business models, etc.

(3) Internal competence

Example: Major, career and violation of law, etc. of the management

(4) Regulatory environment such as government policy, regulations

Example: Domestic and overseas regulatory environment / Ability to respond to regulatory changes, etc.

3. Competitiveness of Business Model

※ Companies shall be categorized into two types – (i) technology-based companies that have core technologies but do not meet quantitative requirements such as sales and profits and (ii) business model companies that possess knowledge-based original business models including innovative ideas and thus have high growth potential– and please state only one of them.

(1) Completeness of business models

Example: Detailed business plans for realizing and expanding sales / Number of target customers and size of sales by customer, etc.

(2) Competitive advantage factors

Example: Differentiation from domestic or overseas competitors with similar business models / Dominance in the market, etc.

(3) Status of human and material resources

Example: Mid- and long-term growth bases such as licenses, related assets, etc.

(4) Commercialization competitiveness

Example: Possibility of realizing sales and profits in 3 to 5 years, reflecting the growth stage of the market, situation of related markets and trend sensitivity, the likelihood of merging with other market, etc.

4. Growth Potential

(1) Plans to use the funds

Example: The purpose of listing, business strategy after listing, and detailed plans for use of the funds raised from public offerings

(2) Prospects for estimated profits and loss including sales

Example: Detailed plans for production, sales and distribution, mid- and long-term sales and investment plans, etc.

- Estimated income statement					
Business year Classification	yyyy	yyyy	yyyy (The estimated 1 st Period)	yyyy (The estimated 2 nd Period)	yyyy (The estimated 3 rd Period)
Sales ¹					
Cost of sales ²					
Gross profit					
Selling and administrative expenses ² × × ×					
Operating income					
Non-operating revenue/expenses × × ×					
Income taxes					
Net income					
Notes:					
(1) Basis for sales estimates (please state details of calculation such as existing contracts signed, progress of contracts, development progress and expected year of sales, number of target customers, sale price, sales quantity, etc.					
(2) Please state in detail about the cost calculation for each account related to sales estimation.					
- Estimated Statement of Cash Flow					
Business year Classification	yyyy	yyyy	yyyy (The estimated 1 st Period)	yyyy (The estimated 2 nd Period)	yyyy (The estimated 3 rd Period)
Cash flows from operating activities Net income × × ×					
Cash flows from investing activities × × ×					
Cash flows from financing activities					

Inflow of public funds × × ×					
Increase (Decrease) in cash Beginning End					

(3) Possibility of realization of estimated profits / losses

Example: Please predict the possibility based on objective data as much as possible, such as the prospect of research institute on the estimated profit/loss presented by the company, investment plans of clients, etc.

(4) External feedback on the growth potential

Example: External feedback on the company's growth potential based on the competitiveness of the business model

※ Please reflect the results of assessment on the company's growth potential conducted by external rating agencies such as accounting firms, credit rating agencies, etc.

(Attachment 2)

Confirmation Letter on Qualifications of Listing Sponsor for
Recommendation of Business Model Company

1. Whether falling under Restrictions on Qualification for Recommendation of Business Model Company

(Pertaining to [§28] of the Enforcement Rules of KOSDAQ Market Listing Regulation and the Regulations on Securities Underwriting Business, etc.)

1	Whether having a record of arranging the listing of KOSDAQ-listed corporations within the latest one year.	
2	Whether any causes for being designated as administrative issues or investment attention issues, or for being delisted have occurred to the listed corporations that were arranged by the listing sponsor for the latest three years.	
3	Whether having implemented the claims for redemption (put/back options) that were obtained to arrange the listing of KOSDAQ-listed corporations in the past.	
4	Whether having entered into a lead management agreement that contains the obligations to implement the claims for redemption (put/back options) prescribed in the Regulations on Securities Underwriting Business, etc.	
5	Whether falling under the listing sponsors of which qualifications were limited by the Exchange.	

Note. If the obligations to implement the claims for redemption are not included in the lead management agreement, supplementary documents such as a modified agreement containing such obligations or a written confirmation on entering into a modified agreement shall be submitted.

2. Record of Listing Arrangement for KOSDAQ-listed Corporations within the Last Three Years

Company	Listing date	Listing track (Ordinary/unrealized profit/innovative technology/business model)	Designation as an administrative issue, etc.*		Stock price			Note
			Occurrence or not	Occurrence date	Public offering price	Closing price of the trading day after 3 months from the listing date	Closing price of the trading day after 6 months from the listing date	

Note: State whether the company was designated as an administrative issue and/or investment attention issue, or whether a reason for delisting occurred.

[Annex Form No.11] Written Recommendation of Designated Advisor

(Amended on April 29, 2022; December 28, 2023)

Written Recommendation of Designated Advisor (Prompt Transfer Company)

(Pertaining to [§31] of the Regulation)

To Chairperson of the Korea Exchange,

As the designated advisor for _____ Corporation in the KONEX Market, we have been providing advisory services from mm/dd/yyyy, the date of signing the designated advisory contract, to the date of submission of the application for preliminary listing review. Based on the careful examination of the business situations, financial conditions, technology capability, growth potential, other management environments and the management stability * of the _____ Corporation over the period, we believe that there is no problem with the corporate sustainability and management stability* of the company and hereby recommend _____ Corporation as a prompt-transfer company under Article31(1)/a prompt-listing-after-merge corporation under Article75(4)1 of the KOSDAQ Market Listing Regulation. Accordingly, for the protection of investors, we pledge to state in the registration statement the fact that the recommended company is a prompt-transfer company that is exempted from the review on the corporate sustainability and management stability and the following matters. In addition, if any of the contents of the information provided below are different from the facts or it turns out that the documents submitted are false, we will bear all civil and criminal liabilities arising therefrom, and we will make no objections to any actions taken by the Korea Exchange.

Notes. For a company that is not exempted from the management stability review, only the 'corporate sustainability' shall be stated.

1. Key activities of designated advisor

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Note. Please enter the date of signing the designated advisory contract, advisory services related to initial listing, details of publication of business status reports, etc.

2. Details relating to corporate sustainability

	Details
Business situations	
Financial conditions	
Technology capability	
Growth potential	
Other management environments	

Note. Please refer to the review item of Corporate Continuity in [Annex 6] Qualitative Review Criteria.

3. Details relating to management stability

	Yes	No
Is the holding ratio ⁽²⁾ of common stocks of the largest shareholder 30% or higher as of the date of listing application?		
Was there any change in the largest shareholder within the latest one year?		
Is the largest shareholder a venture finance, a collective investment scheme or a paper company?		
Is there any lawsuit that has a significant influence on the management rights, etc.?		
Is there any possibility of disputes over management rights in light of shareholding structure?		
Is there any possibility of changes in the largest shareholder by the exercise of rights embedded in equity-related bonds, etc.?		
Is there a history of entering into contracts among shareholders, including a contract with an option to purchase shares from other shareholders?		
Was there any change in the representative director within the latest one year?		
Does the representative director concurrently serve as an executive officer of another company, which may result in the conflict of interests?		
Does the largest shareholder have a history of M&As, including backdoor listing, acquisition after split-off, etc.?		
Has any of the events such as M&As, business transfer/take-over, split-off, capital reduction, etc. that are important to the corporate management occurred within the latest one year?		
Are there any other material matters that may have influence on the management stability?		

Notes:

(1) Applicable only for the company exempted from the management stability review.

(2) The shareholding ratio of common stocks of the largest shareholders is calculated taking into account the number of shares that may be issued by the exercise of conversion rights and subscription rights, etc.

4. Details of withdrawal from or failure to get approved at preliminary listing review, if any, and improvements made

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Notes: Please state only in the case of a company with a history of non-approval or withdrawal.

Date: mm/dd/yyyy

Name of securities company:

Name and seal of the representative director:

Written Recommendation of Designated Advisor (Innovative Technology Company)

(Pertaining to [§28(1)] of the Enforcement Rules)

To Chairperson of the Korea Exchange,

As the designated advisor for _____ Corporation in the KONEX Market, we have been providing advisory services from *mm/dd/yyyy*, the date of signing the designated advisory contract, to the date of submission of the application for preliminary listing review. Based on the careful examination of the technology prowess and business feasibility of the _____ Corporation over the period, we believe that the applicant company has high technology prowess and business feasibility and recommend that it be listed after receiving an evaluation of its technology, etc. by a specialized assessment institution in accordance with [§28(1)1(a)(iii)] of the Enforcement Rules of the KOSDAQ Market Listing Regulations. In addition, if any of the contents of the information provided below are different from the facts or it turns out that the documents submitted are false, we will bear all civil and criminal liabilities arising therefrom, and we will make no objections to any actions taken by the Korea Exchange.

1. Key activities of designated advisor

--

Note. Please state the date of signing the designated advisory contract, advisory services related to initial listing, details of publication of business status reports, etc.

2. Details relating to technology prowess and commercial feasibility

	Details
Completeness of technology	
Competitive advantage of technology	

Level of technical personnel	
Level of commercialization of technology products	
Market competitiveness and growth potential of technology products	

3. Details of withdrawal from or failure to get approved at preliminary listing review, if any, and improvements made

Notes: State only in the case of a company with a history of non-approval or withdrawal.

Date: mm/dd/yyyy

Name of securities company:

Name and seal of the representative director:

[Annex Form No. 12] Written Affirmation on Fulfillment of Obligations

(Amended on March 16, 2026)

Written Affirmation on Fulfillment of Obligations

To Chairperson of Korea Exchange,

xxxx (“the Company”), the undersigned, hereby affirms that all material facts in relation with the management specified in Subparagraph 2 of [§5] or Subparagraph 2 of [§85-3] of the KOSDAQ Market Listing Regulation from the date of applying for the preliminary listing review to the date of listing are reported to the Exchange and in case of a breach of reporting duty, the Company makes no objections to delisting, designation and release of administrative issue, trading suspension and release, etc. taken by the Exchange pursuant to the KOSDAQ Market Listing Regulation, the enforcement rules of the same Regulation, and the related regulations. The Company shall also indemnify any and all claims and damages which may arise in connection with the breach of reporting duty.

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No. 13] Written Confirmation on Paper Company

(Amended on March 16, 2026)

Written Confirmation on Paper Company

(Pertaining to [§24] of Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), the undersigned, hereby submits this confirmation to ensure whether the largest shareholder of the company falls under the conditions of paper company pursuant to [§24] of the Enforcement Rules of the KOSDAQ Market Listing Regulation or not and if any false fact is found, the company will make no objections to delisting, designation and release of administrative issue, trading suspension and release, and any other measures taken by the Exchange based on the relevant rules and regulations of the KOSDAQ market. The company shall also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of company

☐ Name of corporation (to be listed):

☐ Name of the largest shareholder (paper company) of corporation (to be listed):

2. Organization structure of company and status of shareholdings

Largest shareholder, etc.(largest shareholder of paper company) ○ persons other than ○○○	
	Shareholding ratio: %
Paper company(largest shareholder of the listing corporation) (Name of paper company○○○) (Place of registration○○○)	
	Shareholding ratio: %
Listing corporation (Name of company○○○) (Place of registration○○○)	
	Shareholding ratio%
Investing corporation (Name of company○○○) (Place of registration○○○)	

3. Criteria for paper company

	Criteria	Details	Met/Unmet
Listing of paper company	Shall not be the stock-listed corporation(including corporations that have listed foreign stocks or foreign stock depositary receipts in overseas stock markets designated by the Exchange) under Article9(15)3 of the Act	Name of listed Exchange	
Stock investment	The total value of stocks invested in other corporations as of the end of recent business year shall be at least 50% of the total asset value ⁽¹⁾	- Total value of stocks invested: - Total asset value: - Ratio :	
Conducting profit business	The sales amount from for-profit-business other than any of the following business shall be less than 30/100 of the total sales amount based on the income statement of recent business year: 1) Business management for investing corporation 2) Financing activity in relations with issuances of stocks/bonds and listing 3) Generally necessary business for the operation of a corporation including preparation and execution of budget, recruitment and management of human resource, development and operation of computing system etc. 4) Other business related to above-mentioned business - List of business	- Total sales amount(C) - Sales amount related to 1)~4) (A): - Sales amount related to profit business except 1)~4)(B): - Ratio (B/C)	
Business development investment company	Shall not be the business development investment company under [§85-2(2)] of the Regulation	- Registration with the Financial Services Commission	

Note. In case of submission of documents that confirms whether the paper company meet the criteria based on current stock price and total asset value after the end of the latest business year, the concerned documents may be used.

4. Documents to be attached

	Attachments	Attached or not (O /X)	Remarks
4-1	Documentary evidence for listing (domestically listed corporations are excluded)		
4-2	Documents to show the financial status as of the end of recent business year ⁽¹⁾ (confirmation by auditor is included)		
4-3	Articles of association		
4-4	List of shareholders		
4-5	Sales of each business sector (including confirmation by auditor)		
4-6	Document to prove the establishment of paper company		
4-7	Other documents to check details of items 1 through 3 above		

Note. In case of submission of documents that confirms whether the paper company meet the criteria based on current stock price and total asset value after the end of the latest business year, the concerned documents may be used.

Date: mm/dd/yyyy

Name of company:

Address:

Name and seal of the representative director:

[Annex Form No.14] Written Affirmation on Mandatory Holding

(Amended on February 14, 2022; February 17, 2022; April 29, 2022; December 28, 2023; March 16, 2026)

Written Affirmation on Mandatory Holding of Stocks, etc. (Initial Listing, etc.)

To Chairperson of Korea Exchange,
mm/dd/yyyy

Date:

I and the related persons (hereinafter referred to as “the party undersigned”) hereby affirm that we will keep the following promises as the persons subject to mandatory holding falling under the provisions of [§26], [§61], [§69] and [§77] of the KOSDAQ Market Listing Regulation in relation to initial listing of _____ Co. Ltd. (hereinafter referred to as “the Company”) on the KOSDAQ market.

1. The party undersigned will mandatorily hold the stocks, etc. issued by the Company (referring to the securities under [§2(1)10] of the KOSDAQ Market Listing Regulation and including bonus stocks to be issued pursuant to [§3] of the Enforcement Rules of the KOSDAQ Market Listing Regulation; the same hereinafter), which are owned by the party undersigned as of the day preceding the date of application for listing (hereinafter referred to as “listing application date”) under [§27], [§60], [§69] and [§76] of the KOSDAQ Market Listing Regulation, as detailed in subparagraph 5, except for the cases where the Exchange deems that it is inevitable, such as fulfillment of obligations according to statutes and M&As, etc. and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. unless the Exchange deems it necessary, during the mandatory holding period.

2. The party undersigned will make mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the stocks, etc. owned by the party undersigned during the mandatory holding period only through the listing sponsor, who is a managing underwriter pursuant to the Regulation on Securities Underwriting Business, etc. (limited to one (1) managing underwriter in cases where there are more than one (1) managing underwriter) among listing sponsors, _____ Securities Co., Ltd. (hereinafter referred to as “the listing sponsor”) and will follow the methods and procedures for mandatory holding, account transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the relevant stocks, etc. as stipulated in the “agreement on the provision of largest shareholder’s affirmation” entered into between the Company and the listing sponsor.

3. The party undersigned will not raise any objection to the publication as a market notice by the listing sponsor of the facts if the accounts transfer, establishment and removal of a pledge right,

sales, withdrawal, etc., of the stocks, etc. owned by the party undersigned are made during the mandatory holding period.

4. The party undersigned will promise to faithfully respond to the request of the Exchange to confirm the fact in cases where the party undersigned, as the persons subject to mandatory holding of stocks, etc. violates relevant regulations by presale contract, etc., and not to raise any objection to any measures to be taken by the Exchange.

5. Details of stocks, etc. under mandatory holding by persons subject to mandatory holding

Name of shareholder	Relation ⁽¹⁾	Type of securities ⁽²⁾	Number of shares ⁽³⁾	Reasons for mandatory holding ⁽⁴⁾	Period of mandatory holding		Note
					Begins on	Ends on	
		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					
		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					
Total		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					

Notes:

(1) Please specify 'Relation' based on KOSDAQ-listed corporations, such as the largest shareholder, related persons, professional investors, venture capitals, general corporations, individual investors, others, etc. In the case of unlisted corporations, please add "(unlisted)". (e.g.) (unlisted) largest shareholder, (unlisted) related person, etc.

(2) Please specify the type of securities under custody such as common shares, different class of shares (convertible different class of shares, etc.), preferred shares (convertible and redeemable preferred shares, etc.), convertible bonds, bonds with subscription rights, subscription warrants, etc.

(3) Please specify the number of shares in case of stocks and the number of shares to be converted or redeemed in case of equity-linked bonds and specify the face amount of the bonds in Note column, and in

the case of stock options, please write down the number of stocks to be acquired by exercising the stock options.

(4) Please specify the reasons for mandatory holding by classifying them into 'mandatory holding pursuant to KOSDAQ Market Listing Regulation' (referring to the mandatory holding due to initial listing, merger, stock swap, business acquisition, asset acquisition, investment in-kind and change of the largest shareholder by the third party share allotment) and 'others' (referring to the capital increase by private placement, etc.). (In cases where there are two or more reasons for mandatory holding for the same stocks, please specify those reasons separately.)

(5) In cases where the different class of stocks have different terms from those of common stocks, the details shall be described as a footnote.

Affirmed by

Name of company:

Name and seal of shareholder:

Name and seal of shareholder:

Written Affirmation on Mandatory Holding of Stocks, etc. (Supplementary Listing)

(Pertaining to [§39], [§68] and [§71] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

I and the related persons (hereinafter referred to as “the party undersigned”) hereby affirm that we will keep the following promises as the persons subject to mandatory holding falling under the provisions of [§44], [§65], and [§71] of the KOSDAQ Market Listing Regulation in relation to supplementary listing of _____ Co., Ltd. (hereinafter referred to as “the Company”) on the KOSDAQ market.

1. The party undersigned will mandatorily hold the stocks, etc. issued by the Company (referring to the securities under [§2(1)10] of the KOSDAQ Market Listing Regulation and including the bonus stocks issued pursuant to [§3] of the Enforcement Rules of the KOSDAQ Market Listing Regulation; the same hereinafter), which are owned by the party undersigned among those stocks, etc. subject to the supplementary listing pursuant to [§44], [§65], and [§71] of the KOSDAQ Market Listing Regulation, as detailed in subparagraph 5, except for the cases where the Exchange deems that it is inevitable, such as fulfillment of obligations according to statutes and M&As, etc., and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. unless the Exchange deems it necessary, during the mandatory holding period.

2. The party undersigned will comply with the related regulations concerning the method of disclosing the fact in the case of mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. owned by the persons subject to mandatory holding and the method of handling the matter in the event that the mandatory holding becomes impracticable due to the provision of the relevant stocks, etc. as collateral, etc.

3. The party undersigned will make mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the stocks, etc. owned by the party undersigned during the mandatory holding period only through the listing sponsor, _____ Securities Co., Ltd. (hereinafter referred to as “the listing sponsor”) and will not raise any objection to the publication as a market notice by the listing sponsor of the facts if the account transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the relevant stocks, etc. are made.

4. The party undersigned will promise to faithfully respond to the request of the Exchange to confirm the fact in cases where the party undersigned, as the persons subject to mandatory holding of stocks,

etc. violates relevant regulations by presale contract, etc., and not to raise any objection to any measures to be taken by the Exchange.

5. Details of stocks, etc. under mandatory holding by persons subject to mandatory holding

Name of shareholder	Relation ⁽¹⁾	Type of securities ⁽²⁾	Number of shares ⁽³⁾	Reasons for mandatory holding ⁽⁴⁾	Period of mandatory holding		Note
					Begins on	Ends on	
		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					
		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					
Total		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					

Notes:

(1) Please specify 'Relation' based on KOSDAQ-listed corporations, such as the largest shareholder, related persons, professional investors, venture capitals, general corporations, individual investors, others, etc. In the case of unlisted corporations, please add "(unlisted)". (e.g.) (unlisted) largest shareholder, (unlisted) related person, etc.

(2) Please specify the type of securities under custody such as common shares, different class of shares (convertible different class of shares, etc.), preferred shares (convertible and redeemable preferred shares, etc.), convertible bonds, bonds with subscription rights, subscription warrants, etc.

(3) Please specify the number of shares in case of stocks and the number of shares to be converted or redeemed in case of equity-linked bonds and specify the face amount of the bonds in Note column, and in the case of stock options, please write down the number of stocks to be acquired by exercising the stock options.

(4) Please specify the reasons for mandatory holding by classifying them into 'mandatory holding pursuant to KOSDAQ Market Listing Regulation' (referring to the mandatory holding due to initial listing, merger, stock swap, business acquisition, asset acquisition, investment in-kind and change of the largest shareholder by the third party share allotment) and 'others' (referring to the capital increase by private placement, etc.). (In cases where there are two or more reasons for mandatory holding for the same stocks, please specify

those reasons separately.)

(5) In cases where the different class of stocks have different terms from those of common stocks, the details shall be described as a footnote.

Affirmed by

Name of company:

Name and seal of shareholder:

Name and seal of shareholder:

Written Affirmation on Mandatory Holding of Stocks, etc. (Backdoor Listing)

(Pertaining to [§34] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

I and the related persons (hereinafter referred to as “the party undersigned”) hereby affirm that we, as the persons subject to mandatory holding pursuant to [§36] of the KOSDAQ Market Listing Regulation, will comply with the following matters in relation to the backdoor listing, etc. through the M&A between the “A” company (hereinafter “the Company”), a KOSDAQ-listed corporation, and “B” company (hereinafter “the backdoor listing target company”), an unlisted corporation,.

1. The party undersigned will mandatorily hold the stocks, etc. issued by the Company and the backdoor listing target company (referring to the securities under [§2(1)10] of the KOSDAQ Market Listing Regulation and including the bonus stocks issued pursuant to [§3] of the Enforcement Rules of the KOSDAQ Market Listing Regulation; the same hereinafter), which are owned by the party undersigned and subject to [§36] of the KOSDAQ Market Listing Regulation, as detailed in subparagraph 5, except for the cases where the Exchange deems that it is inevitable, such as fulfillment of obligations according to statutes and M&As, etc., and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. unless the Exchange deems it necessary, during the mandatory holding period.

2. The party undersigned will comply with the related regulations concerning the method of disclosing the fact in the case of mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. owned by the persons subject to mandatory holding and the method of handling the matter in the event that the mandatory holding becomes impracticable due to the provision of the relevant stocks, etc. as collateral, etc.

3. The party undersigned will make mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the stocks, etc. owned by the party undersigned during the mandatory holding period only through the financial investment company licensed for investment dealing business (including underwriting business) and investment brokerage business for securities under Article 8 of the Act and will not raise any objection to the publication as a market notice by the financial investment company of the facts if the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the relevant stocks, etc. are made.

4. The party undersigned will promise to faithfully respond to the request of the Exchange to confirm the fact in cases where the party undersigned, as the persons subject to mandatory holding of stocks, etc. violates relevant regulations by presale contract, etc., and not to raise any objection to any measures to be taken by the Exchange.

5. Details of stocks, etc. under mandatory holding by persons subject to mandatory holding

Name of shareholder	Relation ⁽¹⁾	Type of securities ⁽²⁾	Number of shares ⁽³⁾	Reasons for mandatory holding ⁽⁴⁾	Period of mandatory holding		Note
					Begins on	Ends on	
		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					
		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					
Total		Common Shares					
		Different Class of Shares					
		Other securities					
		Stock options					

Notes:

(1) Please specify 'Relation' based on KOSDAQ-listed corporations, such as the largest shareholder, related persons, professional investors, venture capitals, general corporations, individual investors, others, etc. In the case of unlisted corporations, please add "(unlisted)". (e.g.) (unlisted) largest shareholder, (unlisted) related person, etc.

(2) Please specify the type of securities under custody such as common shares, different class of shares (convertible different class of shares, etc.), preferred shares (convertible and redeemable preferred shares, etc.), convertible bonds, bonds with subscription rights, subscription warrants, etc.

(3) Please specify the number of shares in case of stocks and the number of shares to be converted or redeemed in case of equity-linked bonds and specify the face amount of the bonds in Note column, and in

the case of stock options, please write down the number of stocks to be acquired by exercising the stock options.

(4) Please specify the reasons for mandatory holding by classifying them into 'mandatory holding pursuant to KOSDAQ Market Listing Regulation' (referring to the mandatory holding due to initial listing, merger, stock swap, business acquisition, asset acquisition, investment in-kind and change of the largest shareholder by the third party share allotment) and 'others' (referring to the capital increase by private placement, etc.). (In cases where there are two or more reasons for mandatory holding for the same stocks, please specify those reasons separately.)

(5) In cases where the different class of stocks have different terms from those of common stocks, the details shall be described as a footnote.

Affirmed by

Name of company:

Name and seal of shareholder:

Name and seal of shareholder:

Written Affirmation on Mandatory Holding of Stocks, etc.

(Mandatory Holding in Process of Backdoor Listing)

(Pertaining to [§34] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

I and the related persons (hereinafter referred to as “the party undersigned”) hereby affirm that, with respect to the backdoor listing through M&A between “A” Co., Ltd. (hereinafter “the Company”), a KOSDAQ-listed corporation, and “B” Co., Ltd., an unlisted corporation, we will comply with the following matters as the persons subject to mandatory holding, who fall under the mandatory holding in the process of backdoor listing under [§37] of the KOSDAQ Market Listing Regulation.

1. The party undersigned will mandatorily hold the stocks, etc. issued by the Company (referring to the securities under [§2(1)10] of the KOSDAQ Market Listing Regulation and including the bonus stocks issued pursuant to [§3] of the Enforcement Rules of the KOSDAQ Market Listing Regulation; the same hereinafter), which are owned by the party undersigned, in accordance with [§37(1)] of the KOSDAQ Market Listing Regulation, as detailed in subparagraph 5, except for the cases where the Exchange deems that it is inevitable in [§37(2)] of the KOSDAQ Market Listing Regulation, and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. unless the Exchange deems it necessary during the mandatory holding period.

2. The party undersigned will comply with the related regulations concerning the method of disclosing the fact in the case of mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. owned by the persons subject to mandatory holding and the method of handling the matter in the event that the mandatory holding becomes impracticable due to the provision of the relevant stocks, etc. as collateral, etc.

3. The party undersigned will make mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the stocks, etc. owned by the party undersigned during the mandatory holding period only through the financial investment company licensed for investment dealing business (including underwriting business) and investment brokerage business for securities

under Article 8 of the Act, and will not raise any objection to the publication as a market notice by the financial investment company of the facts if the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the relevant stocks, etc. are made.

4. The party undersigned will promise to faithfully respond to the request of the Exchange to confirm the fact in cases where the party undersigned, as the persons subject to mandatory holding of stocks, etc. violates relevant regulations by presale contract, etc., and not to raise any objection to any measures to be taken by the Exchange.

5. Details of stocks, etc. under mandatory holding by the persons subject to mandatory holding

Name of shareholder	Relation ⁽¹⁾	Number of shares	Classification ⁽²⁾	Reasons for mandatory holding ⁽³⁾	Mandatory holding period		Note
					Begins on	Ends on ⁽⁴⁾	

Notes:

(1) Please specify relations, such as 'the largest shareholder, etc. of KOSDAQ-listed corporation', [(listed) the largest shareholder; (listed) related person], 'the largest shareholder, etc. of unlisted corporation' [(unlisted) the largest shareholder; (unlisted) related person]

(2) In 'Classification', please specify the reasons for mandatory holding by classifying them into 'mandatory holding due to 'back-door listing review' (merger, stock swap, business acquisition, asset acquisition, investment in-kind) and 'others' (capital increase by private placement, etc.).

(3) In cases where there are two or more reasons for mandatory holding for the same stocks, please specify those reasons separately.

(4) Dates of supplementary listing, stock swap, completion of business/asset acquisition, stock transfer, completion of backdoor listing review, and issuance date (for securities other than stocks), etc.

(5) Please state details of stocks, classifying them into common stocks and different class of stocks.

(6) In cases where the different class of stocks have different terms from those of common stocks, the details shall be described as a footnote.

Affirmed by

Name of company:

Name and seal of shareholder:

Name and seal of shareholder:

Written Affirmation on Mandatory Holding of Stocks

(Underwriting Obligation of Listing Sponsor)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

I, the undersigned, hereby affirm that I, as a person subject to mandatory holding falling under [§13(5)] of the KOSDAQ Market Listing Regulation, will comply with the following matters with respect to the initial listing of _____ company (hereinafter referred to as “A”) on the KOSDAQ Market.

1. The undersigned will mandatorily hold the stocks, etc. (including DRs of foreign stocks; the same hereinafter) issued by “A”, which I have purchased pursuant to [§13(5)] of the KOSDAQ Market Listing Regulation, except for the cases where the Exchange deems that it is inevitable such as the fulfillment of statutory obligations and M&As, etc., until the date of three (3) months [six (6) months for prompt transfer companies (one (1) year for prompt transfer companies under [§31(1)3(e) or (f)] of the KOSDAQ Market Listing Regulation), and one (1) year for foreign companies (however, when six (6) months have elapsed since the listing date, the quantity up to 5/100 of the initial holdings may be sold every month)] from the date of listing of “A”; and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the relevant stocks unless the Exchange deems it necessary during the relevant period.

2. The undersigned will faithfully respond to the request of the Exchange to confirm the fact in cases where the undersigned violates relevant regulations by presale contract, etc., and will not raise any objection to any measures to be taken by the Exchange.

3. Details of stocks, etc. under mandatory holding (planned)

Name of shareholders	Type of stocks	Number of shares publicly offered	Number of shares under mandatory holding	Note
	Common stocks			

4. Status of technology growth companies for which the undersigned has arranged listings over the past three (3) years (indicate if “A” is a domestic company listed as an innovative technology company)

Company	Date of listing	Listing track (Innovative technology/ business model)	Designation as an administrative issue, etc.*		Note
			Occurred or not	Date of occurrence	

Note: State whether the company is designated as an administrative issue and/or investment attention issue, or is delisted.

Affirmed by:

Name of Company:

Name and seal of the representative director:

Written Affirmation on Mandatory Holding

(Stocks, etc. Acquired by Listing Sponsor before Applying for Listing Review)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

I, the undersigned, hereby affirm that I will comply with the following matters as the person subject to mandatory holding falling under [§26(1)5] of the KOSDAQ Market Listing Regulation in relation to the initial listing of _____ Co., Ltd. (hereinafter referred to as “A”) on the KOSDAQ Market.

1. The undersigned will mandatorily hold the stocks, etc. of “A” which the undersigned has purchased within six (6) months before the application for preliminary listing review by “A” (based on the date of application for preliminary listing review) until the date of six (6) months [one (1) month if the “disparate ratio between the public offering price and the acquisition price” specified in [§23(6)] of the Enforcement Rules of KOSDAQ Market Listing Regulation is lower than 50%] from the listing date of “A”, and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the relevant stocks unless the Exchange deems it necessary during the relevant period.

2. To faithfully respond to the request of the Exchange to confirm the fact in cases where I violate relevant regulations by presale contract, etc.; and not to raise any objection to any measures to be taken by the Exchange.

3. Details of stocks, etc. under mandatory holding (planned)

Name of shareholder	Timing of purchase	Type of securities ⁽¹⁾	Number of shares ⁽²⁾	Disparate ratios ⁽³⁾	Period of mandatory holding		Note
					Begins on	Ends on	

		Common stocks					
		Different class of stocks					
		Other securities					
		Common stocks					
		Different class of stocks					
		Other securities					
Total		Common stocks					
		Different class of stocks					
		Other securities					

Notes:

(1) Please specify the type of securities under custody such as common stocks, different class of stocks (convertible different class of stocks, etc.), preferred stocks (convertible and redeemable preferred stocks, etc.), convertible bonds, bonds with subscription rights, subscription warrants, etc.

(2) Please specify the number of shares in case of stocks and the number of shares to be converted or redeemed in case of equity-linked bonds and specify the face amount of the bonds in Note column.

(3) It means the “disparate ratio between the public offering price and the acquisition price” specified in [§23(6)] of the Enforcement Rules of the KOSDAQ Market Listing Regulation, where the “acquisition price” means the average of the acquisition prices (in the case of stocks, etc. other than stock certificates such as convertible bonds, bonds with warrants, etc., it may be calculated by taking into account the number of shares to be converted or listed, the exercise prices, etc. at the time of calculation of the acquisition price) of the stocks, etc. of the concerned corporation acquired by the listing sponsor within six (6) months before the date of application for preliminary listing review, weighted by the acquisition quantities; the “public offering price” means the price stipulated in Article 5(1) of the Regulations on Securities Underwriting Business, Etc.; and the “disparate ratio between the public offering price and the acquisition price” refers to the ratio calculated by the following formula:

Disparate ratio between the public offering price and the acquisition price

$$= (\text{Public offering price} - \text{Acquisition price}) \div \text{Acquisition price} \times 100$$

(4) In cases where the different class of stocks have different terms from those of common stocks, the details shall be stated as a footnote.

Affirmed by;

Name of Company:

Name and seal of the representative director:

Written Affirmation on Mandatory Holding (Paper Company and Association, etc.)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

I and the related persons (hereinafter referred to as “the party undersigned”) hereby affirm that the party undersigned, as the largest shareholder of _____ company (hereinafter referred to as “the Company”), a KOSDAQ-listed corporation, will comply with the following matters as a person subject to mandatory holding falling under the provisions of [§51(1)] of the KOSDAQ Market Listing Regulation.

1. The party undersigned will mandatorily hold the stocks, etc. (referring to the securities in [§2(1)10] of the KOSDAQ Market Listing Regulation and including the bonus stocks issued pursuant to [§3(1)] of the Enforcement Rules of the KOSDAQ Market Listing Regulation; the same hereinafter) issued by the Company, which are owned by the party undersigned falling under [§51(1)] of the KOSDAQ Market Listing Regulation, as detailed in subparagraph 5 except for the cases where the Exchange deems it inevitable such as fulfillment of statutory obligations and M&As, etc., and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. unless the Exchange deems it necessary during the relevant period.

2. The party undersigned will comply with the related regulations concerning the method of disclosing the fact in the case of mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. owned by the person subject to mandatory holding and the method of handling the matter in the event that the mandatory holding becomes impracticable due to the provision of the relevant stocks, etc. as collateral, etc.

3. The party undersigned will make the mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. owned by the party undersigned during the mandatory holding period only through the financial investment company licensed of investment dealing business (including underwriting business) and investment brokerage business for the securities under Article 8 of the Act, and will not raise any objection to the publication as a market notice by the listing sponsor of the facts if the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the relevant stocks, etc. are made.

4. The party undersigned will faithfully respond to the request of the Exchange to confirm the fact in cases where the party undersigned, as the persons subject to mandatory holding violate relevant

regulations by presale contract, etc., and will not raise any objection to any measures to be taken by the Exchange.

5. Details of stocks, etc. under mandatory holding by the persons subject to mandatory holding

Name of shareholder	Type of nominee ⁽¹⁾	Name of company	Type of securities ⁽²⁾	Number of shares ⁽³⁾	Reasons for mandatory holding ⁽⁴⁾	Period of mandatory holding		Note
						Begins on	Ends on	
			Common stocks					
			Different class of stocks					
			Other securities					
			Common stocks					
			Different class of stocks					
			Other securities					
Total			Common stocks					
			Different class of stocks					
			Other securities					

Notes:

(1) 'Type of nominee' shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from the KOSDAQ-listed corporation's view but in case of listed corporations, '(listed)' shall be stated in front of type. (e.g.) (listed) largest shareholder, (listed) specially related parties), etc.

(2) Please specify the type of securities subject to mandatory holding, such as common stocks, different class of stocks (convertible different class of stocks, etc.), preferred stocks (convertible and redeemable preferred stocks, etc.), convertible bonds, bonds with subscription rights, subscription warrants, etc.

(3) Please specify the number of shares in case of stocks and the number of shares to be converted or redeemed in case of equity-linked bonds and specify the face amount of the bonds in Note column.

(4) Please specify the reasons for mandatory holding by classifying them into 'mandatory holding pursuant to the KOSDAQ Market Listing Regulation' (referring to the mandatory holding due to initial listing, merger, stock swap, business acquisition, asset acquisition, investment in-kind and change of the largest shareholder by the third party share allotment) and 'others' (referring to the capital increase by private placement, etc.). (In cases where there are two or more reasons for mandatory holding for the same stocks, please specify those reasons separately.)

(5) In cases where the different class of stocks have different terms from those of common stocks, the details shall be described as a footnote.

Attachment: A written confirmation on mandatory holding issued by the KSD.

Affirmed by;

Name of company:

Name and seal of shareholder:

Name and seal of shareholder:

Written Affirmation on Mandatory Holding (Listing Maintenance Review)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

I and the related persons (hereinafter referred to as “the party undersigned”) hereby affirm that we, as a person subject to mandatory holding pursuant to [§57(11)] of the KOSDAQ Market Listing Regulation, will comply with the following matters with respect to the listing maintenance review of company (hereinafter referred to as “the Company”), a KOSDAQ-listed corporation.

1. The party undersigned will mandatorily hold the stocks, etc. (referring to the securities in [§2(1)10] of the KOSDAQ Market Listing Regulation and including the bonus stocks issued pursuant to [§3(1)] of the Enforcement Rules of the KOSDAQ Market Listing Regulation; the same hereinafter) issued by the Company which are owned by the party undersigned, as detailed in subparagraph 5 except for the cases where the Exchange deems it inevitable such as fulfillment of statutory obligations and M&As, etc., in accordance with [§57(11)] of the KOSDAQ Market Listing Regulation, and will not make the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. unless the Exchange deems it necessary during the relevant period.
2. The party undersigned will comply with the related regulations concerning the method of disclosing the fact in the case of mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. owned by the persons subject to mandatory holding and the method of handling the matter in the event that the mandatory holding becomes impracticable due to the provision of the relevant stocks, etc. as collateral, etc.
3. The party undersigned will make the mandatory holding, accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc. of the stocks, etc. owned by the party undersigned during the mandatory holding period only through the financial investment company licensed of investment dealing business (including underwriting business) and investment brokerage business for the securities under Article 8 of the Act, and will not raise any objection to the publication as a market notice by the listing sponsor of the facts if the accounts transfer, establishment and removal of a pledge right, sales, withdrawal, etc., of the relevant stocks, etc. are made.
4. The party undersigned will faithfully respond to the request of the Exchange to confirm the fact in cases where the party undersigned, as the persons subject to mandatory holding violate relevant

regulations by presale contract, etc., and will not raise any objection to any measures to be taken by the Exchange.

5. Details of stocks, etc. under mandatory holding by the persons subject to mandatory holding

Name of shareholder	Type of nominee ⁽¹⁾	Name of company	Type of securities ⁽²⁾	Number of shares ⁽³⁾	Reasons for mandatory holding ⁽⁴⁾	Mandatory holding period		Note
						Begins on	Ends on	
			Common stocks					
			Different class of stocks					
			Other securities					
			Common stocks					
			Different class of stocks					
			Other securities					
Total			Common stocks					
			Different class of stocks					
			Other securities					

Notes:

(1) 'Type of nominee' shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from the KOSDAQ-listed corporation's view but in case of listed corporations, '(listed)' shall be stated in front of type. (e.g.) (listed) largest shareholder, (listed) specially related parties), etc.

(2) Please specify the type of securities subject to mandatory holding, such as common stocks, different class of stocks (convertible different class of stocks, etc.), preferred stocks (convertible and redeemable preferred stocks, etc.), convertible bonds, bonds with subscription rights, subscription warrants, etc.

(3) Please specify the number of shares in case of stocks and the number of shares to be converted or redeemed in case of equity-linked bonds and specify the face amount of the bonds in Note column.

(4) Please specify the reasons for mandatory holding by classifying them into 'mandatory holding pursuant to the KOSDAQ Market Listing Regulation' (referring to the mandatory holding due to initial listing, merger, stock swap, business acquisition, asset acquisition, investment in-kind, listing maintenance review, and change of the largest shareholder by the third party share allotment and paper company association, etc.) and 'others' (referring to the capital increase by private placement, etc.). (In cases where there are two or more reasons for mandatory holding for the same stocks, please specify those reasons separately.)

(5) In cases where the different class of stocks have different terms from those of common stocks, the details shall be described as a footnote.

Attachment: A written confirmation on mandatory holding issued by the KSD.

Affirmed by;

Name of company:

Name and seal of shareholder:

Name and seal of shareholder:

[Annex Form No.15] Written Confirmation on Merger
(Amended on July 9, 2025)

Written Confirmation on Merger
(Pertaining to [§32] of the Enforcement Rules)

To Chairperson of Korea Exchange,

:A” Company, the party undersigned, hereby confirms that there is no doubt of the truth of following information pursuant to [§34] or [§64] of the KOSDAQ Market Listing Regulation with respect to the merger with an unlisted corporation or a KONEX-listed corporation (hereinafter referred to as “the unlisted corporation, etc.” in this form) and if any false fact is found, the corporation will make no objections to delisting, designation as administrative issue and any other measures taken by the Korea Exchange based on the relevant regulations and enforcement rules of the KOSDAQ market, and that the corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of unlisted corporation:

2. Matters on the change of the largest shareholder⁽¹⁾

	Yes/No	Name of the largest shareholder in case of "Yes"		
		Before change	After change	Relation ⁽²⁾
2-1. Whether the largest shareholder ⁽³⁾ or shareholders with at least 5% of stocks of unlisted corporation became the largest shareholder of the Corporation within one (1) year before the submission date of report on material facts of the merger	Yes No			
2-2. Whether the largest shareholder ⁽³⁾ or shareholders with at least 5% of stocks of unlisted corporation became the largest shareholder of the Corporation as a result of the merger (refers to case of becoming the largest shareholder by the ratio of merger on the report of the merger)	Yes No			

Notes:

(1) (a) Regarding the determination of the largest shareholder on “2-1 and 2-2”, stocks that will be increased (based on the conversion price as of the submission date of the report on material facts of the merger; the

same hereinafter) by the exercise of rights of equity-linked bonds*, which has not been exercised as of the submission date of the report on material facts of the merger, and stocks (stocks presale contract etc.) and equity-linked bonds*(based on number of stocks that can be increased by the exercise of right) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the report on material facts of the merger shall be included.

* Including rights whose time to exercise rights has not yet arrived.

(b) In case where the largest shareholder or shareholder with 5% or more of shares of unlisted corporation is not the largest shareholder from one year before the submission date of the report on material facts of the merger by the method (a) above, it shall be determined whether a shareholder becomes the largest shareholder as of the submission date of the report on material facts of the merger or a shareholder becomes the largest shareholder by the merger.

(2) The relation refers to the relation between the changed largest shareholder of the corporation and unlisted corporation that is subject to merger [shall be write “the largest shareholder”, “the related persons of the largest shareholder” (including the unlisted corporation concerned), “representative director”, “executive”, “shareholders with 5% or more of shares of the unlisted corporation, and the like]

(3) It means the largest shareholder and his/her related persons (including the relevant unlisted corporation).

3. Matters to determine whether the size of unlisted corporation is larger than the Corporation

(In KRW)

3. Whether or not the size of unlisted corporation is larger than the Corporation ⁽¹⁾	Yes / No			
	Total assets	Capital	Sales	Corporate value
The Corporation ⁽²⁾				
Unlisted corporation ⁽²⁾				

Notes:

(1) “Yes” for the cases where at least two of total assets, capital and sales of the unlisted corporation are larger than the Corporation, or if the corporate value of the unlisted corporations, etc. calculated in accordance with the Regulations on Issuance and Disclosure of securities, taking into account the merger price noted in the report on key facts of the merger, is greater than that of the Corporation.

(2) Figures shall be based on the latest business year (or at the end of the latest business year) as of the submission date of the report on material facts of the merger.

※ The tables below shall be completed only for the cases where one or more of the answers to 2-1, 2-2 and 3 above is/are “Yes”

※ In cases where the answers to all of 2-1, 2-2 and 3 above are “No”, submissions of documents noted in 6-5, 6-7, 6-8, 6-9, 6-10, 6-11, and 6-12 are exempted.

4. Matters on the fulfillment of merger requirements ⁽¹⁾

	Requirements	Yes/No (o/x)	Note
Size of corporation ⁽²⁾⁽⁶⁾	Equity capital shall be at least KRW 3 billion (at least KRW 1.5 billion in case where the unlisted corporation is a venture business)		
Profit of going concern business before corporate tax ⁽³⁾⁽⁴⁾	Profit shall exist		
Size of profit ⁽³⁾⁽⁴⁾⁽⁶⁾	a) Return on equity as of recent business year end shall be at least 10/100 (5/100 in case where the unlisted corporation is a venture business); or b) Net profits of recent business year shall be at least KRW 2 billion (KRW 1 billion in case where the unlisted corporation is a venture business)		
Impaired capital ⁽⁶⁾⁽⁷⁾	There shall be no capital impediment.		
Audit opinion ⁽³⁾⁽⁴⁾	Unqualified		

Notes:

(1) As of the submission date of the report on material facts of merger

(2) In case where the unlisted corporation is a venture business, the 'venture business' shall be stated under Note and the confirmation of venture shall be attached.

(3) It refers to performance of an unlisted corporation in recent business year (or as of the end of recent business year)

(4) In case where the period of recent business year of an unlisted corporation is less than 6 months, the same requirement shall apply for the recent business year and the previous business year.

(5) In the case of a corporation that has subsidiaries, the equity shall be based on equity capital of consolidated financial statements but it shall exclude non-controlling interests

(6) It refers to performance of an unlisted corporation at the end of recent business year. However, amounts to be capitalized by the capital increase through issuing new shares and revaluing assets during the current business year shall be reflected.

5. Matters on mandatory holding

Reason for mandatory holding ⁽¹⁾	Nominee ⁽²⁾	Type of nominee ⁽³⁾	Target stocks ⁽⁴⁾	Mandatory holding						Note
				Name of corporation ⁽⁵⁾	Listed/unlisted ⁽⁶⁾	Volume ⁽⁷⁾	Starting date ⁽⁸⁾	Ending date ⁽⁹⁾	Period ⁽¹⁰⁾	
Largest shareholder										

Notes:

(1) The table above shall be completed for each of the following reasons for mandatory holding.

* In cases where the period of mandatory holding is overlapped by the duplication of reasons for mandatory holding, the reason with the longest mandatory holding period shall be stated. Any different mandatory holding periods for different reasons shall be stated separately.

Reasons for mandatory holding	Explanations
Largest shareholder	Holdings of the largest shareholder and his/her specially related parties
Stocks allocated to third party	In case of the stock acquisition by the third-party allotment from 6 months before the submission date of report on material facts to the date of supplementary listing
Acquisition of shares held by the largest shareholder	In case of the stock acquisition from the largest shareholder from 6 months before the submission date of report on material facts to supplementary listing day
Venture capital and professional investor	Stocks with under 2 years of investment period as of the submission date of the report on material facts
Business acquisition	Mandatory holding related to business acquisition
Asset acquisition	Mandatory holding related to asset acquisition
Investment in-kind	Mandatory holding related to investment in-kind
Mandatory holding during back-door listing	Mandatory holding during review of back-door listing and proceeding of procedures (the largest shareholders of KOSDAQ listed corporation and unlisted corporation are subject to the mandatory holding)
Others	Private offering, voluntary mandatory holding, etc.

(2) Name of a person or name of corporation

(3) Type of nominee shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from unlisted corporation's view but in case of listed corporation, (listed) shall be stated in front of type (for example, (listed))

largest shareholder and (listed) specially related parties).

(4) Type of target stocks such as common stock, preferred stock, redeemable convertible preferred stock, convertible bond, bond with subscription right and subscription warrant shall be stated.

(5) Name of a corporation that issued stocks subject to mandatory holding.

6) "Listing" in case the stock is listed on KOSDAQ market and otherwise it shall be "unlisted".

(7) Number of stock in case of stocks and number of stock to be issued by conversion or redemption in case of equity-linked bonds.

(8) The starting date of mandatory holding but if the date is undecided, leave blank

(9) The ending date of mandatory holding reason but if the date is undecided, leave blank (e.g., Oct. 1, 2010)

(10) The period of mandatory holding shall be stated under reason for mandatory holding (1 year, 6 months, 1 month, etc.)

6. Documents to be attached

	List of attachments	Attached or not (o/x)	Note
6-1	Written affirmation on mandatory holding by those who are subject to mandatory holding		
6-2	List of shareholders and summary list of shareholders ⁽¹⁾ (in case of the largest shareholder and shareholders who hold at least 5% of shares shall be stated separately) of unlisted corporation as of the submission date of the report on material facts of merger		
6-3	Details of stock holdings in an unlisted corporation by the largest shareholder and shareholders who hold at least 5% of the unlisted corporation ²⁾		
6-4	Statement of largest shareholder's stock holdings ⁽²⁾		
6-5	Audit report of an unlisted corporation		
6-6	Certified copy of corporate register for an unlisted corporation (including changes in capital for recent 2 years)		Including close-down and cancellation
6-7	Confirmation of main creditor bank of an unlisted corporation		No bankruptcy or the bankruptcy is resolved within 6 months
6-8	Confirmation of venture business if an unlisted corporation is a venture business		
6-9	Statement of change in stock holdings and statement of contributed equity transfer for recent 2 years (issued by tax office)		
6-10	Changes in capital for recent 2 years(including capital increase, issuance, allocation and redemption of equity-linked bonds and expected volume to be issued until the date of merger)		

6-11	Documents certifying mandatory holding during back-door listing		Attached when documents for back-door listing review are submitted
6-12	Other documents to ensure above contents		

Notes:

(1) Two summaries shall be prepared based on the date of one (1) year before the submission date of the report on material facts of merger and the date of submission of the report on material facts of merge.

(2) a) Three statements shall be prepared based on each of the date of one (1) year before, before the merger and after the merger.

b) Matters such as the number of stocks held, the number of stocks to be issued by the right exercise of equity linked bonds, the number of stocks subject to claims for transfer and the number of stocks to be issued by right exercise of equity linked bonds subject to claims for shall be stated separately. (please refer to reference 1 in item 2 above)

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No.16] Written Confirmation on All-inclusive Stock Swap

Written Confirmation on All-inclusive Stock Swap

(Pertaining to [§32] of the Enforcement Rules)

To Chairperson of Korea Exchange,

“A” Corporation (“the Corporation” hereinafter), the party undersigned, hereby confirms that there is no doubt of the truth of following information pursuant to [§34] or [§64] of the KOSDAQ Market Listing Regulation, with respect to all-inclusive stock swap with an unlisted corporation or a KONEX-listed corporation (hereinafter referred to as “the unlisted corporation, etc.” in this form) and if any false fact is found, the Corporation will make no objections to delisting, designation and release of administrative issue, etc. taken by the Exchange against the Corporation based on the relevant KOSDAQ Market regulations and enforcement rules of the same regulations. Also, the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of unlisted corporation:

2. Matters in relation with change in the largest shareholder⁽¹⁾

	Yes / No	Name of the largest shareholder in case of “Yes”		
		Before change	After change	Relation ⁽²⁾
2-1. Whether the largest shareholder ⁽³⁾ or shareholders with at least 5% of stocks of unlisted corporation became the largest shareholder of the Corporation within one (1) year before the submission date of the report on material facts of the stock swap	Yes No			
2-2. Whether the largest shareholder ⁽³⁾ or shareholders with at least 5% of unlisted corporation became the largest shareholder of the Corporation as a result of the stock swap (refers to case of becoming the largest shareholder by the ratio of stock swap on the report of the stock swap)	Yes No			

Notes:

(1) (a) Regarding the determination of largest shareholder on “2-1 and 2-2”, stocks that will be increased (based

on the conversion price as of the submission date of the report on material facts of stock swap; the same hereinafter) by the exercise of right for equity-linked bonds*, which has not been exercised as of the submission date of the report on material facts of stock swap, and stocks (stocks of presale contract etc.) and equity-linked bonds* (based on the number of stocks that can be increased by the exercise of right) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the report on material facts of the stock swap shall be included.

* Including rights whose time to exercise rights has not yet arrived.

(b) In case where the largest shareholder or shareholder with 5% or more of shares of unlisted corporation is not the largest shareholder from one year before the submission date of the report on material facts of stock swap by the method a) above, it shall be determined whether a shareholder becomes the largest shareholder as of the submission date of the report on material facts of the stock swap or a shareholder becomes the largest shareholder by the stock swap.

(2) The relation refers to the relation between the changed largest shareholder of the corporation and unlisted corporation that is subject to stock swap [write in the order of the largest shareholder of an unlisted corporation that is subject to stock swap, related persons of the largest shareholder (including the unlisted corporation), representative, executives, or shareholders who own at least 5% of shares]

(3) It means the largest shareholder and his/her related persons (including the unlisted corporation).

※ The table below shall be completed only for the cases where one or more of the answers to 2-1 and 2-2 above is/are “Yes”

※ In cases where the answers to 2-1 and 2-2 above are “No”, the submission of documents related to 5-5, 5-7, 5-8, 5-9, 5-10, 5-11, and 5-12 is not necessary.

3. Matters on fulfillment of stock swap requirements⁽¹⁾

	Requirements	Yes/No (o/x)	Note
Size of corporation ⁽²⁾⁽⁶⁾	Equity capital shall be at least KRW 3 billion(at least KRW 1.5 billion in case where the unlisted corporation is a venture business)		
Profit of going concern business before corporate tax ⁽³⁾⁽⁴⁾	Profit shall exist		
Size of profit ⁽³⁾⁽⁴⁾⁽⁶⁾	(a) Return on equity as of recent business year end shall be at least 10/100 (5/100 in case where the unlisted corporation is a venture business); or (b) Net profits of recent business year shall be at least KRW 2 billion (KRW 1 billion in case where the unlisted corporation is a venture business)		
Impaired capital ⁽⁶⁾⁽⁷⁾	There shall be no capital impediment.		
Audit opinion ⁽³⁾⁽⁴⁾	Unqualified		

Notes:

(1) As of the submission date of the report on material facts of stock swap.

(2) In case where the unlisted corporation is a venture business, the 'venture business' shall be stated under Note and the confirmation of venture shall be attached.

(3) It refers to performance of an unlisted corporation in recent business year (or end of recent business year)

(4) In case where the period of recent business year of an unlisted corporation is less than 6 months, the same requirement shall apply for the recent business year and the previous business year.

(5) In case of corporation that has subsidiaries, the equity shall be based on equity capital of consolidated financial statements but it shall exclude non-controlling interests.

(6) It refers to performances of unlisted corporation at the end of recent business year. However, amounts to be capitalized by the capital increase through issuing new shares and revaluating assets during the current business year shall be reflected.

4. Matters on mandatory holding

Reason for mandatory holding ⁽¹⁾	Nominee ⁽²⁾	Type of nominee ⁽³⁾	Target stocks ⁽⁴⁾	Mandatory holding						Note
				Name of corporation ⁽⁵⁾	Listed/unlisted ⁽⁶⁾	Volume ⁽⁷⁾	Starting date ⁽⁸⁾	Ending date ⁽⁹⁾	Period ⁽¹⁰⁾	
Largest shareholder										

Notes:

(1) The table above shall be completed for each of the following reasons for mandatory holding.

* In cases where the period of mandatory holding is overlapped by the duplication of reasons for mandatory holding, the reason with the longest mandatory holding period shall be stated. Any different mandatory holding periods for different reasons shall be stated separately.

Reasons for mandatory holding	Explanations
Largest shareholder	Holdings of the largest shareholder and his/her specially related parties
Stocks allocated to third party	In case of the stock acquisition by the third-party allotment from 6 months before the submission date of report on material facts to the date of supplementary listing

Acquisition of shares held by the largest shareholder	In case of the stock acquisition from the largest shareholder from 6 months before the submission date of report on material facts to supplementary listing day
Venture capital and professional investor	Stocks with under 2 years of investment period as of the submission date of the report on material facts
Business acquisition	Mandatory holding related to business acquisition
Asset acquisition	Mandatory holding related to asset acquisition
Investment in-kind	Mandatory holding related to investment in-kind
Mandatory holding during back-door listing	Mandatory holding during review and proceeding back-door listing procedure (the largest shareholders of KOSDAQ listed corporation and unlisted corporation are subject to the safe custody)
Others	Private offering, voluntary mandatory holding, etc.

(2) Name of a person or name of corporation

(3) Type of nominee shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from unlisted corporation's view but in case of listed corporation, (listed) shall be stated in front of type (for example, (listed) largest shareholder and (listed) specially related parties).

(4) Type of target stocks such as common stock, preferred stock, redeemable convertible preferred stock, convertible bond, bond with subscription right and subscription warrant shall be stated.

(5) Name of a corporation that issued stocks subject to mandatory holding.

(6) "Listing" in case the stock is listed on KOSDAQ market and otherwise it shall be "unlisted".

(7) Number of stock in case of stocks and number of stock to be issued by conversion or redemption in case of equity-linked bonds.

(8) The starting date of mandatory holding but if the date is undecided, leave blank

(9) The ending date of mandatory holding reason but if the date is undecided, leave blank (e.g., Oct. 1, 2010)

(10) The period of mandatory holding shall be stated under reason for mandatory holding (1 year, 6 months, 1 month, etc.)

5. Documents to be attached

	Name of attached document	Attached or not (o/x)	Note
5-1	Written affirmation on mandatory holding by those who are subject to mandatory holding		
5-2	List of shareholders and summary list of shareholders ⁽¹⁾ (in case of the largest shareholder and shareholders who hold at least 5% of shares shall be stated separately) of unlisted corporation as of the		

	submission date of report on material facts of stock swap		
5-3	Details of stock holdings in the KOSDAQ listed corporation by the largest shareholder and shareholders who hold at least 5% of the unlisted corporation ⁽²⁾		
5-4	Statement of largest shareholder's stock holdings ⁽²⁾		
5-5	Audit report of an unlisted corporation		
5-6	Certified copy of corporate register for an unlisted corporation (including changes in capital for recent 2 years)		Including close-down and cancellation
5-7	Confirmation of main creditor bank of an unlisted corporation		No bankruptcy or the bankruptcy is resolved within 6 months
5-8	Confirmation of venture business if an unlisted corporation is a venture business		
5-9	Statement of change in stock holdings and statement of contributed equity transfer for recent 2 years (issued by tax office)		
5-10	Changes in capital for recent 2 years (including capital increase, issuance, allocation and redemption of equity-linked bonds and expected volume to be issued until the date of merger)		
5-11	Documents certifying mandatory holding during back-door listing		Attached when documents for back-door listing review are submitted
5-12	Other documents to ensure above contents		

Notes:

(1) Two summaries shall be prepared based on the date of one (1) year before the submission date of the report on material facts of merger and the date of submission of the report on material facts of merge.

(2) a) Three statements shall be prepared based on each of the date of one (1) year before, before the merger and after the merger.

b) Matters such as the number of stocks held, the number of stocks to be issued by the right exercise of equity linked bonds, the number of stocks subject to claims for transfer and the number of stocks to be issued by right exercise of equity linked bonds subject to claims for shall be stated separately. (please refer to reference 1 in item 2 above)

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No. 17] Written Confirmation on Business Acquisition and Capital Increase by Third-party Allotment

Written Confirmation on Business Acquisition and Capital Increase
by Third-party Allotment

(Pertaining to [§32] of the Enforcement Rules)

To Chairperson of Korea Exchange,

“A” Corporation, the party undersigned, hereby confirms that there is no doubt of the truth of following information pursuant to [§34] and [§64] of the KOSDAQ Market Listing Regulation with respect to business acquisition from an unlisted corporation or a KONEX-listed corporation (hereinafter referred to as “the unlisted corporation, etc.” in this form) and capital increase by the third party stock allotment and if any false fact is found, the corporation will make no objections to delisting, designation and release of administrative issue, etc. taken by the Exchange based on the regulations and enforcement rules of the KOSDAQ market. The corporation will also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of the unlisted corporation:

2. Matters on business acquisition from unlisted corporation

2-1. Business that is subject to takeover		2-2. Submission date of the report on material facts of business acquisition	
2-3. Whether the asset amount or sales amount of business part that is subject to takeover at the end of recent business year shall be at least 30/100 of total asset amount or total sales amount of the unlisted corporation or not	Yes or No	* Asset amount of business part that is subject to takeover: Total asset amount at the end of recent business year: * Sales amount of business part that is subject to takeover: Total sales amount at the end of recent business year:	
2-4. Date of shareholders' meeting		2-5. Base date of business acquisition	

※ If the answer to “2-3” above is “Yes”, please go to “4” and if the answer to “2-3” is “No”, please go to “3”

3. Matters on business acquisition from unlisted corporation and the change of the largest shareholder

< Matters on business acquisition and third-party allotment of stocks >

3-1. Business that is subject to takeover		Submission date of the report on material facts of business acquisition	
		Date of shareholders' meeting	
		Base date of business acquisition	
3-2. Whether stocks are issued through the third party allotment within 6 months after the submission date of the report on material facts of business /assets takeover or not	Yes or No	3-2-1. List of allotted parties	
		3-2-2. Whether the largest shareholder of unlisted corporation is included among allotted parties or not	Yes or No
		* In case of 'Yes', name of allotted party and the relation ⁽¹⁾ shall be stated	
		3-2-3. Type of issued stock	
		3-2-4. Issuance date of equity securities	

Note (1) It refers to the relation between the unlisted corporation and allotted party [please state as the largest shareholder, related persons of the largest shareholder (including issuing corporation), representative, executives, or others of the unlisted corporation.]

< Matters on the change in the largest shareholder >

	Yes/No	Name of the largest shareholder in case of "Yes"		
		Before change	After change	Relation ¹⁾
3-3. Whether a KOSDAQ listed corporation has issued stocks through the third party allotment to the largest shareholder of an unlisted corporation within 6 months after submission date of the report on material facts of business acquisition and the largest shareholder of the unlisted corporation became the largest shareholder of the KOSDAQ listed corporation between the submission date of the report on material facts and the date of issuance	Yes or No			
3-4. Whether a KOSDAQ listed corporation issues stocks to the largest shareholder of an unlisted corporation through the third party allotment within 6 months after the submission date of the report on material facts of business acquisition and the largest shareholder of the unlisted corporation became the largest shareholder the KOSDAQ listed corporation	Yes or No			

Note (1) The relation refers to the relation between the largest shareholder of the corporation after the change and an unlisted corporation that is subject to business acquisition [state as the largest shareholder; related persons of the largest shareholder (including the unlisted corporation concerned), representative or executive of the unlisted corporation that is subject to business acquisition].

※ In case where the answer to “3-2” above is “Yes” and those to one or more of “3-3” and “3-4” are “Yes”, please complete “7” and submit “8-1, 8-2, 8-3, 8-4 (based on submission date of the report on material facts and after the issuance of stocks allotted to third parties), and 8-6” among attached documents.

※ In case where the answer to “3-2” above is “No” or those to “3-3” and “3-4” are “No”, submissions of documents related to “8-1, 8-3, 8-4, 8-5, 8-7, and 8-8” are exempted.

4. Matters on issuance of stocks allotted to third party

4-1 Whether stocks ⁽¹⁾ have been issued ⁽²⁾ through the third party allotment within one (1) year before the submission date of the report on material facts of business acquisition or not		Yes/No
(If 4-1 is 'Yes') ※ In case of 2 times or more of the third party allotment of stocks, each allotment shall be stated separately	4-1-1 List of allotted parties	
	4-1-2 Whether the largest shareholder ⁽³⁾ or shareholders who hold at least 5% of shares of unlisted corporation is/are included among allotted parties (including equity investors who invested at least 5%; the same hereinafter) or not	Yes/No
	* If 'Yes', the allotted parties and relation ⁽⁴⁾ shall be stated	
	4-1-3 Type of issued stock	
	4-1-4 Issuance date of stock, etc. ⁽⁵⁾	

Notes:

(1) It refers to stocks, stock subscription certificates, convertible bonds, bonds with warrants and exchangeable bonds.

(2) It is based on the issuance date of stocks.

(3) It refers to the largest shareholder (including the largest investors; the same hereinafter) and his/her related persons (including the unlisted corporation concerned).

(4) It refers to the relation between an unlisted corporation and allotted party [please state the largest shareholder, related persons of the largest shareholder (including issuing corporation), representative, executive, or others of the unlisted corporation.]

(5) It refers to the next day of stock payment date in the case of equity securities.

4-2 Whether there is a plan ⁽²⁾ to issue stocks ⁽¹⁾ through the third party allotment within six (6) months after the submission date of the report on material facts of business acquisition or not		Yes/ No
(If 4-2 is 'Yes')	4-2-1 List of allotted parties	

※ In case of 2 times or more of the third party allotment of stocks, each allotment shall be stated	4-2-2 Whether the largest shareholder ⁽³⁾ or shareholders who hold at least 5% of shares of unlisted corporation is/are included among allotment parties or not	Yes/ No
	* If 'Yes', the allotted parties and relation ⁽⁴⁾ shall be stated	
	4-2-3 Type of stock scheduled to be issued	
	4-2-4 Scheduled issuance date of stocks ⁽⁵⁾	

Notes:

(1) It refers to stocks, stock subscription certificates, convertible bonds, bonds with warrants and exchangeable bonds.

(2) It is based on the scheduled issuance date of stocks, etc.

(3) It refers to the largest shareholder and his/her related persons (including the unlisted corporation).

(4) It refers to the relation between the unlisted corporation and allotted party [please state as the largest shareholder, related persons of the largest shareholder (including issuing corporation), representative, executive, or others of the unlisted corporation]

(5) It refers to the next day of scheduled stock payment date in case of stocks

※ The tables below shall be completed only for the cases where the answers to one or more of “4-1-2” and “4-2-2” are “Yes”.

※ In cases where the answers to “4-1” and “4-2” above are “No”, submissions of documents related to “8-1, 8-3, 8-4, 8-5, 8-7, and 8-8” are exempted.

※ In cases where answers to both of “4-1-2” and “4-2-2” above are “No”, submissions of documents related to “8-1, 8-3, 8-4, 8-5, 8-7, and 8-8” are exempted.

※ If the answer to “4-2-2” is “Yes”, when completing items under “5” and attached documents of “8-2, 8-3 and 8-4”, please include the number of stocks to be held until the scheduled issuance date with respect to the number of stocks as of scheduled issuance date through the third party stock allotment and the determination of the largest shareholder.

5. Matters on the change in the largest shareholder⁽¹⁾

	Yes / No	Name of the largest shareholder in case of "Yes"		
		Before change	After change	Relation ⁽²⁾
5-1. In case where "4-1 and 4-1-2" are "Yes", whether the largest shareholder ⁽³⁾ or shareholders who hold at least 5% of shares of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation within one(1) year before the submission date of the report on material facts of business acquisition or in case where "4-1 and 4-1-2" are "Yes", whether the largest shareholder or shareholders who hold at least 5% of shares of an unlisted corporation became the largest shareholder between the submission date of the report on material facts and the date of stock issuance through the third party allotment	Yes or No			
5-2. Whether the largest shareholder or shareholders who hold 5% of shares of unlisted corporation became the largest shareholder of the KOSDAQ listed corporation through the third party stock allotment	Yes or No			

Notes:

(1) (a) Regarding the determination of largest shareholder on "5-1 and 5-2", stocks that will be increased (based on the conversion price as of the submission date of the report on material facts of business acquisition and issuance date of the concerned stock; the same hereinafter) by the exercise of rights of equity-linked bonds* (including the issued stocks concerned), which has not been exercised as of the submission date of the report on material facts of business acquisition and issuance date of the concerned stock, and stocks (stocks of presale contract etc.) and equity-linked bonds* (based on the number of stocks that can be increased by the exercise of right) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the report on material facts of the business acquisition and date of concerned stock issuance shall be included.

* Including rights whose time to exercise rights has not yet arrived.

(b) In case where the largest shareholder or shareholders with 5% or more of shares of unlisted corporation is/are not the largest shareholder from one year before the submission date of the report on material facts of business acquisition by the method a) above, it shall be determined whether a shareholder becomes the largest shareholder as of the submission date of the report on material facts of the business acquisition or a shareholder becomes the largest shareholder by receiving stocks through the third party allotment.

(2) The relation refers to the relation between the changed largest shareholder of the corporation and an unlisted corporation [please state as the largest shareholder, related persons of the largest shareholder (including the concerned unlisted corporation), representative, executive, shareholders who hold at least 5% of shares of the unlisted corporation]

(3) The largest shareholder and his/her related persons (including the concerned unlisted corporation)

※ The tables below shall be completed only for the cases where the answers to one or more of "5-1" and "5-2" are "Yes".

※ In cases where the answers to “5-1” and “5-2” are “No”, submission of documents related to “8-5” is exempted.

6. Matters on fulfillment of requirements ⁽¹⁾ for business acquisition from unlisted corporation and capital increase by the third party stock allotment

	Requirements	Yes/No (o/x)	Note
Profit of going concern business before corporate tax ^{(2),(3)}	Profit shall exist		
Size of liability ⁽²⁾	Liabilities shall not exceed assets		
Audit opinion ^{(2),(3),(4)}	Unqualified		

Notes:

(1) As of the submission date of the report on material facts of business acquisition

(2) It refers to performance of business unit to be taken over in recent business year (or end of recent business year). However, in case of corporation that is subject to consolidated financial statements, the above table shall be completed based on consolidated financial statements.

(3) In case where the recent business year of unlisted corporation is under 6 months, the same condition shall apply for the recent business year and the previous business year.

(4) It refers to audit opinion of corporation whose asset, liability and profits of going concern business before corporate tax of business part to be taken over are stated in note. [If the confirmation of auditor (it is limited to the same auditor of financial statements only) regarding concerned assets and others is submitted, it is considered as statements in note.] However, in case of corporation that is subject to consolidated financial statements, it refers to audit opinion of consolidated financial statements.

7. Matters on mandatory holding

Reason for mandatory holding ⁽¹⁾	Nominee ⁽²⁾	Type of nominee ⁽³⁾	Target stocks ⁽⁴⁾	Mandatory holding						Note
				Name of corporation ⁽⁵⁾	Listed/unlisted ⁽⁶⁾	Volume ⁽⁷⁾	Starting date ⁽⁸⁾	Ending date ⁽⁹⁾	Period ⁽¹⁰⁾	
Largest shareholder										

Notes:

(1) The table above shall be completed for each of the following reasons for mandatory holding.

* In cases where the period of mandatory holding is overlapped by the duplication of reasons for mandatory holding, the reason with the longest mandatory holding period shall be stated. Any different mandatory holding

periods for different reasons shall be stated separately.

Reasons for mandatory holding	Explanations
Largest shareholder	Holdings of the largest shareholder and his/her specially related parties
Stocks allocated to third party	In case of the stock acquisition by the third-party allotment from 6 months before the submission date of report on material facts to the date of supplementary listing
Acquisition of shares held by the largest shareholder	In case of the stock acquisition from the largest shareholder from 6 months before the submission date of report on material facts to supplementary listing day
Venture capital and professional investor	Stocks with under 2 years of investment period as of the submission date of the report on material facts
Business acquisition	Mandatory holding related to business acquisition
Asset acquisition	Mandatory holding related to asset acquisition
Investment in kind	Mandatory holding related to investment in kind
Mandatory holding during back-door listing	Mandatory holding during review of back-door listing and proceeding of procedures (the largest shareholders of KOSDAQ listed corporation and unlisted corporation are subject to the mandatory holding)
Others	Private offering, voluntary mandatory holding, etc.

(2) Name of a person or name of corporation

(3) Type of nominee shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from unlisted corporation's view but in case of listed corporation, (listed) shall be stated in front of type (for example, (listed) largest shareholder and (listed) specially related parties).

(4) Type of target stocks such as common stock, preferred stock, redeemable convertible preferred stock, convertible bond, bond with subscription right and subscription warrant shall be stated.

(5) Name of a corporation that issued stocks subject to mandatory holding.

(6) "Listing" in case the stock is listed on KOSDAQ market and otherwise it shall be "unlisted".

(7) Number of stock in case of stocks and number of stock to be issued by conversion or redemption in case of equity-linked bonds.

(8) The starting date of mandatory holding but if the date is undecided, leave blank

(9) The ending date of mandatory holding reason but if the date is undecided, leave blank (for example, Oct. 1, 2010)

(10) The period of mandatory holding shall be stated under reason for mandatory holding (1 year, 6 months, 1 month, etc.)

8. Documents to be attached

	Name of attached document	Attached or not (o/x)	Note
8-1	Written affirmation on mandatory holding by those who are subject to mandatory holding * It is limited to cases when the issuance date of third party stock allotment is after the submission date of the report on material facts		
8-2	List of shareholders (including equity investors) and summary list of shareholders ⁽¹⁾ of unlisted corporation (in case of the largest shareholder and shareholders who hold at least 5% of shares, they shall be stated separately)		
8-3	Details of stock holdings in the KOSDAQ listed corporation by the largest shareholder and shareholders who hold at least 5% of the unlisted corporation ⁽²⁾		
8-4	Statement of stock holdings ⁽²⁾ of the largest shareholder of the KOSDAQ listed corporation		
8-5	Audit report of an unlisted corporation		
8-6	Certified copy of corporate register for an unlisted corporation		Including close-down and cancellation
8-7	Documents certifying mandatory holding during back-door listing review		Attach it when documents for back-door listing review are submitted
8-8	Other documents to ensure above contents		

Notes:

(1) Two summaries shall be prepared as of the submission date of the report on material facts of business acquisition and the issuance date of stocks through the third party allotment.

(2) a) Four statements shall be prepared based on the date of one (1) year before, as of submission date of the report on material facts of business acquisition and before and after the third party stock allotment.

b) Matters such as number of stocks held, number of stocks to be issued by right exercise of equity linked bonds, number of stocks subject to claims for transfer and number of stocks to be issued by right exercise of equity linked bonds subject to claims for transfer (please refer to reference 1 in item 5 above) shall be stated separately.

※ Pursuant to [§32(2)] of the Enforcement Rules of KOSDAQ Market Listing Regulation, in case where confirmation regarding the issuance of third party stock allotment within 6 months after the submission date of the report on material facts of business acquisition is submitted additionally, “4-2 and 5” and related documents of “8-2, 8-3 and 8-4” shall be completed based on the actual issuance instead of a plan of issuance.

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No. 18] Written Confirmation on Business Acquisition and Stock Transfer

Written Confirmation on Business Acquisition and Stock Transfer

(Pertaining to [§32] of the Enforcement Rules)

To Chairperson of Korea Exchange,

“A” Corporation, the party undersigned, confirms that there is no doubt of the truth of following information pursuant to [§34] of the KOSDAQ Market Listing Regulation with respect to business acquisition and stock transfer from an unlisted corporation or a KONEX-listed corporation (hereinafter referred to as “the unlisted corporation, etc.” in this form) and if any false fact is found, the corporation will make no objections to delisting, designation and release of administrative issue, etc. taken by the Exchange based on the regulations and enforcement rules of the KOSDAQ market. The corporation shall also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of unlisted corporation:

2. Matters on business acquisition from unlisted corporation

2-1. Business part that is subject to takeover		2-2. Submission date of the report on material facts of business acquisition	
2-3. Whether the asset amount or sales amount of business part that is subject to takeover at the end of recent business year is be at least 30/100 of total asset amount or total sales amount of the unlisted corporation?	Yes or No	* Asset amount of business part that is subject to takeover: Total asset amount at the end of recent business year: * Sales amount of business part that is subject to takeover: Total sales amount at the end of recent business year:	
2-4. Date of shareholders' meeting		2-5. Base date of business acquisition	

※ If the answer to “2-3” above is “No”, please complete only the items below “6” and attach documents noted in “7-1” and “7-9” and submissions of documents noted in “7-2” through “7-8” are exempted.

3. Matters on stock transfer

3-1 Whether the change in the largest shareholder within 1 year before the submission date of the report on material facts of business acquisition is disclosed ⁽¹⁾ or not		Yes/No
(if 3-1 is 'Yes') ※ In case of 2 times or more of changes of the largest shareholder, each change shall be stated separately	3-1-1 Name of changed and disclosed largest shareholder	
	3-1-2 Whether the changed and disclosed largest shareholder is the largest shareholder ⁽²⁾ or shareholder with 5% or more of shares of an unlisted corporation (including investors who invested 5% or more; The same hereinafter) or not	Yes/No
	* If 'Yes', the relation with unlisted corporation ⁽³⁾	
	3-1-3 Date of stock transfer ⁽⁴⁾	

Notes:

(1) It is based on reporting day pursuant to [§6(1)3a(i)] of the KOSDAQ Market Disclosure Regulation. However, if the reporting has not taken place despite the reason for reporting occurred, it is based on date of reason occurred.

(2) It refers to the largest shareholder (including the largest investor; the same hereinafter) and his/her related persons (including the unlisted corporation concerned)

(3) It refers to the relation between an unlisted corporation, etc. and changed and disclosed largest shareholder [please state as the largest shareholder; related persons of the largest shareholder. (including issuing corporation), representative, executives or others of the unlisted corporation, etc.]

(4) It refers to a date pursuant to (1) above.

3-2 Whether there is a plan ⁽¹⁾ to transfer stocks within 6 months after the submission date of the report on material facts of business acquisition or not		Yes/No
(if 3-2 is 'Yes') ※ In case of 2 times or more of stock transfers, each stock transfer shall be stated separately	3-2-1 List of predetermined stock transferee ⁽²⁾	
	3-2-2 Whether predetermined stock transferee is the largest shareholder ⁽³⁾ or shareholders with 5% or more of shares of an unlisted corporation or not	Yes/No
	* If 'Yes', the relation with the unlisted corporation ⁽⁴⁾	
	3-2-3 Scheduled date of stock transfer ⁽⁵⁾	

Notes:

(1) It is based on expected reporting day pursuant to [§6(1)3a(i)] of the KOSDAQ Market Disclosure Regulation.

(2) It refers to a party that shall be disclosed as the changed largest shareholder pursuant to [§6(1)3a(i)] of the KOSDAQ Market Disclosure Regulation.

(3) It refers to the largest shareholder and his/her related persons (including the unlisted corporation concerned).

(4) It refers to the relation between an unlisted corporation and predetermined stock transferee [please state as the largest shareholder; related persons of the largest shareholder (including issuing corporation), representative, executives or others of the unlisted corporation, etc.]

(5) It refers to expected reporting day pursuant to [§6(1)3a(i)] of the KOSDAQ Market Disclosure Regulation.

- ※ The tables below shall be completed only for the cases where the answers to one or more of “3-1-2” and “3-2-2” above are “Yes”.
- ※ If the answers to both of “3-1” and “3-2” above are “No”, submission of the attached documents is exempted.
- ※ If the answers to both of “3-1-2” and “3-2-2” above are “No”, submission of the attached documents of “7-1, 7-3, 7-4, 7-5, 7-6, 7-7 and 7-8” is exempted.
- ※ If the answer to “3-2-2” is “Yes”, when filling in the items under “4” and attached documents of “7-2, 7-3 and 7-4”, please include the number of stock to be held until the scheduled stock transfer with respect to matters in relation with number of stock as of scheduled stock transfer and the determination of largest shareholder.

4. Matters on the change in the largest shareholder⁽¹⁾

	Yes/ No	Name of the largest shareholder in case of “Yes”		
		Before change	After change	Relation ²⁾
4-1. In case where “3-1 and 3-1-2” are “Yes”, whether the largest shareholder ³⁾ or shareholders who hold 5% of shares of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation within one(1) year before the submission date of the report on material facts of business acquisition or in case where “3-2 and 3-2-2” are “Yes”, whether the largest shareholder or shareholders who hold 5% of share of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation between the submission date of the report on material facts of business acquisition and the date of stock transfer	Yes or No			
4-2. Whether the largest shareholder or shareholders who hold 5% of shares of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation as a result of the stock transfer	Yes or No			

Notes:

(1) (a) Regarding the determination of largest shareholder on “4-1 and 4-2”, stocks that will be increased (based on the conversion price as of the submission date of the report on material facts of business acquisition and issuance date of the concerned stock; the same hereinafter) by the exercise of right for equity-linked bonds* (including issued stocks concerned), which has not been exercised as of the submission date of the report on material facts of business acquisition and issuance date of the concerned stock, and stocks (stocks of presale contract etc.) and equity-linked bonds* (based on number of stocks that can be increased by the exercise of right) that are subject to transfer claims in accordance with the provisions of the Acts, transactions or other agreements as of the submission date of the report on material facts of the business acquisition and the date of relevant stock issuance shall be included.

* Including rights whose time to exercise rights has not yet arrived.

(b) In case where the largest shareholder or shareholders with 5% or more of shares of an unlisted corporation is/are not the largest shareholder from one year before the submission date of the report on material facts of business acquisition by method a) above, it shall be determined whether a shareholder becomes the largest shareholder as of the submission date of the report on material facts of the business acquisition or a shareholder becomes the largest shareholder by stock transfer.

(2) The relation refers to the relation between the changed largest shareholder of the corporation and unlisted corporation [please state as the largest shareholder; related persons of the largest shareholder (including the concerned unlisted corporation), representative, executives or shareholders who hold at least 5% of shares of the unlisted corporation]

(3) It refers to the largest shareholder and his/her related persons (including the concerned unlisted corporation)

※ The tables below shall be completed only for the cases where the answers to one or more of “4-1” and 4-2” above are “Yes”.

※ In case where the answers to both of “4-1” and “4-2” above are “No”, submission of documents related to “7-5” is exempted.

5. Matters on fulfillment of requirement⁽¹⁾ for business acquisition and stock transfer from unlisted corporation

	Requirements	Yes/No (o/x)	Note
Profit of going concern business before corporate tax ^{(2),(3)}	Profit shall exist		
Size of liability ⁽²⁾	Liabilities shall not exceed assets		
Audit opinion ^{(2),(3),(4)}	Unqualified		

Notes:

(1) As of the submission day for the main report of business acquisition

(2) It refers to performance of business part to be taken over in recent business year (or end of recent business year). However, in case of corporation that is subject to consolidated financial statements, the above table shall be completed based on consolidated financial statements.

(3) In case where the recent business year of unlisted corporation is under 6 months, the same condition shall apply for the recent business year and the previous business year.

(4) It refers to audit opinion of corporation whose asset, liability and profits of going concern business before corporate tax of business part to be taken over are stated in note. [If the confirmation of auditor (it is limited to the same auditor of financial statements only) regarding concerned assets and others, are submitted, it is considered as statements in note.] However, in case of corporation that is subject to consolidated financial statements, it refers to audit opinion of consolidated financial statements.

6. Matters on mandatory holding

Reasons for mandatory holding ⁽¹⁾	Nominee (2)	Type of nominee (3)	Target stocks (4)	Mandatory holding						Note
				Name of corporation (5)	Listed/unlisted (6)	Volume (7)	Starting date ⁽⁸⁾	Ending date ⁽⁹⁾	Period (10)	
Largest shareholder										

Notes:

(1) The table above shall be completed for each of the following reasons for mandatory holding.

* In cases where the period of mandatory holding is overlapped by the duplication of reasons for mandatory holding, the reason with the longest mandatory holding period shall be stated. Any different mandatory holding periods for different reasons shall be stated separately.

Reasons for mandatory holding	Explanations
Largest shareholder	Holdings of the largest shareholder and his/her specially related parties
Stocks allocated to third party	In case of the stock acquisition by the third-party allotment from 6 months before the submission date of report on material facts to the date of supplementary listing
Acquisition of shares held by the largest shareholder	In case of the stock acquisition from the largest shareholder from 6 months before the submission date of report on material facts to supplementary listing day
Venture capital and professional investor	Stocks with under 2 years of investment period as of the submission date of the report on material facts
Business acquisition	Mandatory holding related to business acquisition
Asset acquisition	Mandatory holding related to asset acquisition
Investment in-kind	Mandatory holding related to investment in-kind
Mandatory holding during back-door listing	Mandatory holding during review and proceeding back-door listing procedure (the largest shareholders of KOSDAQ listed corporation and unlisted corporation are subject to the mandatory holding)
Others	Private offering, voluntary mandatory holding, etc.

(2) Name of a person or name of corporation

(3) Type of nominee shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from unlisted corporation's view but in case of listed corporation, (listed) shall be stated in front of type (for example, (listed) largest shareholder and (listed) specially related parties).

(4) Type of target stocks such as common stock, preferred stock, redeemable convertible preferred stock, convertible bond, bond with subscription right and subscription warrant shall be stated.

(5) Name of a corporation that issued stocks subject to mandatory holding.

(6) "Listing" in case the stock is listed on KOSDAQ market and otherwise it shall be "unlisted".

(7) Number of stock in case of stocks and number of stock to be issued by conversion or redemption in case of equity-linked bonds.

(8) The starting date of mandatory holding but if the date is undecided, leave blank

(9) The ending date of mandatory holding reason but if the date is undecided, leave blank (for example, Oct. 1, 2010)

(10) The period of mandatory holding shall be stated under reason for mandatory holding (1 year, 6 months, 1 month, etc.)

7. Documents to be attached

	Name of attached document	Attached or not(○, ×)	Note
7-1	Written affirmation on mandatory holding by those who are subject to mandatory holding ※ It is limited to cases when the date of stock transfer is after the submission date of the report on material facts		
7-2	List of shareholders (including equity investors) and summary list of shareholders ⁽¹⁾ of unlisted corporation (in case of the largest shareholder and shareholders who hold at least 5% of shares, they shall be stated separately)		
7-3	Details of stock holdings in the KOSDAQ listed corporation by the largest shareholder and shareholders who hold at least 5% of the unlisted corporation ⁽²⁾		
7-4	Statement of stock holdings ⁽²⁾ of the largest shareholder of the KOSDAQ listed corporation		
7-5	Audit report of an unlisted corporation		
7-6	Certified copy of corporate register for an unlisted corporation		Including close-down and cancellation
7-7	Documents certifying mandatory holding during back-door listing review		Attach it when documents for back-door listing review are submitted
7-8	Other documents to ensure above contents		

Notes:

(1) Summaries shall be prepared as of the submission date of the report on material facts of business acquisition and before and after the disclosure of change in the largest shareholder, respectively.

(2) a) Four statements shall be prepared based on the date one (1) year before, as of submission date of the report on material facts of business acquisition and before and after third party stock allotment.

b) Matters such as number of stocks held, number of stocks to be issued by right exercise of equity linked bonds, number of stocks subject to claims for transfer and number of stocks to be issued by right exercise of equity linked bonds subject to claims for transfer (please refer to reference 1 in item 4 above) shall be stated separately.

※ Pursuant to [§32(2)] of the Enforcement Rules of KOSDAQ Market Listing Regulation, in the case where confirmation regarding the issuance of third party stock allotment within 6 months after the submission date of the report on material facts of business acquisition is submitted additionally, “3-2 and 4” and related documents of “7-2, 7-3 and 7-4” shall be completed based on the actual issuance instead of a plan of issuance.

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

**[Annex Form No. 19] Written Confirmation on Asset Acquisition and Capital Increase
by Third-Party Allotment**

Written Confirmation on Asset Acquisition and Capital Increase
by Third-Party Allotment
(Pertaining to [§32] of the Enforcement Rules)

To Chairperson of Korea Exchange,

“A” Corporation, the party undersigned, hereby confirms that there is no doubt of following information pursuant to [§34] and [§64] of the KOSDAQ Market Listing Regulation with respect to asset (equity securities issued by unlisted corporation) acquisition from an unlisted corporation or a KONEX-listed corporation (hereinafter referred to as “the unlisted corporation, etc.” in this form) and the capital increase by third-party allotment, and if any false fact is found, the corporation will make no objections to delisting, designation and release of administrative issue, etc. taken by the Exchange based on the regulations and enforcement rules of the KOSDAQ market. The corporation shall also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of the unlisted corporation:

2. Matters on asset acquisition such as equity securities issued by unlisted corporations

2-1 List of transferor of equity securities and number of transferred stock per each transferor	
2-2 Whether the largest shareholder ⁽¹⁾ or shareholders with 5% or more of shares of an unlisted corporation (including investor with 5% or more of shares; the same hereinafter) is/are among transferors of equity securities	Yes/No
* if 'Yes', the name of transferor and relation ⁽²⁾	
2-3 Whether or not the holding ratio of the ABC Corporation in the unlisted corporation after taking over the equity securities is 50% or higher or exceeds 30% becoming the largest investor	Yes/No
* The holding ratio of the ABC Corporation in the unlisted corporation after the takeover of equity securities	
2-4 Submission date of the report on material facts of asset acquisition	
2-5 Delivery date of equity securities	

Notes:

(1) It refers to the largest shareholder (including the largest investor; the same hereinafter) and his/her related persons (including the concerned unlisted corporation).

(2) It refers to the relation between the transferor and issuing corporation of equity securities [please state as the largest shareholder; related persons of the largest shareholder (including issuing corporation concerned), representative, executive or others of the issuing corporation.]

※ If the answers to both of “2-2” and “2-3” above are “Yes”, please complete tables starting from “4” and if any one of “2-2” and “2-3” is “No”, please complete tables starting from “3”.

3. Matters relating to asset acquisition from unlisted corporation and the change in the largest shareholder

<Matters on asset acquisition and issuance of stocks, etc. by third-party allotment>

3-1. Asset for takeover		Submission date of the report on material facts of asset acquisition	
		Resolution date of asset acquisition	
		Base date of asset acquisition	
3-2. Whether stocks are issued through the third party allotment within 6 months after the submission date of the report on material facts of significant asset acquisition or not	Yes/ No	3-2-1. List of recipients to be allotted	
		3-2-2. Whether the largest shareholder of the unlisted corporation is included among recipients to be allotted or not	Yes/ No
		* If 'Yes', the name of recipient to be allotted and relation ⁽¹⁾	
		3-2-3. Type of issuing stocks	
		3-2-4. Issuing date of equity securities	

Note (1) It refers to the relation between the unlisted corporation and recipient to be allotted [please state as the largest shareholder, related persons of the largest shareholder (including issuing corporation), representative, executives or others of the unlisted corporation]

<Matters on the change in the largest shareholder>

	Yes/No	Name of the largest shareholder in case of "Yes"		
		Before change	After change	Relation ⁽¹⁾
3-3. Whether a KOSDAQ listed corporation has issued stocks through the third party allotment to the largest shareholder of the unlisted corporation concerned within 6 months after the submission date of the report on material facts of asset acquisition and the largest shareholder of unlisted corporation became the largest shareholder of KOSDAQ listed corporation between the submission date of the report on material facts of asset acquisition and the date of issuance	Yes/ No			
3-4. Whether a KOSDAQ listed corporation issues stocks to the largest shareholder of an unlisted corporation through the third party allotment within 6 months after the submission date of the report on material facts of asset acquisition and the largest shareholder of the unlisted corporation became the largest shareholder the KOSDAQ listed corporation	Yes/ No			

Note (1) It refers to the relation between the changed largest shareholder of the KOSDAQ listed corporation and

unlisted corporation that is subject to asset acquisition [please state as the largest shareholder, related persons of the largest shareholder (including unlisted corporation), representative, executives or others of the unlisted corporation that is subject to merger.]

※ Only in the cases where the answer to “3-2” above is “Yes” and the answer to any one of “3-3” and “3-4” is “Yes”, the items under “7” shall be completed and the documents noted in “8-1”, “8-2”, “8-3”, “8-4” (complete as of the submission date of the report on material facts of asset acquisition and after the issuance of stocks by third-party allotment), and “8-6” shall be submitted.

※ If the answer to “3-2” above is “No” or the answers to “3-3” and “3-4” are “No”, submission of the documents related to “8-1, 8-3, 8-4, 8-5, and 8-7” are exempted.

4. Matters on issuance of stocks by third-party allotment

4-1 Whether stocks ⁽¹⁾ have been issued ⁽²⁾ through the third party allotment within 1 year before the submission date of the report on material facts of asset acquisition or not		Yes/No
(In case of “Yes” to 4-1) ※ In case of 2 times or more of the third party allotment of stocks, each allotment shall be completed separately	4-1-1 List of allotted parties	
	4-1-2 Whether the largest shareholder ⁽³⁾ or shareholders with 5% or more of shares of unlisted corporation is/are included among allotted parties or not	Yes/No
	* If 'Yes', name of allotted parties and relation ⁽⁴⁾	
	4-1-3 Type of issued stocks	
	4-1-4 Issuance date of stocks, etc. ⁽⁵⁾	

Notes:

(1) It refers to stock, stock subscription certificates, convertible bonds, bonds with warrants and exchangeable bonds.

(2) It is based on the issuance date of stocks.

(3) It refers to the largest shareholder and his/her related persons (including the unlisted corporation concerned).

(4) It refers to the relation between the unlisted corporation and allotted parties [please state as the largest shareholder, related persons of the largest shareholder (including issuing corporation), representative, executive or others of the unlisted corporation.]

(5) It refers to the next day of stock payment date in case of stocks.

4-2 Whether there is a plan ⁽¹⁾ to issue stocks ⁽²⁾ through the third party allotment within 6 months after the submission date of the report on material facts of asset acquisition or not		Yes/No
(In case of “Yes” for “4-2”) ※ In case of 2 times or more of the third party allotment of	4-2-1 List of allotted parties	
	4-2-2 Whether the largest shareholder ⁽³⁾ or shareholders with 5% or more of shares of unlisted corporation is/are included among allotted parties	Yes/No

stocks, each allotment shall be completed separately	or not	
	* If 'Yes' name of allotted parties and relation ⁽⁴⁾	
	4-2-3 Type of stocks scheduled to be issued	
	4-2-4 Scheduled issuance date of stocks etc. ⁽⁵⁾	

Notes:

(1) It refers to stock, stock subscription certificates, convertible bonds, bonds with warrants and exchangeable bonds.

(2) It is based on the issuance date of stocks.

(3) It refers to the largest shareholder and his/her related persons (including the unlisted corporation concerned).

(4) It refers to the relation between the unlisted corporation and allotted party [please state as the largest shareholder, related persons of the largest shareholder (including issuing corporation), representative, executive or others of the unlisted corporation.]

(5) It refers to the next day of scheduled stock payment date in case of stocks.

※ The tables below shall be completed only for the cases where the answers to one or more of “4-1-2” and “4-2-2” are “Yes”.

※ In case where the answers to both of “4-1” and “4-2” above are “No”, submission of documents related to “8-1, 8-3, 8-4, 8-5, and 8-7” are exempted.

※ In case where the answers to both of “4-1-2” and “4-2-2” above are “No”, submission of documents related to “8-1, 8-3, 8-4, 8-5, and 8-7” are exempted.

※ If the answer to “4-2-2” is “Yes”, when completing items under “5” and attached documents of “8-2, 8-3 and 8-4”, please include the number of stock to be held until the scheduled issuing date with respect to the number of stock as of scheduled issuing date and the determination of largest shareholder.

5. Matters on the change in the largest shareholder⁽¹⁾

	Yes/ No	Name of the largest shareholder in case of “Yes”		
		Before change	After change	Relation ⁽²⁾

5-1. In case where “4-1 and 4-1-2” are “Yes” whether the largest shareholder ⁽³⁾ or shareholders who hold at least 5% of shares of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation within one (1) year before the submission date of the report on material facts of asset acquisition or in case where “4-2 and 4-2-2” are “Yes”, whether the largest shareholder or shareholders who hold 5% of more of shares of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation between the submission date of the report on material facts and the date of stock issuance through the third- party allotment	Yes/ No			
5-2. Whether the largest shareholder or shareholders who hold 5% or more of shares of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation through the third party stock allotment	Yes/ No			

Notes:

(1) (a) Regarding the determination of largest shareholder on “5-1 and 5-2”, stocks that may be increased (based on the conversion price as of the submission date of the report on material facts of asset acquisition and date of concerned stock issuance; the same hereinafter) by the exercise of right for equity-linked bonds* (including issued stocks concerned), which has not been exercised as of the submission date of the report on material facts of asset acquisition and date of concerned stock issuance, and stocks (stocks of presale contract etc.) and equity-linked bonds* (based on number of stocks that can be increased by the exercise of right) that are subject to transfer claims in accordance with the provisions of the Acts, transactions or other agreements as of the submission date of the report on material facts of the asset acquisition and date of concerned stock issuance shall be included.

* Including rights whose time to exercise rights has not yet arrived.

(b) In case where the largest shareholder or shareholders with 5% or more of shares of unlisted corporation is/are not the largest shareholder from one (1) year before the submission date of the report on material facts of asset acquisition by the method (a) above, it shall be determined whether a shareholder becomes the largest shareholder as of the submission date of the report on material facts of the asset acquisition or a shareholder becomes the largest shareholder by receiving stocks issued through the third party allotment.

(2) The relation refers to the relation between the changed largest shareholder of the corporation and unlisted corporation [please state as the largest shareholder; related persons of the largest shareholder (including the concerned unlisted corporation), representative, executive of the unlisted corporation shareholders who hold at least 5% of shares.]

(3) It refers to the largest shareholder and his/her related persons (including the concerned unlisted corporation)

※ The tables below shall be completed only in cases where the answers to one or more of “5-1” and “5-2” are “Yes”.

※ In cases where the answers to both of “5-1” and “5-2” above are “No”, submission of the documents related to “8-5 and 8-7” is exempted.

6. Matters on fulfillment of requirements⁽¹⁾ for takeover of equity securities issued by unlisted corporations and the capital increase by third-party allotment

Items	Requirements	Yes/No (o/x)	Note
Size of corporation ⁽²⁾⁽⁵⁾	Equity capital shall be at least KRW 3 billion (at least KRW 1.5 billion if the unlisted corporation is a venture business)		
Profit of going concern business before corporate tax ⁽³⁾⁽⁴⁾	Profit shall exist		
Size of profit ⁽³⁾⁽⁴⁾⁽⁵⁾	a) Return on equity as of recent business year end shall be at least 10/100 (5/100 in case where the unlisted corporation is a venture business); or b) Net profits of recent business year shall be at least KRW 2 billion(KRW 1 billion in case where the unlisted corporation is a venture business)		
Impaired capital ⁽⁵⁾⁽⁶⁾	There shall be no capital impairment.		
Audit opinion ⁽³⁾⁽⁴⁾	Unqualified		

Notes:

(1) As of the submission date of the report on material facts of asset acquisition.

(2) In case where the unlisted corporation is a venture business, the 'venture business' shall be stated under Note and the confirmation of venture shall be attached.

(3) It refers to performance of an unlisted corporation in recent business year (or end of recent business year).

(4) In case where the period of recent business year of an unlisted corporation is less than 6 months, the same requirement shall apply for the recent business year and the previous business year.

(5) In case of corporation that is subject to consolidated financial statements, the equity shall be based on equity capital of consolidated financial statements but it shall exclude non-controlling interests.

(6) It refers to performance of an unlisted corporation at the end of recent business year. However, amounts to be capitalized by the capital increase through issuing new shares and revaluating assets during the current business year shall be reflected.

7. Matters on mandatory holding

Reasons for mandatory holding ⁽¹⁾	Nominee (2)	Type of nominee (3)	Target stocks (4)	Mandatory holding						Note
				Name of corporation (5)	Listed/unlisted (6)	Volume (7)	Starting date ⁽⁸⁾	Ending date ⁽⁹⁾	Period (10)	
Largest shareholder										

Note (1) The table above shall be completed for each of the following reasons for mandatory holding.

** In cases where the period of mandatory holding is overlapped by the duplication of reasons for mandatory holding, the reason with the longest mandatory holding period shall be stated. Any different mandatory holding periods for different reasons shall be stated separately.*

Reasons for mandatory holding	Explanations
Largest shareholder	Holdings of the largest shareholder and his/her specially related parties
Stocks allocated to third party	In case of the stock acquisition by the third-party allotment from 6 months before the submission date of report on material facts to the date of supplementary listing
Acquisition of shares held by the largest shareholder	In case of the stock acquisition from the largest shareholder from 6 months before the submission date of report on material facts to supplementary listing day
Venture capital and professional investor	Stocks with under 2 years of investment period as of the submission date of the report on material facts
Business acquisition	Mandatory holding related to business acquisition
Asset acquisition	Mandatory holding related to asset acquisition
Investment in-kind	Mandatory holding related to investment in-kind
Mandatory holding during back-door listing	Mandatory holding during review and proceeding back-door listing procedure (the largest shareholders of KOSDAQ listed corporation and unlisted corporation are subject to the mandatory holding)
Others	Private offering, voluntary mandatory holding, etc.

(2) Name of a person or name of corporation

(3) Type of nominee shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from unlisted corporation's view but in case of listed corporation, (listed) shall be stated in front of type (for example, (listed) largest shareholder and (listed) specially related parties).

(4) Type of target stocks such as common stock, preferred stock, redeemable convertible preferred stock, convertible bond, bond with subscription right and subscription warrant shall be stated.

(5) Name of a corporation that issued stocks subject to mandatory holding.

6) "Listing" in case the stock is listed on KOSDAQ market and otherwise it shall be "unlisted".

(7) Number of stock in case of stocks and number of stock to be issued by conversion or redemption in case of equity-linked bonds.

(8) The starting date of mandatory holding but if the date is undecided, leave blank

(9) The ending date of mandatory holding reason but if the date is undecided, leave blank (e.g., Oct. 1, 2010)

(10) The period of mandatory holding shall be stated under reason for mandatory holding (1 year, 6 months, 1 month, etc.)

8. Documents to be attached

	Name of attached document	Attached or not (○, ×)	Note
8-1	Written affirmation on mandatory holding by those who are subject to mandatory holding ※ It is limited to cases when the issuance date of third party stock allotment is after the submission date of the report on material facts		
8-2	List of shareholders (including equity investors) and summary list of shareholders ⁽¹⁾ of unlisted corporation (in case of the largest shareholder and shareholders who hold at least 5% of shares, they shall be stated separately)		
8-3	Details of stock holdings in the KOSDAQ listed corporation by the largest shareholder and shareholders who hold at least 5% of the unlisted corporation ⁽²⁾		
8-4	Statement of stock holdings ⁽²⁾ of the largest shareholder of the KOSDAQ listed corporation		
8-5	Audit report of an unlisted corporation		
8-6	Certified copy of corporate register for an unlisted corporation		Including close-down and cancellation
8-7	Documents certifying mandatory holding during back-door listing review		Attach it when documents for back-door listing review are submitted
8-8	Other documents to ensure above contents		

Notes:

(1) Two summaries shall be prepared as of the submission date of the report on material facts of asset acquisition and the issuance date of stocks by third-party allotment, respectively.

(2) a) Four statements shall be prepared based on the date one (1) year before, as of submission date of the report on material facts of business acquisition and before and after third-party stock allotment.

b) Matters such as number of stocks held, number of stocks to be issued by right exercise of equity linked bonds, number of stocks subject to claims for transfer and number of stocks to be issued by right exercise of equity linked bonds subject to claims for transfer (please refer to reference 1 in item “5” above) shall be stated separately.

※ Pursuant to [§32(2)] of the Enforcement Rules of KOSDAQ Market Listing Regulation, in case where a written confirmation regarding the issuance of third party stock allotment within 6 months after the submission date of the report on material facts of asset acquisition is submitted additionally, “4-2” and “6” and documents attached to “8-2, 8-3 and 8-4” shall be completed based on the actual issuance instead of a plan of stock issuance.

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No.20] Written Confirmation on Asset Acquisition and Stock Transfer

Written Confirmation on Asset Acquisition and Stock Transfer

(Pertaining to [§32] of the Enforcement Rules)

To Chairperson of Korea Exchange,

“A” Corporation, the party undersigned, confirms that there is no doubt of following information pursuant to [§34] or [§64] of the KOSDAQ Market Listing Regulation with respect to acquisition of equity securities issued by an unlisted corporation or a KONEX-listed corporation (hereinafter referred to as “the unlisted corporation, etc.” in this form) and stock transfer and if any false fact is found, the corporation will make no objections to delisting, designation and release of administrative issue, etc. taken by the Exchange based on the regulations and enforcement rules of the KOSDAQ market. The corporation shall also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of the unlisted corporation:

2. Matters on takeover of equity securities issued by unlisted corporation

2-1 List of transferor of equity securities and number of transferred stock per each transferor	
2-2 Whether the largest shareholder ⁽¹⁾ or shareholders with 5% or more of shares of an unlisted corporation (including investor with 5% or more of shares; the same hereinafter) is/are among transferors of equity securities	Yes/No
* if 'Yes', the name of transferor and relation ⁽²⁾	
2-3 Whether the holding ratio of the KOSDAQ listed corporation in the unlisted corporation after receiving equity securities is 50% or higher or exceeds 30% becoming the largest investor or not	Yes/No
* The holding ratio of the KOSDAQ listed corporation in the unlisted corporation after the takeover of equity securities	
2-4 Submission date of the report on material facts of asset acquisition	
2-5 Delivery date of equity securities	

Notes:

(1) It refers to the largest shareholder (including the largest investor; the same hereinafter) and his/her related persons (including the concerned unlisted corporation).

(2) It refers to the relation between the transferor and issuing corporation of equity securities [please state as the largest shareholder; related persons of the largest shareholder (including issuing corporation concerned), representative, executive or others of the issuing corporation.]

※ The tables below shall be completed only in cases where the answers to both of “2-2” and “2-3” are “Yes”.

※ In case where one or more of “2-2” and “2-3” are “No”, only document “7-2” shall be attached (However, if item “3” below is completed and if both of “3-1 and 3-2” are “No”, submission of “7-2” is exempted)

3. Matters on stock transfer

3-1 Whether the change in the largest shareholder within 1 year before the submission date of the report on material facts of business acquisition is disclosed ⁽¹⁾ or not		Yes/No
(In case of “Yes” for “3-1”) ※ In case of 2 times or more of changes of the largest shareholder, each change shall be stated separately	3-1-1 Name of changed and disclosed largest shareholder	
	3-1-2 Whether the changed and disclosed largest shareholder is the largest shareholder ⁽²⁾ or shareholder with 5% or more of shares of an unlisted corporation (including investors who invested 5% or more; The same hereinafter) or not	Yes, No
	* If 'Yes', the relation with unlisted corporation ⁽³⁾	
	3-1-3 Date of stock transfer ⁽⁴⁾	

Notes:

(1) It is based on reporting day pursuant to [§6(1)3(a)(i)] of the KOSDAQ Market Disclosure Regulation

(2) It refers to the largest shareholder (including the largest investor; the same hereinafter) and his/her related persons (including the unlisted corporation concerned).

(3) It refers to the relation between unlisted corporation and changed and disclosed largest shareholder [please state as the largest shareholder; related persons of the largest shareholder (including issuing corporation), representative, executives or others of the unlisted corporation]

(4) It refers to the reporting day pursuant to [§6(1)3(a)(i)] of the KOSDAQ Market Disclosure Regulation.

3-2 Whether there is a plan ⁽¹⁾ to transfer stocks within 6 months after the submission date of the report on material facts of business acquisition or not		Yes/No
(In case of “Yes” for “3-2”) ※ In case of 2 times or more of stock transfers, each stock	3-2-1 List of predetermined stock transferee ⁽²⁾	
	3-2-2 Whether predetermined stock transferee is the largest shareholder ⁽³⁾ or shareholders with 5% or more of shares of an unlisted corporation or not	Yes/No

transfer shall be stated separately	* If 'Yes', the relation with unlisted corporation ⁽⁴⁾	
	3-2-3 Scheduled date of stock transfer ⁽⁵⁾	

Notes:

- (1) It is based on expected reporting day pursuant to [§6(1)3(a)(i)] of the KOSDAQ Market Disclosure Regulation.
- (2) It refers to a party that shall be disclosed as the changed largest shareholder pursuant to [§6(1)3(a)(i)] of the KOSDAQ Market Disclosure Regulation.
- (3) It refers to the largest shareholder and his/her related persons (including the relevant unlisted corporation).
- (4) It refers to the relation between an unlisted corporation and predetermined stock transferee [please state as the largest shareholder; related persons of the largest shareholder (including issuing corporation), representative, executives or others of the unlisted corporation.]
- (5) It refers to expected reporting day pursuant to [§6(1)3(a)(i)] of the KOSDAQ Market Disclosure Regulation.

- ※ The tables below shall be completed only in cases where the answers to one or more of “3-1-2” and “3-2-2” are “Yes”.
- ※ In cases where the answers to both of “3-1” and “3-2” above are “No”, submission of attachments of “7-1, 7-3, 7-4, 7-5, 7-7, and 7-8” is exempted.
- ※ In cases where both of “3-1-2” and “3-2-2” above are “No”, submission of attachments of “7-1, 7-3, 7-4, 7-5, 7-7, and 7-8” is exempted.
- ※ If “3-2-2” is “Yes”, when completing items under “4” and attached documents of “7-2, 7-3 and 7-4”, please include the number of stock to be held until the scheduled stock transfer with respect to matters in relation with number of stock as of scheduled stock transfer and the determination of largest shareholder.

4. Matters on the change in the largest shareholder⁽¹⁾

	Yes/ No	Name of the largest shareholder in case of “Yes”		
		Before change	After change	Relation ⁽²⁾
4-1. In case where “3-1 and 3-1-2” are “Yes”, whether the largest shareholder ⁽³⁾ or shareholders who hold 5% of shares of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation within one(1) year before the submission date of the report on material facts of business acquisition or in case where “3-2 and 3-2-2” are “Yes”, whether the largest shareholder or shareholders who hold 5% of share of an unlisted corporation became the largest shareholder of the KOSDAQ listed corporation between the submission date of the report on	Yes/ No			

material facts of business acquisition and the date of stock transfer				
5-2. Whether the largest shareholder or shareholders who hold 5% of shares of unlisted corporation became the largest shareholder of the corporation as a result of the stock transfer	Yes/ No			

Notes:

(1) (a) Regarding the determination of largest shareholder on “4-1 and 4-2”, stocks that will be increased (based on the conversion price as of the submission date of the report on material facts of asset acquisition and issuance date of the concerned stock; the same hereinafter) by the exercise of right for equity-linked bonds* (including issued stocks concerned), which has not been exercised as of the submission date of the report on material facts of asset acquisition and issuance date of the concerned stock, and stocks (stocks of presale contract etc.) and equity-linked bonds* (based on number of stocks that can be increased by the exercise of right) that are subject to transfer claims in accordance with the provisions of the Acts, transactions or other agreements as of the submission date of the report on material facts of the asset acquisition and date of concerned stock issuance shall be included.

* Including rights whose time to exercise rights has not yet arrived.

(b) In case where the largest shareholder or shareholders with 5% or more of shares of an unlisted corporation is/are not the largest shareholder from one year before the submission date of the report on material facts of asset acquisition by method a) above, it shall be determined whether a shareholder becomes the largest shareholder as of the submission date of the report on material facts of the asset acquisition or a shareholder becomes the largest shareholder by stock transfer.

(2) The relation refers to the relation between the largest shareholder of the corporation after the change and unlisted corporation [please state as the largest shareholder, related persons of the largest shareholder (including the concerned unlisted corporation), representative, executives or shareholders who hold at least 5% of shares of the unlisted corporation]

(3) It refers to the largest shareholder and his/her related persons (including the concerned unlisted corporation)

※ The tables below shall be completed only in cases where the answers to one or more of “4-1” and “4-2” are “Yes”.

※ In cases where both of “4-1, and 4-2” are “No”, submission of attachments of “7-5, 7-7, and 7-8” is exempted.

5. Matters on fulfillment of requirements⁽¹⁾ for takeover of equity securities issued by unlisted corporation and stock transfer

	Requirement	Yes/No (o/x)	Note
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Size of corporation ⁽²⁾⁽⁵⁾	Equity capital shall be at least KRW 3 billion (at least KRW 1.5 billion if the unlisted corporation is a venture business)		
Income before tax from continuing operations ⁽³⁾⁽⁴⁾	There shall be income posted		
Size of profit ⁽³⁾⁽⁴⁾⁽⁵⁾	a) Return on equity as of recent business year end shall be at least 10/100 (5/100 in case where the unlisted corporation is a venture business); or b) Net profits of recent business year shall be at least KRW 2 billion(KRW 1 billion in case where the unlisted corporation is a venture business)		
Impaired capital ⁽⁵⁾⁽⁶⁾	There shall be no capital impairment.		
Audit opinion ⁽³⁾⁽⁴⁾	Unqualified		

Notes:

(1) As of the submission date of the report on material facts of asset acquisition.

(2) In case where the unlisted corporation is a venture business, the 'venture business' shall be stated under Note and the confirmation of venture shall be attached.

(3) It refers to performance of an unlisted corporation in recent business year (or end of recent business year).

(4) In case where the period of recent business year of an unlisted corporation is less than 6 months, the same requirement shall apply for the recent business year and the previous business year.

(5) In the case of a corporation that has subsidiaries, the equity shall be based on equity capital of consolidated financial statements but it shall exclude non-controlling interests.

(6) It refers to performance of an unlisted corporation at the end of recent business year. However, amounts to be capitalized by the capital increase through issuing new shares and revaluing assets during the current business year shall be reflected.

6. Matter on mandatory holding

Reasons for mandatory holding ⁽¹⁾	Nominee ⁽²⁾	Type of nominee ⁽³⁾	Target stocks ⁽⁴⁾	Mandatory holding						Note
				Name of corporation ⁽⁵⁾	Listed/unlisted ⁽⁶⁾	Volume ⁽⁷⁾	Starting date ⁽⁸⁾	Ending date ⁽⁹⁾	Period ⁽¹⁰⁾	
Largest shareholder										

Notes:

(1) The table above shall be completed for each of the following reasons for mandatory holding.

* In cases where the period of mandatory holding is overlapped by the duplication of reasons for mandatory holding, the reason with the longest mandatory holding period shall be stated. Any different mandatory holding

periods for different reasons shall be stated separately.

Reasons for mandatory holding	Explanations
Largest shareholder	Holdings of the largest shareholder and his/her specially related parties
Stocks allocated to third party	In case of the stock acquisition by the third-party allotment from 6 months before the submission date of report on material facts to the date of supplementary listing
Acquisition of shares held by the largest shareholder	In case of the stock acquisition from the largest shareholder from 6 months before the submission date of report on material facts to supplementary listing day
Venture capital and professional investor	Stocks with under 2 years of investment period as of the submission date of the report on material facts
Business acquisition	Mandatory holding related to business acquisition
Asset acquisition	Mandatory holding related to asset acquisition
Investment in-kind	Mandatory holding related to investment in-kind
Mandatory holding during back-door listing	Mandatory holding during review and proceeding back-door listing procedure (the largest shareholders of KOSDAQ listed corporation and unlisted corporation are subject to the safe custody)
Others	Private offering, voluntary mandatory holding, etc.

(2) Name of a person or name of corporation

(3) Type of nominee shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from unlisted corporation's view but in case of listed corporation, (listed) shall be stated in front of type (for example, (listed) largest shareholder and (listed) specially related parties).

(4) Type of target stocks such as common stock, preferred stock, redeemable convertible preferred stock, convertible bond, bond with subscription right and subscription warrant shall be stated.

(5) Name of a corporation that issued stocks subject to mandatory holding.

6) "Listing" in case the stock is listed on KOSDAQ market and otherwise it shall be "unlisted".

(7) Number of stock in case of stocks and number of stock to be issued by conversion or redemption in case of equity-linked bonds.

(8) The starting date of mandatory holding but if the date is undecided, leave blank

(9) The ending date of mandatory holding reason but if the date is undecided, leave blank (e.g., Oct. 1, 2010)

(10) The period of mandatory holding shall be stated under reason for mandatory holding (1 year, 6 months, 1 month, etc.)

7. Documents to be attached

	Name of documents	Attached or not (o/x)	Note
7-1	Written affirmation on mandatory holding by those who are subject to mandatory holding ※ It is limited to cases when the issuance date of third party stock allotment is after the submission date of the report on material facts		
7-2	List of shareholders (including equity investors) and summary list of shareholders ⁽¹⁾ of unlisted corporation (in case of the largest shareholder and shareholders who hold at least 5% of shares, they shall be stated separately)		
7-3	Details of stock holdings in the KOSDAQ listed corporation by the largest shareholder and shareholders who hold at least 5% of the unlisted corporation ⁽²⁾		
7-4	Statement of stock holdings ⁽²⁾ of the largest shareholder of the KOSDAQ listed corporation		
7-5	Audit report of an unlisted corporation		
7-6	Certified copy of corporate register for an unlisted corporation		Including close-down and cancellation
7-7	Documents certifying mandatory holding during back-door listing review		Attach it when documents for back-door listing review are submitted
7-8	Other documents to ensure above contents		

Notes:

(1) Summaries shall be prepared as of the submission date of the report on material facts of asset acquisition and before and after the disclosure of change in the largest shareholder, respectively.

(2) a) Four statements shall be prepared based on the date one (1) year before, as of submission date of the report on material facts of asset acquisition and before and after third party stock allotment.

b) Matters such as number of stocks held, number of stocks to be issued by right exercise of equity linked bonds, number of stocks subject to claims for transfer and number of stocks to be issued by right exercise of equity linked bonds subject to claims for transfer (please refer to reference 1 in item 4 above) shall be stated separately.

※ Pursuant to [§32(2)] of Enforcement Rules of KOSDAQ Market Listing Regulation, in case where a written confirmation regarding the issuance of stocks through third party allotment within 6 months after the submission date of the report on material facts of asset acquisition is submitted additionally, “3-2 and 4” and related documents of “7-2, 7-3 and 7-4” shall be completed based on the actual issuance instead of a plan of stock issuance.

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No. 21] Written Confirmation on Investment In-kind and Capital Increase by Third-Party

Written Confirmation on Investment In-kind and Capital Increase
by Third-Party Allotment

(Pertaining to [§32] of the Enforcement Rules)

To Chairperson of Korea Exchange,

“A” Corporation, the party undersigned, confirms that there is no doubt of following information pursuant to [§34] or [§64] of the KOSDAQ Market Listing Regulation with respect to capital increase through the third party allotment following investment in kind with equity securities issued by an unlisted corporation or a KONEX-listed corporation (hereinafter referred to as “the unlisted corporation, etc.” in this form) and if any false fact is found, the corporation will make no objections to delisting, designation and release of administrative issue, etc. taken by the Exchange based on the regulations and enforcement rules of the KOSDAQ market. The corporation shall also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of the unlisted corporation:

2. Matters on investment in kind with equity securities issued by unlisted corporation

2-1 List of investors in kind and the number of contributed equity securities issued by an unlisted corporation per each investor in kind	
2-2 Whether the largest shareholder ⁽¹⁾ or shareholders with 5% or more of shares of an unlisted corporation (including investor with 5% or more of shares; the same hereinafter) is/are among investors in investment in kind	Yes/No
* if 'Yes', the name of investor and relation ⁽²⁾	
2-3 Whether the contribution value of investment in kind through the equity securities issued by an unlisted corporation is 10/100 or more of the total asset value of in recent business year or not	Yes/No
* Value of investment in kind through the equity securities issued by an unlisted corporation	
2-4 Whether or not the ownership of ABC Corporation in an unlisted corporation is at least 50% or exceeds 30% and ABC corporation is the largest investor after the investment in kind	Yes/No
* Ownership of ABC Corporation in the unlisted corporation after the investment in kind	
2-5 The (expected) date of court authorization	
2-6 The issue date of the stocks for capital increase through third party allotment (the next day of	

payment date for stock subscription)	
--------------------------------------	--

Notes:

(1) It refers to the largest shareholder (including the largest investor; the same hereinafter) and his/her related persons (including the concerned unlisted corporation).

(2) It refers to the relation between the investor in investment in kind and issuing corporation of equity securities [please state as the largest shareholder; related persons of the largest shareholder (including issuing corporation), representative, executive, etc. of an issuing corporation]

※ The tables below shall be completed only in cases where the answers to both of “2-2” and “2-3” above are “Yes”.

※ If one or more of “2-2” and “2-3” above are “No”, please attach “6-2” and “6-9” among the documents listed below.

3. Matters relating to the change in the largest shareholder⁽¹⁾

	Yes/ No	Name of the largest shareholder in case of “Yes”		
		Before change	After change	Relation ⁽²⁾
3-1. Whether the largest shareholder ⁽³⁾ or shareholders who hold at least 5% of shares of the unlisted corporation became the largest shareholder of ABC Corporation between one(1) year before the disclosure date of capital increase through third party allotment and an issuance date of the stock concerned or not	Yes/ No			
3-2. Whether the largest shareholder or shareholders who hold at least 5% of shares of an unlisted corporation became the largest shareholder of ABC Corporation as a result of the third party stock allotment	Yes/ No			

Notes:

(1) (a) Regarding the determination of largest shareholder on “3-1 and 3-2”, stocks that will be increased (based on the conversion price as of the stock issuing date; the same hereinafter) by the exercise of right for equity-linked bonds*, which has not been exercised as of the issuance date of the concerned stocks, and stocks (stocks of presale contract, etc.) and equity-linked bonds*(based on number of stocks that can be increased by the exercise of right) that are subject to transfer claims in accordance with the provisions of the Acts, transactions or other agreements as of the issuance date of the concerned stocks shall be included.

* Including rights whose time to exercise rights has not yet arrived.

(b) In case where the largest shareholder or shareholders with 5% or more of shares of an unlisted corporation is/are not the largest shareholder from one (1) year before the disclosure date of capital increase through third party allotment by the method a) above, it shall be determined whether a shareholder becomes the largest shareholder as of the concerned disclosure date of capital increase through third party allotment or a shareholder becomes the largest shareholder by the third party stock allotment.

(2) The relation refers to the relation between the largest shareholder of the corporation and unlisted corporation after the change [please state as the largest shareholder; related persons of the largest shareholder (including the concerned unlisted corporation), representative, executive, shareholders with at least 5% of shares, or others of

an unlisted corporation]

(3) It refers to the largest shareholder and his/her related persons (including the concerned unlisted corporation)

※ The tables below shall be completed in cases where the answers to one or more of “3-1” and “3-2” above are “Yes”.

※ In case where both of “3-1” and “3-2” are “No”, submission of attachments noted in “6-5, 6-7, 6-8, 6-11, 6-12 and 6-13” is exempted.

4. Matters on fulfillment of requirements⁽¹⁾ for paid-in capital increase by third-party allotment following investment in kind

Items	Requirements	Yes/No (o/x)	Note
Size of corporation ⁽²⁾⁽⁵⁾	Equity capital shall be at least KRW 3 billion (at least KRW 1.5 billion if the unlisted corporation is a venture business)		
Profit of going concern business before corporate tax ⁽³⁾⁽⁴⁾	Profit shall exist		
Size of profit ⁽³⁾⁽⁴⁾⁽⁵⁾	a) Return on equity as of recent business year end shall be at least 10/100 (5/100 in case where the unlisted corporation is a venture business); or b) Net profits of recent business year shall be at least KRW 2 billion(KRW 1 billion in case where the unlisted corporation is a venture business)		
Impaired capital ⁽⁵⁾⁽⁶⁾	There shall be no capital impairment.		
Audit opinion ⁽³⁾⁽⁴⁾	Unqualified		

Notes:

(1) As of the disclosure date of capital increase through third party allotment.

(2) In case where the unlisted corporation is a venture business, the ‘venture business’ shall be stated under Note and the confirmation of venture shall be attached.

(3) It refers to performance of an unlisted corporation in recent business year (or end of recent business year)

(4) In case where the period of recent business year of an unlisted corporation is less than 6 months, the same requirement shall apply for the recent business year and the previous business year.

(5) In case of a corporation that has subsidiaries, the equity shall be based on equity capital of consolidated financial statements but it shall exclude non-controlling interests.

(6) It refers to performance of an unlisted corporation at the end of recent business year. However, amounts to be capitalized by the capital increase through issuing new shares and revaluating assets during the current business year shall be reflected.

5. Matters on mandatory holding

Reasons for mandatory holding ⁽¹⁾	Nominee ⁽²⁾	Type of nominee ⁽³⁾	Target stocks ⁽⁴⁾	Mandatory holding						Note
				Name of corporation ⁽⁵⁾	Listed/unlisted ⁽⁶⁾	Volume ⁽⁷⁾	Starting date ⁽⁸⁾	Ending date ⁽⁹⁾	Period ⁽¹⁰⁾	
Largest shareholder										

Notes:

(1) The table above shall be completed for each of the following reasons for mandatory holding.

* In cases where the period of mandatory holding is overlapped by the duplication of reasons for mandatory holding, the reason with the longest mandatory holding period shall be stated. Any different mandatory holding periods for different reasons shall be stated separately.

Reasons for mandatory holding	Explanations
Largest shareholder	Holdings of the largest shareholder and his/her specially related parties
Stocks allocated to third party	In case of the stock acquisition by the third-party allotment from 6 months before the submission date of report on material facts to the date of supplementary listing
Acquisition of shares held by the largest shareholder	In case of the stock acquisition from the largest shareholder from 6 months before the submission date of report on material facts to supplementary listing day
Venture capital and professional investor	Stocks with under 2 years of investment period as of the submission date of the report on material facts
Business acquisition	Mandatory holding related to business acquisition
Asset acquisition	Mandatory holding related to asset acquisition
Investment in-kind	Mandatory holding related to investment in-kind
Mandatory holding during back-door listing	Mandatory holding during review and proceeding back-door listing procedure (the largest shareholders of KOSDAQ listed corporation and unlisted corporation are subject to the safe custody)
Others	Private offering, voluntary mandatory holding, etc.

(2) Name of a person or name of corporation

(3) 'Type of nominee' shall be stated as the largest shareholder, specially related parties, shareholders with at least 5% of shares, professional investor, venture capital, general company, individual and others from unlisted corporation's view but in case of listed corporation, (listed) shall be stated in front of type. (Ex) (listed) largest shareholder, (listed) specially related parties, etc.

(4) Type of target stocks such as common stock, preferred stock, redeemable convertible preferred stock, convertible bond, bond with subscription right and subscription warrant shall be stated.

(5) Name of a corporation that issued stocks subject to mandatory holding.

6) "Listing" in case the stock is listed on KOSDAQ market and otherwise it shall be "unlisted".

(7) Number of stock in case of stocks and number of stock to be issued by conversion or redemption in case of equity-linked bonds.

(8) The starting date of mandatory holding but if the date is undecided, leave blank

(9) The ending date of mandatory holding reason but if the date is undecided, leave blank (e.g., Oct. 1, 2010)

(10) The period of mandatory holding shall be stated under reason for mandatory holding (1 year, 6 months, 1 month, etc.)

6. Documents to be attached

	Name of documents	Attached or not (o/x)	Note
6-1	Written affirmation on mandatory holding by those who are subject to mandatory holding		
6-2	List of shareholders (including equity investors) and summary list of shareholders ⁽¹⁾ of unlisted corporation (in case of the largest shareholder and shareholders who hold at least 5% of shares, they shall be stated separately)		
6-3	Details of stock holdings in ABC Corporation by the largest shareholder and shareholders who hold at least 5% of the unlisted corporation ⁽¹⁾		
6-4	Statement of largest shareholder's stock holdings ⁽¹⁾		
6-5	Audit report of an unlisted corporation		
6-6	Certified copy of corporate register for an unlisted corporation		
6-7	Confirmation of main creditor bank for an unlisted corporation		No bankruptcy or case to be resolved in 6 months
6-8	Confirmation of dispute case such as pending litigation ⁽²⁾		
6-9	Evaluation of property value for investment in kind ⁽³⁾		
6-10	Documents to prove the court approval for investment in kind		
6-11	Certificate of venture business in case an unlisted corporation is a venture business		
6-12	Documents certifying mandatory holding during back-door listing review		Attach when documents for back-door listing review are

			submitted
6-13	Other documents to ensure above contents		

Notes:

(1) a) Statements shall be prepared based on the date one (1) year before and as of before and after third party stock allotment.

b) Matters such as number of stocks held, number of stocks to be issued by right exercise of equity linked bonds, number of stocks subject to claims for transfer and number of stocks to be issued by right exercise of equity linked bonds subject to claims for transfer (please refer to reference 1 in item 5 above) shall be stated separately.

(2) Details of pending litigation shall be stated.

(3) It refers to the documents submitted to the court for approval (if submission has not taken place, documents to be submitted)

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No.22] Application for Shelf-Listing

Application for Shelf-Listing

(Pertaining to [§40(1)] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of corporation:

Name and seal of representative:

xxxx (name of company) hereby applies for the listing of new shares below pursuant to [§45(1)] of the KOSDAQ Market Listing Regulation.

Name of issue	
Number of issuance	
Par value per share (KRW)	
Issuing amount per share (KRW)	
Expected number of stock to be issued (shares)	
Expected total issuing amount (KRW)	
Remarks	

Note.,

- 1. Common and preferred stocks of ____ Corporation shall be stated in the column of name of issue.*
- 2. Number of issuance of the concerned stock shall be stated in the column of number of issuance.*
- 3. Total number of stocks to be issued by the exercise of conversion rights, subscription rights, or stock options shall be stated in the column of expected number of stock to be issued.*

<Issuing terms of convertible bonds and bonds with warrants>

Name of issue		
Issue date		
Annual interest rate (%)		
Issuing price per face value of KRW 100,000 (KRW)		
Total amount of face value (KRW)		
Amount of redemption up to date (KRW)		
Term unredeemed		
Redemption period		
Terms of conversion request (exercise terms of subscription warrants)		
Ratio of conversion request (exercise ratio of subscription warrants)		
Period of conversion request (exercise period of subscription warrant)	Date of start	
	Date of end	
Profit dividend of new stocks		
Issuing method		
Method of redemption		
Registration institution		
Underwriter		
Sales agency		
Method of interest payment		
Period for interest payment		
Place for paying principal and interest		
Guarantee : Payment agency for principal and interest		
Collateral	Type	
	Collateral property	
	Order of priority	

	Secured party	
Note		

<Details of stock options>

Resolution date for stock option		
Resolution method for stock option		
Total number of granted stocks (share)		
Exercise period of stock option	Date of start	
	Date of end	
(scheduled) Date of registration		
Method of granting stocks by exercise		
Exercise price (KRW)		

[Annex Form No.23] Written Notice on Issuance of New Shares

Written Notice on Issuance of New Shares
(Pertaining to [§40(2)] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

xxxx (name of company) hereby applies for the listing of new shares below pursuant to [§45(2)] of the KOSDAQ Market Listing Regulation.

Name of issue	
Number of issuance	
Par value per share (KRW)	
Date of issuance	
Issuing amount per share (KRW)	
Number of stocks to be issued (shares)	
Total issuing amount (KRW)	
Start date for dividend eligibility	
Date of book settlement	
Identification number of stock	
Total number of issued stock (shares)	
Gross capital (KRW)	
Method of issuance	
Place for stock subscription payment	

Matters on new preferred stocks	Preferred dividend rate (%)	
	Period of existence (mm/dd/yyyy)	
	Perpetual or non-perpetual	
	Maturity date	
	Participating or non-participating	
	Cumulative or non-cumulative	
	Voting right in case of no dividend payment	
Note		

Note.

1. Common and preferred stocks of shall be stated in the column of “Name of issue”.

2 Total issuing amount shall be produced by multiplying issuing price by number of stocks to be issued.

3 Method of issuance shall be CB conversion, BW exercise and stock option exercise.

4 In case where stock subscription payment is necessary, the place for stock subscription payment shall be stated mandatorily.

<Capital increase by the exercise of conversion rights of convertible bonds>

Name of issue			
Convertible bonds	Issuing date		
	Total issuing amount (A) (KRW)		
	Conversion period	Date of start	
		Date of end	
	Conversion ratio (%)		
Matters on new shares	Conversion date (issuing date)		
	(expected) Conversion registration date		
	Conversion price (KRW)		
	Number of stocks to be issued		
	Circulation date		

Amount of conversion requested (KRW)	
Accumulated total amount of conversion (B) (KRW)	
Total non-converted amount (KRW)	
Non-converted ratio $[(A-B)/A] \times 100(\%)$	
Change in conversion prices (for current year)	

<Capital increase by the exercise of subscription rights of bonds with warrants>

Name of issue			
Bond with subscription rights	Issuing date		
	Total issuing amount (A) (KRW)		
	Period of subscription right exercise	Date of start	
		Date of end	
	Exercise ratio (%)		
Matters on new shares	Exercise date of warrant		
	Stock subscription payment date		
	Method of stock subscription payment		
	(expected) Registration date		
	Exercise price (KRW)		
	Number of stocks to be issued		
	Circulation date		
Amount of exercise of subscription rights (KRW)			
Accumulated total amount of exercise (B) (KRW)			
Total non-exercise amount (KRW)			
Non-exercise ratio [(A-B)/A]×100(%)			
Change in exercise prices (for current year)			

<Capital increase by the exercise of subscription rights of subscription right warrants>

Name of issue			
bonds subscription warrants	with	Issuing date	
		Total issuing amount (A) (KRW)	
		Exercise period of subscription rights	Date of start
			Date of end
		Exercise ratio (%)	
Matters on new shares	Exercise date of subscription rights		
	Number of warrants exercised		
	Number of stocks issued		
	Stock subscription payment date		
	Method of stock subscription payment		
	(expected) Registration date		
	Exercise price (KRW)		
	Circulation date		
Change in subscription warrants after the exercise of rights		Before change	After change
Number of subscription warrants			
Class of stocks to be issued by exercise of rights			
Number of stocks to be issued by exercise of rights			
Change in exercise prices			

<Capital increase by the exercise of stock options>

Name of issue			
Status of stock options granted	Resolution date		
	Method of resolution		
	Total number of granted stocks (A)		
	Exercise period of	Date of start	

	stock options	Date of end	
Matters on exercise of stock options	Exercise date of stock options		
	Payment date for stock purchase		
	Method of payment for stock purchase		
	(expected) Registration date		
	Exercise price (KRW)		
	Number of stocks issued		
Accumulated total number of stocks exercised (B)			
Non-exercise ratio [(A-B)/A]×100(%)			
Change in exercise prices (for current year)			

[Annex Form No. 24] Official Objection to Decision on Postponement of Listing

Official Objection to Decision on Postponement of Listing

(Pertaining to [§41] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company) hereby files an objection to the Exchange's decision to postpone the listing as follows.

1. Purpose of objection

2. Reasons for objection

- a. The causes for postponement of listing
- b. Fact relations relating to the lawsuit on the effects of issuance of new stocks, etc.
- c. Reason for objection or opinions on lawsuit of effects of issuance of new stocks and future plan

3. Attendance (statement of opinion) at the Listing and Disclosure Committee

Attendance/non-attendance	Attendance		Non-attendance
	()		()
Personal information on attendants	Name		Not applicable
	Relation with the company		
	Address and phone number		
	Others		

Note. In case of non-appearance, any change including additions to, corrections and deletions of the statements in items 1 and 2 above shall not be admitted.

Attachments:

1. Documents related to lawsuit on effects of issuance of new stocks
2. Opinion of expert including lawyer, accountant and appraiser in the relevant field
3. Other documents that are deemed necessary for the objection

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No. 25] Application for Listing Change/Supplementary Listing

(Amended on September 27, 2022; March 16, 2026)

Application for Listing Change

(Pertaining to [§39], [§68], [§71], [§79], [§82], [§82-4], and [§82-8] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company) hereby applies for the listing change (supplementary listing) of following securities in accordance with the KOSDAQ Market Listing Regulations.

【Stocks】

	Before the change	After the change
Name of issue		
Issuance series number		
Whether or not it is no-par value stock		
Par value per share		
Paid-in capital		
Number of shares issued		
Dividend record date		
Expected listing date		
Cause of change		
Remarks		

Note: In the case of no-par value shares, the 'par value per share' is entered as 'capital per share (the amount accounted for as capital from the issue price per share)'.

【Subscription right certificates】

Details	Before the change	After the change
Items		
Name of issue		
Number of subscription right certificates (shares)		
Type of stocks to be issued by the exercise of subscription rights		

Number of stock to be issued by the exercise of subscription right (shares)			
Whether or not it is no-par value stock			
Exercise price of subscription rights (KRW)			
Exercise period of subscription rights	Date of start		
	Date of end		
Cause of change			
Date of change			
Expected listing date			

【Business development investment trust beneficiary certificates】

		Before the change	After the change
Name of issue			
Total number of units of beneficiary certificates			
Trust principal amount (KRW)			
Reference	Registered or bearer		
	Date of trust establishment		
	Date of trust period establishment		
	Date of trust period expiration		
	Principal amount per unit (KRW)		
	Number of certificates issued by denomination		
	Trust business entity		
	Remarks		

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

Application for Supplementary Listing

(Pertaining to [§39], [§68], [§71], [§79], [§82], [§82-3], and [§82-7] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company) hereby applies for the listing change (supplementary listing) of following securities in accordance with the KOSDAQ Market Listing Regulations.

【Stocks】

Name of issue			
Type of shares			
Issuance series number			
Whether or not it is no-par value stock			
Par value per share			
Date of issuance			
Expected date of listing			
Issuing price per share (KRW)			
Number of shares issued			
Total number of listed shares after change			
Paid-in capital after change			
Dividend record date			
Reasons for issuing shares			
Date of BOD resolution (decision)			
Date of resolution at general shareholders' meeting			
Location for payment of share capital			
Whether a lawsuit has been filed regarding the validity of the new share issuance		Date the lawsuit was filed	

Note: In the case of no-par value shares, the 'par value per share' is entered as 'capital per share (the amount accounted for as capital from the issue price per share)'.

【DRs of foreign stocks】

Name of issue	
Issuance series number	
Date of issuance	
Expected date of listing	
Issuing price per share (KRW)	
Number of DRs of foreign stocks issued	
Total number of DRs of foreign stocks issued after change	
Dividend record date	
Reasons for issuing shares	
Date of BOD resolution (decision)	
Date of resolution at the general shareholders'	

meeting			
Location for payment of share capital			
Whether a lawsuit has been filed regarding the validity of the new share issuance		Date the lawsuit was filed	

【Business development investment company stocks】

Name of issue	
Number of shares to be issued additionally	
Issuing price/par value per share (KRW)	
Number of shares issued after additional issuance	
Paid-in capital after additional issuance (KRW)	
Reference	Registered or bearer
	Date of collective investment vehicle establishment
	Dividend record date
	Number of certificates issued by denomination
	Collective investment business entity
	Remarks

【Business development investment trust beneficiary certificates】

Name of issue	
Number of units to be issued additionally	
Total number of units after additional issuance	
Trust principal amount after additional issuance (KRW)	
Registered or bearer	
Date of trust establishment	
Date of trust period establishment	
Date of expiration of trust	
Principal amount per unit (KRW)	
Number of certificates issued by denomination	
Collective investment business entity	
Remarks	

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No.26] Written Confirmation on Acquisition of Listed Corporation

Written Confirmation on Acquisition of Listed Corporation

(Pertaining to [§47] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), (“the Corporation” hereinafter), hereby confirms that there is no doubt of the following information pursuant to [§51(1)] of the KOSDAQ Market Listing Regulation, and if any false fact is found, the Corporation will file no objections to delisting, designation as administrative issue, etc. taken by the Exchange based on the KOSDAQ Market Listing Regulation, the Enforcement Rules of the same Regulation, and the relevant regulations. The Corporation shall also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of the largest shareholder:
2. Legal characteristics of the largest shareholder: Corporation/Organization (including associations)
3. Matters concerning the largest shareholder

	Whether subject to mandatory holding	If ‘No’, the reasons therefore ⁽¹⁾
Case where the largest shareholder is a corporation	Yes / No	

Case where the largest shareholder is an organization	Yes / No	
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Note: In the case where the largest shareholder is a corporation, please enter the sales within the latest one (1) year based on the date of submission of the written confirmation (referring to one of the annual, half-yearly and quarterly sales, and for a holding company or controlling company, it may be the consolidated sales). In the case where the largest shareholder is an organization, please enter the relevant statutes related to the establishment or formation of the organization, or to the registration with the competent authority.

4. Documents to be attached

	documents	Attached or not (o/x)	Note
For corporations	Financial statements ⁽¹⁾		
	Financial statements, tax settlement invoice and certificate of tax payment relating to payment of corporate tax		
	Certificate of tax base and certificate of tax payment relating to payment of value-added tax		
	Written review confirmation on sales amount issued by accounting corporations ⁽³⁾		
For organizations	Internal rules of the organization		
	Documents verifying the basis of establishment, formation or registration ⁽⁴⁾		
Common	Other documents verifying related matters		

Note.

(1) It refers to the financial statements that can prove that the corporation's sales are KRW 300 million or more it may be based on any of the annual, half-yearly and quarterly financial statements, and for corporations subject to preparation of consolidated financial statements, it may be based on the consolidated financial statements). However, financial statements shall be those prepared within one year from the disclosure date of the change of the largest shareholder, and it is limited to the case where the external auditor's audit opinion or review opinion is unqualified.

(2) In case of value-added tax-free business operators, the certificate of income amount and the certificate of tax payment shall be submitted.

(3) It refers to the written confirmation on sales amount of the largest shareholder of KOSDAQ-listed corporation under [Annex Form No. 27] and the written confirmation on the review prepared by accounting firm.

(4) It refers to an official letter issued by the competent ministry, which authorizes the establishment, formation or application for registration of the organization based on the relevant statutes.

Date: mm/dd/yyyy

Name of company:

Address:

Name and seal of the representative director:

[Annex Form No.27] Written Confirmation on Sales Amount of Largest Shareholder (Corporation)

Written Confirmation on Sales Amount of Largest Shareholder (Corporation)

(Pertaining to [§47(5)] of the Enforcement Rules)

1. Name of the corporation:

2. Year of establishment:

3. The most recent business year (Month of settlement of accounts):

4. Sales amount: (based on consolidated / separate / individual, and annul / half-yearly / quarterly)

5. Confirmation by accounting firm:

- Name of the accounting corporation:

- Date of confirmation:

Attachments:

Certified copy of the written confirmation on the review prepared by accounting firm

Date: mm/dd/yyyy

Name and seal of the representative director (CEO):

[Annex Form No.28] Official Objection to Decision on Delisting

Official Objection to Decision on Delisting

(Pertaining to [§60] and [§63] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company) hereby files an objection to the decision on delisting of the Korea Exchange as follows.

1. Purpose of objection

2. Reasons for objection

A. Reasons relating to the delisting criteria and the applicable delisting regulations

B. Facts relations on falling under delisting criteria of the stocks

C. Reasons for objection or an outline of the plan to resolve the causes for delisting, if any

3. Attendance (statement of opinion) at the Listing Committee

Attendance/non-attendance	Attendance		Non-attendance
	()		()
Personal information on attendants	Name		Not applicable
	Relation with the company		
	Address and phone number		
	Others		

Note: In case of non-attendance, any change including additions to, corrections and deletions of the statements in the first and second items shall not be admitted.

Attachments

1. Improvement plan and related documents (if applicable)
2. Opinion of expert in the relevant field
3. Other documents that are deemed necessary for the objection

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No.29] Written Confirmation of Excellent Company in R&D and Market Evaluation

Written Confirmation of Excellent Company in R&D and Market Evaluation

(Pertaining to [§49(2)] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), (“the Corporation” hereinafter), hereby confirms that there is no doubt of the following information pursuant to [§49(2)] of the Enforcement Rules of KOSDAQ Market Listing Regulation, and if any false fact is found, the Company will file no objections to the measures such as delisting, designation as administrative issue, etc. taken by the Exchange pursuant to the KOSDAQ Market Listing Regulation, the Enforcement Rules of the same Regulation, and the relevant regulations. The Corporation will also bear all the responsibilities for any and all damages which may arise in connection with the breach of the confirmation duty.

1. Matters concerning excellent R&D companies

Whether falling under pharmaceutical/bio enterprise ⁽¹⁾ (O / X)	Whether falling under innovative pharmaceutical enterprise ⁽²⁾ (O / X)	Effective period of certification of innovative pharmaceutical enterprise

Notes:

(1) Please state whether it falls under the pharmaceutical/bio enterprise under [§2(1)40] of the Regulation.

(2) Please state whether it falls under the innovative pharmaceutical enterprise under Subparagraph 3 of Article 2 of the Special Act on Fostering and Support of Pharmaceutical Industry, as of the end of the latest business year.

2. Matters concerning companies with excellent market evaluation

Whether falling under pharmaceutical/bio enterprise ⁽¹⁾ (O / X)	Average daily market capitalization ⁽²⁾ (O / X)	Capital stock ⁽³⁾

Notes:

- (1) Please state whether it falls under the pharmaceutical/bio enterprise under [§2(1)40] of the Regulation.
- (2) Please enter the daily average of the market capitalization of common stocks (including foreign stocks or DRs of foreign stocks) during the latest business year. In such cases, the market capitalization of the days when the trading was suspended shall be excluded.
- (3) Please enter the capital stock as at the end of the latest business year:

3. Documents to be attached

	List of documents	Attached or not (O / X)
3-1	Copy of the certificate of innovative pharmaceutical enterprise	
3-2	Other documents, etc. which are deemed necessary by the Exchange	

Name of company:

Address:

Name and seal of the representative director:

[Annex Form No.30] Summary Table of Shareholders

Summary Table of Shareholders

(Pertaining to [§25] and [Annex No. 2], [§55] and [§72] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), (“the Corporation” hereinafter), hereby confirms that the status of stock distribution of the Corporation is as follows, and if any false or not stated facts are found, the Corporation will file no objections to delisting, designation as administrative issue, etc. taken by the Exchange based on the KOSDAQ Market Listing Regulation, the Enforcement Rules of the same Regulation, and the relevant regulations. The Corporation will also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Status of stock distribution

	Name	Dates of birth (Business registration number)	Number of shares held	Proportion (%)	Remarks
The largest shareholder	× × ×	mm/dd/yyyy		00.00	
Related persons of the largest shareholder	× × ×	mm/dd/yyyy		00.00	(Ex) Spouse
	× × × Sub-total	mm/dd/yyyy		00.00	(Ex) Offspring
Major shareholders (holding at least 10% of stocks etc.)	× × × Sub-total	mm/dd/yyyy		00.00	(Ex) Senior Executive
Minority shareholders (including professional investors)	○○persons Sub-total	(Omitted)		00.00	

Employee stock ownership association	○○persons Sub-total	Birth date of head of association		00.00	
Others (shareholders with less than 10% of stocks other than the minority shareholders)	× × × or ○○ persons Sub-total	mm/dd/yyyy(Omission is possible in case 10 or more people)		00.00	
Total	-			100%	

2. Status of floating stocks

		No. of stocks	Portion (%)	Remarks
Total number of common stocks (A)				
Number of non-floating stocks	No. of stocks held by government			
	No. of stocks held by KDIC			
	No. of stocks held by foreign investors			
	No. of stocks under mandatory holding*			
	Sub-total (B)			
Number of floating stocks (C=A-B)				

* "Stocks under mandatory holding" refers to stocks falling under [§2(1)16(c) and (d)] of the Regulations

3. Status of stocks under mandatory holding of the largest shareholder, etc.

		No. of stocks	Portion (%)	Remarks
Number of stocks of the largest shareholder	No. of stocks under mandatory holding			
	No. of stocks not under mandatory holding (A)			
	Sub-total			
Number of stocks of the specially-related persons	No. of stocks under mandatory holding			
	No. of stocks not under mandatory holding (B)			
	Sub-total			
Number of stocks of the largest shareholder, etc.	No. of stocks under mandatory holding*			
	No. of stocks not under mandatory holding (A+B)			
	Sub-total			

* The number of stocks under mandatory holding refers to the number of stocks held by the largest shareholder, etc.

4. Status of distribution of shareholders other than the largest shareholder, etc.

Shareholders other than the largest shareholder, etc.	Classification	No. of shareholders	No. of shares held	Share holding ratio (%)	Remarks
Domestic investors	Banks				
	Securities companies				
	Merchant banks				
	Mutual savings banks				
	Investment trust companies				
	Venture funds				
	Venture capital				
	Securities investment companies				
	Treasury stocks				
	Treasury stocks funds				
	ESOP				
	Government				
	Government-managed enterprises				
	Individuals holding 1% or more				
	Individuals holding less than 1%				
	Corporations holding 1% or more				
	Corporations holding less than 1%				
	Forfeited stocks				
	Others				
	Sub-total				
Foreign investors	Foreign institutional investors				
	Foreign investment companies				
	Corporations holding 1% or more				
	Corporations holding less than 1%				
	Individuals holding 1% or more				
	Individuals holding less than 1%				
	Others				
	Sub-total				
Total					

5. Status of minority shareholders

		No. of shareholders	No. of shares held	Shareholding Ratio (%)
Domestic shareholders	Professional investors			
	Venture funds / Venture capital			
	Securities investment companies			
	Corporations holding less than 1%			
	Individuals holding less than 1%			
	Others			

Foreign shareholders	Foreign institutional investors			
	Foreign investment companies			
	Corporations holding less than 1%			
	Individuals holding less than 1%			
	Others			
	Total			

Date of preparation:

Name of corporation:

Name and seal of the representative director:

Note for description

1. Date of preparation shall be as of the record date for closing of the register of shareholders.
2. A corporation listed on the KOSDAQ market that has issued class stocks shall submit a summary table of shareholders' lists for common stocks and class stocks, respectively.
3. Ratio or shareholding ratio shall be written to two decimal places.
4. Within the same category, list shareholders in the order of the number of stocks held.
5. In the remarks column of the shareholder distribution in item 1 and the shareholder distribution other than the largest shareholder, etc. in item 4, the relationship with the largest shareholder and the position in the corporation shall be stated.
6. "The largest shareholder" means a person who falls under [§2(1)13(a)] of the Regulation.
7. "Related person" means a person who falls under [§2(1)13(b)] of the Regulations.
8. "The largest shareholder, etc." refers to a person who falls under [§2(1)13] of the Regulation.
9. "Major shareholder" refers to a person excluding the largest shareholder, specially related person, and employee stock ownership association member from among major shareholders under subparagraph 6(b) of Article 2 of the Act on Governance of Financial Companies. In this case, "financial company" shall be construed as "a corporation listed on the KOSDAQ market."
10. In the "Minority Shareholder" column, write down those excluding the employee stock ownership association from among those who fall under [§2(1)16] of the Regulations.
11. "Other shareholder" refers to any shareholder who are not corresponding to the largest shareholder, specially related person, major shareholder, minority shareholder, and the employee stock ownership association. In this case, if there are more than 10 other shareholders, the number of shareholders shall be entered in the column of the name of other shareholders.
12. "Employee stock ownership association" refers to the employee stock ownership association established in accordance with the Framework Act on Labor Welfare. In this case, the number of employees in the employee stock ownership association should be written in the column of the name of the employee stock ownership association, the date of birth of the head of employee stock ownership association in the column of the date of birth, and the stocks owned in the name of the head of employee stock ownership association and its share ownership in the columns of the number of stocks owned and shareholding ratio.
13. "Non-floating stocks" refers to stocks under [§2(1)35] of the Regulations.
14. "Foreign investor" refers to a foreign investor in a foreign-invested company 51/100 or more of which stocks are held by the Korean investors from among foreign-invested companies under the Foreign Investment Promotion Act.

[Annex Form No. 31] Confirmation on Removal of Causes for Uncertainties as Going Concern

Confirmation on Removal of Causes for Uncertainties as Going Concern

(Pertaining to [§59] of the Enforcement Rules)

To Chairperson of Korea Exchange,

We, auditor of _____ Corporation, has audited the financial statements of _____ Corporation as of the end of business year of 20xx and expressed an adverse opinion (or disclaimer of opinion) based on uncertainties over the corporation's ability to continue as a going concern. The reason for the above opinion was entirely based on the uncertainties over the ability as a going concern.

However, it is judged that , since the expression of such opinion, _____ Corporation has resolved the uncertainties over the ability to continue as a going concern through ----- . In this regard, the auditor confirms as follows:

1. Details of the causes for the initial uncertainties over the ability to survive as a going concern

2. Details on the removal of causes for uncertainties

3. Documents to support the removal of causes for uncertainties

Date: mm/dd/yyyy

Name of accounting corporation:

Address:

Name and seal of the representative director:

[Annex Form No.32] Written Confirmation on Details of Funds Use

Written Confirmation on Details of Funds Use

To Chairperson of Korea Exchange,

xxxx (name of company), (“the Corporation” hereinafter), hereby confirms that following statements are true pursuant to [§46(1)4] and [§50(1)3] of the KOSDAQ Market Listing Regulation, in relation to the paid-in capital increase through the third-party allotment and, and if any false fact is found, the Corporation will not raise any objection to the measures such as designation as administrative issue and/or investment attention issue, delisting, etc. to be taken by the Exchange based on the KOSDAQ Market Listing Regulation, the Enforcement Rules of the same Regulation, and the relevant regulations. The Corporation will also bear indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

1. Name of the KOSDAQ-listed Company:

2. Matters on paid-in capital increase by third-party allotment

Number of shares to be increased		Amount of capital increase (KRW mil.)	
Payment date		Disclosure date on decision of capital increase	
		Listing date of new shares	
Purpose of financing		Whether securities registration is filed, and reason if exempted	

3. List of shareholders purchased new shares through the third-party allotment

The third-party allotted	Relation with the company or the largest shareholder	Size of capital increase		Remark
		Number of shares allotted	Amount to be paid (KRW mil.)	

4. Details of use of proceeds by listing applicant:

--

5. Confirmation of detailed use of funds for shareholders purchased new shares through the third-party allotment

	Yes/No
(1) Whether or not there has been a decision on pre-payment, provisional payment, loan of money, lending of securities ⁽¹⁾ , capital investment ⁽²⁾ , etc. for the third parties, stated in subparagraph 3 above, who acquired new shares within 6 months after the payment for subscribing new shares issued through the third party allotment	Yes/No
(2) Whether or not there is a plan to make a decision on pre-payment, provisional payment, loan of money, lending of securities ⁽¹⁾ , capital investment ⁽²⁾ , etc. for the third parties, stated in subparagraph 3 above, who acquired new shares within 6 months after the payment for subscribing new shares issued through the third party allotment	Yes/No

Notes:

(1) Securities shall include securities, bills or CDs specified in each item of Article 4(2) of the Act. The same shall apply hereinafter.

(2) Acquisition of stocks, etc. or equity investment certificates issued by other corporation. The same shall apply hereinafter.

6. Documents to be attached

	List of documents	Attached or not (O, X)
1	Written affirmation on mandatory holding by persons subject to mandatory holding * Limited to a case where there is a decision on pre-payment, provisional payment, loan of money, lending of securities, capital investment, etc. for shareholders purchased new shares through the third party allotment	
2	Documents certifying mandatory holding by persons subject to mandatory holding	
3	Documentary evidence to confirm the use of proceeds stated in subparagraph 4 above	

Date: mm/dd/yyyy

Name of company:

Address:

Name and seal of the representative director:

[Annex Form No.33] Written Confirmation on Whether Applicable to Exception to Designation of Administrative Issue

Written Confirmation on Whether Applicable to Exception
to Designation of Administrative Issue
(Pertaining to [§53] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), (“the Corporation” hereinafter), files this written confirmation to confirm whether the Corporation has made efforts to establish the general meeting of shareholders, since, even though a case falling under [§53(1)7] of the KOSDAQ Market Listing Regulation has occurred, the cause for the case was due to the shortage of the quorum for the shareholders’ general meeting (including the case where such event has occurred due to a reason that is not attributable to the KOSDAQ-listed corporation, such as rejection of agenda at the general meeting of shareholders). The Corporation also confirms that if any false fact is found, the Corporation will file no objections to designation as administrative issue, delisting, etc. taken by the Exchange based on the KOSDAQ Market Listing Regulation, the Enforcement Rules of the same Regulation, and the relevant regulations. The Corporation will also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

.

1. Name of the KOSDAQ-listed Company:

2. Scheduled date of holding shareholders’ meeting:

3. Confirmation on whether efforts to establish shareholders’ meeting have been made

Whether the electronic voting has been conducted?	Yes / No
Whether the solicitation to exercise voting rights by proxy was made to all shareholders? ⁽¹⁾	Yes / No
Whether a request for the exercise of voting rights to institutional investors and other measures to establish the general meeting of shareholders was made?	Yes / No

Note. Refers to the case where the proxy forms and reference documents were delivered to all shareholders through the electronic proxy system or by mail.

4. Documents to be attached

1	Certificate for confirmation of using electronic voting ⁽¹⁾	Yes / No
2	Documents to confirm the solicitation of voting rights by proxy for all shareholders ⁽²⁾	Yes / No
3	Documents to confirm the request for exercise of voting rights to institutional investors and other efforts to establish the shareholders' meeting ⁽³⁾	Yes / No

Notes:

(1) Refers to the confirmation certificate of using electronic voting issued by an agency designated for the management of electronic voting pursuant to Article 13(4) of the Commercial Act including KSD, with regard to the concerned shareholders' meeting.

(2) If it was done using the electronic proxy system, it refers to a certificate of using electronic proxy issued by an agency designated for the management of electronic voting with regard to the concerned shareholders' meeting. If it was done by mail, it refers to a document confirming the proxy forms and reference documents were delivered to all shareholders.

(3) When any efforts other than those noted in (1) and (2) above were made, please attach documents confirming such fact.

(Examples) Details of the official letter and emails that were sent out to request institutional investors to exercise voting rights and documents confirming that the voting forms in writing and reference documents were sent out to all shareholders, if the voting in writing is adopted.

※ It is necessary to submit a confirmation of the current shareholders' meeting and any documents related to past shareholders' meeting are not accepted.

Date: mm/dd/yyyy

Name of company:

Address:

Name and seal of the representative director:

[Annex Form No.34] Written Report on Operation of Internal Accounting Management System

Written Report on Operation of Internal Accounting Management System

(Pertaining to [§20] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: _____

Name of Company:

Name and seal of representative:

Address of Head Office:

(Phone)

Officer in Charge of Internal Accounting Management:

(Phone)

1. Matters on regulation on internal accounting management and organization to manage and operate internal accounting management system

a. Introduction and progress of the internal accounting management system

b. Regulation on internal accounting management

(1) Title of governing regulation: _____ (formulated on mm/dd/yyyy)

(2) Summary of details

Items	Details	Related Articles
<Management of accounting information > • Accounting process (Procedures to be kept by officer and employees in charge of preparing accounting information, etc.) - Method of accounting - Change of accounting method - Report of accounting information - Method of recording accounting transactions - Disclosure of accounting information - Designation of persons in charge of preparation of accounting regulation and persons, head and assistant, in charge of each process of accounting • Inspection of accounting process - Matters on internal examination such as periodical inspection and coordination of accounting information - Method on error control and correction of accounting information • Administration and keeping of accounting records - Method of keeping books for record and conservation of accounting information and control procedures to prevent forgery, etc.		
< Administration and operation of internal accounting management system > • Segregation of duties and responsibilities of personnel related to preparation of accounting information - Person responsible for administration and operation of internal accounting management system - Person in charge of internal accounting management - Segregation of duties relating to accounting information - Method of handling the violation of internal accounting management regulation, etc. - Reporting obligation of auditor		

- Disclosure of internal accounting management system		
< Others > • Disciplinary actions against officer and employees who violate the regulation • Procedure of revising the regulation		

Note: Please include contents equivalent to “Standard Examples of Internal Accounting Management Regulation” by the Korea Listed Companies Association

(3) Major improvements in the regulation on internal accounting management during the relevant business year

Date of Improvement	Before Improvement	After Improvement	Remark (Reasons for improving)

c. Organization to manage internal accounting

(1) Personnel in charge of management and operation of internal accounting

Organization or department	Name of person in charge	Position	Tasks		Phone No.
			Relating to internal accounting management system	Others	
Auditor (Audit Committee)		Auditor			
Board of Directors		Internal accounting Manager			
Accounting department					

IT systems department					
Financial management department					
Other related department					

(2) Personal information about internal accounting manager

Name	Organization/department	Date of birth	Education	Terms of office	Work experience	Others
				~		

(3) Human resources for management and operation of internal accounting and number of CPAs

Organization or department	Total number of staff	Percentage of CPAs among total internal accounting staff			Average length of experience of internal accounting staff (in months) *
		Number of internal accounting staff (A)	CPAs (B)	Percentage (B/A×100)	
Auditor (Audit Committee)					
Board of Directors					
Accounting department					
IT systems department					
Financial management department					
Other related department					

* Average length of experience of internal accounting staff (in months) = Simple summation of A's internal accounting experience (in months; including experiences before joining the company) / Number of internal accounting staff (A)

2. Performance of operations of internal accounting management system reported by internal accounting manager

Period (Business Year)	Date of report	Reporter	Content of report	Reported to:	Remark
------------------------	----------------	----------	-------------------	--------------	--------

××th period					
××th period (semi-annual)					
Others					

3. Auditor's report to BOD on evaluation of operations of internal accounting management system

Period(Business Year)	Date of report	Reporter	Content of report	Remark
××th period				
××th period (semi-annual)				
Others				

4. Auditor's Review and Opinion

auditor: _____ (Name _____ of _____)

	Opinion	Improvement by company	Improvement plan	Remark
Internal accounting management regulation				
Internal accounting management organization				
Operation of internal accounting management system				
Other opinion on internal accounting				

Note. Please review in accordance with the "Review Criteria of Internal Accounting Management System" by the KICPA when evaluating the operation of internal accounting management system based on the "Standard Examples of Internal Accounting Management System" by the Korea Listed Companies Association.

5. Disciplinary actions against staff that violated internal accounting management regulation

Date of violation	Person violated		Violation details	Disciplinary actions	Date of disciplinary actions
	Position	Name			

6. Other Matters Necessary for Investors, etc. in Understanding and Evaluating Internal Accounting Management System

Attachment: A Copy of Auditor's Review Opinion on Internal Accounting Management System

[Annex Form No.35] Comfort Letter of External Auditor

Comfort Letter of External Auditor

(Pertaining to [§64] and [Annex No. 1] of the Enforcement Rules)

To Listing Applicant,

Date: mm/dd/yyyy

xxxx Accounting Corporation (hereinafter “the Auditor”) has audited (reviewed) the financial statements of Co., Ltd (hereinafter “the Company”) for the year that ended on December 31, 20XX and June 30, 20XX and confirm following matters in relation to the application for preliminary listing review of foreign stocks and/or DRs to be filed on [date] by the Company.

1. The Auditor maintains independence from the Company according to accounting audit standards of OOOO in relation to the accounting audit on the financial statements of the Company.
2. The Auditor, for the preparation of this letter, has implemented each of the confirmation procedure as requested by the Company only for the financial information items as attached and requested by the Company among the content included in the application for preliminary listing review for foreign stocks/DRs. The Auditor has not implemented any additional confirmation procedure for items that are not enumerated in the attachment.
 - (1) The Auditor has compared the amounts and explanations in the items that are included in the application for preliminary listing review for foreign stocks/DRs with the concerned amount and descriptions in the audit (review) report on the financial statements of 20xx, and verified that they correspond with each other.
 - (2) The Auditor has recalculated the ratios and sums that are included in the application for preliminary listing review for foreign stocks/DRs and verified the accuracy of the calculations.
 - (3) The Auditor has compared the amounts and explanations in the items that are included in the application for preliminary listing review for foreign stocks/DRs with the concerned explanations in the audit (review) report on the financial statements of 20xx, and verified that the former explanations do not include matters that are different from the descriptions or amounts in the audit (review) report.
 - (4) The Auditor has compared the amounts in the items that are included in the application for preliminary listing review for foreign stocks/DRs with the concerned amount in the accounts closing report and verified that they correspond with each other.

- (5) In cases where an amount that is not included in the audit (review) report and the Company's accounts closing report but included in the application for preliminary listing review for foreign stocks/DRs, the Auditor has compared the amount with the Company's internal documents such as accounting records or analysis data that the Company turned in and verified that they correspond with each other. For the accuracy and validity of the internal documents such as the analysis data provided by the Company, no review was made.

The sufficiency of the verification procedure implemented by the Auditor is under the responsibility of the Company, the recipient of this letter. The Auditor expresses no opinion on whether or not the verification procedure falls under the purpose intended by the recipient, and in addition, as the verification procedure implemented by the Auditor is not the procedure according to the OOOO accounting audit standards (local country's accounting audit standards, etc.), opinion thereon is not expressed.

3. For the preparation of this letter, the Auditor implemented procedures, during the period of from [date] to [date] (hereinafter "subsequent period") that the recipient deemed necessary and requested and the requested procedures and results are as follows:

- (1) The Auditor examined the minutes of general shareholders meeting and board of directors meeting during the subsequent period. And the Company's personnel in charge of the minutes stated that all the minutes said above are turned in without any omission. The content of the general shareholders meeting and board of directors meeting are as follows:

< Excerpt of BOD minutes dated [date] >

- Resolution: approved OOOO

- (2) The Company's personnel in charge stated that the statement of financial positions or income statement as of a date or during a period of after [date] was not prepared. The Auditor, in relation to this, has not implemented any review procedures during the period of from [date] to [date].

- (3) The Auditor has made inquiries to the Company's personnel in charge about following material facts, etc. and, in relation to the material facts, verified major subsidiary books, chits, etc. turned in by the recipient as per the subsequent period.

- Dishonor of a note or a check issued
- Suspension of business operation
- Occurrence of a disaster or a major loss
- Selling of a large amount of fixed asset
- Filing of a lawsuit or occurrence of a dispute
- Change of officers
- Merger, split-off or merger after split-off (including physical split-off or merger after physical split-off), transfer or acquisition of business, resolution of major asset lease or management entrustment, etc.

- Issuance of shares or bonds
- Borrowing of a large amount or borrowing from overseas
- Change of important accounting estimation
- Occurrence of contingent liabilities or pre-arranged events
- Occurrence of abnormal error corrections in previous period
- Important changes in share ownership, long-term debt, operating capital, etc.
- In cases of a holdings company, above matters on major subsidiaries
- Other matters that are deemed important

To the inquiries by the Auditor about the matters above, the Company's personnel in charge stated that the matters above have not occurred during the subsequent period.

< Matters stated >

As the above procedure has not been executed according to the accounting audit standards, opinion thereon is not expressed and opinion whether the procedure falls under the purpose of the procedure, intended by the recipient of this letter, is not expressed. If the Auditor had implemented additional procedures or accounting audit or review, other matters to be reported to the recipient might have been found.

4. The responsibility of the description in the application for preliminary listing review for foreign stocks/DRs and of determination and verification of disclosure scope, etc. remains with the Company, the recipient of this letter. The Auditor's responsibility is to implement verification procedures on the requested matters and issue this letter. In addition, issuance of this letter does not replace or exempt the recipient's responsibility for the content of the application for preliminary listing review for foreign stocks/DRs and for determination and verification of disclosure scope, etc.
5. As this letter is for the recipient's information purpose only in relation to the application for preliminary listing review for foreign stocks/DRs for the listing on the KRX, perusal or use for other purposes are not allowed.
6. This letter was prepared for the purpose of use within Korea in connection with the listing of the Company on the KRX. Accordingly, use in any area other than Korea is not allowed.

OOOO Accounting Corporation

Name and seal of the representative director:

Attachment: Verification procedures and findings by review item in the application for preliminary listing review for foreign stocks/DRs

Attachment:

Verification Procedures and Findings by Review Item

[illegible]

[Annex Form No.36] Written Affirmation on Fulfillment of Obligations by Representative Directors of Foreign Company

Written Affirmation on Fulfillment of Obligations by Representative Directors of Foreign Company

(Pertaining to [§64] and [Annex No. 1] of the Enforcement Rules)

To Chairperson of Korea Exchange,

I, the undersigned, as the representative director of xxxx Corporation (hereinafter referred to as “the Corporation”), agree with the following matters and hereby affirms that I will bear the legal responsibilities in the case of violation of the agreement.

1. To comply with the Financial Investment Services and Capital Markets Act, the KOSDAQ Market Listing Regulation, the Enforcement Rules of KOSDAQ Market Listing Regulation, the KOSDAQ Market Disclosure Regulation, the Enforcement Rules of KOSDAQ Market Disclosure Regulation and the Articles of Incorporation of the Corporation, and to ensure that the Corporation complies with the same Act and Regulations.

2. To bear all responsibilities arising from any false statements or omissions of the material matters in the documents submitted to the Exchange, and not to raise any objection to the measures taken by the Exchange in this regard.

3. To fulfill the obligation to submit the documents, etc. requested by the Exchange to confirm investor protection, market integrity and compliance with related regulations by the specified deadline, and to attend the committees and meetings, etc.as requested by the Exchange.

4. To agree upon that the Exchange may provide this Affirmation to a third party or make it publicly available for the inspection by the unspecified number of people.

※ The legal disputes arising in connection with this Affirmation shall be governed by the laws of the Republic of Korea, and the competent court therefore shall be the court having jurisdiction over the location of the KOSADAQ Division of the Exchange.

Date: mm/dd/yyyy

Name of company:

Name and seal of the representative director:

[Annex Form No.37] Written Confirmation on Merger with the Merger Target Company

Written Confirmation on Merger with the Merger Target Company

(Pertaining to [§74] and [Annex No. 1] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company), (“the Corporation” hereinafter), hereby confirms that there is no doubt of following information pursuant to [§74] of the KOSDAQ Market Listing Regulation and [§74] of the Enforcement Rules of KOSDAQ Market Listing Regulation, with respect to merger with the merger target company, and if any false fact is found, the Corporation will file no objections to delisting, designation as administrative issue, etc. taken by the Exchange based on the KOSDAQ Market Listing Regulation and the Enforcement Rules of the same Regulation. The Corporation will also indemnify any and all claims and damages which may arise in connection with the breach of confirmation duty.

.

1. Name of the merger target company:

2. Matters on the merger target company

	Yes	No	Note
1. Financial investment company stated in Article 6(4)14(c) of the Enforcement Decree of the Act			
2. Shareholders as of the application date for preliminary listing review pursuant to [§69(1)] of the Regulation (financial investment company mentioned in item “1” above shall be excluded; the same hereinafter)			
3. An entity who falls under any of the following sub-items is a major shareholder under Article 9(1) of the Act: a. Financial investment company in item “1” (executive or staff of the financial investment company concerned who has conducted or is conducting business related to the establishment and operation of the special purpose acquisition corporation concerned and his/her spouse, lineal ascendants and descendants are also included) b. Shareholder as of the application date for preliminary listing review in item “2” (in case where the shareholder is a legal entity, its executives, spouses of executives, lineal ascendants and descendants are included and in case where the shareholder is an individual, his/her spouse, lineal ascendants and descendants are included) c. Executives and staff of the special purpose acquisition corporation concerned (spouses,			

lineal ascendants and descendants of executives and staff are included)			
4. Corporation of which shares of at least 5/100 of total outstanding shares are owned by any party who falls under sub-items of “3”*			
5. Largest shareholder and affiliated company (hereinafter referred to as the “affiliated company”) under the Monopoly Regulation and Fair Trade Act of financial investment company stated in item 1 or of a shareholder as of application date for preliminary listing review in item “2” (it is limited to a case where the shareholder concerned is a corporation; the same in this Article)			
6. Legal entity who holds dual position as executives or staff currently or during recent 2 years in the special purpose acquisition corporation concerned, financial investment company in item “1” or shareholder as of the application date for preliminary listing review in item “2”			

Note. In calculating the number of stocks in item “4”, the followings shall be included:

- 1. Number of stocks that may be issued by exercises of rights of stocks, etc.*
- 2. Number of stocks held by affiliated companies of financial investment company in sub-item “1” of item “2” and of shareholder as of the application date for preliminary listing review in sub-item “2” of item “2”.*

Date: mm/dd/yyyy

Name of company:

Address:

Name and seal of the representative director:

[Annex Form No.38] Application for Listing of Subscription Warrants

Application for Listing of Subscription Warrants

(Pertaining to [§81] and [Annex No. 2] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of company:

Name & seal of representative director:

xxxx (name of company) hereby applies for the listing of subscription warrants as follows pursuant to [§83] of KOSDAQ Market Listing Regulation.

Name of issue		
Number of subscription warrants		
Proportion of new share subscription (%)		
Issuing date		
Number of issuance		
Type of stocks to be issued by the exercise of subscription rights		
Number of stocks to be issued by the exercise of subscription rights		
Par value per share (KRW)		
Total amount of face value (KRW)		
Exercise price of a subscription right (KRW)		
Total issuing amount (KRW)		
Exercise period of subscription rights	Date of start	
	Date of end	
Payment method of stock subscription		

Place for payment of stock subscription	
Profit dividend of new stocks	

<Issuing Terms of the Bonds with Warrants>

Name of issue		
Issuing date		
Annual interest rate (%)		
Issuing price per face value of KRW 100,000		
Total amount of face value (KRW)		
Amount of redemption up to date (KRW)		
Term unredeemed		
Redemption period		
Exercise conditions of a subscription right		
Exercise proportion of subscription rights		
Exercise period of subscription rights	Date of start	
	Date of end	
Profit dividend of new stocks		
Issuing method		
Method of redemption		
Registration institution		
Underwriter		
Sales agency		
Method of interest payment		
Period for interest payment		
Place of paying principal and interest		
Guarantee Payment agency for principal and interest		
Collateral	Type	
	Collateral property	
	Order of priority	
	Secured party	
Note		

- 1. In case where the payment of stock is accompanied, the place for payment shall be stated.*
- 2. The issuing method shall be stated as 'direct public offering' (initial public offering or secondary distribution) or 'indirect public offering' (initial public offering or secondary distribution) or 'rights offering'.*

[Annex Form No.39] Application for Listing of Subscription Right Certificates

Application for Listing of Subscription Right Certificates
(Pertaining to [§81] and [Annex No. 2]) of the Enforcement Rules

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of Corporation:

Name & seal of the representative director:

xxxx (name of company) hereby applies for the listing of subscription right certificates as follows pursuant to [§83] of KOSDAQ Market Listing Regulation.

Name of issue		
Number of issuance		
Number of issuing certificates		
Number of listed certificates		
Type of an underlying stock		
Issuing amount per underlying stock (KRW)		
Par value per underlying stock (KRW)		
Number of stocks to be issued		
Expected total issuing amount (KRW)		
Subscription period for new stocks	Date of start	
	Date of end	
Matters related to transfer permission of subscription rights		
Date of delisting		
Note		

Note.

- 1. The number of stocks to be issued shall be classified and stated separately into total number of stocks to be issued and the number of stocks to be allocated to existing shareholders determined by the board of directors.*
- 2. The subscription date (period) shall be the subscription date (period) for existing shareholders.*
- 3. In case where the transfer of subscription rights is determined by the articles of association (by general meeting of shareholders), the contents of articles of association (contents of general meeting of shareholders' resolution) shall be stated and in case where the transfer of subscription rights is determined by the board of directors, the contents of the resolution shall be stated.*
- 4. The date of delisting shall be five (5) days (based on trading day) before the date of subscription start for existing shareholders.*

[Annex Form No.40] Confirmation of KOSDAQ Market-Listed Corporation

Confirmation of KOSDAQ Market-Listed Corporation

1. Name of company:

2. Name of representative director (CEO):

3. Year of establishment:

4. Amount of capital: KRW _____ (At the time of
listing: KRW _____)

5. Industry:

6. Matters related to listing:

Name of issue	Number of issued stocks	Par value	Date of listing	Listing number

7. Listing agent:

As stated above, the fact that the corporation above is listed on the KOSDAQ market has hereby been confirmed.

Date: mm/dd/yyyy

Name and seal of the Chairperson of Korea Exchange:

Notes:

(1) In case of stocks with par value, "par value per share" shall be stated and in case of no par value, "capital amount per share" shall be stated in the "Par value" column.

(2) The above table shall be completed separately for common stock and each different class of stocks. If a class of stocks has significantly different terms from common stocks, the details shall be stated in notes.

[Annex Form No.41] Listing Details

Listing Details

(Pertaining to [§32] and [§75] of the Enforcement Rules)

To Chairperson of Korea Exchange,

xxxx (name of company) hereby submits the listing details pursuant to [§32] and [§75] of the Enforcement Rules of KOSDAQ Market Listing Regulation as below:

1. Name of company:

2. Date of (Scheduled) Listing:

3. Matters on shares to be listed

Name of issue	Par value	No. of shares to be listed	Start date of dividend eligibility	Note
	KRW	shares		

4. Issue name & code

Name of issue	Korean abbr.	English abbr.	Symbol	ISIN	ISIN (short form)

5. Summary of company

Location of head office	(contact info.)				
Largest shareholder, etc.	Name _____	and	_____	others	

		(Share ownership: %)		
Representative director			Relation with the largest shareholder	
Date of incorporation			Sector and main product (Sector code)	
Date of listing on KOSDAQ				
Capital	Authorized	KRW mil.	Book closing month	
	Paid-in	KRW mil.	Corporate group	
	Par value	KRW	No. of employees	

6. Base market capitalization

	Common stocks	Different classes of stocks	Total
No. of shares to be listed by issue			
Base market capitalization (expected)	KRW mil.	KRW mil.	KRW mil.

7. Overview of Company

- (1) Company summary
- (a) Business objectives
 - (b) History
 - (c) Matters on capital
 - (d) Matters on shares
 - (e) Matters on dividends

- (2) Management organization
 - (a) Organizational chart
 - (b) Matters on chief executive officer
 - (c) Matters on officers and employees
- (3) Matters on business
 - (a)** Status and prospect of industry
 - (b)** Status of company
 - (c)** Matters on main products
 - (d)** Matters on purchases
 - (e)** Matters on production and production facilities
 - (f)** Matters on sales
 - (g)** Sales channel
 - (h)** Major business contracts
 - (i)** R&D activities
 - (j)** Global businesses
- (4) Matters on financial management
 - (a)** Summarized financial information
 - (b)** Financial statements
 - (c)** Summarized consolidated financial information
 - (d)** Consolidated financial statements
 - (e)** Details of external financing
 - (f)** Contingent liabilities
 - (g)** Material matters occurred after the accounts closing
- (5) Matters on accounting
 - (a)** Auditor (CPA)'s audit opinion, etc.
 - (b)** Auditor's audit opinion, etc. on consolidated financial statements
 - (c)** Internal accounting management system
- (6) Corporate governance and transactions with interest parties
 - (a) Summary of corporate governance
 - (b) Status of affiliates
 - (c) Details of equity investment in other corporations
 - (d)** Transactions with the largest shareholder, etc.
 - (e)** Transactions with shareholders (excluding the largest shareholder, etc.), officers, employees, and other interest parties

Notes: In preparing the form, refer to an exemplification separately prepared by the Exchange.

8. Matters on stock analysis if there is any

9. Other matters necessary for investor protection

Notes: Describe major issues and risk factors to be considered for investment decision by investors in relation with the listing of the concerned shares.

In applying for the listing of stocks, xxxx Corporation hereby confirms that the listing details as of mm/dd/yyyy are as above.

Listing sponsor (including lead manager)

Listing applicant

Address:

Address:

Name of company:

Name of company:

Name and seal of representative director:

Name and seal of representative director:

[Annex Form No. 42] Confirmation of Evaluation Loss Relating to Refixing Option Financial Instruments

[December 9, 2022]

Confirmation of Evaluation Loss Relating to Refixing Option Financial Instruments

(Pertaining to [§49] and [§61] of the Enforcement Rules)

To Chairperson of Korea Exchange,

In applying [§49] and [§61] of the Enforcement Rules of the KOSDAQ Market Listing Regulation, we, the undersigned, hereby confirm that the information below is the same as the content stated in the audit report for the business year of 20XX. If any false fact is found, we promise not to raise any objections to whatsoever actions taken by the Exchange against our corporation such as delisting, designation as an administrative issue, etc. pursuant to the KOSDAQ Market Listing Regulation, the Enforcement Rules of the same Regulation and related regulations.

- Loss from continuing operations before corporate tax excluding the amount of financial debt evaluation loss relating to a financial instrument of which exercise price is adjusted according to the price fluctuation of stocks of the issuer

(in relation with paragraph Han138.5(2)(3) of K-IFRS No. 1001)

Classification	Amount (KRW)
Loss from continuing operations before corporate tax before adjustment ¹⁾ (a)	
Evaluation loss of convertible rights and subscription rights (financial debt including them) of refixing option financial instruments ¹⁾ (b)	
Loss from continuing operations before corporate tax after adjustment ²⁾ (c)	

Note 1) State the loss amount as it is (1) in (a) and the absolute value in (b).

2) (c) = (a) + (b)

We hereby confirm that the above is true.

(Date) mm/dd/yyyy

External Auditor: OO Accounting Firm

Name of corporation:

Name/seal of representative director:

Address:

Name/seal of representative director:

[Annex Form No. 43] Confirmation of Evaluation Loss Relating to Financial Instruments

[July 9, 2025]

Confirmation of Evaluation Loss Relating to Financial Instruments

(Pertaining to [§26] and [§75] of the Enforcement Rules)

To Chairperson of Korea Exchange,

In applying [§26] and [§75] of the Enforcement Rules of the KOSDAQ Market Listing Regulation, we, the undersigned, hereby confirm that the information below is the same as the content stated in the audit report for the business year of 20XX. If any false fact is found, we promise not to raise any objection to whatsoever actions taken by the Exchange against our corporation such as delisting, designation as an administrative issue, etc. pursuant to the KOSDAQ Market Listing Regulation, the Enforcement Rules of the same Regulation and related regulations.

Classification	Amount (KRW)
Profit/loss from continuing operations before tax before adjustment ¹⁾ (a)	
Evaluation loss resulting from the exercise of conversion rights for financial instruments ¹⁾ (b)	
Profit/loss from continuing operations before tax after adjustment ^{2) 3)} (c)	

Note 1) State the loss amount in (a) as it is and enter the evaluation loss in (b) in the absolute value.

2) $(c) = (a) + (b)$

3) Profit/loss from continuing operations before tax after adjustment may be applied to the formality review requirements.

We hereby confirm that the above is true.

(Date) mm/dd/yyyy

External Auditor: OO Accounting Firm

Name of corporation:

Name and seal of representative director:

Address:

Name and seal of representative director: